

BLACKWOOD'S

Edinburgh

MAGAZINE.



No. CCCCXXVII. MAY, 1851. Vol. LXIX.

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SOME AMERICAN POETS.¹

It is probable that there has been written much excellent poetry on the other side of the Atlantic with which we are unacquainted, which perhaps has never crossed the water at all. We should therefore be very unwise if we professed to give here, even if such a plan could be executed within the compass of a few pages, a general review of American poetry. All that we propose is, to make some critical observations on the writers before us, accompanied by such extracts as shall not unworthily occupy the attention of our readers. Even the list of names which we have set down at the head of this paper is the result more of accident than design: the works of these authors lay upon our table. The two first names will be recognised directly as the fittest representatives of American poetry; they rise immediately to the lips of every one who speaks upon the subject. The two last will probably be new to our readers, and if so, it will be our pleasant task to introduce them. One name only, familiar to all ears, has been purposely omitted. We have elsewhere spoken, and with no stinted measure of praise, of the writings of Mr Emerson. That writer has found in prose so much better a vehicle of thought than verse has proved to him, (and that even when the thought is of a poetic cast,) that to summon him to receive judgment here amongst the poets, would be only to detract from the commendation we have bestowed upon him.

We say it is not improbable that there is much poetry published in America which does not reach us, because there is much, and of a very meritorious character, published here at home in England, which fails of obtaining any notoriety. Its circulation is more of a private than a public nature, depending perhaps upon the social position of the author, or following, for a short distance, in the wake of a literary reputation obtained by a different species of writing. Not that our critics are reluctant to praise. On the contrary, they might be accused of rendering their praise of no avail by an indiscriminate liberality, if it were not the true history of the matter that a growing indifference of the public to this species of literature led the

way to this very diffuse and indiscriminate commendation. If no one reads the book to test his criticism, the critic himself loses his motive for watchfulness and accuracy: he passes judgment with supreme indifference on a matter the world is careless about; and saves himself any further trouble by bestowing on all alike that safe, moderate, diluted eulogy, which always has the appearance of being fair and equitable. Much meritorious poetry may therefore, for aught we know, both in England and America, exist and give pleasure amongst an almost private circle of admirers. And why not sing for a small audience as well as for a great? It is not every Colin that can pipe, that can now expect to draw the whole countryside to listen to him. What if he can please only a quite domestic gathering, his neighbours or his clan? We are not of those who would tell Colin to lay down his pipe: we might whisper in his ear to mind his sheep as well, and not to break his heart, or to disturb his peace, because some sixty persons, and not six thousand, are grateful for his minstrelsy.

One fine summer's day we stood upon a little bridge thrown over the deep cutting of a newly constructed railway. It was an open country around us, a common English landscape—fields with their hedgerows, and their thin elm-trees stripped of their branches, with here and there a slight undulation of the soil, giving relief to, or partially concealing, the red and white cottage or the red-tiled barn. We were looking, however, into the deep cutting beneath us. Here the iron rails glistened in the sun, and still, as the eye pursued their track, four threads of glittering steel ran their parallel course, but apparently approximating in the far perspective, till they were lost by mere failure of the power of vision to follow them: the road itself was straight as an arrow. On the steep banks, fresh from the spade and pick-axe, not a shrub was seen, not a blade of grass. On the road itself there was nothing but clods of earth, or loose gravel, which lay in heaps by the side of the rails, or in hollows between them: it was enough that the iron bars lay there clear of all obstruction. No human foot, no foot of man or of beast, was ever intended to tread that road. It was for the engine only. From time to time the shrill whistle is heard—the train, upon its hundred iron wheels, shoots through the little bridge, and rolls like thunder along these level grooves. It is soon out of sight, and the country is not only again calm and solitary, but appears for the moment to be utterly abandoned and deserted. It has its old life, however, in it still.

Well, as we were standing thus upon the little bridge, in the open country, and looking down into this deep ravine of the engineer's making, we noticed, fluttering beneath us, a yellow butterfly, sometimes beating its wings against the barren sides, and sometimes perching on the glistening rails themselves. Clearly, most preposterously out of place was this same beautiful insect. What had it to do there? What food, what fragrance, what shelter could it find? Or who was to see and to admire? There was not a shrub, nor an herb, nor a flower, nor a playmate of any description. It is manifest, most beautiful butterfly, that you cannot live here. From these new highways of ours, from these iron thoroughfares, you must certainly depart. But it follows not that you must depart the world altogether. In yonder hollow at a distance there is a cottage, surrounded by its trees and its flowers, and there are little children whom you may sport with, and tease, and delight, taking care they do not catch you napping. There is still *garden-ground* in the world for you, and such as you.

Sometimes, when we have seen pretty little gilded volumes of song and poetry lying about in the great highways of our industrial world, we have recalled this scene to mind. There is garden-ground left for them also, and many a private haunt, solitary or domestic, where they will be welcome.

We have heard it objected against American poets, but chiefly by their own countrymen, that they are not sufficiently *national*. This surely is a most unreasonable complaint. The Americans inhabit what was once, and is still sometimes called, the New World, but they are children of the Old. Their religion grew, like ours, in Asia; they receive it, as we do, through the nations of the west of Europe; they are, like us, descendants of the Goth and the Roman, and are compounded of those elements which Rome and Palestine, and the forests of Germany, severally contributed towards the formation of what we call the Middle Ages. They have the same intellectual pedigree as ourselves. No Tintern Abbey, or Warwick Castle, stands on their rivers, to mark the lapse of time; but they must ever look back upon the days of the monk and of the knight, as the true era of romance. Proud as they may be of their Pilgrim Fathers, one would not limit them to this honourable paternity. It is very little poetry they would get out of the *Mayflower*—or philosophy either.

There are, it is true, subjects for poetry native to America—new aspects of nature and of humanity—the aboriginal forest, the aboriginal man, the prairie, the settler, and the savage. But even in these the American poet cannot keep a monopoly. Englishmen and Frenchmen have visited his forests; they have stolen his Red Indian; and have made the more interesting picture of him in proportion as they knew less of the original. Moreover, many of the peculiar aspects of human life which America presents may require the mellowing effect of time, the half obscurity of the past, to render them poetic. The savage is not the only person who requires to be viewed at a distance: there is much in the rude, adventurous, exciting life of the first settlers which to posterity may appear singularly attractive. They often seem to share the power and the skill of the civilised man, with the passions of the barbarian. What a scene—when viewed at a distance—must be one of their *revivals*! A camp-meeting is generally described by those who have witnessed it, in the language of ridicule or reproof. But let us ask ourselves this question—When St Francis assembled *five thousand* of his followers on the plains of Assisi, and held what has been called, in the history of the Franciscan order, "the Chapter of Mats," because the men had no other shelter than rude tents made of mats—on which occasion St Francis himself was obliged to moderate the excesses of fanaticism and fanatical penance in which his disciples indulged—what was this but a camp-meeting? In some future age, a revival in the "Far West," or a company of Millerites expecting their translation into heaven, will be quite as poetical as this Chapter of Mats. For ourselves, we think that any genuine exhibition of sentiment, by great numbers of our fellow-men, is a subject worthy of study, and demands a certain respect. Those, however, who can see nothing but absurdity and madness in a camp-meeting, would have walked through the five thousand followers of St Francis with the feeling only of intolerable disgust. Yet so it is, that merely from the lapse of time, or the obscurity it throws over certain parts of the picture, there are many who find something very affecting and sublime in the fanaticism of the thirteenth century, who treat the same fanaticism with pity or disdain when exhibited in the nineteenth.

"Miltons and Shakspeares," says an editor of one of the volumes before us, "have not yet sprung from the only half-tilled soil of the mighty continent; giants have not yet burst from its forests, with a grandeur equal

to their own; but," &c. &c. Doubtless the giant will make his appearance in due course of time. But what if he should never manifest himself in the epic of twelve, or twenty-four books, or in any long poem whatever? A number of small poems, beautiful and perfect of their kind, will constitute as assuredly a great work, and found as great a reputation. We are far from thinking that the materials for poetry are exhausted or diminished in these latter days. As a general rule, in proportion as men *think*, do they *feel*,—more variously, if not more deeply, themselves—and more habitually through sympathy with others. Love and devotion, and all the more refined sentiments, are heightened in the cultivated mind; and speculative thought itself becomes a great and general source of emotion. As almost every man has felt, at one period of his life, the passion of love, so almost every cultivated mind has felt, at one period of his career, what Wordsworth describes as—

"The burden and the mystery
Of all this unintelligible world."

We are persuaded that both the materials and the readers of poetry will increase and multiply with the spread of education. But there is apparently a revolution of taste in favour of the lyric, and at the expense of the epic poet. A long narrative, in verse of any kind, is felt to be irksome and monotonous: it could be told so much better in prose. We do not speak of such narrations as *The Paradise Lost*, where religious feeling presides over every part, and where, in fact, the narrative is absorbed in the sentiment. If Milton were living at this day, there is no reason why he should not choose the same theme for his poem. But Tasso and Ariosto would think long before they would now select for their flowing stanzas the *Jerusalem Delivered*, or the *Orlando Furioso*. Such themes, they would probably conclude, might be far more effectively dealt with in prose.

Fiction, told as Sir Walter Scott tells it—history, as Macaulay narrates—such examples as these put the reading world, we think, quite out of patience with verse, when applied to the purpose of a lengthy narrative. They and others have shown that prose is so much the better vehicle. It may be rendered almost equally harmonious, and admits of far greater variety of cadence; it may be polished and refined, and yet adapt itself, in turns, to

every topic that arises. No need here to omit the most curious incident, or the most descriptive detail, because it will not comport with the dignified march of the verse, or of the versified style. The language here rises and falls naturally with the subject, or may be made to do so; nor is it ever necessary to obscure the meaning, for the sake of sustaining a wearisome rhythm. If you have a long story to tell, by all means tell it in prose.

But the short poem—need we say it?—is not ephemeral because it is brief. The most enduring reputation may be built upon a few lyrics. They should, however, not only contain some beautiful verses—they should be beautiful throughout. And this brings us to the only real complaint which we, in our critical capacity, have to allege against the tuneful brethren in America. We find too much haste, far too much negligence, and a willingness to be content with what has first presented itself. Instead of recognising that the short poem ought to be almost perfect, they seem to proceed on the quite contrary idea, that because it is brief, it should therefore be hastily written, and that it would be a waste of time to bestow much revision upon it. We often, meet with a poem where the sentiment is natural and poetic, but where the effect is marred by this negligent and unequal execution. A verse of four lines shall have three that are good, and the fourth shall limp. Or a piece shall consist but of five verses, and two out of the number must be absolutely effaced if you would re-peruse the composition with any pleasure. Meanwhile there is sufficient merit in what remains to make us regret this haste and inequality. To our own countrymen, as well as to the American, we would suggest that the small poem may be a great work; but that, to become so, it should not only be informed by noble thought, it should exhibit no baser metal, no glaring inequalities of style, and, above all, no conflicting, obscure, or half-extricated meanings. We believe that it would be generally found, if we could penetrate the secret history of really beautiful compositions, that, however brief, and although they were written at first during some happy hour of inspiration, they had received again and again new touches, and the "fortunate erasures" of the poet. By this process only did they grow to be the completely beautiful productions which they are. Such exquisite lyrics are very rare, and we may depend upon it they are not produced without much thought and labour, joined, as we say, to that happy hour of inspiration.

Mr Longfellow occupies, and most worthily, the first place on our list. He has obtained, as well by his prose as his poetry, a certain recognised place in that literature of the English language which is common to both countries. His *Hyperion* has been for some time an established favourite amongst a class of readers with whom to be popular implies a merit of no vulgar description. Mr Longfellow has relied too much, for an independent and permanent reputation, on his German and his Spanish friends. An elegant and accomplished writer, a cultivated mind—a critic would be justified in praising his works, more than the author of them. He has studied foreign literature with somewhat too much profit. We have no critical balance so fine as would enable us to weigh out the two distinct portions of merit which may be due to an author, first as an original writer, and then as a tasteful and skilful artist, who has known how and where to gather and transplant, to translate, or to appropriate. It is a distinction which, as readers, we should be little disposed to make, but which, as critics, we are compelled to take notice of. We should not impute to Mr Longfellow any flagrant want of originality; but a fine appreciation of thoughts presented to him by other minds, and the skill and tact of the cultivated artist, are qualities very conspicuous in his writings. Having once taken notice of this, we have no wish to press it further; still less would we allow his successful study, and his bold and felicitous imitations of the writings of others, to detract from the merit of what is really original in his own.

What a noble lyric is this, "The Building of the Ship!" It is full of the spirit of Schiller. A little more of the file—something more of harmony—and it would have been quite worthy of the name of Schiller. The interweaving of the two subjects, the building and launching of the vessel, with the marriage of the shipbuilder's daughter, and the launching of that *other bride* on the waters of life, is very skilfully managed; whilst the name of the ship, The Union, gives the poet a fair opportunity of introducing a third topic in some patriotic allusions to the great vessel of the state:—

"Build me straight, O worthy Master!
Stanch and strong, a goodly vessel,
That shall laugh at all disaster,
And with wave and whirlwind wrestle!"

Such is the merchant's injunction to the master-builder, who forthwith proceeds to fulfil it.

"Beside the master, when he spoke,
A youth, against an anchor leaning,
Listened to catch the slightest meaning.
Only the long waves, as they broke
In ripples on the pebbly beach,
Interrupted the old man's speech.

Beautiful they were in sooth,
The old man and the fiery youth!
The old man, in whose busy brain
Many a ship that sailed the main
Was modelled o'er and o'er again;—
The fiery youth, who was to be
The heir of his dexterity,
The heir of his house and his daughter's hand,
When he had built and launched from land
What the elder head had planned.

'Thus,' said he, 'will we build this ship!
Lay square the blocks upon the slip,
And follow well this plan of mine:
Choose the timbers with greatest care,
Of all that is unsound beware;
For only what is sound and strong
To this vessel shall belong.
Cedar of Maine and Georgia pine
Here together shall combine.
A goodly frame and a goodly fame,
And the UNION be her name!
For the day that gives her to the sea
Shall give my daughter unto thee!'"

Under such auspices the vessel grows day by day. The mention of the tall masts, and the slender spars, carry the imagination of the poet to the forest where the pine-trees grew. We cannot follow him in this excursion, but here is a noble description of some part of the process of the building of the ship:—

"With oaken brace and copper band
Lay the rudder on the sand,
That, like a thought, should have control
Over the movement of the whole;
And near it the anchor, whose giant hand
Should reach down and grapple with the land,
And immovable, and fast
Hold the great ship against the bellowing blast!"

At length all is finished—the vessel is built:—

"There she stands,
With her foot upon the sands,
Decked with flags and streamers gay,
In honour of her marriage-day;
Her snow-white signals fluttering, blending,
Round her like a veil descending,
Ready to be
The bride of the grey old sea.

On the deck another bride
Is standing by her lover's side,
Shadows from the flags and shrouds,
Like the shadows cast by clouds,
Broken by many a sunny fleck,
Fall around them on the deck.

Then the master
With a gesture of command,
Waved his hand.
And at the word,
Loud and sudden there was heard,
All around them and below,
The sound of hammers, blow on blow,
Knocking away the shores and spurs.
And see! she stirs!
She starts—she moves—she seems to feel
The thrill of life along her keel,
And spurning with her foot the ground,
With one exulting joyous bound
She leaps into the ocean's arms!

And lo! from the assembled crowd
There rose a shout prolonged and loud,
That to the ocean seemed to say—
'Take her, O bridegroom old and grey,
Take her to thy protecting arms,
With all her youth and all her charms!'

How beautiful she is! How fair
She lies within those arms that press
Her form with many a soft caress
Of tenderness and watchful care!

Sail forth into the sea, O ship!
Through wind and wave right onward steer!
The moistened eye, the trembling lip,
Are not the signs of doubt or fear!
Sail forth into the sea of life,
O gentle, loving, trusting wife,
And safe from all adversity
Upon the bosom of that sea
Thy comings and thy goings be!
For gentleness, and love, and trust,
Prevail o'er angry wave and gust.

Thou too, sail on, O ship of state!
Sail on, O UNION, strong and great!
Humanity, with all its fears,
With all its hopes of future years,
Is hanging breathless on thy fate!
We know what master laid thy keel,
What workmen wrought thy ribs of steel,
Who made each mast and sail and rope,
What anvils rang, what hammers beat,
In what a forge, and what a heat
Were shaped the anchors of thy hope!
Fear not each sudden sound and shock!

fear not each sudden sound and shock!
'Tis of the wave, and not the rock;
'Tis but the flapping of the sail
And not a rent made by the gale!
In spite of rock and tempest roar,
In spite of false lights on the shore,
Sail on, nor fear to breast the sea!
Our hearts, our hopes, are all with thee,
Our hearts, our hopes, our prayers, our tears,
Our faith triumphant o'er our fears,
Are all with thee—are all with thee!"

This noble ode leads the van of a small collection of poems called, "By the Seaside." A series of companion-pictures bear the name of, "By the Fireside." We may as well proceed with a few extracts from these. The following are from some verses on "The Lighthouse."

"The mariner remembers when a child
On his first voyage, he saw it fade and sink;
And, when returning from adventures wild,
He saw it rise again on ocean's brink.

Steadfast, serene, immovable, the same
Year after year, thro' all the silent night
Burns on for evermore that quenchless flame,
Shines on that inextinguishable light!

The startled waves leap over it; *the storm*
Smotes it with all the scourges of the rain,
And steadily against its solid form
Press the great shoulders of the hurricane."

This is bold and felicitous: the following, to "The Twilight," is in a more tender strain. The first verse we cannot quote: we suspect there is some misprint in our copy. Mr Longfellow could not have written these lines—

"And like the wings of sea-birds
Flash the *white caps* of the sea."

Whether women's caps or men's nightcaps are alluded to, the image would be equally grotesque. The poem continues—

"But in the fisherman's cottage
There shines a ruddier light,
And a little face at the window
Peers out into the night.

Close, close it is pressed to the window,
As if these childish eyes
Were looking into the darkness
To see some form arise.

And a woman's waving shadow
Is passing to and fro,
Now rising to the ceiling,
Now bowing and bending low.

What tale do the roaring ocean,
And the night-wind, bleak and wild,
As they beat at the crazy casement,
Tell to that little child?

And why do the roaring ocean,
And the night-wind, wild and bleak,
As they beat at the heart of the mother,
Drive the colour from her cheek?"

Mr Longfellow understands how to *leave off*—how to treat a subject so that all is really said, yet the ear is left listening for more. "By the Fireside" is a series, of course, of mere domestic sketches. The subjects, however, do not always bear any distinct reference or relation to this title. That from which we feel most disposed to quote is written on some "Sand of the Desert in an Hour-Glass." It has been always a favourite mode of composition to let some present object carry the imagination, by links of associated thought, whithersoever it pleased. This sort of reverie is natural and pleasing, but must not be often indulged in. It is too easy; and we soon discover that any topic thus treated becomes endless, and will lead us, if we please, over half the world. At length it becomes indifferent where we start from. Without witchcraft, one may ride on any broomstick into Norway. But the present poem, we think, is a very allowable specimen of this mode of composition. The poet surveys this sand of the desert, now confined within an hour-glass; he thinks how many centuries it may have blown about in Arabia, what feet may have trodden on it—perhaps the feet of Moses, perhaps of the pilgrims to Mecca; then he continues—

"These have passed over it, or may have passed!
Now in this crystal tower,
Imprisoned by some curious hand at last,
It counts the passing hour.

And as I gaze, these narrow walls expand;
Before my dreamy eye
Stretches the desert, with its shifting sand,
Its unimpeded sky.

And, borne aloft by the sustaining blast,
This little golden thread
Dilates into a column high and vast,
A form of fear and dread.

And onward and across the setting sun,
Across the boundless plain,
The column and its broader shadow run,
Till thought pursues in vain.

The vision vanishes! These walls again
Shut out the lurid sun,
Shut out the hot immeasurable plain;
The half-hour's sand is run!"

We notice in Mr Longfellow an occasional fondness for what is *quaint*, as if Quarles' *Emblems*, or some such book, had been at one time a favourite with him. In the lines entitled "Suspiria," solemn as the subject is, the thought trembles on the verge of the ridiculous. But, leaving these poems, "By the Seaside," and "By the Fireside," we shall find a better instance of this tendency to a certain quaintness in another part of the volume before us. The "Old Clock on the Stairs" is a piece which invites a few critical observations. It is good enough to be quoted almost entirely, and yet affords an example of those faults of haste and negligence and incompleteness which even Mr Longfellow has not escaped.

THE OLD CLOCK ON THE STAIRS.

"L'éternité est une pendule, dont le balancier dit et redit sans cesse ces deux mots seulement dans le silence des tombeaux. 'Toujours! Jamais!—Jamais! Toujours!'"—JACQUES BRIDAINE.

"Somewhat back from the village street
Stands the old-fashioned country-seat:
Across its antique portico
Tall poplar-trees their shadows throw;
And from its station in the hall
An ancient time-piece say to all—
 'For ever—never!
 Never—for ever!'

Half-way up the stairs it stands,
And points and beckons with its hands,
From its case of massive oak,
Like a monk who, under his cloak,
Crosses himself, and sighs, 'Alas!'
With sorrowful voice to all who pass—
 'For ever—never!
 Never—for ever!'

By day its voice is low and light,
But in the silent dead of night,
Distinct as a passing footstep's fall,
It echoes along the vacant hall,
Along the ceiling, along the floor,
And seems to say at each chamber door—
 'For ever—never!
 Never—for ever!'

In that mansion used to be
Free-hearted Hospitality;
His great fires up the chimney roared,
The stranger feasted at his board;
But, like the skeletons at the feast,
That warning timepiece never ceased—
 'For ever—never!
 Never—for ever!'

There groups of merry children played,
There youths and maidens dreaming strayed:
O precious hours! O golden prime,
And affluence of love and time!
Even as a miser counts his gold,
Those hours, the ancient timepiece told—
 'For ever—never!
 Never—for ever!'

All are scattered now and fled,
Some are married, some are dead;
And when I ask, with throbs of pain,
'Ah, when shall they all meet again!'
As in the days long since gone by,
The ancient timepiece makes reply—
 'For ever—never!
 Never—for ever!'

Never here, for ever there,
Where all parting, pain, and care,
And death and time shall disappear—
For ever there, but never here!
The horologe of Eternity
Sayeth this incessantly—
 'For ever—never!
 Never—for ever!'"

Mr Longfellow has not treated Jacques Bridaine fairly—certainly not happily. The pious writer intended that his clock, which represents the voice of Eternity, or the Eternal Destiny of each man, should, by the solemn ticking of its pendulum, utter to the ear of every mortal, according to his conscience, the happy "Toujours!" or the mournful "Jamais!" for the joys of Heaven are either "Always" or "Never." But no clock could utter to the conscience of any man a word of *three* syllables, and by translating the "Tou-jours!—Ja-mais!" into "For ever!—Never!" we lose the voice of the pendulum. The point of the passage is the same, in this respect, as that of the well-known story of the Dutch widow who consulted her pastor whether she should marry again or not. Her pastor, knowing well that, in these cases, there is but one advice which has the least chance of being followed, referred her to the bells of the church, and bade her listen to them, and mark what they said upon the subject. They said very distinctly, "Kempt ein mann!"—"Take a husband!" Thereupon the pastor re-echoed the same advice. Jacques Bridaine intended that, according to the conscience which the listener brought, the swinging pendulum of his eternal clock would welcome him with the "Toujours!" or utter the knell of "Jamais!" This *conceit* Mr Longfellow does not preserve. But, what is of far more importance, he preserves no one distinct sentiment in his piece; nor is it possible to detect, in all cases, what *his* clock means by the solemn refrain, "For ever—never! Never—for ever!" When at the last verse the pendulum

explains itself distinctly, the sentiment is diluted into what Jacques Bridaine would have thought, and what we think too, a very tame commentary on human life. At the fifth verse, as it stands in our quotation, the old clock quite forgets his character of monitor, and occupies himself with registering the happy hours of infancy. Very amiable on its part; but, if endowed with this variety of sentiment, it should be allowed to repeat something else than its "ever—never."

"Even as a miser counts his gold,
Those hours the ancient time-piece told—
'For ever—never!
Never—for ever!"

These remarks may seem very gravely analytical for the occasion that calls them forth. But if it were worth while to adopt a *conceit* of this description as the text of his poem, it was worth the author's pains to carry it out with a certain distinctness and unity.

Considering the tact and judgment which Mr Longfellow generally displays, we were surprised to find that the longest poem in the volume, with the exception, perhaps, of "The Spanish Student, a play in three acts," has been written in Latin hexameters—is, in fact, one of those painful unlucky metrical experiments which poets will every now and then make upon our ears. They have a perfect right to do so: happily there is no statute which compels us to read. A man may, if he pleases, dance all the way from London to Norwich: one gentleman is said to have performed this feat. We would not travel in that man's company. We should grow giddy with only looking upon his perpetual shuffle and *cinq-a-pace*. The tripping dactyle, followed by the grave spondee, closing each line with a sort of *curtsey*, may have a charming effect in Latin. It pleased a Roman ear, and a scholar learns to be pleased with it. We cannot say that we have been ever reconciled by any specimen we have seen, however skilfully executed, to the imitation of it in English; and we honestly confess that, under other circumstances, we should have passed over *Evangeline* unread. If, however, the rule *de gustibus*, &c., be ever quite applicable, it is to a case of this kind. With those who assert that the imitation hexameter does please them, and

that they like, moreover, the idea of *scanning* their English, no controversy can possibly be raised.

But although *Evangeline* has not reconciled us to this experiment, there is so much sweetness in the poetry itself, that, as we read on, we forget the metre. The story is a melancholy one, and forms a painful chapter in the colonial history of Great Britain. Whether the rigour of our Government was justified by the necessity of the case, we will not stop to inquire; but a French settlement, which had been ceded to us, was accused of favouring our enemies. The part of the coast they occupied was one which could not be left with safety in unfriendly hands; and it was determined to remove them to other districts. The village of Grand Pré was suddenly swept of its inhabitants. Evangeline, in this dispersion of the little colony, is separated from her lover; and the constancy of the tender and true-hearted girl forms the subject of the poem.

Our readers will be curious, perhaps, to see a specimen of Mr Longfellow's hexameters. *Evangeline* is one of those poems which leave an agreeable impression as a whole, but afford few striking passages for quotation. The following is the description of evening in the yet happy village of Grand Pré:—

"Now recommenced the reign of rest and affection and stillness.
Day with its burden and heat had departed, and twilight descending
Brought back the evening star to the sky, and the herds to the homestead.
Pawing the ground they came, and resting their necks on each other,
And, with their nostrils distended, inhaling the freshness of evening.
Foremost, bearing the bell, Evangeline's beautiful heifer,
Proud of her snow-white hide, and the ribbon that waved from her collar,
Quietly paced and slow, as if conscious of human affection.
Then came the shepherd back with his bleating flocks from the sea-side,
Where was their favourite pasture. Behind them followed the watch-dog,
Patient, full of importance, and grand in the pride of his instinct,
Walking from side to side with a lordly air."——

All this quiet happiness was to cease. The village itself was to be depopulated.

*"There o'er the yellow fields, in silent and mournful procession,
Came from the neighbouring hamlets and farms the Acadian women,
Driving in ponderous wains their household goods to the sea-shore,
Pausing, and looking back to gaze once more on their dwellings,
Ere they were shut from sight by the winding roads and the woodlands.
Close at their sides their children ran, and urged on the oxen,
While in their little hands they clasped some fragments of playthings."*

If in "Evangeline," Mr Longfellow has hazarded a trial upon our patience, in the "Spanish Student," on the contrary—which, being in the dramatic form, had a certain privilege to be tedious—he has been both indulgent and considerate to his reader. It is properly called a play, for it does not attempt the deep passion of tragedy. It is spirited and vivacious, and does not exceed three acts. Hypolito, a student who is not in love, and therefore can jest at those who are, and Chispa, the roguish valet of Victoriano, the student who is in love, support the comic portion of the drama. Chispa, by his Spanish proverbs, proves himself to be a true countryman of Sancho Panza. We must give a specimen of Chispa; he is first introduced giving some very excellent advice to the musicians whom he is leading to the serenade:—

"Chispa.—Now, look you, you are gentlemen that lead the life of crickets; you enjoy hunger by day, and noise by night. Yet I beseech you, for this once, be not loud, but pathetic; for it is a serenade to a damsel in bed, and not to the Man in the Moon. Your object is not to arouse and terrify, but to soothe and bring lulling dreams. Therefore each shall not play upon his instrument as if it were the only one in the universe, but gently, and with a certain modesty, according with the others. What instrument is that?

1st Mus.—An Arragonese bagpipe.

Chispa.—Pray, art thou related to the bagpiper of Bujalance, who asked a maravedi for playing, and ten for leaving off?

1st Mus.—No, your honour.

Chispa.—I am glad of it. What other instruments have we?

2d and 3d Mus.—We play the bandurria.

Chispa.—A pleasing instrument. And thou?

4th Mus.—The fife.

Chispa.—I like it; it has a cheerful, soul-stirring sound, that soars up to my lady's window like the song of a swallow. And you others?

Other Mus.—We are the singers, please your honour.

Chispa.—You are too many. Do you think we are going to sing mass in the cathedral of Cordova? *Four men can make little use of one shoe, and I see not how you can all sing in one song.* But follow me along the garden-wall. That is the way my master climbs to the lady's window. It is by the vicar's skirts the devil climbs into the belfry. Come, follow me, and make no noise.

[*Exeunt.*"]

Chispa is travelling with his master, Victorian. When they come to an inn, the latter regales himself with a walk in the moonlight, meditating on his mistress. Not so Chispa.

"*Chispa.*—Hola! ancient Baltasar! Bring a light and let me have supper.

Bal.—Where is your master?

Chispa.—Do not trouble yourself about him. We have stopped a moment to breathe our horses; and if he chooses to walk up and down in the open air, looking into the sky *as one who hears it rain*, that does not satisfy my hunger, you know. But be quick, for I am in a hurry, and every one stretches his legs according to the length of his coverlet. What have we here?

Bal. (*setting a light on the table.*)—Stewed rabbit.

Chispa (eating.)—Conscience of Portalegre! Stewed kitten, you mean!

Bal.—And a pitcher of Pedro Ximenes with a roasted pear in it.

Chispa (drinking.)—Ancient Baltasar amigo! You know how to cry wine and sell vinegar.—Moreover, your supper is like the hidalgo's dinner, *very little meat, and a great deal of table-cloth.*

Bal.—Ha! ha! ha!

Chispa.—And more noise than nuts.

Bal.—Ha! ha! ha! You must have your jest, Master Chispa. But shall not I ask Don Victorian in to take a draught of the Pedro Ximenes?

Chispa.—No; you might as well say, 'Don't you want some?' to a dead man.

Bal.—Why does he go so often to Madrid?

Chispa.—For the same reason that he eats no supper. He is in love. Were you ever in love, Baltasar?

Bal.—I was never out of it, good Chispa.

Chispa.—What! you on fire too, old haystack? Why, we shall never be able to put you out.

Vict. (without.)—Chispa!

Chispa.—Go to bed—the cocks are crowing."

This Chispa changes masters in course of the piece, and enters into the service of Don Carlos; but the change does not seem to have advanced his fortunes, for we find him thus moralising to himself at the close of the play—

"Alas! and alack-a-day! Poor was I born, and poor do I remain. I neither win nor lose. Thus I wag through the world half the time on foot, and the other half walking.... And so we plough along, as the fly said to the ox. Who knows what may happen? Patience, and shuffle the cards! I am not yet so bald that you can see my brains."

It would not be difficult to select other favourable specimens both of the graver and lighter manner of Mr Longfellow; but we must now proceed to the second name upon our list.

Mr Bryant is a poet who not unfrequently reminds us of Mrs Hemans. Perhaps we could not better, in a few words, convey our impression of his poetical *status*. His verse is generally pleasing—not often powerful. His good taste rarely deserts him; but he has neither very strong passions, nor those indications of profounder thought which constitute so much of the charm of modern poetry. For he who would take a high rank amongst our lyric poets should, at one time or other, have dwelt and thought with the philosophers. He should be seen as stepping from the Porch; he should have wandered, with his harp concealed beneath his robe, in the gardens of the Academy.

Short as Mr Bryant's poems generally are, they still want concentration of thought—energy—unity. In quoting from him, we should often be disposed to make omissions for the very sake of *preserving* a connection of ideas. The omission of several verses, even in a short poem, so far from occasioning what the doctors would call a "solution of continuity," would often assist in giving to the piece a greater distinctness, and unity of thought and purpose. This ought not to be.

Mr Bryant's poems, we believe, are by this time familiar to most readers of poetry; we must, therefore, be sparing of our quotations. In the few we make, we shall be anxious to give the most favourable specimens of his genius: the faults we have hinted at will sufficiently betray themselves without seeking for especial illustration of them. Our first extract shall be from some very elegant verses on a subject peculiarly American—"The Prairie." We quote the commencement and the conclusion. The last strikes us as singularly happy. Mr Bryant starts with rather an unfortunate expression; he calls the Prairie "the garden of the desert;" he rather meant

"the garden-desert." He may describe the Prairie, if he pleases, as one green and blooming desert; but the garden *of the* desert implies a desert to which it belongs—would be an oasis, in short:—

THE PRAIRIES.

"These are the gardens of the desert, these
The unshorn fields, boundless and beautiful,
For which the speech of England has no name—
The Prairies. I behold them for the first,
And my heart swells while the dilated sight
Takes in the encircling vastness. Lo! they stretch
In airy undulations far away,
As if the ocean, in his gentlest swell,
Stood still, with all his rounded billows fixed,
And motionless forever. Motionless?
No!—they are all unchained again. The clouds
Sweep over with the shadows, and beneath
The surface rolls and fluctuates to the eye;
Dark hollows seem to glide along, and chase
The sunny ridges....

Still this great solitude is quick with life.
Myriads of insects, gaudy as the flowers
They flutter over, gentle quadrupeds,
And birds that scarce have learned the fear of man,
Are here, and sliding reptiles of the ground
Startlingly beautiful. The graceful deer
Bounds to the wood at my approach. The bee,
A more adventurous colonist than man,
With whom he came across the Eastern deep,
Fills the savannas with his murmurings,
And hides his sweets, as in the golden age,
Within the hollow oak. I listen long
To his domestic hum, and think I hear
The sound of that advancing multitude
Which soon shall fill these deserts. *From the ground*
Comes up the laugh of children, the soft voice
Of maidens, and the sweet and solemn hymn
Of Sabbath worshippers. The low of herds
Blends with the rustling of the heavy grain
Over the dark brown furrows. All at once
A fresher wind sweeps by, and breaks my dream,
And I am in the wilderness alone."

It is a natural sentiment, though somewhat difficult to justify, which poets, and others than poets, entertain when they look about for some calm and beautiful spot, some green and sunny slope, for their final resting-place. Imagination still attributes something of sensation, or of consciousness, to what was once the warm abode of life. Mr Bryant, in a poem called "June," after indulging in this sentiment, gives us one of the best apologies for it we remember to have met with. There is much grace and pathos in the following verses:—

"I know, I know I should not see
The seasons' glorious show,
Nor would its brightness shine for me,
Nor its wild music flow;
But if around my place of sleep,
The friends I love should come to weep,
They might not haste to go.
Soft airs, and song, and light and bloom
Should keep them lingering by my tomb.

These to their softened hearts should bear
The thought of what has been,
And speak of one who *cannot share*
The gladness of the scene;
Whose part, in all the pomp that fills
The circuit of the summer hills,
Is—that his grave is green;
And deeply would their hearts rejoice
To hear again his living voice."

"The Lapse of Time" is a piece which might be quoted as a favourable specimen of Mr Bryant's poetry. It might also serve as an instance of its *shortcoming*—of its want of concentration—of a distinct, firm tone of thought. As it is not long, we will quote the whole of it. Our complaint of a certain weakness—the want of a steady and strong grasp of his subject—could not be less disagreeably illustrated, nor brought to a more rigid test. Our italics here are not complimentary, but simply serve the purpose of drawing attention to the train of thought or sentiment:—

THE LAPSE OF TIME.

"Lament who will, in fruitless tears,
The speed with which our moments fly;
I sigh not over vanished years,
But watch *the years that hasten by*.

Look how they come—a mingled crowd
Of bright and dark, but rapid days;
Beneath them, like a summer cloud,
The wide world changes as I gaze.

What! grieve that time *has brought so soon*
The sober age of manhood on!
As idly might I weep, at noon,
To see the blush of morning gone.

Could I give up the hopes that glow
In prospect like Elysian isles,
And let the cheerful future go,
With all her promises and smiles?

The Future! cruel were the power
Whose doom would tear thee from my heart,
Thou sweetener of the present hour!
We cannot—no—we will not part.

Oh, leave me still the rapid flight
That makes the changing seasons gay—
The grateful speed that brings the night,
The swift and glad return of day;

The months that touch with added grace
This little prattler at my knee,
In whose arch eye and speaking face
New meaning every hour I see.

The years that o'er each sister land
Shall lift the country of my birth,
And nurse her strength till she shall stand
The pride and pattern of the earth:

Till younger commonwealths, for aid,
Shall cling about her ample robe,
And from her frown shall shrink afraid
The crowned oppressors of the globe.

True—time will seam and blanch my brow;
Well—I shall sit with aged men,
And my good glass shall tell me how
A grizzly beard becomes me then.

And then should no dishonour lie

Upon my head when I am grey,
Love yet shall watch my fading eye,
And smooth the path of my decay.

Then, haste thee, Time—'tis kindness all
That speeds thy wingèd feet so fast;
Thy pleasures stay not till they pall,
And all thy pains are quickly past.

Thou fliest and bearest away our woes,
And, as thy shadowy train depart,
The memory of sorrow grows
A lighter burden on the heart."

Brief as the poem is, it should have been divided into two; for it is a song of resignation and a song of hope mingled together. It must strike the least reflective reader that no man needs consolation for the lapse of time, who is occupied with hopeful anticipations of the future. It is because Time carries away our hopes with it, and leaves us the very tranquil pleasures of age, that we "sigh over vanished years." Every sentiment which Mr Bryant expresses in this poem is natural and reasonable; but it follows not that they should have been brought together within the compass of a few verses. At one moment we are looking at *the past*, or we are told not to grieve

"That time has brought so soon
The sober age of manhood on!"

the next, we are called upon to sympathise in some unexpected rapture, by no means happily expressed, about *the future*—"The future!" &c.,—as if some one had been threatening to cut us off from our golden anticipations. The only result we are left in unquestioned possession of is, that if the present time did not move on, the future could not advance. But it is not such an abstraction or truism as this, we presume, that the poet intended to teach; he intended to portray the natural sentiments which arise as we reflect on human life, whether passing or past, or as seen in the hopeful future; and these he should not have mingled confusedly together. It would be tedious to carry on the analysis any farther; but we may add, that it is hardly wise, in the same short poem, to speak rapturously of the Elysian glories of the future, and mournfully of "Time's shadowy train," which can be no other than these Elysian glories *seen from behind*.

Like Mr Longfellow, Mr Bryant is both a German and a Spanish scholar; and he has enriched his own collection of poems with some very pleasing translations. We are tempted to conclude our extracts from this poet by two brief specimens of these translations—the one from the Spanish, the other from the German:—

"Alexis calls me cruel—

I would that I could utter
My feelings without shame,
And tell him how I love him,
Nor wrong my virgin fame.

Alas! to seize the moment
When heart inclines to heart,
And press a suit with passion,
Is not a woman's part.

If man comes not to gather
The roses where they stand,
They fade among their foliage;
They cannot seek his hand."

Here the maiden is very maidenly. Our next is far more piquant. We often hear of young ladies angling; they catch, and they are caught; and they are sometimes not a little frightened at their own success in this perilous species of angling. Uhland has put all this before us in a very pictorial manner, and Mr Bryant has very happily translated him—

"There sits a lovely maiden
The ocean murmuring nigh;
She throws the hook and watches
The fishes pass it by.

A ring with a ring jewel,
Is sparkling on her hand;
Upon the hook she binds it,
And flings it from the land.

Uprises from the water
A hand like ivory fair.
What gleams upon its finger?
The golden ring is there.

Uprises from the bottom
A young and handsome knight;
In golden scales he rises,
That glitter in the light.

The maid is pale with terror—
'Nay, knight of ocean, nay,
It was not thee I wanted;
Let go the ring, I pray.'

'Ah, maiden, not to fishes
The bait of gold is thrown;
The ring shall never leave me,
And thou must be my own.'"

It cannot be complained of *Mr Whittier's* poems that they are not sufficiently national; but they are national in a very disagreeable point of view—they introduce us into the controversies of the day. Mr Whittier appears to be one of those who write verses, hymns, or odes, instead of, or perhaps in addition to, sundry speeches at popular assemblies in favour of some popular cause. His rhymes have the same relation to poetry that the harangues delivered at such meetings bear to eloquence. We were at a loss to understand on what wings (certainly not those of his poetic genius) he had flown hither, till we discovered that his intemperate zeal against slavery, as it exists in the southern States of America, had procured for him a welcome amongst a certain class of readers in England. If we insert his name here, it is simply to protest against the adoption by any party, but especially by any English party, of such blind, absurd, ungovernable zeal, upon a question as difficult and intricate as it is momentous. Both Mr

Longfellow and Mr Bryant write upon slavery; and both have produced some very touching poems on the subject; but they treat the topic as poets. Mr Whittier treats the subject with the rabid fury of a fierce partisan. No story so preposterous or ridiculous but he can bend it to his purpose. He throws contumely upon the ministers of the gospel in the Southern States, because instead of attempting, every moment of their lives, to overthrow the unfortunate organisation of society that is there established, they endeavour to make the slave contented with his lot, and the master lenient in the exercise of his authority. Sentence of death was passed, it seems, on a man of the name of Brown, for assisting a slave to escape. The sentence was commuted, but this does not prevent Mr Whittier from hanging the man in his own imagination, and then, *à propos* of this imaginary execution, thus addressing the clergy of South Carolina:—

"Ho! thou who seekest late and long
A license from the Holy Book
For brutal lust and hell's red wrong,
Man of the pulpit, look!
Lift up those cold and atheist eyes,
This ripe fruit of thy teaching see;
And tell us how to Heaven will rise
The incense of this sacrifice—
This blossom of the gallows-tree!"

And thus he proceeds, lashing himself into frenzy, through the whole of the piece. We dismiss Mr Whittier, and venture to express a hope that those who appear to be looking into American literature, for the purpose of catering for the English public, will be able to discover and import something better than strains such as these—which administer quite as much to the love of calumny, and an appetite for horrors, as to any sentiment of philanthropy.

The next person whom we have to mention, and probably to introduce for the first time to our readers, is not one whom we can commend for his temperate opinions, or knowledge of the world, or whatever passes under the name of strong common sense or practical sagacity. He is much a dreamer; he has little practical skill, even in his own craft of authorship; but there runs a true vein of poetry through his writings; it runs zig-zag, and is mixed with much dross, and is not extracted without some effort of

patience; but there is a portion of the true metal to be found in the works of *James Russell Lowell*.

Mr Lowell has, we think, much of the true poet in him—ardent feelings and a fertile fancy; the last in undue proportion, or at least under very irregular government. But he lacks taste and judgment, and the greater part of the two small volumes before us is redolent of youth, and we presume that those compositions which stand first in order were really written at an early age. To the very close, however, there is that immaturity of judgment, and that far too enthusiastic view of things and of men, which is only excusable in youth; as witness certain lines "To De Lamartine," towards the end of the second volume.

With one peculiarity we have been very much struck—the combination of much original power with a tendency to imitate, to an almost ludicrous extent, other and contemporary poets. We find, especially in the first volume, imitations which have all the air of a theme or exercise of a young writer, sitting down deliberately to try how far he could succeed in copying the manner of some favourite author. Sometimes it is Keats, sometimes it is Tennyson, who seems to have exercised this fascination over him: he is in the condition of a bewildered musician, who can do nothing but make perpetual *variations* upon some original melody that has bewitched his ear. He revels with Keats in that poetic imagery and language which has a tendency to separate itself too widely from the substratum of an intelligible meaning, which ought always to be kept at least *in sight*. At other times he paints ideal portraits of women after the manner of Tennyson. On these last he was perfectly welcome to practise his pictorial art: he might paint as many *Irenes* as he pleased; but when, in his piece called "The Syrens," he recalls to mind the beautiful poem of "The Lotus Eaters!" our patience broke down—we gave him up—we closed the book in despair. However, at another time we reopened it, and read on, and we are glad we did so; for we discovered that, notwithstanding, this proneness to imitate, and often to imitate what should have been avoided, there was a vein of genuine poetry in the book, some specimens of which we shall proceed to give. It is a task which we the more readily undertake because we suspect that most readers of taste would be disposed, after a cursory perusal, to lay the book aside:

they would not have the motive which prompted us to explore further, or to renew their examination.

Mr Lowell's faults lie on the surface; they cannot be disguised, nor will there be the least necessity to quote for the purpose of illustrating them. He is an egregious instance of that *half excellence* which we have ventured to attribute to such American poets as have come under our notice. The genius of the poet is but partially developed. The peach has ripened but on one side. We want more sun, we want more culture. To speak literally, there is a haste which leads the writer to extravagance of thought, to extravagance of language and imagery; an impatience of study, and of the long labour that alone produces the complete work. The social and economical condition of America has probably something to do with this. It is a condition more favourable to the man and the citizen than propitious to the full development of the poet. In England, or any other old established country, the educated class crowd every profession, and every avenue to employment; if a youth once gives himself up to the fascination of literature, he will probably find himself committed to it for life, and be compelled to accept as a career, what perhaps at first only tempted him as a pleasure. If he wishes to retrace his steps, and resume his place in any profession, he finds that the ranks are closed up; no opening at all presents itself—certainly none which, if he is only wavering in his resolution, will solicit his return. He has wandered from his place in the marching regiment; it has marched on without him, in close order, and there is no room for the repenting truant. Now in America there cannot yet be such over-crowding in all the recognised pursuits of life as to render it difficult or impossible for the truant to return. He is probably even invited, by tempting prospects of success, to re-enter some of those avenues of life which lead to wealth, or to civic prosperity. This must act materially upon the young poet. He indulges his predilections, yet does not feel that he has irrevocably committed himself by so doing. Or if he adopts literature as the main object and serious occupation of his life, he can at the first discouragement—he can, as soon as he has learnt the fact that authorship is a labour, as well as a pleasure—abandon his hasty choice, and adopt an easier and a more profitable career. He has not burnt his ships. They lie in the offing still; they are ready to transport him from this enchanted island to which some perverse wind has blown him, and restore him to the stable continent. Retreat is still open; he

does not feel that he must here conquer or be utterly lost; there is no desperate courage, nothing to induce strenuous and indefatigable labour.

But to Mr Lowell. The first piece in his collection of poems is entitled "A Legend of Brittany." The subject is as grotesque as legendary lore could have supplied him with. A knight-templar, a soldier-priest who has taken the vow of chastity at a time and place when that vow was expected to be kept, has fallen in love with a beautiful girl. He seduces her; then to hide his own disgrace he murders her; and he buries the body, with the unborn infant, under the altar of the church! One day at high mass, when the guilty templar is there himself standing, with others, round the altar, a voice is heard, a vision is seen—it is the spirit of the murdered girl and mother. She appears—not to denounce the assassin—she regrets to expose his guilt—there is so much woman in the angel that she loves him still—she appears to claim the rite of baptism for her unborn infant, who, till that rite is performed, wanders in darkness and in pain. The legend must have received this turn during some *Gorham controversy* now happily forgotten. Notwithstanding the very strange nature of the whole story, there is a pleasing tenderness in this address of the spirit to the wicked templar. After glancing more in sadness than in anger at his falsehood, it continues:—

"And thou hadst never heard such words as these,
Save that in heaven I must ever be
Most comfortless and wretched, seeing this
Our unbaptisèd babe shut out from bliss.

This little spirit, with imploring eyes,
Wanders alone the dreary wild of space;
The shadow of his pain forever lies
Upon my soul in this new dwelling-place;
His loneliness makes me in paradise
More lonely; and unless I see his face,
Even here for grief could I lie down and die,
Save for my curse of immortality.

I am a mother, spirits do not shake
This much of earth from them, and I must pine,
Till I can feel his little hands, and take
His weary head upon this heart of mine.
And might it be, full gladly for his sake
Would I this solitude of bliss resign,
And be shut out of heaven to dwell with him
For ever in that silence drear and dim.

I strove to hush my soul, and would not speak
At first for thy dear sake. A woman's love
Is mighty, but a mother's heart is weak,
And by its weakness overcomes; I strove
To smother better thoughts with patience meek,
But still in the abyss my soul would rove,
Seeking my child, and drove me here to claim
The rite that gives him peace in Christ's dear name.

I sit and weep while blessed spirits sing:
I can but long and pine the while they praise,
And, leaning o'er the wall of heaven, I fling
My voice to where I deem my infant stays,
Like a robbed bird that cries in vain to bring
Her nestlings back beneath her wings' embrace;
But still he answers not, and I but know
That heaven and earth are but alike in woe."

The sacred rite, so piteously pleaded for, was of course duly performed. This poem seems to have been written when Keats was in the ascendant, and predominated over the imagination of our author. Nor has he failed to catch a portion of the finer fancy of that exuberant poet. Such lines as the following are quite in the manner of Keats.

"The deep sky, *full-hearted with the moon.*"
... *"the nunneries of silent nooks,*
The murmured longing of the wood."

Or this description:—

"In the courtyard a fountain leaped alway,
A Triton blowing jewels through his shell
Into the sunshine."

In the second volume we have another legend, or rather a legendary vision, of the author's own invention, which is of a higher import, and still more redolent of poetry. It is called "The vision of Sir Launfal." This knight has a vision, or a dream, in which he beholds himself going forth from his proud castle to accomplish a vow he had made, namely, to seek "over land and sea for the Holy Grail." What the Holy Grail is, Mr Lowell is considerate enough to inform, or remind his readers, in a note which runs thus,—"According to the mythology of the Romancers, the San Greal, or Holy Grail, was the cup out of which Jesus partook of the Last Supper with his disciples. It was brought into England by Joseph of Arimathea, and remained there, an object of pilgrimage and adoration, for many years in the keeping of his lineal descendants. It was incumbent upon those who had charge of it to be chaste in thought, word, and deed; but one of the keepers having broken this condition, the Holy Grail disappeared. From that time it was a favourite enterprise of the knights of Arthur's court to go in search of it." Well, Sir Launfal, in his vision, starts forth upon this knightly and pious enterprise. It is the month of June when he sallies from his castle, and the poet revels in a description of the glories of the summer:—

"Whether we look, or whether we listen,
We hear life murmur, or see it glisten:
Every clod feels a stir of might,
 An instinct within it that reaches and towers,
And, *grasping blindly above it for light,*
 Climbs to a soul in grass and flowers.
The cowslip startles in meadows green,
 The buttercup catches the sun in its chalice,
And there's never a leaf or a blade too mean
 To be some happy creature's palace;
The little bird sits at his door in the sun
 Atilt like a blossom among the leaves,
And lets his illumined being o'errun
 With the deluge of summer it receives.
His mate feels the eggs beneath her wings,
And the heart in her dumb breast flutters and sings—
He sings to the wide world, she to her nest.

Joy comes, grief goes, we know not how;
Everything is happy now,
 Everything is upward striving;
'Tis as easy now for the heart to be true
As for grass to be green or skies to be blue,—
 'Tis the natural way of living:
Who knows whither the clouds have fled?
 In the unscarred heaven they leave no wake;
And the eyes forget the tears they have shed,
 And the heart forgets its sorrow and ache;
And the soul partakes the season's youth."

The drawbridge of the castle is let down, and Sir Launfal, on his charger,
springs from under the archway, clothed in his glittering mail—

"To seek in all climes for the Holy Grail."
"As Sir Launfal made morn through the darksome gate
 He was ware of a leper, crouched by the same,
Who begged with his hand and moaned as he sate;
 And a loathing over Sir Launfal came;
The sunshine went out of his soul with a thrill,
 The flesh 'neath his armour did shrink and crawl,

For this man, so foul and bent of stature,
Rasped harshly against his dainty nature,
And seemed the one blot on the summer morn,—
So he tossed him a piece of gold in scorn.

The leper raised not the gold from the dust:
'Better to me the poor man's crust.
Better the blessing of the poor,
Though I turn me empty from his door;
That is no true alms which, the hand can hold."

Sir Launfal proceeds in search of the Holy Grail; but he finds it not. He returns an old man, worn with toil, and sad at heart, and full of tender commiseration for all the afflicted and distressed. It is winter when he returns to his castle. There sits the same miserable leper, and moans out the same prayer for alms; but this time it is answered in a very different spirit.

"Straightway he
Remembered in what a haughty guise
He had flung an alms to leprosie,
When he caged his young life up in gilded mail
To set forth in search of the Holy Grail—
The heart within him was ashes and dust;
He parted in twain his single crust,
He broke the ice on the streamlet's brink,
And gave the leper to eat and to drink;
'Twas a mouldy crust of coarse brown bread,
'Twas water out of a wooden bowl,—
Yet with fine wheaten bread was the leper fed,
And 'twas red wine he drank with his thirsty soul.

As Sir Launfal mused with a downcast face,
A light shone round about the place;
The leper no longer crouched at his side,
But stood before him glorified,
And a voice that was calmer than silence said—
'In many climes, without avail,
Thou hast spent thy life for the Holy Grail;
Behold it is here,—this cup which thou
Didst fill at the streamlet for me but now!
The Holy Supper is kept, indeed,
In whatso we share with another's need."

Such was the dream or vision of Sir Launfal. We need hardly add that, when he awoke from it, he exclaimed that the Holy Grail was already found—bade his servants hang up his armour on the wall, and open his gates to the needy and the poor.

We shall venture upon one more quotation before we quit Mr Lowell. We must premise that we do not always mark by asterisks the omission that we make, when that omission creates no obscurity whatever in the passage. The following poem we take the liberty of abridging, and we print it, without any interruption of this kind, in its abridged form. In this form it will perhaps remind our readers of some of those tender, simple, and domestic lyrics in which German poetry is so rich. There is no other language from which so many beautiful poems might be collected which refer to childhood, and the love of children, as from the German. It has sometimes occurred to us that our poetesses, or fair translators of poetry, might contrive a charming volume of such lyrics on childhood.

THE CHANGELING.

"I had a little daughter,
And she was given to me
To lead me gently onward
To the Heavenly Father's knee.

I know not how others saw her,
But to me she was wholly fair,
And the light of the heaven she came from
Still lingered and gleamed in her hair.

She had been with us scarce a twelvemonth,
And it hardly seemed a day,
When a troop of wandering angels
Stole my little daughter away.

But they left in her stead a changeling,
A little angel child,
That seems like her bud in full blossom,
And smiles as she never smiled.

This child is not mine as the first was,
I cannot sing it to rest,
I cannot lift it up fatherly,
And bless it upon my breast.

Yet it lies in my little one's cradle,
And sits in my little one's chair,
And the light of the heaven she's gone to
Transfigures its golden hair."

We have still a brief space for *Mr Holmes*. It is fit that, amongst our list, there should be one representative of the comic muse. Mr Holmes, however, is not always comic. Some of his serious pieces are not without a certain manly pathos. Some, too, are of a quite didactic character, and have the air of college exercises. But it is only a few of his lighter pieces we should feel any disposition to quote, or refer to. Mr Holmes portrays himself to us as a boon companion;—a physician by profession, and one to whom poetry has been only an occasional amusement—one of those choice spirits who can set the table in a roar, and who can sing himself the good song that he indites. Such being the case, we have only to lay down the critical pen to court amusement ourselves, and conclude our paper by sharing with the reader a few specimens of wit or humour.

Civilised life in New York, or Boston, seems to have the same disagreeable accompaniments as with us—as witness.

THE MUSIC-GRINDERS.

"There are three ways in which men take
One's money from his purse,
And very hard it is to tell
Which of the three is worse;
But all of them are bad enough
To make a body curse.

You're riding out some pleasant day,
And counting up your gains;
A fellow jumps from out a bush,
And takes your horse's reins;
Another hints some words about
A bullet in your brains.

It's hard to meet such pressing friends
In such a lonely spot;
It's very hard to lose your cash,
But harder to be shot;
And so you take your wallet out,
Though you had rather not.

Perhaps you're going out to dine,
Some filthy creature begs
You'll hear about the cannon-ball
That carried off his pegs;
He says it is a dreadful thing
For men to lose their legs.

He tells you of his starving wife,
His children to be fed,
Poor little lovely innocents.
All clamorous for bread;
And so you kindly help to put
A bachelor to bed.

You're sitting on your window-seat,
Beneath a cloudless moon;
You hear a sound that seems to wear
The semblance of a tune,
As if a broken fife should strive
To drown a cracked basoon.

And nearer, nearer still, the tide
Of music seems to come,
There's something like a human voice
And something like a drum;
You sit in speechless agony
Until your ear is numb.

Poor 'home, sweet home,' should seem to be
A very dismal place.

Your 'auld acquaintance,' all at once
Is altered in the face—

But hark! the air again is still,
The music all is ground;
It cannot be—it is—it is—
A hat is going round!

No! Pay the dentist when he leaves
A fracture in your jaw;
And pay the owner of the bear,
That stunned you with his paw;
And buy the lobster that has had
Your knuckles in his claw;

But if you are a portly man,
Put on your fiercest frown,
And talk about a constable
To turn them out of town;
Then close your sentence with an oath,
And shut the window down!

And if you are a slender man,
Not big enough for that,
Or, if you cannot make a speech,
Because you are a flat,
*Go very quietly and drop
A button in the hat!"*

Excellent advice! How many hats there are—and not of music-grinders only—in which we should be delighted to see the button dropped! The next in order is very good, and equally intelligible on this side of the Atlantic. We give the greater part of it:—

THE TREADMILL SONG.

"They've built us up a noble wall,
To keep the vulgar out;
We've nothing in the world to do,
But just to walk about;
So faster now, you middle men,
And try to beat the ends,
Its pleasant work to ramble round
Among one's honest friends.

Here, tread upon the long man's toes,
He shan't be lazy here—
And punch the little fellow's ribs,
And tweak that lubber's ear,
He's lost them both—don't pull his hair,
Because he wears a scratch,
But poke him in the further eye,
That isn't in the patch.

Hark! fellows, there's the supper-bell,
And so our work is done;
It's pretty sport—suppose we take
A round or two for fun!
If ever they should turn me out,
When I have better grown,
Now hang me, but I mean to have
A treadmill of my own!"

"The September Gale," "The Ballad of an Oysterman," "My Aunt," all solicit admission, but we have no space. A few of the verses "On the Portrait of 'A Gentleman,' in the Athenæum Gallery," we will insert. Perhaps we may see the companion picture to it on the walls of our own Exhibition at Trafalgar Square:—

"It may be so, perhaps thou hast
A warm and loving heart;
I will not blame thee for thy face,
Poor devil as thou art.

That thing thou fondly deem'st a nose,
Unsightly though it be,
In spite of all the cold world's scorn,
It may be much to thee.

Those eyes, among thine elder friends,
Perhaps they pass for blue;
No matter—if a man can see,
What more have eyes to do?

Thy mouth—that fissure in thy face,
By something like a chin—
May be a very useful place
To put thy victual in."

Not, it seems, a thing to paint for public inspection. *Apropos* of the pictorial art, we cannot dismiss Mr Holmes' book without noticing the two or three tasteful vignettes or medallions, or by whatever name the small engravings are to be called, which are scattered through its pages. We wish there were more of them, and that such a style of illustration, or rather of decoration, (for they have little to do with the subject of the text,) were more general. Here are two little children sitting on the ground, one is reading, the other listening—a mere outline, and the whole could be covered by a crown-piece. A simple medallion, such as we have described, gives an exquisite and perpetual pleasure; the blurred and blotched engraving, where much is attempted and nothing completed, is a mere disfigurement to a book. The volume before us, we ought perhaps to add, comes from the press of Messrs Ticknor and Co., Boston.

MY NOVEL; OR, VARIETIES IN ENGLISH LIFE.

BY PISISTRATUS CAXTON.

BOOK V.—INITIAL CHAPTER.

"I hope, Pisistratus," said my father, "that you do not intend to be dull!"

"Heaven forbid, sir! what could make you ask such a question? *Intend*. No! if I am dull it is from innocence."

"A very long Discourse upon Knowledge!" said my father; "very long. I should cut it out!"

I looked upon my father as a Byzantian sage might have looked on a Vandal. "Cut it out!"—

"Stops the action, sir!" said my father, dogmatically.

"Action! But a novel is not a drama."

"No, it is a great deal longer—twenty times as long, I dare say," replied Mr Caxton with a sigh.

"Well, sir—well! I think my Discourse upon Knowledge has much to do with the subject—is vitally essential to the subject; does not stop the action—only explains and elucidates the action. And I am astonished, sir, that you, a scholar, and a cultivator of knowledge"—

"There—there!" cried my father, deprecatingly. "I yield—I yield. What better could I expect when I set up for a critic! What author ever lived that did not fly into a passion—even with his own father, if his father presumed to say—'Cut out!' *Pacem imploro*"—

MRS CAXTON.—"My dear Austin, I am sure Pisistratus did not mean to offend you, and I have no doubt he will take your"—

PISISTRATUS, (hastily.)—"Advice *for the future*, certainly. I will quicken the action, and"—

"Go on with the Novel," whispered Roland, looking up from his eternal account-book. "We have lost £200 by our barley!"

Therewith I plunged my pen into the ink, and my thoughts into the "Fair Shadowland."

CHAPTER II.

"Halt!" cried a voice; and not a little surprised was Leonard when the stranger who had accosted him the preceding evening got into the chaise.

"Well," said Richard, "I am not the sort of man you expected, eh? Take time to recover yourself." And with these words Richard drew forth a book from his pocket, threw himself back, and began to read. Leonard stole many a glance at the acute, hardy, handsome face of his companion, and gradually recognised a family likeness to poor John, in whom, despite age and infirmity, the traces of no common share of physical beauty were still evident. And, with that quick link in ideas which mathematical aptitude bestows, the young student at once conjectured that he saw before him his uncle Richard. He had the discretion, however, to leave that gentleman free to choose his own time for introducing himself, and silently revolved the new thoughts produced by the novelty of his situation. Mr Richard read with notable quickness—sometimes cutting the leaves of the book with his penknife, sometimes tearing them open with his forefinger, sometimes skipping whole pages altogether. Thus he galloped to the end of the volume—flung it aside—lighted his cigar, and began to talk.

He put many questions to Leonard relative to his rearing, and especially to the mode by which he had acquired his education; and Leonard, confirmed in the idea that he was replying to a kinsman, answered frankly.

Richard did not think it strange that Leonard should have acquired so much instruction with so little direct tuition. Richard Avenel himself had been tutor to himself. He had lived too long with our go-ahead brethren, who stride the world on the other side the Atlantic with the seven-leagued boots of the Giant-killer, not to have caught their glorious fever for reading. But it was for a reading wholly different from that which was familiar to Leonard. The books he read must be new; to read old books would have seemed to him going back in the world. He fancied that new books necessarily contained new ideas—a common mistake—and our lucky adventurer was the man of his day.

Tired with talking, he at length chucked the book he had run through to Leonard, and, taking out a pocket-book and pencil, amused himself with calculations on some detail of his business, after which he fell into an absorbed train of thought—part pecuniary, part ambitious.

Leonard found the book interesting; it was one of the numerous works, half-statistic, half-declamatory, relating to the condition of the working-classes, which peculiarly distinguish our century, and ought to bind together rich and poor, by proving the grave attention which modern society bestows upon all that can affect the welfare of the last.

"Dull stuff—theory—claptrap," said Richard, rousing himself from his reverie at last: "it can't interest you."

"All books interest me, I think," said Leonard, "and this especially; for it relates to the working-class, and I am one of them."

"You were yesterday, but you mayn't be to-morrow," answered Richard good-humouredly, and patting him on the shoulder. "You see, my lad, that it is the middle class which ought to govern the country. What the book says about the ignorance of country magistrates is very good; but the man writes pretty considerable trash when he wants to regulate the number of hours a free-born boy should work at a factory—only ten hours a-day—pooh! and so lose two to the nation! Labour is wealth: and if we could get men to work twenty-four hours a-day, we should be just twice as rich. If the march of civilisation is to proceed," continued Richard, loftily, "men, and boys too, must not lie a-bed doing nothing *all night*, sir." Then with a complacent

tone—"We shall get to the twenty-four hours at last; and, by gad, we must, or we shan't flog the Europeans as we do now."

On arriving at the inn at which Richard had first made acquaintance with Mr Dale, the coach by which he had intended to perform the rest of the journey was found to be full. Richard continued to perform the journey in post-chaises, not without some grumbling at the expense, and incessant orders to the postboys to make the best of the way. "Slow country this, in spite of all its brag," said he—"very slow. Time is money—they know that in the States; for why, they are all men of business there. Always slow in a country where a parcel of lazy idle lords, and dukes, and baronets, seem to think 'time is pleasure.'"

Towards evening the chaise approached the confines of a very large town, and Richard began to grow fidgety. His easy cavalier air was abandoned. He withdrew his legs from the window, out of which they had been luxuriously dangling; pulled down his waistcoat; buckled more tightly his stock: it was clear that he was resuming the decorous dignity that belongs to state. He was like a monarch who, after travelling happy and incognito, returns to his capital. Leonard divined at once that they were nearing their journey's end.

Humble foot-passengers now looked at the chaise, and touched their hats. Richard returned the salutation with a nod—a nod less gracious than condescending. The chaise turned rapidly to the left, and stopped before a smart lodge, very new, very white, adorned with two Doric columns in stucco, and flanked by a large pair of gates. "Hollo!" cried the postboy, and cracked his whip.

Two children were playing before the lodge, and some clothes were hanging out to dry on the shrubs and pales round the neat little building.

"Hang those brats! they are actually playing," growled Dick. "As I live, the jade has been washing again! Stop, boy." During this soliloquy, a good-looking young woman had rushed from the door—slapped the children as, catching sight of the chaise, they ran towards the house—opened the gates, and, dropping a curtsy to the ground, seemed to wish that she could drop

into it altogether, so frightened and so trembling seemed she to shrink from the wrathful face which the master now put out of the window.

"Did I tell you, or did I not," said Dick, "that I would not have these horrid disreputable cubs of yours playing just before my lodge gates?"

"Please, sir—"

"Don't answer me. And did I tell you, or did I not, that the next time I saw you making a drying-ground of my lilacs, you should go out, neck and crop —"

"Oh, please sir—"

"You leave my lodge next Saturday: drive on, boy. The ingratitude and insolence of those common people are disgraceful to human nature," muttered Richard, with an accent of the bitterest misanthropy.

The chaise wheeled along the smoothest and freshest of gravel roads, and through fields of the finest land, in the highest state of cultivation. Rapid as was Leonard's survey, his rural eye detected the signs of a master in the art agronomical. Hitherto he had considered the Squire's model farm as the nearest approach to good husbandry he had seen; for Jackeymo's finer skill was developed rather on the minute scale of market-gardening than what can fairly be called husbandry. But the Squire's farm was degraded by many old-fashioned notions, and concessions to the whim of the eye, which would not be found in model farms now-a-days—large tangled hedgerows, which, though they constitute one of the beauties most picturesque in old England, make sad deductions from produce; great trees, overshadowing the corn, and harbouring the birds; little patches of rough sward left to waste; and angles of woodland running into fields, exposing them to rabbits, and blocking, out the sun. These and suchlike blots on a gentleman farmer's agriculture, common-sense and Giacomo had made clear to the acute comprehension of Leonard. No such faults were perceptible in Richard Avenel's domain. The fields lay in broad divisions, the hedges were clipped and narrowed into their proper destination of mere boundaries. Not a blade of wheat withered under the cold shade of a tree; not a yard of land lay waste; not a weed was to be seen, not a thistle to waft its baleful seed

through the air: some young plantations were placed, not where the artist would put them, but just where the farmer wanted a fence from the wind. Was there no beauty in this? Yes, there was beauty of its kind—beauty at once recognisable to the initiated—beauty of use and profit—beauty that could bear a monstrous high rent. And Leonard uttered a cry of admiration which thrilled through the heart of Richard Avenel.

"This is farming!" said the villager.

"Well, I guess it is," answered Richard, all his ill-humour vanishing. "You should have seen the land when I bought it. But we new men, as they call us—(damn their impertinence)—are the new blood of this country."

Richard Avenel never said anything more true. Long may the new blood circulate through the veins of the mighty giantess; but let the grand heart be the same as it has beat for proud ages.

The chaise now passed through a pretty shrubbery, and the house came into gradual view—a house with a portico—all the offices carefully thrust out of sight.

The postboy dismounted, and rang the bell.

"I almost think they are going to keep me waiting," said Mr Richard, wellnigh in the very words of Louis XIV.

But that fear was not realised—the door opened; a well-fed servant out of livery presented himself. There was no hearty welcoming smile on his face, but he opened the chaise-door with demure and taciturn respect.

"Where's George? why does not he come to the door?" asked Richard, descending from the chaise slowly, and leaning on the servant's outstretched arm with as much precaution as if he had had the gout.

Fortunately, George here came into sight, settling himself hastily into his livery coat.

"See to the things, both of you," said Richard, as he paid the postboy.

Leonard stood on the gravel sweep, gazing at the square white house.

"Handsome elevation—classical, I take it—eh?" said Richard, joining him. "But you should see the offices."

He then, with familiar kindness, took Leonard by the arm, and drew him within. He showed him the hall, with a carved mahogany stand for hats; he showed him the drawing-room, and pointed out all its beauties—though it was summer the drawing-room looked cold, as will look rooms newly furnished, with walls newly papered, in houses newly built. The furniture was handsome, and suited to the rank of a rich trader. There was no pretence about it, and therefore no vulgarity, which is more than can be said for the houses of many an honourable Mrs Somebody in Mayfair, with rooms twelve feet square, chokeful of buhl, that would have had its proper place in the Tuilleries. Then Richard showed him the library, with mahogany bookcases and plate glass, and the fashionable authors handsomely bound. Your new men are much better friends to living authors than your old families who live in the country, and at most subscribe to a book-club. Then Richard took him up-stairs, and led him through the bedrooms—all very clean and comfortable, and with every modern convenience; and, pausing in a very pretty single gentleman's chamber, said, "This is your den. And now, can you guess who I am?"

"No one but my Uncle Richard could be so kind," answered Leonard.

But the compliment did not flatter Richard. He was extremely disconcerted and disappointed. He had hoped that he should be taken for a lord at least, forgetful of all that he had said in disparagement of lords.

"Pish!" said he at last, biting his lip—"so you don't think that I look like a gentleman? Come, now, speak honestly."

Leonard wonderingly saw he had given pain, and, with the good breeding which comes instinctively from good nature, replied—"I judged you by your heart, sir, and your likeness to my grandfather—otherwise I should never have presumed to fancy we could be relations."

"Hum!" answered Richard. "You can just wash your hands, and then come down to dinner; you will hear the gong in ten minutes. There's the bell—ring for what you want."

With that, he turned on his heel; and, descending the stairs, gave a look into the dining-room, and admired the plated salver on the sideboard, and the king's pattern spoons and forks on the table. Then he walked to the looking-glass over the mantelpiece; and, wishing to survey the whole effect of his form, mounted a chair. He was just getting into an attitude which he thought imposing, when the butler entered, and, being London bred, had the discretion to try to escape unseen; but Richard caught sight of him in the looking-glass, and coloured up to the temples.

"Jarvis," said he mildly—"Jarvis, put me in mind to have these inexpressibles altered."

CHAPTER III.

Apropos of the inexpressibles, Mr Richard did not forget to provide his nephew with a much larger wardrobe than could have been thrust into Dr Riccabocca's knapsack. There was a very good tailor in the town, and the clothes were very well made. And, but for an air more ingenuous, and a cheek that, despite study and night vigils, retained much of the sunburnt bloom of the rustic, Leonard Fairfield might now have almost passed, without disparaging comment, by the bow-window at White's. Richard burst into an immoderate fit of laughter when he first saw the watch which the poor Italian had bestowed upon Leonard; but, to atone for the laughter, he made him a present of a very pretty substitute, and bade him "lock up his turnip." Leonard was more hurt by the jeer at his old patron's gift than pleased by his uncle's. But Richard Avenel had no conception of sentiment. It was not for many days that Leonard could reconcile himself to his uncle's manner. Not that the peasant could pretend to judge of its mere conventional defects; but there is an ill breeding to which, whatever our rank and nurture, we are almost equally sensitive—the ill breeding that comes from want of consideration for others. Now, the Squire was as homely in his way as Richard Avenel, but the Squire's bluntness rarely hurt

the feelings; and when it did so, the Squire perceived and hastened to repair his blunder. But Mr Richard, whether kind or cross, was always wounding you in some little delicate fibre—not from malice, but from the absence of any little delicate fibres of his own. He was really, in many respects, a most excellent man, and certainly a very valuable citizen. But his merits wanted the fine tints and fluent curves that constitute beauty of character. He was honest, but sharp in his practice, and with a keen eye to his interests. He was just, but as a matter of business. He made no allowances, and did not leave to his justice the large margin of tenderness and mercy. He was generous, but rather from an idea of what was due to himself than with much thought of the pleasure he gave to others; and he even regarded generosity as a capital put out to interest. He expected a great deal of gratitude in return, and, when he obliged a man, considered that he had bought a slave. Every needy voter knew where to come, if he wanted relief or a loan; but woe to him if he had ventured to express hesitation when Mr Avenel told him how he must vote.

In this town Richard had settled after his return from America, in which country he had enriched himself—first, by spirit and industry—lastly, by bold speculation and good luck. He invested his fortune in business—became a partner in a large brewery—soon bought out his associates—and then took a principal share in a flourishing corn-mill. He prospered rapidly—bought a property of some two or three hundred acres, built a house, and resolved to enjoy himself, and make a figure. He had now become the leading man of the town, and the boast to Audley Egerton that he could return one of the members, perhaps both, was by no means an exaggerated estimate of his power. Nor was his proposition, according to his own views, so unprincipled as it appeared to the statesman. He had taken a great dislike to both the sitting members—a dislike natural to a sensible man of moderate politics, who had something to lose. For Mr Slappe, the active member—who was head-over-ears in debt—was one of the furious democrats rare before the Reform Bill—and whose opinions were held dangerous even by the mass of a Liberal constituency; while Mr Sleekie, the gentleman member, who laid by £5000 every year from his dividends in the Funds, was one of those men whom Richard justly pronounced to be "humbugs"—men who curry favour with the extreme party by voting for measures sure not to be carried; while, if there were the least probability of

coming to a decision that would lower the money market, Mr Sleekie was seized with a well-timed influenza. Those politicians are common enough now. Propose to march to the Millennium, and they are your men. Ask them to march a quarter of a mile, and they fall to feeling their pockets, and trembling for fear of the footpads. They are never so joyful as when there is no chance of a victory. Did they beat the Minister, they would be carried out of the house in a fit.

Richard Avenel—despising both these gentlemen, and not taking kindly to the Whigs since the great Whig leaders were Lords—looked with a friendly eye to the Government as it then existed, and especially to Audley Egerton, the enlightened representative of commerce. But in giving Audley and his colleagues the benefit of his influence, through conscience, he thought it all fair and right to have a *quid pro quo*, and, as he had so frankly confessed, it was his whim to rise up "Sir Richard." For this worthy citizen abused the aristocracy much on the same principle as the fair Olivia depreciated Squire Thornhill—he had a sneaking affection for what he abused. The society of Screwestown was, like most provincial capitals, composed of two classes—the commercial and the exclusive. These last dwelt chiefly apart, around the ruins of an old abbey; they affected its antiquity in their pedigrees, and had much of its ruin in their finances. Widows of rural thanes in the neighbourhood—genteel spinsters—officers retired on half-pay—younger sons of rich squires, who had now become old bachelors—in short, a very respectable, proud, aristocratic set—who thought more of themselves than do all the Gowers and Howards, Courtenays and Seymours, put together. It had early been the ambition of Richard Avenel to be admitted into this sublime coterie; and, strange to say, he had partially succeeded. He was never more happy than when he was asked to their card-parties, and never more unhappy than when he was actually there. Various circumstances combined to raise Mr Avenel into this elevated society. First, he was unmarried, still very handsome, and in that society there was a large proportion of unwedded females. Secondly, he was the only rich trader in Screwestown who kept a good cook, and professed to give dinners, and the half-pay captains and colonels swallowed the host for the sake of the venison. Thirdly, and principally, all these exclusives abhorred the two sitting members, and "*idem nolle idem velle de republicâ, ea firma amicta est*," that is, congeniality in politics pieces porcelain and

crockery together better than the best diamond cement. The sturdy Richard Avenel—who valued himself on American independence—held these ladies and gentlemen in an awe that was truly Brahminical. Whether it was that, in England, all notions, even of liberty, are mixed up historically, traditionally, socially, with that fine and subtle element of aristocracy which, like the press, is the air we breathe; or whether Richard imagined that he really became magnetically imbued with the virtues of these silver pennies and gold seven-shilling pieces, distinct from the vulgar coinage in popular use, it is hard to say. But the truth must be told—Richard Avenel was a notable tuft-hunter. He had a great longing to marry out of this society; but he had not yet seen any one sufficiently high-born and high-bred to satisfy his aspirations. In the meanwhile, he had convinced himself that his way would be smooth could he offer to make his ultimate choice "My Lady;" and he felt that it would be a proud hour in his life when he could walk before stiff Colonel Pompley to the sound of "Sir Richard." Still, however disappointed at the ill success of his bluff diplomacy with Mr Egerton, and however yet cherishing the most vindictive resentment against that individual—he did not, as many would have done, throw up his political convictions out of personal spite. He resolved still to favour the ungrateful and undeserving Administration; and as Audley Egerton had acted on the representations of the mayor and deputies, and shaped his bill to meet their views, so Avenel and the Government rose together in the popular estimation of the citizens of Screwtown.

But, duly to appreciate the value of Richard Avenel, and in just counterpoise to all his foibles, one ought to have seen what he had effected for the town. Well might he boast of "new blood;" he had done as much for the town as he had for his fields. His energy, his quick comprehension of public utility, backed by his wealth, and bold, bullying, imperious character, had sped the work of civilisation as if with the celerity and force of a steam-engine.

If the town were so well paved and so well lighted—if half-a-dozen squalid lanes had been transformed into a stately street—if half the town no longer depended on tanks for their water—if the poor-rates were reduced one-third,—praise to the brisk new blood which Richard Avenel had infused into vestry and corporation. And his example itself was so contagious!

"There was not a plate-glass window in the town when I came into it," said Richard Avenel; "and now look down the High Street!" He took the credit to himself, and justly; for, though his own business did not require windows of plate-glass, he had wakened the spirit of enterprise which adorns a whole city.

Mr Avenel did not present Leonard to his friends for more than a fortnight. He allowed him to wear off his rust. He then gave a grand dinner, at which his nephew was formally introduced, and, to his great wrath and disappointment, never opened his lips. How could he, poor youth, when Miss Clarina Mowbray only talked upon high life; till proud Colonel Pompley went in state through the history of the siege of Seringapatam.

CHAPTER IV.

While Leonard accustoms himself gradually to the splendours that surround him, and often turns with a sigh to the remembrance of his mother's cottage and the sparkling fount in the Italian's flowery garden, we will make with thee, O reader, a rapid flight to the metropolis, and drop ourselves amidst the gay groups that loiter along the dusty ground, or loll over the roadside palings of Hyde Park. The season is still at its height; but the short day of fashionable London life, which commences two hours after noon, is in its decline. The crowd in Rotten Row begins to thin. Near the statue of Achilles, and apart from all other loungers, a gentleman, with one hand thrust into his waistcoat, and the other resting on his cane, gazed listlessly on the horsemen and carriages in the brilliant ring. He was still in the prime of life, at the age when man is usually the most social—when the acquaintances of youth have ripened into friendship, and a personage of some rank and fortune has become a well-known feature in the mobile face of society. But though, when his contemporaries were boys scarce at college, this gentleman had blazed foremost amongst the princes of fashion, and though he had all the qualities of nature and circumstance which either retain fashion to the last, or exchange its false celebrity for a graver repute, he stood as a stranger in that throng of his countrymen. Beauties whirled by to the toilet—statesmen passed on to the senate—dandies took flight to the clubs; and neither nods nor becks, nor wreathed smiles, said to the solitary

spectator, "Follow us—thou art one of our set." Now and then, some middle-aged beau, nearing the post of the loiterer, turned round to look again; but the second glance seemed to dissipate the recognition of the first, and the beau silently continued his way.

"By the tombs of my fathers!" said the solitary to himself, "I know now what a dead man might feel if he came to life again, and took a peep at the living."

Time passed on—the evening shades descended fast. Our stranger in London had wellnigh the Park to himself. He seemed to breathe more freely as he saw that the space was so clear.

"There's oxygen in the atmosphere now," said he, half aloud; "and I can walk without breathing in the gaseous fumes of the multitude. O those chemists—what dolts they are! They tell us crowds taint the air, but they never guess why! Pah, it is not the lungs that poison the element—it is the reek of bad hearts. When a periwig-pated fellow breathes on me, I swallow a mouthful of care. *Allons!* my friend Nero; now for a stroll." He touched with his cane a large Newfoundland dog, who lay stretched near his feet; and dog and man went slow through the growing twilight, and over the brown dry turf. At length our solitary paused, and threw himself on a bench under a tree. "Half-past eight!" said he, looking at his watch—"one may smoke one's cigar without shocking the world."

He took out his cigar-case, struck a light, and in another moment reclined at length on the bench—seemed absorbed in regarding the smoke, that scarce coloured ere it vanished into air.

"It is the most barefaced lie in the world, my Nero," said he, addressing his dog, "this boasted liberty of man! Now here am I, a freeborn Englishman, a citizen of the world, caring—I often say to myself—caring not a jot for Kaisar or Mob; and yet I no more dare smoke this cigar in the Park at half-past six, when all the world is abroad, than I dare pick my Lord Chancellor's pocket, or hit the Archbishop of Canterbury a thump on the nose. Yet no law in England forbids me my cigar, Nero! What is law at half-past eight, was not crime at six and a-half! Britannia says, 'Man, thou art free,' and she lies like a commonplace woman. O Nero, Nero! you enviable

dog!—you serve but from liking. No thought of the world costs you one wag of the tail. Your big heart and true instinct suffice you for reason and law. You would want nothing to your felicity, if in these moments of ennui you would but smoke a cigar. Try it, Nero!—try it!" And, rising from his incumbent posture, he sought to force the end of the weed between the teeth of the dog.

While thus gravely engaged, two figures had approached the place. The one was a man who seemed weak and sickly. His threadbare coat was buttoned to the chin, but hung large on his shrunken breast. The other was a girl of about fourteen, on whose arm he leant heavily. Her cheek was wan, and there was a patient sad look on her face, which seemed so settled that you would think she could never have known the mirthfulness of childhood.

"Pray rest here, papa," said the child softly; and she pointed to the bench, without taking heed of its pre-occupant, who now, indeed, confined to one corner of the seat, was almost hidden by the shadow of the tree.

The man sate down, with a feeble sigh; and then, observing the stranger, raised his hat, and said, in that tone of voice which betrays the usages of polished society, "Forgive me, if I intrude on you, sir."

The stranger looked up from his dog, and seeing that the girl was standing, rose at once as if to make room for her on the bench.

But still the girl did not heed him. She hung over her father, and wiped his brow tenderly with a little kerchief which she took from her own neck for the purpose.

Nero, delighted to escape the cigar, had taken to some unwieldy curvets and gambols, to vent the excitement into which he had been thrown; and now returning, approached the bench with a low look of surprise, and sniffed at the intruders of her master's privacy.

"Come here, sir," said the master. "You need not fear him," he added, addressing himself to the girl.

But the girl, without turning round to him, cried in a voice rather of anguish than alarm, "He has fainted! Father! father!"

The stranger kicked aside his dog, which was in the way, and loosened the poor man's stiff military stock. While thus charitably engaged, the moon broke out, and the light fell full on the pale care-worn face of the unconscious sufferer.

"This face seems not unfamiliar to me, though sadly changed," said the stranger to himself; and bending towards the girl, who had sunk on her knees and was chafing her father's hands, he asked, "My child, what is your father's name?"

The child continued her task, too absorbed to answer.

The stranger put his hand on her shoulder, and repeated the question.

"Digby," answered the child, almost unconsciously; and as she spoke the man's senses began to return. In a few minutes more he had sufficiently recovered to falter forth his thanks to the stranger. But the last took his hand, and said, in a voice at once tremulous and soothing, "Is it possible that I see once more an old brother in arms? Algernon Digby, I do not forget you; but it seems England has forgotten."

A hectic flush spread over the soldier's face, and he looked away from the speaker as he answered—

"My name is Digby, it is true, sir; but I do not think we have met before. Come, Helen, I am well now—we will go home."

"Try and play with that great dog, my child," said the stranger—"I want to talk with your father."

The child bowed her submissive head, and moved away; but she did not play with the dog.

"I must reintroduce myself, formally, I see," quoth the stranger. "You were in the same regiment with myself, and my name is L'Estrange."

"My lord," said the soldier, rising, "forgive me that—"

"I don't think that it was the fashion to call me 'my lord' at the mess-table. Come, what has happened to you?—on half-pay?"

Mr Digby shook his head mournfully.

"Digby, old fellow, can you lend me £100?" said Lord L'Estrange, clapping his *ci-devant* brother officer on the shoulder, and in a tone of voice that seemed like a boy's—so impudent was it, and devil-me-carish. "No! Well, that's lucky, for I can lend it to you."

Mr Digby burst into tears.

Lord L'Estrange did not seem to observe the emotion. "We were both sad extravagant fellows in our day," said he, "and I dare say I borrowed of you pretty freely."

"Me! Oh, Lord L'Estrange!"

"You have married since then, and reformed, I suppose. Tell me, old friend, all about it."

Mr Digby, who by this time had succeeded in restoring some calm to his shattered nerves, now rose, and said in brief sentences, but clear firm tones,
—

"My Lord, it is idle to talk of me—useless to help me. I am fast dying. But, my child there, my only child, (he paused an instant, and went on rapidly.) I have relations in a distant county, if I could but get to them—I think they would at least provide for her. This has been for weeks my hope, my dream, my prayer. I cannot afford the journey except by your help. I have begged without shame for myself; shall I be ashamed, then, to beg for her?"

"Digby," said L'Estrange with some grave alteration of manner, "talk neither of dying, nor begging. You were nearer death when the balls whistled round you at Waterloo. If soldier meets soldier and says, 'Friend,

thy purse,' it is not begging, but brotherhood. Ashamed! By the soul of Belisarius! if I needed money, I would stand at a crossing with my Waterloo medal over my breast, and say to each sleek citizen I had helped to save from the sword of the Frenchman, 'It is your shame if I starve.' Now, lean upon me; I see you should be at home—which way?"

The poor soldier pointed his hand towards Oxford Street, and reluctantly accepted the proffered arm.

"And when you return from your relations, you will call on me? What!—hesitate? Come, promise."

"I will."

"On your honour."

"If I live, on my honour."

"I am staying at present at Knightsbridge, with my father; but you will always hear of my address at No. — Grosvenor Square, Mr Egerton's. So you have a long journey before you?"

"Very long."

"Do not fatigue yourself—travel slowly. Ho, you foolish child!—I see you are jealous of me. Your father has another arm to spare you."

Thus talking, and getting but short answers, Lord L'Estrange continued to exhibit those whimsical peculiarities of character, which had obtained for him the repute of heartlessness in the world. Perhaps the reader may think the world was not in the right. But if ever the world does judge rightly of the character of a man who does not live for the world, nor talk for the world, nor feel with the world, it will be centuries after the soul of Harley L'Estrange has done with this planet.

CHAPTER V.

Lord L'Estrange parted company with Mr Digby at the entrance of Oxford Street. The father and child there took a cabriolet. Mr Digby directed the driver to go down the Edgware Road. He refused to tell L'Estrange his address, and this with such evident pain, from the sores of pride, that L'Estrange could not press the point. Reminding the soldier of his promise to call, Harley thrust a pocket-book into his hand, and walked off hastily towards Grosvenor Square.

He reached Audley Egerton's door just as that gentleman was getting out of his carriage; and the two friends entered the house together.

"Does the nation take a nap to-night?" asked L'Estrange. "Poor old lady! She hears so much of her affairs, that she may well boast of her constitution: it must be of iron."

"The House is still sitting," answered Audley seriously, "and with small heed of his friend's witticism. "But it is not a Government motion, and the division will be late, so I came home; and if I had not found you here, I should have gone into the Park to look for you."

"Yes—one always knows where to find me at this hour, 9 o'clock P.M.—cigar—Hyde Park. There is not a man in England so regular in his habits."

Here the friends reached a drawing-room in which the Member of Parliament seldom sat, for his private apartments were all on the ground floor.

"But it is the strangest whim of yours, Harley," said he.

"What?"

"To affect detestation of ground-floors."

"Affect! O sophisticated man, of the earth, earthy! Affect!—nothing less natural to the human soul than a ground-floor. We are quite far enough from heaven, mount as many stairs as we will, without grovelling by preference.

"According to that symbolical view of the case," said Audley, "you should lodge in an attic."

"So I would, but that I abhor new slippers. As for hair-brushes, I am indifferent!"

"What have slippers and hair-brushes to do with attics?"

"Try! Make your bed in an attic, and the next morning you will have neither slippers nor hair-brushes!"

"What shall I have done with them?"

"Shied them at the cats!"

"What odd things you do say, Harley!"

"Odd! By Apollo and his nine spinsters! there is no human being who has so little imagination as a distinguished Member of Parliament. Answer me this, thou solemn right honourable,—Hast thou climbed to the heights of august contemplation? Hast thou gazed on the stars with the rapt eye of song? Hast thou dreamed of a love known to the angels, or sought to seize in the Infinite the mystery of life?"

"Not I indeed, my poor Harley."

"Then no wonder, poor Audley, that you cannot conjecture why he who makes his bed in an attic, disturbed by base catterwauls, shies his slippers at cats. Bring a chair into the balcony. Nero spoiled my cigar to-night. I am going to smoke now. You never smoke. You can look on the shrubs in the Square."

Audley slightly shrugged his shoulders, but he followed his friend's counsel and example, and brought his chair into the balcony. Nero came too, but at sight and smell of the cigar prudently retreated, and took refuge under the table.

"Audley Egerton, I want something from Government."

"I am delighted to hear it."

"There was a cornet in my regiment, who would have done better not to have come into it. We were, for the most part of us, puppies and fops."

"You all fought well, however."

"Puppies and fops do fight well. Vanity and valour generally go together. Cæsar, who scratched his head with due care of his scanty curls, and, even in dying, thought of the folds in his toga; Walter Raleigh, who could not walk twenty yards, because of the gems in his shoes; Alcibiades, who lounged into the Agora with doves in his bosom, and an apple in his hand; Murat, bedizened in gold-lace and furs; and Demetrius, the City-Taker, who made himself up like a French *Marquise*,—were all pretty good fellows at fighting. A slovenly hero like Cromwell is a paradox in nature, and a marvel in history. But to return to my cornet. We were rich; he was poor. When the pot of clay swims down the stream with the brass-pots, it is sure of a smash. Men said Digby was stingy; I saw he was extravagant. But every one, I fear, would be rather thought stingy than poor. *Bref*.—I left the army, and saw him no more till to-night. There was never shabby poor gentleman on the stage more awfully shabby, more pathetically gentleman. But, look ye, this man has fought for England. It was no child's play at Waterloo, let me tell you, Mr Egerton; and, but for such men, you would be at best a *sous-prefêt*, and your Parliament a Provincial Assembly. You must do something for Digby. What shall it be?"

"Why, really, my dear Harley, this man was no great friend of yours—eh?"

"If he were, he would not want the Government to help him—he would not be ashamed of taking money from me."

"That is all very fine, Harley; but there are so many poor officers, and so little to give. It is the most difficult thing in the world that which you ask me. Indeed, I know nothing can be done: he has his half-pay?"

"I think not; or, if he has it, no doubt it all goes on his debts. That's nothing to us: the man and his child are starving."

"But if it is his own fault—if he has been imprudent?"

"Ah—well, well; where the devil is Nero?"

"I am so sorry I can't oblige you. If it were anything else—"

"There is something else. My valet—I can't turn him adrift—excellent fellow, but gets drunk now and then. Will you find him a place in the Stamp Office?"

"With pleasure."

"No, now I think of it—the man knows my ways: I must keep him. But my old wine-merchant—civil man, never dunned—is a bankrupt. I am under great obligations to him, and he has a very pretty daughter. Do you think you could thrust him into some small place in the Colonies, or make him a King's Messenger, or something of the sort?"

"If you very much wish it, no doubt I can."

"My dear Audley, I am but feeling my way: the fact is, I want something for myself."

"Ah, that indeed gives me pleasure!" cried Egerton, with animation.

"The mission to Florence will soon be vacant—I know it privately. The place would quite suit me. Pleasant city; the best figs in Italy—very little to do. You could sound Lord —— on the subject."

"I will answer beforehand. Lord —— would be enchanted to secure to the public service a man so accomplished as yourself, and the son of a peer like Lord Lansmere."

Harley L'Estrange sprang to his feet, and flung his cigar in the face of a stately policeman who was looking up at the balcony.

"Infamous and bloodless official!" cried Harley L'Estrange; "so you could provide for a pimple-nosed lackey—for a wine-merchant who has been poisoning the king's subjects with white-lead or sloe-juice—for an idle

sybarite, who would complain of a crumpled rose-leaf; and nothing, in all the vast patronage of England, for a broken-down soldier, whose dauntless breast was her rampart!"

"Harley," said the Member of Parliament, with his calm sensible smile, "this would be a very good clap-trap at a small theatre; but there is nothing in which Parliament demands such rigid economy as the military branch of the public service; and no man for whom it is so hard to effect what we must plainly call a job as a subaltern officer, who has done nothing more than his duty—and all military men do that. Still, as you take it so earnestly, I will use what interest I can at the War Office, and get him, perhaps, the mastership of a barrack."

"You had better; for, if you do not, I swear I will turn Radical, and come down to your own city to oppose you, with Hunt and Cobbett to canvass for me."

"I should be very glad to see you come into Parliament, even as a Radical, and at my expense," said Audley, with great kindness. "But the air is growing cold, and you are not accustomed to our climate. Nay, if you are too poetic for catarrhs and rheums, I'm not—come in."

CHAPTER VI.

Lord L'Estrange threw himself on a sofa, and leant his cheek on his hand thoughtfully. Audley Egerton sate near him, with his arms folded, and gazed on his friend's face with a soft expression of aspect, which was very unusual to the firm outline of his handsome features. The two men were as dissimilar in person as the reader will have divined that they were in character. All about Egerton was so rigid, all about L'Estrange so easy. In every posture of Harley's there was the unconscious grace of a child. The very fashion of his garments showed his abhorrence of restraint. His clothes were wide and loose; his neckcloth, tied carelessly, left his throat half bare. You could see that he had lived much in warm and southern lands, and contracted a contempt for conventionalities; there was as little in his dress as in his talk of the formal precision of the north. He was three or four years younger than Audley, but he looked at least twelve years younger. In fact,

he was one of those men to whom old age seems impossible—voice, look, figure, had all the charm of youth; and, perhaps it was from this gracious youthfulness—at all events, it was characteristic of the kind of love he inspired—that neither his parents, nor the few friends admitted into his intimacy, ever called him, in their habitual intercourse, by the name of his title. He was not L'Estrange with them, he was Harley; and by that familiar baptismal I will usually designate him. He was not one of those men whom author or reader wish to view at a distance, and remember as "my Lord"—it was so rarely that he remembered it himself. For the rest, it had been said of him by a shrewd wit—"He is so natural that every one calls him affected." Harley L'Estrange was not so critically handsome as Audley Egerton; to a commonplace observer he was, at best, rather goodlooking than otherwise. But women said that he had "a beautiful countenance," and they were not wrong. He wore his hair, which was of a fair chestnut, long, and in loose curls; and instead of the Englishman's whiskers, indulged in the foreigner's moustache. His complexion was delicate, though not effeminate: it was rather the delicacy of a student, than of a woman. But in his clear grey eye there was wonderful vigour of life. A skilful physiologist, looking only into that eye, would have recognised rare stamina of constitution—a nature so rich that, while easily disturbed, it would require all the effects of time, or all the fell combinations of passion and grief, to exhaust it. Even now, though so thoughtful, and even so sad, the rays of that eye were as concentrated and steadfast as the light of the diamond.

"You were only, then, in jest," said Audley, after a long silence, "when you spoke of this mission to Florence. You have still no idea of entering into public life."

"None."

"I had hoped better things when I got your promise to pass one season in London. But, indeed, you have kept your promise to the ear to break it to the spirit. I could not presuppose that you would shun all society, and be as much of a hermit here as under the vines of Como."

"I have sate in the Strangers' Gallery, and heard your great speakers; I have been in the pit of the opera, and seen your fine ladies; I have walked

your streets, I have lounged in your parks, and I say that I can't fall in love with a faded dowager, because she fills up her wrinkles with rouge."

"Of what dowager do you speak?" asked the matter-of-fact Audley.

"She has a great many titles. Some people call her fashion, you busy men, politics: it is all one—tricked out and artificial. I mean London life. No, I can't fall in love with her, fawning old harridan!"

"I wish you could fall in love with something."

"I wish I could, with all my heart."

"But you are so *blasé*."

"On the contrary, I am so fresh. Look out of the window—what do you see?"

"Nothing!"

"Nothing—"

"Nothing but houses and dusty lilacs, my coachman dozing on his box, and two women in pattens crossing the kennel."

"I see none of that where I lie on the sofa. I see but the stars. And I feel for them as I did when I was a schoolboy at Eton. It is you who are *blasé*, not I—enough of this. You do not forget my commission, with respect to the exile who has married into your brother's family?"

"No; but here you set me a task more difficult than that of saddling your cornet on the War Office."

"I know it is difficult, for the counter influence is vigilant and strong; but, on the other hand, the enemy is so damnable a traitor that one must have the Fates and the household gods on one's side."

"Nevertheless," said the practical Audley, bending over a book on the table, "I think that the best plan would be to attempt a compromise with the

traitor."

"To judge of others by myself," answered Harley with spirit, "it were less bitter to put up with wrong than to palter with it for compensation. And such wrong! Compromise with the open foe—that may be done with honour; but with the perjured friend—that were to forgive the perjury!"

"You are too vindictive," said Egerton; "there may be excuses for the friend, which palliate even"—

"Hush! Audley, hush! or I shall think the world has indeed corrupted you. Excuse for the friend who deceives, who betrays! No, such is the true outlaw of Humanity; and the Furies surround him even while he sleeps in the temple."

The man of the world lifted his eyes slowly on the animated face of one still natural enough for the passions. He then once more returned to his book, and said, after a pause, "It is time you should marry, Harley."

"No," answered L'Estrange, with a smile at this sudden turn in the conversation—"not time yet; for my chief objection to that change in life is, that all the women now-a-days are too old for me, or I am too young for them. A few, indeed are so infantine that one is ashamed to be their toy; but most are so knowing that one is a fool to be their dupe. The first, if they condescend to love you, love you as the biggest doll they have yet dandled, and for a doll's good qualities—your pretty blue eyes, and your exquisite millinery. The last, if they prudently accept you, do so on algebraical principles; you are but the X or the Y that represents a certain aggregate of goods matrimonial—pedigree, title, rent-roll, diamonds, pin-money, opera-box. They cast you up with the help of mamma, and you wake some morning to find that *plus* wife *minus* affection equals—the Devil!"

"Nonsense," said Audley, with his quiet grave laugh. "I grant that it is often the misfortune of a man in your station to be married rather for what he has, than for what he is; but you are tolerably penetrating, and not likely to be deceived in the character of the woman you court."

"Of the woman I *court*?—No! But of the woman I *marry*, very likely indeed. Woman is a changeable thing, as our Virgil informed us at school; but her change *par excellence* is from the fairy you woo to the brownie you wed. It is not that she has been a hypocrite, it is that she is a transmigration. You marry a girl for her accomplishments. She paints charmingly, or plays like St Cecilia. Clap a ring on her finger, and she never draws again—except perhaps your caricature on the back of a letter, and never opens a piano after the honeymoon. You marry her for her sweet temper; and next year, her nerves are so shattered that you can't contradict her but you are whirled into a storm of hysterics. You marry her because she declares she hates balls and likes quiet; and ten to one but what she becomes a patroness at Almacks, or a lady in waiting."

"Yet most men marry, and most men survive the operation."

"If it were only necessary to live, that would be a consolatory and encouraging reflection. But to live with peace, to live with dignity, to live with freedom, to live in harmony with your thoughts, your habits, your aspirations—and this in the perpetual companionship of a person to whom you have given the power to wound your peace, to assail your dignity, to cripple your freedom, to jar on each thought and each habit, and bring you down to the meanest details of earth, when you invite her, poor soul, to soar to the spheres—that makes the to be, or not to be, which is the question."

"If I were you, Harley, I would do as I have heard the author of *Sandford and Merton* did—choose out a child and educate her yourself after your own heart."

"You have hit it," answered Harley seriously. "That has long been my idea—a very vague one, I confess. But I fear I shall be an old man before I find even the child."

"Ah!" he continued, yet more earnestly, while the whole character of his varying countenance changed again—"ah! if indeed I could discover what I seek—one who with the heart of a child has the mind of a woman; one who beholds in nature the variety, the charm, the never feverish, ever healthful excitement that others vainly seek in the bastard sentimentalities of a life false with artificial forms; one who can comprehend, as by intuition, the

rich poetry with which creation is clothed—poetry so clear to the child when enraptured with the flower, or when wondering at the star! If on me such exquisite companionship were bestowed—why, then"—He paused, sighed deeply, and, covering his face with his hand, resumed, in faltering accents,—

"But once—but once only, did such vision of the Beautiful made human rise before me—rise amidst 'golden exhalations of the dawn.' It beggared my life in vanishing. You know only—you only—how—how"—

He bowed his head, and the tears forced themselves through his clenched fingers.

"So long ago!" said Audley, sharing his friend's emotion. "Years so long and so weary, yet still thus tenacious of a mere boyish memory."

"Away with it, then!" cried Harley, springing to his feet, and with a laugh of strange merriment. "Your carriage still waits: set me home before you go to the House."

Then laying his hand lightly on his friend's shoulder, he said, "Is it for you, Audley Egerton, to speak sneeringly of boyish memories? What else is it that binds us together? What else warms my heart when I meet you? What else draws your thoughts from blue-books and beer-bills, to waste them on a vagrant like me? Shake hands. Oh, friend of my boyhood! recollect the oars that we plied and the bats that we wielded in the old time, or the murmured talk on the moss-grown bank, as we sate together, building in the summer air castles mightier than Windsor. Ah! they are strong ties, those boyish memories, believe me! I remember as if it were yesterday my translation of that lovely passage in Persius, beginning—let me see—ah!—

"Quum primum pavido custos mihi purpura cessit,"

that passage on friendship which gushes out so livingly from the stern heart of the satirist. And when old —— complimented me on my verses, my eye sought yours. Verily, I now say as then,

"Nescio quod, certe est quod me tibi temperet astrum."^{[2](#)}

Audley turned away his head as he returned the grasp of his friend's hand; and while Harley, with his light elastic footstep, descended the stairs, Egerton lingered behind, and there was no trace of the worldly man upon his countenance when he took his place in the carriage by his companion's side.

Two hours afterwards, weary cries of "Question, question!" "Divide, divide!" sank into reluctant silence as Audley Egerton rose to conclude the debate—the man of men to speak late at night, and to impatient benches: a man who would be heard; whom a Bedlam broke loose would not have roared down; with voice clear and sound as a bell, and form as firmly set on the ground as church-tower. And while, on the dullest of dull questions, Audley Egerton thus, not too lively himself, enforced attention, where was Harley L'Estrange? Standing alone by the river at Richmond, and murmuring low fantastic thoughts as he gazed on the moonlit tide.

When Audley left him at home, he had joined his parents, made them gay with his careless gaiety, seen the old-fashioned folks retire to rest, and then—while they, perhaps, deemed him once more the hero of ball-rooms and the cynosure of clubs—he drove slowly through the soft summer night, amidst the perfumes of many a garden and many a gleaming chestnut grove, with no other aim before him than to reach the loveliest margin of England's loveliest river, at the hour the moon was fullest and the song of the nightingale most sweet. And so eccentric a humourist was this man, that I believe, as he there loitered—no one near to cry "How affected!" or "How romantic!"—he enjoyed himself more than if he had been exchanging the

politest "how-d'ye-do's" in the hottest of London drawing-rooms, or betting his hundreds on the odd trick with Lord De R—— for his partner.

TRANSATLANTIC TOURISTS.³

Books of European travel beyond the Atlantic, of rare appearance only a few years ago, bid fair to become plentiful as snags in the Mississippi or buffaloes on the prairies of the West. Emigration, Californian gold, and the perfection of steam-navigation, have brought America to our door. The falls of Niagara now behold as many European visitors as did those of Schaffhausen half a century since; and Broadway is as familiar a word as were the Boulevards before the Peace. Even amidst her own revolutions, embroilments, and alarms, the eyes of Europe have of late been fixed with unusual attention upon the New World. Mexico, California, Cuba—aggrandising wars, treasure-seeking enterprise, piratical aggression—in turn have filled the columns of our newspapers and occupied a large share of our thoughts.

Mr X. Marmier is a French gentleman who has devoted his life to wandering in foreign lands, and writing narratives of his peregrinations. North and south, east and west, nothing is too hot or too cold for him. To-day, in frozen Iceland, he studies Scandinavian history; to-morrow, on Algerine sands, he rambles in the footsteps of Bugeaud. Behold him, in the sweet springtime, strolling beneath blossoms on the sunny banks of Rhine: autumn comes, and he pensively roams by the mystical waters of Nile. Russia, Sweden and Holland, Lapland and Poland, have in turn had the happiness to possess him. Europe, to him, is thrice-trodden ground, and Asia bears the print of his foot. His travels are reckoned by thousands of leagues, his writings by dozens of volumes. No wonder that his erratic tastes have at last driven him across the Atlantic. There he adheres to his magnificent contempt of space. His is no limited excursion to Boston and New York, Washington and New Orleans: the St Lawrence and the Mississippi are boundaries too narrow for his aspiring soul and many-leagued boots. One vast continent is insufficient to satisfy his craving after locomotion. North America explored, Cuba visited, he pauses and hesitates. The quay of the Havana is the last place where a professed wanderer can be

expected to cut short his rambles and go home. There sea and sky are both so bright and calm, that recollections of past tempests and less hospitable shores fade into indistinctness. There, too, are facilities of departure for almost any part of the globe. "Thence," says M. Marmier, in an ecstasy of perplexity, "sail the English packets which coast, in their rapid course, the whole emerald chain of the Antilles; thence, the American steamers, transporting to Chagres the legions of pilgrims attracted by the worship of gold to the Californian shrine; thence, French and English vessels, which in a few weeks convey their passengers to the noble city of Nantes or the spacious harbour of Cadiz." Beset by so many seductions, M. Marmier could not be expected to choose the nearest way to Paris. Nor did he; and therefore is it that, upon the title-page of his book, Rio de la Plata succeeds the names of Canada, United States, Havana.

Mr John Glanville Taylor is a traveller of a very different stamp. No amateur wanderer, in quest of novelty or with a view to a book, he crossed the Atlantic (in the spring of 1841) when a lad of eighteen, to seek his fortune—as appears from his own account of the matter—but with mining more particularly in view. Finding nothing to do in the States, he proceeded, after a short sojourn, to Cuba, to investigate the prospects of a newly-discovered gold-vein. This proving unproductive, he entered into partnership with a planter and slave-owner, was ruined by the drought and famine of 1843-4, served as overseer of a sugar plantation, and, finally, after upwards of three years' residence in the island, returned to England *via* New York. The volume containing such portions of his adventures and observations, during his absence from this country, as he has deemed worth recording, is manly in tone, tolerably interesting in substance, and contains, here and there, scraps of useful information, although the author's opinions are sometimes crude and hastily formed—the fault of a young writer, and yet younger traveller. His downright matter-of-fact views often contrast amusingly with those of the more experienced and literary Frenchman. As a traveller sentimental rather than adventurous—as a writer we have usually found M. Marmier facile rather than fascinating, and oftener insipid than graphic. In his books of European travel there is a lack of the vivid and lively; and his style, correct and not ungraceful, has yet a monotony that acts somniferously on the reader. His work on America is an improvement on his previous publications. The nine hundred pages might perhaps have

been compressed, with advantage, into two-thirds of the space; but still, amidst a superabundance of words, we find pointed and interesting passages, and occasionally an original view of men and things Transatlantic.

Frenchmen are very apt to express great sympathy with, and admiration of, the people of the United States. This arises from various causes. Some are smitten with their democratic institutions; some exult in American independence as a triumph over England; others assume a share in that triumph, on account of French auxiliaries in the American War; whilst others, again, suffer their imaginations to be captivated by the wonderfully rapid rise and prodigious development of American wealth and power. It does not require any great amount of sentiment and fancy to get up this kind of love-at-a-distance. Many of our readers remember Miss Edgeworth's clever tale of *L'Amie Inconnue*, where a romantic young lady conceives a violent attachment for the authoress of a sentimental novel, corresponds with her under the name of Araminta, makes a pilgrimage to Wales to seek her in a cottage amidst honeysuckles, and finally has her illusions destroyed by discovering her in a two-pair-back at Bristol, putting brandy in her tea, and bullying a lover named Nathaniel. This is exactly the sort of disenchantment in store for those Frenchmen who, after picturing to themselves the United States as a democratic Utopia, the very paradise of the worshippers of Liberty, have occasion to visit the unseen land of their affections. On arrival in the States, nineteen out of twenty of them find themselves about as comfortable as a cat in a kennel of terriers. They are not spitefully worried, certainly, but unintentionally they are most awfully annoyed. In fact, no two characters can be more antagonistic than those of the Frenchman and American. However strong his predetermination, the former finds it impossible to be pleased in the country where he had fondly anticipated so much gratification. The most he can do is to laud Yankee energy and enterprise, and to pass lightly over the details of manners and customs that jar with all his notions of propriety and enjoyment of life.

"Before I put foot on shore," says M. Marmier, "I felt disposed to love that American land whose mere aspect makes so many hearts beat, and gives birth to so many hopes." He may love the land, but he very soon lets us see that he does not much like the dwellers upon it. After sketching their

busy habits and feverish activity, their unrelenting pursuit of lucre and contempt of an intellectual *far niente*, he thus continues his epistle to the unknown lady-correspondent to whom all the *Lettres sur l'Amérique* are addressed:

"It would be false to say that such vigorous commercial faculties, and such habits, constitute an amiable people; and truly I would not wish you to live amongst them, nor do I imagine that they will ever leave in my heart one of those tender memories which I still retain of the dear natives of Germany and Scandinavia, and even of the Turks, who are such worthy people."

M. Marmier, we may here observe, is constitutionally tender. A pensive softness is the general characteristic of his writings. He is addicted to moonlight; the sight of a wooden hut in a sunny nook of the Hudson sets him dreaming about love in a cottage, and quoting Tom Moore with indifferent orthography; in his moments of melancholy he loves to muse by the river-side, and repeat to himself a certain ditty about roses, rivulets, and nightingales, which he picked up in Canada. With such gentle tastes, something more than a trifle is needed to betray him into wrath and sarcasm. On the other hand, the delicacy of his organisation evidently makes him peculiarly liable to be shocked by certain Yankee qualities and habits. One of the first annoyances he experiences is from the curiosity of his fellow-passengers on board a Hudson steamboat. He feels it the more that he has just suffered from their taciturnity, and found it impossible to obtain from them other than monosyllabic replies to his questions concerning the places they pass.

"With a phlegm, compared to which British phlegm is jovial vivacity, the American combines an inquisitiveness worthy of a savage; and the attention which was denied me when I sought a few details concerning the scenes we traversed, was soon fixed upon me, to my great discomfort, by various parts of my dress. One of them took hold of my watch-chain, without the least ceremony, turned and twisted it about between his dirty fingers, then, satisfied with the examination, walked away without uttering a word. Another, seated beside me, suddenly exclaimed—'*You have got a Paris hat,*' and

forthwith took it off my head, closed and opened the springs, showed it to one of his neighbours, and, when they had both looked at it inside and out, gave it back into my hands. A moment later, having to pay my bill to the steward, I was so unfortunate as to open my purse—a beautiful little purse of cherry-coloured silk and gold. Forthwith an American fell violently in love with it, pulled out a horrible knitted bag, and proposed a barter. I laughed in his face. I hid my purse, but he still persecuted me. At last I ground between my teeth, Yankee fashion, a d——, which made him step back a pace or two. To avoid being thus beset, I put my hat into its box, and covered my head with a cap; I put my watch-chain into my pocket, buttoned my waistcoat over my breast-pin, and, thanks to these precautions, I could at last walk about and sit on deck without being exposed to stupid importunity."

It may be said that M. Marmier is hardly indulgent enough to the honest Yankees, to whose curiosity the sight of a live Frenchman, in trinkets and a Gibus hat, and 'fresh as imported,' was doubtless a strong stimulant. A countrywoman of his (by connections, habits, and residence, although not by birth) has described, in a very charming work,⁴ similar traits in a more tolerant tone. She also was in a steamboat on the Hudson, when she suddenly found herself surrounded, or rather assailed, by a crowd of women, who wonderingly contemplated an embroidery in brilliant colours with which she was occupied.

"After an examination of some minutes' duration," says Madame de Merlin, "they seized upon the tapestry without looking at me or making the least apology, as if the knees on which it rested had been the tray of a work-box; then alternately taking possession of wools, scissors, thimble, they passed them from hand to hand without taking the slightest heed of the person to whom they belonged. At last the boldest amongst them carried off the embroidery and disappeared. I begged my companion to follow her, and ascertain what she meant to do with it. In a few minutes she brought it back, after showing it to her friends, who were below in the cabin. Soon a second group of women accosted me; one of them, without the slightest preamble or polite preface, asked me if I were French. On my reply in the affirmative, —'We never see your countrywomen in these parts,' said she; 'you

please us. Do all Frenchwomen resemble you?' Then she ran to fetch her husband, and planted him before me like a sentry, showing me to him as she might have done a curious bird. What think you of this savage curiosity of the women of the West, of these strange manners and artless avowals? They have something confiding and primitive which pleases me."

Lenient to the deficiencies of American women, the amiable and accomplished Countess Merlin expresses plainly and forcibly her disgust at the manners of the men. M. Marmier echoes her complaints. Not so Mr Taylor, who visited America at an age when all that is novel pleases, and who can see no fault in the natives. He reluctantly admits their dress to be a little precise, and their manners rather graver than he likes; in their cities and societies he complains of a lack of cordiality, and of the scarcity of dinner-parties. He thinks tobacco-chewing a nasty habit, although he doubts not that to others it may seem just the reverse. But he totally denies that Americans are at all inquisitive, and refutes, quite to his own satisfaction, the rash assertions of those European travellers who have declared the bulk of them to be coarse and gluttonous feeders. In the enthusiasm of his vindication, he says that, "far from being guilty of gluttony, they appear to eat *merely* to live, and may be blamed rather for seeming to care *too little* for the good things of this life." The Englishman, according to Mr Taylor, is the exact opposite of the American in this respect, and the Spaniard has hit the happy medium. Here is what M. Marmier says upon the subject:—

"Whilst I thus gossip with you, as if I were seated in an arm-chair at your chimney corner, I forget the dining-room already noted, the bill of fare printed on vellum paper, the smart waiters in round jackets and white aprons, exactly like those at Vefour's. My fellow-travellers, are far from a similar forgetfulness of one of the chief enjoyments of the steamer. Some of them, as soon as they came on board, paid it a long visit, and soon returned thither for the second time. Is it not Brillat-Savarin who has said—'Elsewhere men eat, at Paris only do they know how to dine.' Had he seen this country, he would have said—'Here men do not eat, they devour.' The word is hardly expressive enough. Better to understand the full force I wish to give it, please to refer to Buffon under the heading *Pike and Shark*. You will then, perhaps, have some

idea of American voracity. Here is the usual order of the daily meals in the United States:—Between seven and eight o'clock in the morning, a bell, a gong, or some other noisy instrument, announces breakfast. This consists of joints of roast-beef, ox-tongues, ducks, and fowls, accompanied with potatoes, bread and butter, and other light dishes. The Americans rush to table like starving animals. It is really the only suitable comparison. Heedless of his neighbours, careless of the most ordinary rules of European politeness, each man draws towards himself every dish within his reach, and piles upon one or two plates enormous pyramids of meat, butter, and vegetables. Then he works away with hands and teeth, as if his moments were numbered, without speaking, almost without drawing breath, but following with haggard eyes the dishes that travel away from him, and harpooning them as soon as they come within reach, to seize upon a fresh supply.

This first operation finished, the American lights a cigar; goes to the place where spirits are sold, which is here called the bar-room; tosses off a glass of whisky or Madeira, and sets himself to ruminate till the hour of noon. Noon is very far off, and many are unable to get through this mortal interval of four hours without a second and third visit to the dear bar-room, after which they ruminate again. The bell announces luncheon, consisting of soup, a box of sardines, cold meat, butter, and a lump of cheese. At three o'clock, another tap on the tom-tom—the best, the most desired of all; it proclaims dinner, of which the two preceding repasts were but the modest preface. This time the table is covered from one end to the other with vast dishes, containing enormous roasted joints, highly-spiced sauces, prodigious puddings. The same appetite as at breakfast, the same universal silence. No sounds but the clatter of knife and fork, and the crunching of bones between impatient jaws. So great is the hurry in which this third repast is got through, that the diners do not even think of wiping their knives before plunging them into the salt or butter, and napkins are habitually thrown aside, for the manifest reason that the use of the napkin entails a loss of time. Yet these people laugh at Turks for using neither spoons nor forks at their meals. I remember to have eaten a few dinners with Turks, and I declare that they were models of cleanliness compared to

those at which I have been compelled to assist in American hotels and steamers.

Dinner over, the rest of the day is long to get through. Accordingly, towards seven o'clock, you hear, for the fourth time, the blessed bell inviting the inmates of the building to a cup of tea or coffee, accompanied by cold game or salted meats, after which visits to the bar-room may be recommenced *ad libitum*.

To see these men of business thus rush to table, and stow away a whole cargo of miscellaneous viands in less time than a Spaniard takes to imbibe a single cup of chocolate, one might imagine that they consider every minute passed in the dining-room as so much time lost, and that they are in desperate haste to return to their counting-house, and bury themselves in ledgers and day-books. Unfortunately, as on leaving the eating-room I have almost invariably found every man of them with his body on one chair, and his feet, raised to a level with his head, on the back of another, I am bound to conclude that it is not business, but an unparalleled voracity, which induces them to feed at steeple-chase pace.

Many travellers who here, in the States, are considered very impertinent, but who nevertheless write with the most amiable intentions, attribute the cold taciturnity of Americans to their preoccupation with commercial combinations or political affairs. I believe that, without doing them injustice, one might very often attribute it to the labour of the digestive organs, put four times a-day to a severe task, and which frequently, in their fatigue, require the employment of soda-water, and almost continually the acrid and hideous mastication of a roll of tobacco. The fact is, that in general the American is much more silent than the Turk. There is also this difference between them—the Turk, seated on a carpet, with his silken vest, his long beard, his large turban, appears nobly indolent or gently meditative, and the stranger's eye may rest with pleasure on his calm and benevolent physiognomy; the silence of the American, on the contrary, is gloomy and uneasy, dry and hard, (*sec et dur.*) His countenance is *pointed*, his movements are stiff and angular. His

repose is not the happy placidity of the Oriental, or of the southern European—the enjoyment of *kief*, the pleasure of the siesta; it is a sort of prostration, agitated from time to time by a feverish movement."

The following sketch is certainly not very flattering. After laying down the rather novel proposition, that man is one of the ugliest of created animals, M. Marmier proceeds to prove the American the ugliest of all civilised races of men:—

"Picture to yourself, if you please, a lean figure with bony wrists, feet of dimensions that would for ever tarnish the scutcheon of a gentleman, a hat stuck upon the back of the head, straight hair; a cheek swollen, not by an accidental cold, but from morning till night by a lump of tobacco; lips stained yellow by the juice of the same plant; a black coat with narrow skirts, a tumbled shirt, the gloves of a gendarme,⁵ trousers in harmony with the rest of the equipment, and you will have before you the exact portrait of a thoroughbred Yankee."

All this would shock Mr Taylor. Substantially, however, it is true enough. Sealsfield, himself a naturalised American, and a warm admirer of the institutions of his adopted country, has sketched scenes very similar to M. Marmier's delineations of hotel and steamboat life—life in those places of resort being pretty equally divided between the dining-table, the bar, and the spittoon. Hamilton, Marryat, Mrs Trollope, and other keen observers and able writers,⁶ have enabled us to dispense with the accounts of foreign travellers in the States. But still the verdict passed upon the citizens of the Great Republic by an educated and intelligent Frenchman must always possess weight and interest. Were M. Marmier an irritable or grumbling traveller, one might think it right to receive his impressions with caution; but, on the contrary, in all his previous books that we have seen, he has shown himself so indulgent and easy to please, that it is impossible to refuse him credit when he adopts a different tone, and abandons his habitual suavity for such severity of sarcasm as he may have at command. We have seen him annoyed and disgusted on board the steamers; presently we find him put to the torture in an American stage:—

"The railway left me at Cumberland, and handed me over to the stage-coach. Probably you do not know what a stage-coach is in this country. It is a wooden box placed on four wheels, and intended to convey travellers along roads which the locomotive has not yet favoured with its visits. But what a box, and what a road! We were nine, packed together like herrings in a barrel, jolting through the ruts and bounding over the stones as if we had been afflicted with St Vitus's dance. Add to these comforts the delightful society of seven graceful Americans, chewing, spitting, and (in order to be more at their ease) *taking off their boots*. A timid, delicate young girl, seated in one of the corners of this infamous box, suffered in silence, and the next morning we found her in a swoon. For my part, I passed the night in tossing to one side or the other an enormous dirty body which constantly fell back upon me, and two enormous legs which seemed determined to crush mine. Assuredly, if a severe penance can, according to expiatory dogmas, cleanse us from our sins, my soul ought, after these twenty-four hours of coaching, to be as pure as that of the newborn child; and if ever I meet an Indian fakeer in quest of a new torture wherewith to propitiate the goddess Siwa, I will send him to America, to travel by the Cumberland stage."

Madame de Merlin, certainly a very amiable and hardy traveller, slow to feel small annoyances or to censure foreign habits, is unable to conceal her disgust at some of the practices which so shocked M. Marmier. She went out to New York in the same vessel with Fanny Elssler, and was present at her first appearance in that city.

"The enthusiasm," she says, "was immense; I thought myself at Rome, and had difficulty in recognising the nation that talks by measure and walks by springs. But soon these men, with hat on head and coat off, lying down upon their seats, and who, after placing their heavy-nailed shoes on the ground, carelessly rested their woollen-stockinged feet on the back of their neighbours' chairs, reminded me that I was in the United States."

On entering the railway between New York and Philadelphia, the Countess found it—

"Full of men and newspapers, the former carrying the latter. There were sixty-five travellers. When I went in, every place seemed full, and no one stirred. I had a right to my place, for which I had paid beforehand. The conductor addressed a few words to one of the occupants of a bench intended for four persons, but which was then occupied but by three. The traveller continued to read, and paid not the least attention to what was said to him. Second appeal, same insensibility. Then the conductor pushed him. He yielded to this third and energetic summons, but without raising his head from his newspaper, and as if he had been displaced by a jolt of the carriage. This passenger was the only one who wore gloves. One must see this nation to form an idea of its manners. Here a man lets himself be pushed, elbowed, hustled, and suffers his toes to be trodden upon, without wincing; what is still more astonishing, he sees people lean upon his wife before his eyes, and endures all these insults with stoical tranquillity—the contrary would appear absurd or ridiculous.... During the journey, my neighbour thought proper to rest his back against my shoulder. I gently told him of it. He took no heed, and preserved his position—not with any impertinent intention, but because he found himself comfortable. At sight of this, my young companion, a Spaniard by blood, a Frenchman by education, turned red and pale alternately; his lips were compressed, his eyes flashed. I was frightened; but suddenly, assuming an air of calmness, he extended his hands, placed them on the back of my boorish neighbour, and pushed him quietly into his place.

'If I had put myself in a passion with him,' he afterwards said to me, 'he would never have understood why.'

'And you would have been wrong,' added Mr W—n; 'how can one be angry with people who would think it quite natural that you should behave in the same way to their wives and daughters?'"

It is not surprising that Mr Taylor, at his age, and in his superficial glance at the United States, should have overlooked a point of American character which particularly strikes M. Marmier, the poet and dilettante, and Madame de Merlin, the high-bred and intellectual woman. This is, the general

sacrifice, to the positively and materially useful, of those pursuits and refinements which are the grace, and embellishment of human existence. The neglect of the fine arts, the absence of feeling for the beautiful, are there the result of the ardour for speculation and the all-absorbing pursuit of dollars.

"The artist," says Madame de Merlin, "is assimilated to the artisan, and art is measured by the yard, like merchandise. They do not cultivate music or painting, or even flowers. Do you wish to inhale the perfume of a flower? you must buy it at a high price: it is an article of trade, and only to be found at the nurseryman's. I am not aware of a single picture in the United States, unless it be in the Pantheon, where several memorable epochs of the American Revolution are rudely represented upon some old panels of wall. In this country, all that is beautiful is forbidden: the beautiful is not useful. The grace of the human form, music, poetry, painting, flowers, are blessings vouchsafed by Providence to man to soften the bitterness of his days of mourning, to alleviate the burthen of his chains; they are gleams of joy amidst long years of struggle, brilliant flashes through the gloom of night; they are the luxury of human life."

Less elegant and eloquent than Madame de Merlin, M. Marmier resumes in greater detail, but with equal force, nearly the same idea:—

"The Americans may say to me, 'We are not a polite people it is true; we seek not to be affable or attentive, it must be owned; and the foreigner who comes amongst us may well be shocked by our coldness. But if we disdain, as frivolous, the elegant habits of European society, we have an audacity of enterprise, and a rapidity of action, which must astonish Europe. To start from the spot where we now are (on the Hudson.) In less than forty years, we have covered this desert river with steamers and vessels of every kind, we have cleared and peopled its banks, converted its hamlets into flourishing cities, dug harbours and canals, laid down railroads, given life, movement, and commercial prosperity to the whole district. Before us is Albany, which, in the seventeenth century, was a mere fort, and which now has a population of forty-two thousand souls; and down yonder is the

commercial metropolis of New York, the first in the world after Liverpool. Nothing equals the spring of our activity and the boldness of our conceptions. Things that you in France take years to combine, and which you lengthily discuss in the tribune and the newspapers, we accomplish in a turn of the hand. In a couple of months we shall establish a line of steamers to Havre, and another to England. Already we have similar communication with Germany by the port of Bremen, with the Antilles and the Pacific Ocean. Not a corner of the globe is there where our flag does not wave. How many projects have there not been elaborated in your old Europe for cutting through the Isthmus of Panama? England and France sent thither their engineers, who published long reports—reports which were examined by councils of ministers, submitted to commissions, and finally shelved in public offices. At New York, two or three merchants formed an association, which decided, in two or three days, that the Isthmus of Panama should be crossed by a railroad. No sooner said than done. Already the workmen are on the ground; another year, and the United States' steam-engine will connect the two oceans.'

I recognise," says M. Marmier, "the justice of such reasoning, and I bow my head before this power of human genius applied to the wonders of industry. But, O worthy Yankees, Scripture says that '*man shall not live by bread alone*,'—the heart and the mind have other requirements. Unless our mind be absorbed in the movements of a high-pressure steam-engine, and our heart changed into a bank-note, there will always remain to us pleasing reveries, thoughts of art and poetry, the enjoyments of social life and of expansive affections, which all the efforts of your courage and the success of your toil can never replace."

Appositely to Madame de Merlin's slighting mention of the pictures of Revolutionary scenes, comes in a passage from M. Marmier's first volume, relating to the Americans' exaggerated estimate of their military glories.

"At Plattsburg, situated where the Saranac enters Lake Champlain, there is a chance that the American, who has passed whole hours without heeding you, and who has hitherto received your advances like

a dog in a bad humour, will suddenly embellish his metallic physiognomy with a jovial smile, and approach you with a complaisant air. For he longs to tell you of the victory gained near this town by the Americans, in the year 1814, commanded by Commodore Macdonough, over the English troops; and he narrates the story with so many details, and such an emphasis, that you at last wish he would relapse into his habitual silence.

The Americans, like the Russians, have a national pride surpassing all expression. They cannot, like the Russians, talk of their old traditions; nor have they, like them, ancient monuments of a venerable character, and modern ones of grand aspect. They have not, like the soldiers of Suwarrow and Alexander, conquered a valiant reputation upon the chief battle-fields of Europe. Neither have they the literature of Russia, so artless in its popular poetry, so original in the compositions of Pushkin and Gogol. But little do they care what exists in other countries. They have the happiness to believe all other nations very inferior to them, and all the imagination that the perpetual use of figures has left them is agreeably employed in raising the airy edifice of their glory. Their least success is an event which must occupy the thoughts of the whole world. A battle in which they have taken a banner And slain thirty men is a second Marengo. The name of their General Scott is to be transmitted to posterity with the same lustre as that of Alexander or Cæsar; and not a soldier who served in the war against Mexico but is a Napoleon on a small scale. When they talk of their country and of its progress, the ordinary vocabulary is too weak for their enthusiasm. They are fain to seek extraordinary epithets, words which the learned Johnson never admitted into his dictionary. They remind me of the Italian cicerone who exclaimed, when showing a picture of Albano to a traveller, '*Ah, Signor! questo è un maestro, e un grande pittore, e un pittorissimo!*'

I accordingly heard, from one end to the other, the story of the battle of Plattsburg, after which my officious American, satisfied probably with my attention, made me a bow—a rare circumstance! I even believe—a still rarer event—that he made a motion as if to raise his hand to his hat. Then, having no other Homeric epic to narrate, he took

himself off, and left me opposite to the shores of the Champlain, at liberty to indulge in meditation."

Thus left to his reflections, M. Marmier grows pathetic—as is not unfrequently the case with him—and feels his heart oppressed with an unspeakable sadness, and gives us a French prose version of some German verses by Tieck, which he might just as well have omitted, as also some gossip about the moon and other analogous matters, which merely serves to swell his book, and will inevitably be passed unread by every sane reader. However, we must take the gentleman as we find him, and sift, as well as we can, the wheat from the chaff, when the latter occasionally predominates. Presently he relapses from the pathetic into the sarcastic, on occasion of a visit to the Legislative Assembly of the United States, which reminded him a good deal of that of France. There were certain points of difference, however. "The American deputies, he says, chewed tobacco very agreeably, and spat with remarkable dexterity to a distance of fifteen paces,"—through a keyhole at that distance, we have heard it asserted, but do not guarantee the fact. Even Mr Taylor but imperfectly conceals his disgust at the "antique vases, vulgarly called spittoons," placed beside the desk of each member of Congress. From the senate-house to the President's levee is but a step. It is taken by M. Marmier under the guidance and protection of a lady, to do honour to whose introduction he put on, he tells us, his whitest cravat and his blackest coat. But soon he perceived that this garb of ceremony formed a striking contrast with the motley costumes that thronged the White House at Washington. Frocks of every colour were there, and vests of every cut, but of coats very few.

"There was no servant at the door or in the antechamber. We walked at once into the saloon, where the President was on his legs, fulfilling the arduous duty imposed upon him, without respect for his age and for the dignity of his military services, by the arrogant republic. My amiable conductress advanced towards him. He held out his hand and said, 'How do you do?' She named me, he turned towards me, holding out his hand, and saying 'How do you do?' A crowd of visitors came up; he shook hands with them all, repeating 'How do you do?' These amiable salutations bidding fair to be indefinitely prolonged, my charming introductress thought I had enough of it, and took me up to

the President's daughter, who welcomed me with the never-failing 'How do you do?' After which we went to walk about another saloon with a crowd of individuals who were parading it in pairs in silent procession; women, such as exist nowhere but in Henri Monnier's comedies, and men to whom you would fear to grant admittance into your anteroom. For opening his marble palace once a-week to this plebeian crowd, for courteously saluting all these ladies who keep stalls, for shaking hands with some hundreds of unclean citizens, the republic gives its President only one hundred and twenty-five thousand francs a year. It is poor pay!"

The pittance certainly appears paltry, contrasted with the more ample allowance of a French president; but the two cases will hardly admit of a comparison, nor does M. Marmier draw one. There is evidently very little of the republican in his composition; we should rather take him for one of the class which M. Louis Blanc's followers designate, in picturesque abbreviation, as *aristos*; and indeed he makes no secret of his aversion to what he terms *demagoguery*—a word which is probably not to be found either in Boyer or Walker, but which some of our ballad-writing friends may possibly think no bad rhyme to roguery.

Soon after his visit to the President, we find our errant Frenchman steaming down the Ohio and Mississippi to New Orleans. At Cincinnati, when about to embark on a steamer pompously advertised as "The splendid and fast-running John Hancock," he is somewhat startled by a conversation between two Americans, from which he gathers that the said "Hancock" is a worthless boat, whose boilers have been condemned by the inspector, and which the insurance companies refuse to take, but out of whose rotten hull and rickety engines the considerate proprietors propose to squeeze a little more passage-money at risk of the passengers' lives. So M. Marmier takes his place by the "Western World," also announced as "splendid and fast-running," but which, he flatters himself, is more sea, or at least river worthy, and devotes a few pages to the perils of the West, the recklessness of steamboat captains in America, and the unpaternal nature of a Government which imposes no check on the employment of damaged steamers. Explosions, conflagrations, inundations, snags, sawyers, and races—he

makes out a terrible list of dangers, and estimates at thirty or forty per annum the number of steamers lost in the Western waters.

"The average existence of a boat is here about four years. In four years it must have brought in its cost, with interest. If it lasts longer, it is by unhopd-for good luck. But the American does not trouble his head about difficulties or perils. He *must* travel, and he travels at all risks. You have doubtless read the account of that terrible explosion of the "Louisiana," which, about a month ago, discharged the fragments of her boilers and some hundreds of corpses upon the quay of New Orleans. Next day, not a steamer had a passenger the less. *Go ahead* is the American motto. Is there a new territory to explore at three hundred leagues distance, a sale of goods to be effected north or south—*go ahead!* The weather may be bad, the roads covered with snow, the journey long and difficult, no matter—*go ahead*. The steamer by which they are to go is of bad repute, is ill organised and worse commanded; there is danger of its sinking at the very first casualty; never mind—*go ahead*. Fatigue and danger are nothing—movement before everything. I ought to admire such intrepidity; but, with my old-fashioned European notions, I regret to think that the seductions of fortune can inspire as great courage as the chivalrous sentiments of glory, religion, and love."

M. Marmier is manifestly of too romantic a turn to travel in the States with gratification to himself, or to write about them in a manner likely to satisfy their inhabitants. He humbly confesses his deficiencies, and implores indulgence. A poor tourist, he says, incapable of correctly adding up a column of figures, and ignorant of the very first principles of mechanical science, he prefers the fresh morning breeze to the roar of a locomotive, and would never dream of putting a railway in competition with a hawthorn-hedged footpath. And although, before starting on his Transatlantic expedition, he assiduously studied the works on America of Michel Chevalier, De Tocqueville, and Miss Martineau, even *they* had not sufficiently guarded him against disappointments. At the bottom of his heart there still lingered fanciful dreams of vast forests, Indian traditions, and deep silent savannahs. He had dreamed of New York as "rising like an enchanted isle between the waves of ocean and the azure current of the

Hudson, in the poetical prestige of a world decked in all the charms of youth." We feel that our imperfect translation but feebly renders the elevation of M. Marmier's style and sentiments; but it may suffice to give the reader an idea of that gentleman's bitter disappointment on finding the city of his dreams a vast focus of speculation, cupidity, and roguery; where "the stranger is every moment exposed to find himself gently duped or audaciously robbed;" where the proportion of knaves and adventurers to the mass of the population exceeds that in any other city of the world; and where the religion, even of the most honest, is the blind and unbounded worship of the Golden Calf. The most ungallant of Frenchmen, he spares not even the ladies, but imagines that the gay swarm which daily flutters in Broadway, between the hours of twelve and two, laden to excess with silks and velvets, shawls and laces, collars and jewellery, do not repair thither solely for their amusement, nor yet for the more important business of shopping; but that they are intended as sauntering advertisements of the wealth of their houses, "and to announce, perhaps, by an increased display of plumes and diamonds, each new victory achieved in the campaigns of speculation." In America, according to M. Marmier, and particularly in New York, everything is reducible into dollars and cents, and is duly reduced accordingly.

"To understand the ardour with which they toil in this reproduction, (of dollars,) we must bear in mind that, in their virtuous democracy, there is no other real sign of distinction, neither birth nor titles of nobility, nor artistic and literary talent. Here everything must be reckoned by figures, or weighed in the goldsmith's balance. A captain of a vessel has distinguished himself by a voyage of discovery, and you take pleasure in quoting the interesting places he has seen, and the observations he has made. You are interrupted by an inquiry of how much he was paid. A painter has been successful at the Exhibition, and has received the most encouraging eulogiums, accompanied with a gold medal. They overlook the eulogiums, but desire to know the weight of the medal. Tell an American that Murray gave Lord Byron sixteen hundred guineas for a canto of *Childe Harold*, he opens his eyes, and exclaims, with poetic enthusiasm, that he should like to have written *Childe Harold*. But if you add, that Béranger lives in a cottage at Passy, and that his whole fortune consists of a slender annuity, he

ridicules Béranger's glory, and reckons he would have done better to take to trade. With such ideas, you will understand that here literature takes no very high flight. Cooper, Washington Irving, and the learned historian Prescott, have certainly acquired much more fame in Europe than in the United States. For there the merit of their works is alone thought of; but here it is gravely remarked that, with all their writings, they have not made their fortunes.

Nevertheless, standing in a New York library, and reckoning up the immense number of newspapers published in America, one might suppose that a more literary country did not exist on the globe's surface. But those publishers do but reprint, in a compact form, and at the lowest possible price, the *feuilletons* of France, and the elegant octavos of England. Alexander Dumas gives employment to more printing-presses, papermakers, and stitchers here than in France. As to the two thousand four hundred newspapers of which the United States boast, as of a sign of the diffusion of enlightenment, it is impossible, until one has held them in one's hand, and read them with one's own eyes, to form an idea of such a mass of personal diatribes, coarse chronicles, puerile anecdotes—of such a confused medley of political and commercial notices, mingled with shopkeepers' puffs in prose and verse, and smothered in an ocean of advertisements. Nothing that you see in France can give you an idea of these advertisements. They are a daily inventory of all imaginable merchandise, heaped up, *pêle-mêle*, as in an immense arena—a register of all the inventions possible, and of every conceivable trade.... With the exception of the *New Orleans Bee*, and of the *Courier of the United States*, (both published in the French language,) I do not know an American paper—not even the best of all, that of a distinguished poet, Mr Bryant—which can be compared, for the order of its contents, and its general getting-up, to the most unpretending of our provincial newspapers. As every considerable city publishes at least a dozen papers, and every little town two or three, the consequence is, that none attain sufficient circulation to afford fair remuneration to a body of able writers. Some are sustained by the funds of partymen, whose organs they are; and the majority exist only by the proceeds of their advertisements."

Arrived at New Orleans, M. Marmier makes his moan over the fair and broad territories once possessed by France in the Western Hemisphere, and predicts the loss of nearly all that she still retains in those latitudes, the Islands of Guadaloupe and Martinique, as a natural consequence of that decree of the Provisional Government which liberated, at one blow, the whole of the blacks, thereby ruining the white proprietors. The slaves had cost three or four thousand francs a-piece; four hundred francs was the indemnity granted to their owners. The negroes, thus suddenly emancipated, at once took to idleness, and would work only when they pleased, and as they pleased, and on their own terms. The sugar-fields were deserted, and the Creoles, abandoning their plantations, worthless for want of hands to cultivate them, were emigrating in numbers to the United States. M. Marmier met a great many of these unfortunate men, ruined and exiled by the mad precipitation of one of the most worthless and despicable Governments that ever swayed, even for a brief space, the destinies of a great country and its colonies.

"Some day," he says, "the negroes will no longer be satisfied to receive wages. With the ideas of equality preached to them by their apostles, they will grow indignant at their condition of hired labourers. They will desire to possess lands. The sooner to have them, they will seize them by force. All the emigrants from Guadaloupe and Martinique with whom I conversed respecting the present condition of the two islands, foresaw a bloody and terrible catastrophe. Failing energetic repression, those islands, like that of St Domingo, will be lost to us. But we shall have the satisfaction, perhaps, of witnessing the foundation of a new kingdom of blacks, and of manufacturing at Paris the crown and sceptre of another Faustin I."

Such gloomy accounts of their condition and prospects were not calculated to encourage M. Marmier in any design he may have entertained of a visit to the French West-Indian colonies. He preferred Cuba—previously, however, abiding some days in New Orleans, where, as in Canada, he fondly traced the lingering habits and traditions of his native land. The gay, urbane, and sociable Creoles contrasted most favourably with the dry, taciturn, tobacco-chewing men of business of the Northern States. M. Marmier was no less surprised than pleased at the striking

difference, having expected to find the people of New Orleans already "vitrified by the American furnace."

"For of all the things," he says, "which astonish the stranger in the United States, the most astonishing, perhaps, is the power of absorption of the American character. Suppose a skilful chemist throwing five or six different ingredients into his crucible, mingling and crushing them with a view to the extraction of one homogeneous essence, and you have the image of the moral and intellectual chemistry which continually acts upon this country. What we call the American people is but an agglomeration of emigrants from various regions and races. The first came from England; others have come from Germany, Ireland, France, the mountains of Switzerland, the shores of the Baltic—in short, from all the countries of Europe. At first this agglomeration was effected slowly, by small detachments. Now it annually consists of whole armies of artisans and tillers of the soil, and of thousands upon thousands of families. All these foreigners naturally take with them to the United States their particular predilections, their national habits, doubtless also their prejudices. At first the character of the American displeases them, and they are disagreeably surprised by his habits. They resolve to keep aloof from him, to live apart with their own countrymen, to preserve, upon that distant continent, the manners of their native land, and in their mother tongue they energetically protest that they never will become Americans. Vain is the project! useless the protestation! The American atmosphere envelopes them, and by its constant action weakens their recollections, dissolves their prejudices, decomposes their primitive elements. Little by little, by insensible modifications, they change their views and mode of living, adopt the usages and language of the Americans, and end by being absorbed in the American nation, as are the streamlets from the valleys in the great rivers that bear them onward to the ocean. How many are the honest Germans, who, after cursing the rudeness of American manners, and bitterly regretting their good kindly Germany, have come at last to stick their hat, Yankee fashion, on the back of their head, to stiffen themselves, like the Yankee, in a coat buttoned up to the chin, to disdain all the rules of European courtesy, and to use no other language but the consecrated dialect of business."

Fearing a like transformation in the French population of New Orleans, M. Marmier, delighted to find himself mistaken, thanks Heaven for his escape from the frigid zone of Yankee-land, and for once more finding himself, for the first time since he left Canada, amongst people with hearts as well as heads, whose commercial pursuits do not preclude social enjoyments and friendly attentions to a stranger. He notes a vast difference between the aspect of New Orleans and that of the other cities of the Union. In the Louisianian capital there is more of holidaymaking, and less of unremitting money-seeking; there are to be found gay dinners, agreeable pastimes, music in the streets and coffee-houses, manners more courtly and dress more elegant, an opera and a vaudeville. This, at least, is the case in the French portion of the city; and the inhabitants of the American quarter have benefited, our traveller assures us, by the contact and intercourse of their lively and amiable neighbours. Even in New Orleans, however, he finds things to blame, or at least to deplore. The principal of these is the fatal practice of duelling, which has brought desolation into so many Creole families. *A. N., victime de l'honneur à 24 ans*, is the brief but significant inscription upon a plain tombstone, before which he pauses during his ramble amidst the flower garlands and green shrubberies of the carefully kept cemetery. Duels in Louisiana are much less frequent since the passing of a law which deprives the duellist of his civil rights for a space of five years, and which closes to him the profession of the bar, and the avenues to certain public employments. No law, however, can tame the fierce passions of the men of the Southern States, or prevent those extempore duels, fought out on the instant of quarrel, with revolver and Arkansas toothpick—a Gargantuan toothpick, M. Marmier shudderingly explains, having a two-edged blade, a foot long and two or three inches wide.

Before quitting the Union, whose inhabitants and institutions have certainly met with little favour at his hands, M. Marmier apologises for any undue severity into which he may possibly have been betrayed.

"If," he says, "in my remarks on the social relations of the Americans, I have been unjust towards them, I sincerely ask their pardon. In towns and cities one feels a desire to meet benevolent glances and friendly words from our fellow-men; and this, with some rare exceptions, which I gladly treasure up, is what I sought in vain in

the great cities of the United States. Whether my search was unskilful, I know not; or whether, like an impatient miner, I too hastily abandoned a bed of rocks which concealed a precious vein. It is possible I may have done so. The one thing certain is, that in Canada and at New Orleans the sympathetic vein was revealed to me at once, and I had but to extend my hands to be met on all sides with a friendly grasp."

Finally, M. Marmier, who, whatever his faults of style or occasional flimsiness of substance, must be admitted to form his own opinions and to speak them out frankly and boldly, whether right or wrong—prophesies the rupture of the Union as a consequence of the slavery question.

"When the two halves of this immense country shall have taken a greater development, when each of them shall have grown strong enough to need no longer the other's support, the consciousness of its power will give keenness to its susceptibilities, and it will repel with anger what it now with difficulty tolerates. A fortuitous circumstance will cause a long-repressed animosity to burst forth; and slavery is, perhaps, the straw that shall break the steel bar of the United States."

With which ominous valediction M. Marmier closes his first volume, and embarks on board the "Ohio," the leviathan of American steamboats, constructed for the express purpose of conveying Californian gold-seekers to Chagres, and boasting, according to advertisement, engines each of a thousand horse power, and cabins for five hundred and fifty passengers—figures which the incredulous Marmier, long since initiated in the mysteries of Yankee puffery, inclines to think exaggerated. The vessel, however, is undeniably both fine and fast, and on the fourth morning after her departure from New Orleans, (four-and-twenty hours having been lost getting over the bar,) she flashes past the walls of the castle of the Moro. A narrow passage between rocks, fortresses right and left, frowning batteries of cannon—the entrance to the port of Havana is a menacing introduction to the delightful panorama that presents itself within. A vast semi-circular basin, which no tempest ever ruffles, envelops the city with its azure waters. So gay and bright is the aspect of the city itself, that the enthusiastic Marmier is at the gangway in an instant; his carpet-bag in one hand, his

pilgrim's staff in the other, shouting for a boat to convey him ashore. He forgets that he is no longer in the States, where passports are unknown and all may come and go unquestioned. Cuba is the paradise of police and custom-house officers, the purgatory of tourists. Before embarking at a foreign port, your passport must receive the visa of the Spanish consul. Two dollars for that. On arriving at Cuba, the authorities take your passport and give in exchange a document of their own fabrication. Eight dollars for that. Still you are not allowed to land till an inhabitant of the island has guaranteed your respectability. It is a puzzle how to obtain this guarantee whilst you are forcibly detained on ship-board. The difficulty is removed by the appearance alongside of a number of obliging individuals, offering to certify your morality and orthodoxy; in return for which service you cannot do less than offer them a four-dollar bit. So that on summing up, and including boat-hire and portage, it costs the humblest traveller something like twenty dollars to cross the quay of the Havana and reach his hotel.

But it is worth while to pay a good price for leave to land upon the enchanting shores of the Queen of the Antilles, to roam in forests of orange trees, to repose beneath the broad shade of the banana, and to enjoy, in their delightful quintas, the hospitality of the kindly Havanese. Besides, as M. Marmier exclaims, what are a hundred francs in a country whose soil produces golden harvests! *There* are none of your coarse copper coins, or dirty Yankee bank-notes. A silver *medio* (about threepence) is the smallest current coin, dollars are spent like francs in France, and a Cuban thinks no more of a portly golden ounce than a Paris dandy of a light napoleon. In that beauteous and luxurious isle, now almost the last colony remaining to the Sovereign of "Spain and the Indies," whilst the rich have abundant facilities for squandering their wealth, the man of humble fortune is at no loss for enjoyments. The bright sky, the glorious scenery, the gorgeous flowers, the cooling fruits of the tropics, are as free to him as to the *millionnaire*. And both alike are subject to the perils and annoyances of those sultry regions, where venomous plants and reptiles, offensive vermin, and the relentless *vomito*, the terrible Yellow Jack, are more than equivalent, as evils, to the grey skies and chilling blasts, snow-drifts and long winters of Northern Europe. It was in the month of January that M. Marmier reached the Havana, and by aid of open doors and windows, of curtains, mosquito nets, and a bed composed of two sheets and a sackcloth stretched

on a frame, the heat was rendered very endurable. He scarcely dared imagine what it might be in the dog-days, when the demon of fever stalks abroad, invisible but fatal. In some years, however, the *vomito*, even at the most unhealthy season, commits few ravages, its virulence seems impaired, and the rejoicing Cubans almost imagine it is dying out upon their shores. The delightful dream of security is soon dispelled. Suddenly the grim phantom reappears, more deadly than ever, smiting alike the stranger and the native, the rough European mariner, and the graceful daughter of the tropics.

"Last year, in the month of August, the ships in harbour resembled those which are deserted by their sailors in the port of San Francisco. But it was not to hurry to the dazzling *placer* that sailors and officers abandoned the national flag. It was to seek in the hospital a remedy for their tortures, to be buried in a foreign graveyard, far away from their pleasant Scheldt and beautiful Gironde."

As if the isle itself did not harbour enough disease, the winds of heaven and the ocean tides wafted it thither from other climes, from the fever-ridden shores of Tampico and Vera Cruz.

"One day the watcher on the Moro saw an English brig pass at the foot of the ramparts, steered by a woman, whom a pale skeleton-like man strove to assist in her task. Captain Jackson, who commanded this brig, had left Tampico with his wife, two young children, and seven sailors. A few days after they sailed, the seven sailors sickened of the fever and died, one after the other; the captain and his children, attacked by the same malady, lay in bed, unable to move. The woman, with a superhuman courage, inspired by her trust in God, threw the corpses into the sea, furled a part of the sails, took charge of the wheel, nursed her husband and children, and, thanks to a favourable wind which seconded her resolution, directed the ship towards the island of Cuba, until such time as her husband, rising from his sick bed, was able to give her some assistance. And thus she came into port, after forty days' navigation, timid and modest, casting down her eyes when lauded for her heroic energy, and seemingly unconscious of having

achieved that from which the imagination of the most resolute man might well recoil with terror."

All who have read *Tom Cringle's Log*, will call to mind its glorious descriptions of Cuban scenery, its graphic and thrilling sketches of tropical sports and perils. We think all the better of Mr Taylor, that he has attentively studied Captain Cringle's admirable work, and refers to it with the respect due from a tyro to a master of the art. At St Jago de Cuba he became acquainted with the original of Don Ricardo Campana, the Spanish Scotchman who accompanied Cringle and Captain Transom on their memorable expedition into the interior of the island. Who has forgotten that exquisite chapter of the Log, "The Pirate's Leman"? Mr Richard Maxwell Bell, the gentleman whose name Cringle has humorously translated, is not a Scotchman, (as he is stated to be in the Log,) but is every bit as hospitable, sensible, and kind-hearted as he is there represented. By his good offices, Mr Taylor obtained a companion in the person of a young Spanish officer, proceeding up the country to join his regiment, for the journey to Gibara, a small town on the north shore of the island, five and forty leagues from St Jago. In the district of Holguin, whose capital is Gibara, the promised gold vein was said to exist, and that was Mr Taylor's destination.

"After seven days' delay, I received intimation that my fellow-traveller, Don Carlos Saldivar, was now ready, and awaited my joining forces with him at eleven that night, so as to get a long cool march by moonlight. About half-an-hour after the appointed time, we filed off down the street, the cavalcade consisting of about twenty-four horses, the head of one being tied to the tail of the other; and Don Carlos and myself brought up the rear. I have met with very few, even old residents, who have ever crossed the island by the road we took. It leads all the way over highlands, rocky passes, and through mountainous streams, except where it crosses some immense savanas; whereas the main road is mostly all the way on the banks of the Cauto, the principal river of Cuba. But the main road, though short and level, is dreadfully muddy and clayey in rainy weather, and for that reason our arrieros chose the other. After passing a small *ingenio* or sugar-mill, worked by oxen, which Don Carlos pointed out on the side of the road, we entered a perfect forest of orange trees, whose ripe and

tempting fruit hung in profusion from every tree, and lay also on the ground by cart-loads. I let the party get ahead some distance, and then, quietly dismounting, eagerly clutched the finest and ripest I could see. My mind misgave me a little on applying the test of smell, although that was very refreshing; but my worst fears came out on removing the peel, when I found my orange was both bitter and sour, being of the kind called in England "Seville," indigenous to and abundant in all the forests of Cuba, as well as the lime. I rode up to my friends, feeling considerably "sold," and now began to be aware that good fruit, although abundant enough in Cuba, is not to be had on every tree. We had accommodation, none of the best, the four nights we passed on the road. One of them saw us in a small *rancho*, the dwelling of a solitary negro, who, it seemed, was a tailor, and where the only place I could find for passing the night was on a *barbacoa*, or platform of small round sticks; and of all the beds I ever tried to sleep on, this was the most hopeless! I suffered much on this journey for want of a hammock, and seriously counsel all who may have to make a journey, long or short, in Cuba, to travel always with one. But how different the mode of travelling in Cuba, where Coolies are not to be had for a song, as they are here where I am writing, (Ceylon.) A Ceylon planter or merchant cannot move through the jungle or take any trip at all, without the attendance of six or eight of these poor creatures, toiling under a weight of baggage, bedding, &c. A Spaniard will travel seven or eight hundred miles, suppose from the Havana, to Holguin, on one and the same horse, and carry all he requires with him. Folded partly over the cantle of his saddle, and hanging on each side, the two capacious pockets of his *seron* hold his coffee-pot, bread, and provisions on one side, and several changes of garments on the other. In front are strapped his cloak and holsters; behind, his hammock; and his trusty *machete* hangs by his side. He is a perfectly independent man—a man after Sir Charles Napier's own heart; can carry two or three days' provisions in his *seron*, and cares not a fig where night overtakes him. To be sure there are, fortunately, no venomous reptiles or wild beasts in Cuba. Here, in Ceylon, perhaps it would not do to try on that 'dodge' too far. You might find a cobra de capello alongside of you in your hammock, or be unceremoniously ejected therefrom by an inquisitive elephant, a playful cheetah or an affectionate bear."

The above extracts, culled from half-a-dozen pages of Mr Taylor, give a fair idea of the texture of the earlier portion of his book, which, it will be seen, is slight but agreeable. He is not strictly correct in stating Cuba to be exempt from the plague of venomous reptiles. The island certainly produces nothing to compare to the *cobra*, but it has varieties of the serpent tribe that would be found anywhere but pleasant bedfellows—to say nothing of most formidable scorpions, and of gigantic spiders whose sting brings on fever. In his later chapters, Mr Taylor grapples with graver subjects—gives us a few statistics, describes the culture and preparation of sugar, and argues the question of slavery, for the gradual extinction of which he propounds a project. Although he passed upwards of three years in Cuba, the greater portion of the time was spent in the plantations; and he saw nothing of the great towns, except St Jago, where he slept through an earthquake, in the next room to a man with the yellow fever, and where he was duly impressed with the merits of Madame Sauce's boardinghouse and Bordeaux wine. For sketches of Cuba's capital, the gay coquettish city of the Havana, we must revert to M. Marmier, whom we find, with his national versatility, driving in *volantes*, (the light cabriolets which are almost the only equipages used in Cuba,) quoting Horace, Byron, and Lamartine, lauding Havanese courtesy, glancing at Hegel's philosophy, criticising Spanish colonial government, telling anecdotes of General Tacon, (the stern but efficient governor to whom Cuba is indebted for many reforms,) admiring the Creole beauties in the theatre, and cooling his heated interior in the vast coffee-houses, where the delicious fruits of the island—the orange, the pine, the guava, and many others for which English names are wanting—are transformed into preserves, ices, and frozen drinks. At one of these coffee-houses, an ingenious French *glacier* had so multiplied his refreshing inventions, that he had exhausted his Spanish vocabulary, and was driven to politics and the Anglo-Saxon. "Waiter!" cried a thirsty customer, within hearing of M. Marmier, "bring me a President Taylor!" "A President Jackson for me!" exclaimed another voice. M. Marmier, with praiseworthy curiosity, tried both Taylor and Jackson. The ingenious confectioner, he declares, had had due regard to the characters of the two venerable Presidents, when he gave their names to his cunningly compounded liquors: Taylor was a sweetish and cooling draught, Jackson an energetic punch. At the theatre, where an Italian company performed *Lucia* in most creditable style, M. Marmier was struck with the elegance of the house and the aristocratic appearance of the

audience. The pit was full of men in white waistcoats and trousers; the three ranges of boxes, instead of wainscoting at the back, and a heavy wooden balustrade halfway up the front, had Venetian blinds in the one place, admitting air and light, and in the other a light trelliswork, which afforded a full view of the fair inmates from their luxuriant hair down to their fairy feet.

"Above the boxes is the place allotted to the negroes, who seem stationed there that their thickset figures and black faces may serve as a foil to the white doves in the boxes. Ladies' fashions have here no resemblance to those of Paris. Velvet is not to be thought of; even satin is too heavy and inflexible for those delicate forms, and Cinderella's slipper would be too heavy a load for those bird-like feet. A flower in the hair, a flood of gauze and lace on the body, a silk ribbon, with an imperceptible sole, for a shoe, and another ribbon of the same colour round the instep,—this is all that these lilies of the tropics can support. One might take them for those Northern elves, who formerly, in the forest glades, wove themselves garments out of moonbeams."

Lavish and luxurious in dress, the Havanese lady does not long retain the fresh and delicate tissues that drape her slender person, but transfers them, often scarcely worn, to her black waiting-maids, who turn out upon the Sunday, like so many African princesses, in all the glory of satin shoes, lace mantilla, and muslin robes. At the Havana, as at New Orleans, and even to a still greater extent, the lot of the domestic slaves might be envied, as far as material comforts go, by most of the lower classes of free Europeans. They form part of the family in which they are brought up, enjoy great kindness and indulgence, and frequently grow rich by hoarding the presents they receive.

"Many economical negroes," says M. Marmier, "especially those of the tribe of Caravalis, amass in service a sum which they well know how to employ. The law of Cuba obliges the proprietor to liberate his slave when he repays the sum he cost, either at once or by instalments. There is a lottery at the Havana, similar to those of Germany, which has already contributed to the enfranchisement of many negroes. There are tickets at twenty francs and at five francs, and prizes of forty

thousand, eighty thousand, and a hundred and fifty thousand francs. Once there was a prize of five hundred thousand francs, which was won by a negro, unluckily for him; for when he saw the mass of gold spread upon the table, the excitement killed him. Once free, the negro opens a workshop or warehouse, and buys other slaves. Unhappy those who call him master. They are worse treated by the man of their own colour than by the most merciless of the whites."

However fortunate the lot of the domestic slaves in Cuba, neither of the books before us gives a very pleasing picture of the life of those on the plantations. Of course much depends on the character of their owner, and whether he resides on his estate or leaves it entirely to an overseer. Mr Taylor, who saw much more of plantation life than M. Marmier, and indeed may be considered excellent authority on that subject, gives quite a pastoral sketch of negro life on one particular estate, partly owned and wholly managed by a kind-hearted friend of his, from whom the slaves had no undue severity to fear; but he significantly hints that cases of this sort are the exception rather than the rule, and, indeed, in more than one place, his italics and suppressions give us gloomy glimpses of the condition of the blacks in Cuba. M. Marmier describes the corporal chastisements inflicted as frequent and cruel, and occasionally leading to suicide and flight. But neither the virgin forests of Cuba, extensive and intricate though they be, nor the lofty and rarely-ascended mountains, secure the fugitive slave from pursuit and capture. As soon as he is missed, the terrible bloodhound is on his trail. Whilst residing on the sugar estate of Santa L., Mr Taylor, sitting one evening in the verandah, happened to fix his eyes on a distant clump of palms, which he had often before admired. Suddenly the tallest of them disappeared.

"Struck by such a strange circumstance, I called to the overseer, who was quietly walking his horse up the avenue, and told him. Quick as lightning, without giving an answer, he struck his spurs into his horse's flank, and quicker than I can write, he was on the spot. A noble palm of eighty feet lay prostrate, cut through with an axe, and already minus its glory, (its crown,) cut off for the cabbage. In vain, however, did he look for the culprit, and shout. But in less than two minutes, behold him back! 'White or black, I have him now!' shouted he, as he and the

dog scampered off again. One sniff at the tree was enough for the bloodhound, and in five minutes more the negro, for it was one belonging to the estate, was in custody—uninjured by the dog, for his master was close on his track. He was punished, but, I believe, not very severely."

Madame de Merlin, from whose graceful pages we have already quoted, speaks at some length of these celebrated slave-hunting dogs, whose strength and sagacity are as remarkable as their intense instinctive aversion to runaway negroes. These seldom dare resist them, but when they do, the contest is never long nor the victory doubtful. The dog seizes the man by the ear and pulls him to the ground; having thus daunted him, he suffers him to rise, and takes him home without further injury.

"Yesterday," says Madame de Merlin, "three malefactors who had devastated the environs of Marianao, at a short distance from the Havana, and who had escaped from the pursuit of justice, were brought in by two dogs. On arriving near the town, one of the dogs, his jaws all bloody, his eyes glittering, remained on guard over the prisoners; whilst his comrade, running to the entrance of the town, howled, shook people by their clothes, and indicated, by the most ingenious signs, the spot where the captives were waiting. At last he made himself understood, and guided the police to the place where the other dog, stanch to his post, was guarding the malefactors, who lay half-dead upon the grass. One of the unfortunate wretches had a broken jaw, and all three had been grievously wounded in the conflict."

The greater part of the labour on the sugar-plantations is necessarily of the very severest description, and the hardship is trebled by the burning heat of the climate; the negroes are punished by the whip, twenty-five lashes being the number permitted by law, and which Mr Taylor believes to be seldom exceeded, although there is no security against it not being so, since he admits that the owner or manager, offending in this particular, can evade the fine by a bribe to the Government official. If a slave, weary of stripes and toll, takes to the woods, the bloodhounds are on his track; and if he escapes for a while the keen scent and unwearying pursuit of these sagacious and formidable brutes, it is only at the cost of a life of constant

terror and privation amidst the jungles of *canas bravas*⁷, or in the depths of gloomy caverns, strewn with the bones of the aborigines of the island. There exist, however, according to Mr Taylor, colonies of fugitive negroes, dwelling in comparative security on mountain summits of difficult approach.

"At the very eastern end of Cuba, within the triangle between the cities of St Jago and Baracoa and Point Mäysi, is a wild and rugged tract of country, and in the centre of all, an immense mountain, called the Sierra del Cristal, which I have often seen from the sea. Hither no adventurous topographer has yet directed his steps; but, were the proper admeasurements made, I am almost certain the Cristal would be found the highest eminence in Cuba. On this mountain range, every one unites in declaring that the runaway negroes have established a large settlement."

Such collections of wild Indians or negroes are called Palenques, and the men composing it are known as Apalencados. When more than seven are congregated, it is a Palenque. The pursuit and suppression of these is under the superintendence of an official, appointed for the purpose, and of a tribunal called a consulate.

"If the expedition be considered one of extreme danger, special rates of reward are offered. In that case, *extirpation* is probably determined on; but such cases have rarely happened.... The great Palenque of the Cristal remains as much a mystery as ever; and some even doubt if the Spanish Government does not leave it purposely as a kind of safety valve for the discontented, for no expedition of importance enough to reduce it has ever been undertaken, although small parties are annually formed in Baracoa, who hover about it and capture a great many negroes. Common report says that the settlement is high up on an elevated plateau, only approachable by one pass, which is fortified by overhanging rocks, kept ready to hurl on the invaders, and strictly guarded by wary sentinels; and, that on this plateau, whose inhabitants are said to amount to many hundreds, grain, tobacco, &c. are grown sufficient for their wants. It is further hinted that some whites have more dealings with the Apalencados than they would wish generally

known, and supply them with clothes and necessities unattainable in the Palenque."

Spaniards are generally admitted to be much kinder slave-masters than most Americans. Were we to give implicit credence to the Countess Merlin, which her enthusiasm for her own countrymen and womanly partisanship prevent our doing, we must believe Havana the very paradise of slaves. "The humanity of the generality of the laws and regulations of the Spaniards in the particular of slavery," says Mr Taylor, "contrast favourably with that of *some* of the States of the American Union." M. Marmier considers the houses of the Havanese to be "the El Dorado of slaves, the plantations their purgatory." But all three authorities agree in preferring the condition of the slaves to that of the *emancipados*—slaves captured by our cruisers and liberated in the Havana, or confiscated by the Cuban authorities in some rare moment of zeal and good faith. These are hired out to taskmasters with a view of their being taught some trade, which they very seldom manage to learn; and, meanwhile, they drag on in bondage from year to year, often worse treated than slaves, because, as Mr Taylor says, the *emancipado* belongs to nobody, whilst the slave has an owner who is interested, to a certain extent, in not destroying his *animal*. It is the free black, in short, in these cases, who gets least victuals, hardest work, and most whip. Mr Taylor is rather good upon this head, and quotes with considerable effect the report of the Sugar and Coffee Planting Committee, printed by order of the House of Commons, and of which he received a copy in Ceylon, just as he was writing his book. The document, he says, singularly confirmed the impressions he had received five to eight years previously, during his residence in Cuba, as to the shameful manner in which the treaties respecting slavery are evaded in that colony. It shows how the *emancipados* are virtually sold (hired out for terms of years) in an underhand manner, for the profit of the Spanish Government and officials; how his Excellency the captain-general supplied the Gas Company, of which the chaste and tender-hearted Christina is the chief shareholder, with dark-complexioned lamp-lighters at five gold ounces a-head; how Mrs O'Donnell, (now Countess of Lucena) lady of the captain-general of that name, procured herself a snug little income by the labour of four hundred *emancipados*, transferred to the paternal care of the Marquis de las Delicias, chief judge, of the mixed court(!) *and one of the greatest slave-holders in*

Cuba—all these statements being given upon the undeniable authority of a letter from the British consul-general Crawford, read by the chairman of the Committee above referred to. And there would be no difficulty in producing equally reliable authority for a host of similar iniquities, incredible to persons unacquainted with the atrocious immorality of Spanish colonial administration, with the insatiable greed of certain high personages in Spain, and with the immense fortunes amassed by Cuban captains-general. "It is said," says Consul-general Crawford, as quoted by Mr Taylor, "that upwards of five thousand of those unfortunate wretches (the *emancipados*) have been resold at rates of from five to nine ounces, by which upwards of six hundred thousand dollars have been made in the government-house, one-sixth of which was divided amongst the underlings, from the colonial secretary downwards." "I heard the other day," says Mr Taylor, "of a grand new *ingenio* having been set up by Queen Christina, with every latest improvement; behold the secret!" He makes bold to believe that not a few of the five thousand "unfortunate wretches," spoken of by Mr Crawford, might be found doing duty in the queen-mother's plantation and sugar-mill. A very probable hypothesis. There can be no doubt, however, that the means by which the estate is worked, and the gas-lamps lighted, would bear investigation quite as well as the mode of acquisition of the funds invested in them by the enormously wealthy widow of the Well-beloved Ferdinand.

Those recent visitors to Cuba who have written of what they there saw, have in few instances done more than glance at the subject. They have either treated it superficially, like M. Marmier, who, in his love of locomotion and eagerness to get afloat again, dismisses the Pearl of the Antilles in three or four hasty chapters; or, like Mr Taylor, their opportunities of investigation have been limited to a small portion of the island. Mr Madden's little volume is of a special and statistical class; and, as far as it goes, we think well of it, notwithstanding the attack made upon it by Mr Taylor, who is shocked at the faulty spelling of Spanish words and names, and who laughs at Mr Madden for deprecating the annexation of Cuba to the States, which he (Mr Taylor) inclines to advocate. Madame de Merlin's work is much more copious and comprehensive than any of the three above named; but if her sketches of Havanese society and manners are pleasing and characteristic, her descriptions of scenery vivid, and her retrospective historical chapters careful and scholarly, on the other hand she

is frequently biassed, when touching on matters of greater practical importance, by the joint prejudices of a Frenchwoman and of a Spanish Creole; whilst her sex necessarily precluded her from acquaintance with various phases of Spanish colonial life, and from exploring those wilder districts, an account of which is essential to the completeness of a work on Cuba professing thoroughly to describe the island and its motley population. For such a work there is abundant room; and of such a one, in this century of intelligent and enterprising travellers, we confidently hope before long to welcome the appearance.

ONWARD TENDENCIES.
TO AUGUSTUS REGINALD DUNSHUNNER,
ESQ. OF ST MIRRENS.

MY DEAR DUNSHUNNER,—Is it too great a liberty to inquire into the nature of your present avocations, or to ask if you are occupied with any magnificent scheme to take the public mind by storm? You have of late maintained so mysterious and obstinate a silence, that your friends are becoming anxious regarding you. Like Achilles, son of Peleus, you seem to be sulking in your tent, whilst all the rest of the Greeks are abroad in the clear sunlight, making head against the Trojan army, and skirmishing in the front of their ships. We miss you, and the public miss you. Your red right arm was wont to be seen far in front of the battle fray, and, at the moment when the political strife is hottest, we cannot afford to lose the countenance of our bravest champion. I hope there is no Briseïs in the case? If so, tell us which of the Free-Traders has wronged you, and the damsel shall be immediately restored, with a corresponding recompense of plunder.

The fact is, Dunshunner, that we are in a devil of a scrape. Matters have not turned out exactly as we anticipated; and, although we are endeavouring to maintain the attitude of perfect confidence, I need not disguise from you my conviction that Free Trade has proved an utter failure. Of course you will keep this to yourself. We cannot venture to let it be publicly known that we have lost faith in our own nostrums; and we are doing all we can, by means of mitigating the tenor of the trade circulars, to keep the great body of the manufacturers, who of late have shown certain symptoms of revolt, at least neutral and reasonably quiet. Our friend Skinflint of the *Importationist* is fighting a most praiseworthy battle, and every one must admire the pluck which he has exhibited under extraordinarily difficult circumstances. He has had not only to defend the general policy of Free Trade, but to maintain that his own predictions have been fulfilled to the very letter—a task which

most men would have considered rather arduous, seeing that figures are entirely against him, and that all the facts which have occurred are directly in the teeth of his prophecies. But Skinflint is an invaluable fellow to lead a forlorn-hope. He can prove to you that an unfulfilled prophecy is quite as good as one which has been accomplished, and he is truly superb upon the subject of the natural limits of capital. Political economy, as you know, has long been my favourite study; but I fairly confess to you that, with all my reading and acquired knowledge, I cannot cope with Skinflint. He has gone so deep into the science—he has dived so profoundly not only through the water but the mud, that to follow him is absolutely impossible; and—to pursue the metaphor—you can only ascertain the whereabouts of this unrivalled professor of the art of sinking, by the dirt which ascends to the surface, and the rising of the fetid bubbles. At present he has as much work on his hands as might stagger the stoutest Stagyrte. The farmers, the millers, the sugar-refiners, the shipowners—yea, the very delegates of the working-men—all are at him! You may conceive what a breadth of buckler and how many folds of brass are necessary to shelter him against such a multitude of weapons; yet still Skinflint combats on. I wonder if he is descended from the Berserkars, who, in consequence of abstaining from ablutions, succeeded at length in rendering their hides invulnerable?

The farmers—poor devils!—are entirely up the spout. I will admit that I am sorry for that; but my sorrow arises from no maudlin compassion for their misfortunes. You are aware that I never had any sympathy with things bucolic. I always considered the towns as the proper habitations for mankind, and have maintained the opinion that the sooner we could get rid of the country the better. What man of common sense cares one farthing for cows, or buttercups, or sheep? Are we in the nineteenth century to pin our faith to the Georgics, or to babble in senile imbecility about green fields? What care I about purling brooks? They may be useful for a dye-work, or as the means of motive power, but otherwise they are entirely superfluous; and we may thank those idiots, the poets—who, by the way, are perfectly useless, for not one of them pays Income Tax—for having created a false impression about them. I cordially agreed with Cobden, that the sooner we could lay Manchester side by side with the valley of the Mississippi, the better; and, had it not been for the obtuseness of those pig-headed scoundrels, the Yankees, who, forsooth, have got a crotchet in their heads

about maintaining their own miserable industry, the job would have been done long ago. Had Jonathan acted by us fairly, as he was in honour bound to do—had he demolished his mills, blown out his furnaces, shut up his mines, and passed an Act of Congress to inflict the penalty of death upon any presumptuous loafer who should attempt to manufacture a single article in the United States, my life upon it that at the present moment we should have been driving a roaring trade! But the infatuated blockhead wont have our goods, and is actually heightening his tariffs to restrict their admission still further! The German ninny-hammers and pragmatical Spaniards are doing the same thing; and, in consequence, our whole anticipations have been violently frustrated. Perhaps you see now why I am sorry for the farmers. My regret is, that their power of purchase has decreased—that they can't buy from us as formerly—and that, in short, the home market is going to the mischief. Personally, I am connected with an exporting house; and yet I must acknowledge candidly that business is anything but brisk. We have overdone the thing in trying to get up an enormous increase of exportations; and the consequence is, that we have caused a glut in many of the foreign markets. It is not impossible that, before a healthy demand is restored, new competitors may step in, and our grand staple of calico, upon which the prosperity of Britain entirely depends, go down to a further discount. These are gloomy anticipations, but I cannot quite banish them from my mind. I look forward with considerable apprehension to the time when we shall fairly have eaten up the farmers. Of course, when that arrives, we must look out for another class to devour; and, according to my view, the Fundholder is the next in order. He will make a hideous row when he finds himself marked out for general mastication, but no doubt we shall, somehow or other, contrive to stifle his cries. His fate is perfectly natural. In all cases of shipwreck, when the supplies of provisions are exhausted, the fattest individual of the crew is selected for the sustenance of the rest. It would be absurd to pitch upon a lean victim; for the amount of suffering is the same in either case, and the economical principle is to secure the largest amount of supply. Of course he must be dealt with gently. We have the high authority of Seneca for supposing that gradual phlebotomy is an easy manner of death; and we shall not put an end to him in a hurry. He is unquestionably a full-blooded animal; and, when tapped, will yield as readily as a barrel of October.

All this, however, is mere anticipation; and doubtless you have already in your own mind maturely considered our prospects. What presses upon us most immediately, is the chance of a speedy dissolution of Parliament, and a new general election. I strongly suspect that the Whigs cannot hope to remain in office long. With all my regard for that party, I must admit that they are a shocking bad set, in so far as business is concerned, and their exclusiveness is really quite insufferable. Had they reconstructed the Cabinet upon a liberal footing, by taking in half-a-dozen of us original Free-Traders, there might have been no occasion for any dissolution until the expiry of the seven years. Our demands were not extravagant. Cobden would have done the business of the War-Office in a highly creditable manner. Bright would have been too happy to go out as Governor-General of India, and look after the growth of cotton. Joseph Hume is at least as fitted for the situation of Chancellor of the Exchequer as Sir Charles Wood; or if Joseph is rather too ancient, why not our undaunted M'Gregor? He is the only man alive who can improvise a budget at a quarter of an hour's notice. I myself should have been happy to have served in a subordinate capacity. Williams, Walmsley, or Kershaw, would gladly have relieved Earl Grey from the trouble of looking after the colonies; and I really think that, with such an infusion of new talent, the Government might have gone on swimmingly. Of course, we should have put an end at once to that ridiculous Protestant howl about Papal aggression, which is directly opposed to the spirit of Free Trade, and to the liberal tendencies of the age. Black cattle are admitted duty free; and I can see no reason why a cardinal should be considered contraband, merely on account of a slight peculiarity in the colour of his legs. Let him call himself anything he pleases—what need we care? Protestantism, my dear Dunshunner, is about the only obstacle in the way of our becoming perfect cosmopolitans. Why should we, of all people on the earth, affect eccentric distinctions? Luther was a sad fool. If he had played his cards properly, he might have been a bishop or a cardinal, or anything else he chose, and we should have been spared the trouble of this hubbub about a matter which seems to me of no earthly consequence. But our friend Lord John is, as you know, as obstinate as a whole drove of pigs, and will always take his own way. And a very nice mess of it he has made this time, to be sure!

However, the Whigs did not choose to come to us, though they were glad enough to make overtures to Graham and Gladstone, and the rest of that lot, who, after all, would have nothing to say to them. In consequence, they now feel themselves more rickety than ever. The Protectionists are making powerful head, and gaining strength daily; and I cannot look forward to a new general election without feelings of great anxiety. I quite concur in the sentiments expressed by that patriotic creature, Colonel Peyronnet Thompson, that he would as lieve see London occupied by a foreign army, as the Protectionist party in power. I do believe that, in such an event, the cause of Free Trade would be desperate. You see we have no party whatever in the country to fall back upon for support. The artisans are declaring against us; the small traders have been unmercifully rooked; the shopkeepers are making no profits; and, as to Ireland, it is more than beginning to wince under the operation of a system which has destroyed its only product. We have tried to keep the Irish in good humour for a year or so by hinting at an immediate influx of English capital. That idea was mine. It was not by any means a bad dodge while it lasted, and our friends of the press took care to do it full justice. But, after all, it was merely a dodge. As for English capital going to Ireland, where no possible expenditure could insure a penny of rent, the thing is as preposterous as the notion of applying guano, for agricultural purposes, to the island of Ichaboe! Notwithstanding, we have done some good. We have ruined the proprietors, and starved a reasonable portion of the peasantry; and I am glad to see that the same operation is going on in the Hebrides. Labour in the towns will, no doubt, be considerably cheapened in consequence. But we cannot calculate with certainty on the support of Irish members after a new election. They won't work together as formerly. We miss our perished Daniel, who, with all his faults, was a capital ally, if you gave him a sufficient equivalent.

It is no use disguising the truth; the Protectionists are like enough to beat us. There is a vigour and a perseverance about that party which I am quite at a loss to understand. Two or three years ago, when they first began to look really formidable, we took the utmost pains to write them down; and, if good sheer abuse and hard hitting could have accomplished that object, we ought to have succeeded. We worked the old joke about a Protectionist being a spectacle as rare as a mummy in a glass-case, until it was perfectly threadbare. We sneered at and scouted their statistics. We questioned their

sanity, and talked with mysterious compassion about Bedlam. We assured them, that to restore protection to native industry was as hopeless as an attempt to re-establish the Heptarchy. We used and abused, in every way, that fine metaphor touching "the winds of heaven and the waves of ocean;" and we pressed poets into our service to celebrate the cheap loaf in dithyrambics. We reviled Disraeli, misrepresented Newdegate, lampooned George Frederick Young, and insinuated that Lord Stanley was a traitor. Finally, we became affectionate, and warned the besotted Protectionists of the danger which was hanging, in a heavy cloud, over their devoted heads. We did everything which ingenuity could suggest to prevent the mummy from being resuscitated; but Cheops has come again to life with a vengeance, and has given us a shrewd blow on the skull as he started full armed from his sarcophagus. We must now deal with him as a reality, not as a shadow; and, for my own part, I cannot aver that I am inordinately eager for the encounter.

Still, something must be done; and our first duty, according to my notion, is to look out for new candidates. To the disgrace of human nature be it spoken, some of our most esteemed veterans have little prospect of being again returned by their present constituencies. There will be changes, and changes too of a most extraordinary kind; and that circumstance renders it the more necessary for us to prevent, at all hazards, a dissolution. You may now, my dear Dunshunner, fathom the real object of this letter. We want you to come into Parliament, on the independent, Ministerial, or any other interest you please, provided that, when returned, you give us the benefit of your vote, and the aid of your powerful eloquence upon any occasion when the cause of Free Trade may be in jeopardy. I know what your own private leanings are, but these are not times to be scrupulous. The League expects every man to go the entire hog. If you want a subscription, or—what would suit us better—the promise of a place, say so at once, and you shall have either. But, if you follow my advice, you will content yourself with a positive promise. We are strong enough to wring anything from the Whigs in case of emergency; and as in all human probability, judging from the past, no single week can pass over without the shadow of a crisis, we shall be able to make terms for you, better and earlier than you might suppose. Some few pickings there are still left, which are well worth a gentleman's acceptance; and it will be your own fault if, after having taken your seat,

you do not make your parliamentary position advantageous in more ways than one.

I suppose there is no chance of an immediate vacancy in the Dleepdaily Burghs? Well, then, you must even make up your mind to come south and attack a Saxon garrison. I have one or two places in my eye, either of which you will be sure to carry in a canter, provided some fiery fanatical fellow does not start up to oppose you. They are cotton boroughs under the complete control of the millocracy; and I think you are certain to step in, provided matters are properly managed, at the expense of a small judicious outlay. And here, I know, you will begin to object—You cannot afford the expense, &c. My dear friend, you *must* afford it, if you wish to cut any figure in life, or to make yourself accounted worthy of purchase. No parsimony is so ill-judged as that which boggles at the outlay of an election. No matter how many firkins of beer may be consumed in the course of the canvass—how many hundred dozen *goes* of brandy-and-water may lubricate the throats of the thirsty potwallopers and freemen who espouse your cause, and bear your colours—the true principle is to consider these charges as a debt which a grateful Ministry must refund on the first convenient opportunity, with such rate of interest as you are fairly entitled to expect, taking into account the risk which you have run, and the labour which you have performed on their behalf. Altogether independently of this, a seat in Parliament is well worth the expense. It gives you a position in society which is otherwise difficult to attain; and any man who can talk as you do, glibly and off-hand, is certain, before a session is over, to push himself forward into notoriety.

I'll tell you why we want you, and I shall do so with the most perfect frankness and unreserve. Our best men are used up. In the opinion of the Secret Committee, of whose views I am the humble expositor, Cobden is no longer worth his weight in oakum for any practical purpose whatever. We committed a monstrous mistake in subscribing that unlucky fund. We ought to have remembered the story of the soldier who carried with desperate gallantry a redoubt the morning after he had been rooked of his last penny at cribbage, but who invariably declined to volunteer for any subsequent enterprise, in consequence of the injudicious *douceur* awarded him by the commanding officer. Just so has it been with Cobden. The testimonial

turned his head. You remember the awful exhibition he made of himself, when, in attempting to lecture the farmers on the best method of cultivating land, he assumed the character of a country gentleman; and the undying ridicule which was excited by the immediate publication of a lithographed plan of his estate, which, in a good year, might pasture a couple of cows, and afford precarious subsistence besides to a brood of goslings? Then came his Peace platform tomfoolery, just at the very time when war was becoming universal on the Continent, and revolutions were springing like mines under the feet of every government. Then, again, instead of cajoling the bucolics, he chose openly to defy and insult them at Leeds; and the result has been that, from that hour, every man connected in the most remote degree with the landed interest has drawn off from our body. In the House of Commons he can hardly command an audience. The Liberal whippers-in say that a speech of his is equivalent to a dozen votes added to the Opposition minority, and they never see him crossing the threshold without quaking with terror lest he should take it into his head to commence a harangue. Bright's eloquence is usually smothered by cries of "Oh, oh," and derisive cheering. He is a sturdy chap in his way, but woefully injudicious; and he has been so exceedingly rude to Lord John Russell, that the Whigs will have nothing to say to him. Old Joe is rapidly becoming imbecile. He can no longer fumble with figures as he used to do; and his perception, in most cases, is not sufficiently clear to enable him to state the "tattle of the whole" with accuracy. I love and revere the veteran, but I am afraid his best days are gone by. Milner Gibson won't do; and of course we have too much respect for our cause to allow M'Gregor to come down to Westminster without his muzzle. We require, of all things, a new hand with gentlemanly manners, an easy address, some flow of language, and a slight dash of humour—one who will not weary the House with interminable statistics, or get into a passion because he is contradicted, or fasten upon his opponent with the brute ferocity of a bull-dog. We want some fellow not fully committed to Free Trade, who can keep, as it were, on our flanks, and amuse the enemy at times by suggesting articles of condition. He must have no one-sided predilections, no abstract preference for the Cottonocracy over the other interests of Britain. He must appear to be animated by a fine, generous, patriotic spirit—ever ready to listen to distress, and always eager to condole with it. Fine words, you are aware, butter no parsnips, but they are fine words notwithstanding. This is the part which we wish you to

undertake, if you consent to come among us. The fact is, that we must do something of the kind if we wish to escape annihilation. I am afraid we have derived no benefit from sneering at the farmers. The proposals which were made in the public prints for their wholesale emigration have excited general disgust, and men are beginning to ask each other what crime the agriculturists have committed, to justify the infliction of such penalties? The question, of course, is a foolish one. Every sound economist knows that the farmers are mere creatures of circumstance, and that their interests cannot be allowed for one moment to stand in the way of the approaching supremacy of Manchester. But, unfortunately, all men are not political economists, and we must, for some time at least, humour their fancies. I should be the last man in the world to admit that any feelings of compassion should have weight in the settlement of a great national question; and you, who know me well, will do me the credit to believe that I could see every farm-house in England made desolate, and the inmates transported to the antipodes, without the weakness of shedding a tear. We cannot, however, expect so much Spartan stoicism from the masses. They are still by far too much under the influence of the clergy; and it will be some time before we can eradicate from their minds the lingering fibres of superstition. I agree in the main with the sentiments expressed the other night by that trump, Joseph Sandars of Yarmouth, that all we have or ought to regard, is the interest of the manufacturers. Did you observe what he said? Excuse me if I quote the passage. "Look at the fearful consequences which would result to the commercial classes of the country, if their powers of competition with foreign nations were weakened or crippled. If that large portion of the community did not spin and weave for the four quarters of the globe, the subsistence and happiness of millions of our population would be destroyed. That competition went on day by day, and year by year, increasing in force and intelligence, and formed the great social question of our times. If adequate provision were not made for that class of the population, there must be danger." Sandars was undeniably right; but what demon could have possessed Sandars to make him say so in as many words? It amounts to a pure and unqualified admission of the real truth, that Free Trade was intended to operate, and must operate, solely for the benefit of the exporting houses, to the ruin of all other interests in the country; but was it in any way necessary to tell the country that? These are the sort of speeches which are playing the mischief with us. How can we attempt to

bamboozle the shopkeepers who are losing custom, and the artisans who have little or nothing to do, and the small tradesmen who are verging towards the Gazette, if members of our own party will have the consummate imprudence to tell them that they are merely parts of a general holocaust—infinitesimal faggots of a grand pile of British industry which is to be fired, in order that the aged phœnix of cotton-spinning may be regenerated, and soar, triumphant and alone, from the heart of the smouldering ashes? Our game is to keep all these things in the background. Three years ago, at one of our private Manchester conferences, I indicated the course which we should pursue. My advice was—on no account to break with the farmers. I represented that, when agricultural distress arrived, as it must do immediately, our first business was to attribute that entirely to exceptional causes—such as a good harvest, which we could have little difficulty in doing, considering the deficiency of agricultural statistics. That, I said, would gain us a year. Next, we could fall back upon the subject of rent, and sow dissension in the bucolic ranks, by alleging that the whole loss might be met by a remission on the part of the landlords, and that they were in fact the only parties interested. I explained that this line of policy, if properly and dextrously pursued, could not fail to add enormously to our strength, since, by radicalising the farmers, we must separate them entirely from the landlords, and make them ready tools for our grand final move—which, I need not say, is the repudiation of the National Debt. My advice was not only applauded, but adopted. We surmounted the difficulties of the first year pretty well; and, but for the folly of some of our own men, we should by this time have had the farmers clamouring on our side. Cobden, however, reviled them in all the terms which his choice and polished imagination could suggest; others told them to go to Australia or to the devil, whichever the might think best; and now Sandars deliberately comes forward, and lets the cat out of the bag! I ask you, Dunshunner, if it is not enough to make any man of parts and intellect as rabid as a March hare, when he sees his finest and best-adjusted schemes utterly ruined by such deplorable bungling? Our only chance is to gain time. Give me another year, or eighteen months more, at the utmost, of the present Parliament, and, I trust, the death-warrant of the Fundholder will be sealed. If we can extend the suffrage in the mean time, so much the better. We have managed to get up a tolerable hatred of taxation. The anti-excise party is very powerful, and, by giving them a lift, we might knock off several more millions from

the revenue. Cardwell, and some of that soft-headed set, who call themselves Peelites, wish to take the duties off tea, and they ought by all means to be encouraged. Tobacco follows next, of course; and as smoking and snuffing are now almost universal, the repeal of the duties on these articles would be immensely popular. Malt goes, and so does sugar,—and then, my dear friend, where's your revenue, and where the means of paying the interest of the national debt? Don't you see what a beautiful field is open to us, if we can only keep our own men from making premature disclosures, and pander properly to the public appetite for getting rid of taxation? By itself, direct taxation cannot stand six months. That fact in natural history has been ascertained by so many experiments, and consequent revolutions, from the days of Wat Tyler downwards, that I need not fatigue you by recapitulating them. The reimposition of the Income Tax for three years is an immense point in our favour. I never felt so nervous in my life as during the Ministerial crisis, when it appeared possible that Stanley might come in. I knew that, if he succeeded in forming a Government, the Income Tax was doomed, and then, of course, we must have had a revision of the tariff; and probably he would have proposed to levy such duties upon imports as might put the British artisan, labourer, and grower, on a fair level to compete with the foreigner, at least in respect of taxation. Had he succeeded, our game was up. But, most fortunately, we have escaped that danger. I shall ever regard the glass house in Hyde Park with feelings of peculiar gratitude; for I am convinced that, but for that sublime erection, we should have lost the services of Sir Charles Wood, and, with him, lost all chance of carrying into execution those schemes which we consider most important for the entire ascendancy of Manchester. Fortunately, Wood is spared to us. He is an excellent confiding creature—as innocent as a lamb who is tempted into the precincts of the slaughter-house by the proffer of a bunch of clover; and if we can manage to keep him in office a little longer, why, between ourselves, I think, Dunshunner, we may look upon the matter as achieved.

Did you ever read old Cobbett's political writings? It is rather funny to refer to these just now. We are precisely in the state which he vaticinated some thirty years ago, when viewing prospectively the effects of Peel's Currency Act of 1819: and I confess that I have lately conceived a wonderful respect for the prescience and sagacity of that queer ill-regulated genius. I call him ill-regulated, because I believe that, were he alive, we

should have found him our bitterest opponent in any scheme which involved, as ours does, the expatriation of the British yeomanry. The old fool had a heart—that is, the amount of cellular or medullary tissue, which anatomically answers to that portion of the human frame, was acted upon by natural impulses, which it is the duty of the scientific Free-Trader to control. We of Manchester flatter ourselves that we are above any such deplorable weakness. But, setting his heart entirely aside, Cobbett had a head, and it is perhaps as well for us that that head is mouldering in the grave. He would have broached the grand question too early, and thereby given our booty time to escape; whereas, now, we have the fundholders gone to sleep, like pheasants on a tree at sunset. If no untoward barking—no alarm on the part of our own lurchers unsettles them—they are safe enough. Granting that they are startled for an instant, a very little delay will suffice to put each bird's neck beneath its wing; and then—hey, my fellow countrymen, for the brimstone-match, and the sack to receive the fallen! Let them kick and spur as they like afterwards—it is a mere question of the expenditure of feathers.

Of course you are quite aware of the present state of the colonies. Some of the more enthusiastic of our men were anxious to get rid of them at once, which they thought might be done by a simultaneous withdrawal of the troops. I have seen this plan recommended more than once in respectable quarters, and the arguments in its favour are not without plausibility; still, I think it better that we should abstain from active measures, and allow the colonies to drop off, like blighted fruit, as they must naturally do, without any violent effort on our part. Under the operation of Free Trade, colonies can be of no earthly use to us. We do nothing for them, and they do nothing for us; therefore, the sooner we cut the cable, and let them go, the better. The Whigs are doing all they can to precipitate the crisis with Canada. The removal of the seat of Government to Quebec will give such an impetus to the Annexation party, that the Canadas must go over to the United States, notwithstanding all the scruples which may be preferred by those fools who talk of loyalty as if it were something hereditary, or, indeed, as if loyalty were otherwise than an absolute sham. We know better. Crowns are usually estimated according to the value of the jewels which they contain; and, if certain jewels are detached from their setting, and transferred, it is not difficult to ascertain the value of the remanent bullion circlet. You take me?

This involves a point which we don't wish to broach at present, though we have long had it in view. Do you take any interest in the affairs of France? That, now, is a country worth living in! None of your aristocrats there! Why, if England were France, you or I, Dunshunner, might be riding in the royal carriages, with half a squadron of the Guards before and behind us, receiving that homage which is the due of genius, political wisdom, and recondite science, instead of tramping, as we do, on foot, at the perpetual risk of catarrhs. I cannot sufficiently admire the coolness of our little friend Louis Blanc, who, as he was stepping into one of old Louis Philippe's vehicles, specially devoted by the Provisional Government to the service of the Lilliputian patriot, thus addressed, with a graceful wave of his hand, a group of envying *ouvriers*:—"My friends! one of these days we shall *all* of us ride in our carriages!" There is a sublimity about this which utterly distances our feeble flights of imagination. We have never been able hitherto to hold out higher expectations to the people than what are inferred by pictures of gigantic pots of beer and dropsical loaves; and we have tried these baits so often that they have now lost something of their freshness, and much of their original significance. We really must have some new device for our banners. I wish you would turn your mind to this, and let me have your opinion what kind of property would be most acceptable to the million.

What do you think of the Girondists? That is the new name we have got for Graham and his party, and it seems to me a very happy one. Hitherto they have played remarkably well into our hands, but they are clearly not to be trusted. As Watt remarks, in his treatise on the steam-engine, there are wheels within wheels; and those gentlemen have been so extremely gyratory in their motions, that it is impossible with the least certainty to predicate the direction of their course. One thing, however, seems to me perfectly clear—they never can join the Protectionists. Two years ago I should have hesitated to say this authoritatively, but they have thrown away so many excellent chances of reconciliation, and invariably manifested such rancour and bitterness towards their former allies, that I do not see how they can possibly return. There is no hatred equal in intensity to that of a deserter. Awake or asleep, he has ever before him the awful apparition of the provost-marshal; his back tingles with the imaginary lash of the cat-of-nine-tails; and, if you watch him in his slumbers, you will hear him

moaning something about a file of musketry and a coffin. It is something to be certain of this. You see that the party of the Gironde is very small, and never can act effectively of itself. It is simply useful as a make-weight, and as such we consider it. Now, a glance at the late division-lists will show you that these men, whatever else they may do, are resolutely determined never to go into the same lobby with the Protectionists. They have no abstract affection for the Whigs—which is not wonderful, considering the tenacity and strength of the family alliance; and though they may occasionally seem to help them, they would be sorry to lose any chance of giving them a sly dig with the stiletto. We are by far their most natural allies—indeed, if they had any sense, they would throw themselves into our arms at once. But, unfortunately for them, they are tainted with the aristocratic leaven. They affect to look down upon us, pure democrats, as though they were something infinitely superior, and they will not fraternise with that cordiality which we are surely entitled to expect. You may rely upon it, this will not be forgotten at the proper time. Nothing is, to my mind, so purely offensive as the demeanour of an aristocratic Liberal. His look, his language, and the very tone of his voice, tells you that he considers his support of your principles as an act of magnificent condescension; and that, if you entertained a proper feeling of gratitude, you ought to go down upon your knees and thank him. Now, considering that one-half of the Peelites are little better than pragmatical coxcombs, and the other half, with a few exceptions, venerable serving-men of the Taper and Tadpole school, you may easily conceive that these airs give us infinite disgust, and that we are keeping an accurate account with a view to a future settlement.

And now, Dunshunner, I must conclude. I have thought it best to state to you my views without any reservation, because it is always bad policy to enlist a recruit without making him distinctly aware of the nature of the service which he is expected to perform. Our Committee never forms its conclusions, or takes its measures hastily. We have been long preparing for the great work of national regeneration; and although we may have been, and certainly are, disappointed with the results which in some cases have followed our exertions, we are not less firmly convinced that our cause must progress, and be triumphant. If we can only prevent a legislative return to indirect taxation—if we can maintain for a little longer the struggle of unprotected British industry against foreign competition, we

cannot choose but win. The struggle with the earth-born Antæus has been a very severe one. A poet, now, would tell you that the old mythical story of the Greeks had an occult meaning—that Antæus, the son of Terra and Neptune, was a typification of Agriculture and Navigation, which the manufacturing Hercules is attempting to destroy, and that, every time the giant is overthrown, he derives new strength from his contact with his venerable mother. So be it. Hercules, you know, strangled him at last by lifting him up into the air; and there is no reason why we should not repeat the same operation. On second thoughts, you had better not make use of this illustration, happy as it may appear. On consulting Lemprière, I observe that Hercules was finally consumed in consequence of putting on one of his own shirts, and that circumstance might be awkwardly interpreted by some ungenerous enemy.

The sooner you can make up your mind the better. Let me hear from you without delay; and if your answer, as I anticipate, should be affirmative, we shall bring you into the House in time to take part in the debate on the confiscation of the revenues of the Church.

Believe me alway yours,
ROBERT M'CORKINDALE.
MANCHESTER, 15th April 1851.

THE PAPAL AGGRESSION BILL.

We do not underrate the difficulty in legislating upon the Papal Aggression; but the acknowledgement of a difficulty is a confession of a danger. Legislation, therefore, is often the more necessary as it becomes less apparent what direction it should take; for every obstacle has its accompanying mischief. Nevertheless, the greater peril lies in suffering an evil to grow. The nature of the evil, and the principles from which all its action proceeds, must be examined, and thoroughly sifted. It is not the present magnitude which is so much to be considered, as its innate growth—its power of reproducing itself, even when apparently cut down to the ground. There are poisonous plants of such an obstinate root, that they will spread both on the surface and below it: and such is the Papacy. It is hard to overcome. Its one steady purpose is domination. It must either be a tyranny or a conspiracy. It is a religion without a religious obligation, for it professes to be the maker of the world's religion, and demands obedience to an individual will—the will of one man whom a superstition sets up—a will that is guided by no fixed rules; that, however varying and contradictory, claims infallibility. The inheritance it would assume is Satan's promise, "the kingdoms of the earth and the glory of them." If the Papacy cannot take full possession, it is only because it is hindered, not by its own will, but by external resistance. It never has relaxed its demand of universal obedience, and, whenever and wherever it has had power, has enforced it. It would have an absolute jurisdiction over all the affairs of Christendom, as above all kings and princes, to judge them and depose them at pleasure. More than this: from being God's Vicar, the Bishop of Rome would be above his Master, and abrogate Divine laws and precepts; exercising absolute authority over the Scriptures, even to annul them, and to set up his own decrees as more divine; taking to himself the resemblance of him of whom it was said that he "should sit in the temple of God, showing himself that he is God." Yet with all his presumptuous titles, remembering that it is written that he that would be greatest among the disciples should be servant to the rest, he is also "*servus servorum*," that he may himself fill every office, and

enlarge the view of his dignity, from the depth of that affected humility—measuring up to the highest from the lowest, himself usurping every space.

From the moment the Bishop of Rome usurped this sovereignty, then commenced the necessity of maintaining it, *per fas et nefas*. To abrogate one iota of his power was to abrogate the whole. He took upon himself and his successors a contention that can never cease, but with a universal submission. The whole history of the Papacy, from the day of its assumption, proves this. It does not come within the scope of our object to enter into the details of that history. They are well known: the remembrance of many and sore atrocities has been too deeply engraven on the minds of the people of England to be easily obliterated. When they hear of the Papal Aggression, they ask, When was the Papacy not an aggression? Neither are we very desirous to treat minutely of the Romish corruptions and apostacies, excepting where they evolve principles that will not amalgamate with any civil polity, or the laws and governments of nations. It is possible there may be religions that, being tolerated, would in practice not only destroy every other, but the very name of liberty. Even Thuggism professes to be a religion, and secret murder its duty. Would it be religious liberty to tolerate the Suttees and Juggernauts of India? We do not mean to make offensive comparisons: we only put the case strongly, to show how obvious it is that toleration must have its limits; if not, toleration may become a domination, and the thing be lost in the name. There must be in every state some agreement between religion and its social laws. The Mahometan may have his mosque in a Christian country, but could he be allowed to set at defiance the decency of Christian morals, on the plea of his religious liberty? We have "Latter-day Saints," believers in Joe Smith, and interfere not with them. We trust that they do not infringe the laws, nor break their civil obligations, or at least we do not know that they do so. We know nothing of mischief in their history, have no record of former doings, that should lead us to dread their principles. But to return to the Papacy: it stands apart from every religion, in its abhorrence, intolerance, and persecution of all that is not of itself. It will never cease to strive openly if it can, if not secretly, to subvert every other—to set up its own absolute authority. Persecution is its law, its creed, its necessity. Where it is quiet, it is undermining; where it is visibly active, it sows dissensions and rebellions, because they promote its own supremacy; where it has the

smallest chance of success, it moves onwards. Besides, it has organisations wondrously adapted to its work. There is not only a large submission to the Pope throughout territories and kingdoms that are not his, but there is that especial order of obedience, the Jesuits, who bind themselves to have no will but that of their "Holy Father;" whose first religion it is to do his will, whatever it be—to have no conscience, with regard to what is good and evil, but the Pope's dictation;—a working army they may be called, that, though they seem dispersed and banished, are emissaries everywhere, and rise up in multitudes where it was thought there were none. They are allowed to assume whatever dress they please; for their better disguise, any occupation: they are in the highest and the lowest conditions, and have been known to appear as zealous members in conventicles.

Having constantly in view the firm establishment of its own power, as a foreign sovereignty the Papacy has communication, league, and intrigue with all the principal courts in Europe. It is therefore mostly dangerous to Protestant countries, as it naturally leagues with their enemies; and it is doubly dangerous in those countries where it has any large number professing themselves its subjects, organised by its authority, looking to Rome in preference to their legitimate governors. We need but instance Ireland, where that authority has borne its fruits in rebellions, and the sad, the continued degradation of the people. Are we at war with other nations?—the Pope's aid may be solicited by them to create distractions in Ireland. *There* is a sore that is never allowed to heal: it has paralysed and still paralyses the power of this great country. Hence it has been the arena of political warfare. For party purposes, the Church of Ireland has been discouraged, the Romish priesthood coquetted with, ten bishoprics of our Church annihilated to please them, and that fatal error Catholic Emancipation perpetrated. And here we are compelled to add, that one of the professed principles of Romanism has been made patent—that faith is not to be kept with heretics; for how ill the oath of doing nothing to the disparagement of the Church of England was kept by Roman Catholic members is too well known.

It may not be amiss here to make one remark. We remember the warnings given when the Emancipation was carried; we now see how just—how prophetic they were. But the remark we were about to make is this:—How

little trust is to be placed in any prospective promises that Ministers at any time may make! They too often speak as if they had a prescriptive right to a perpetuity of office. We remember the Duke said, that, should the country be disappointed in their hopes of the peace, amity, and good faith of the Roman Catholics, he would be the first to come forward to annul the grant. He has been called upon to fulfil his promise. His reply is, that he is not in office.

It is admitted by the best advocates for leaving this aggression to itself, that the Roman Catholic religion is dangerous; that, if it could recover its political ascendancy, another Marian persecution would follow. It is said that, although it never renounces anything to which it had once committed itself, that times and circumstances are changed; that the coercion which made it more dangerous has been relinquished by Governments. Emancipation, if it has not changed its character, has rendered it innocuous. And it is asked, What has occurred since emancipation? The question may well create surprise. What has occurred! Has Ireland acquired the promised peace, the absence of rebellions, the discontinuance of denunciations from altars, and murders, which a shamefully palliating press almost excuse by naming "*agrarian*?"

True, indeed, is it that the Papacy renounces nothing of all it ever claimed, however it has renounced its creeds. This obstinacy delayed Roman Catholic Emancipation twenty-five years, because the suggestion of allowing the Crown a veto in the nomination of bishops was treated with scorn. Every Popish priest, says Blackstone, renounces his allegiance to his lawful sovereign upon taking orders. That he may more substantially, more effectually do so, the attempt is made to substitute their canon law for the law of the land. And here we see one great object of the aggression. The so-called Cardinal Wiseman alleged that the object of the Pope's brief was to introduce the "real and complete code of the Church; that, for this purpose, the Roman Catholics must have a hierarchy; that the canon law was inapplicable under vicars-apostolic; that, besides, there were many points that required to be synodically adjusted; and that, without a metropolitan and suffragans, a provincial synod was out of the question." What are these points to be so adjusted—requiring this extraordinary organisation, but that this kingdom, in the fustian simile of the Cardinal, is to be restored as a

planet to roll round the centre, the Pope? But this centre is no fixed sun, disseminating its certain and seasonable heat. The comparison will not hold with Popery, that is only the *semper eadem* in one course—that of perpetual aggression; of one only law—domination. Are its creeds one and the same consistent unerring faith from the beginning? Creeds have been thrown off that implied a submission, or even subscription, to the creeds of the ancient church, that were built upon the authority of the Scriptures and the Apostles. All things of doctrine and authority must have their real origin in, and arise *primo motu* from, the Papacy. St Peter himself, from whom the succession is claimed, is discarded; the inspired dictum of a present Pontiff is all-sufficient. There is a law now for all this, unknown to the Apostles, not sanctioned in the Gospels; they call it the law of "development." It is not a new doctrine this, but is now prominently brought forward, sanctioned, established. St Peter orders, "If any man speak, let him speak as the *oracles of God*;" that is, as the Holy Scriptures speak. They say, Let no man speak but the Pope; he is the only oracle of God. The Scriptures give the rule of faith. They say—No, the Scriptures are insufficient; the true faith is locked in the Pope's breast, and he delivers it out when and in such portions as he pleases. He is neither bound by antiquity nor Scriptures. Development is in him. It is true, many eminent divines of the Romish Church—as, for instance, Bossuet—have strenuously opposed this doctrine of development. But there is another progress besides Popery. Inquiry has its developments: the old foundations of Papacy have been shaken; antiquity and apostolic faith, it has been proved, it has departed from. It must, therefore, change its foundation. There was no resource but to this law of development. The Scriptures have failed the Papal doctrines. They have been hidden—they have been mistranslated—translation set aside for new translation, each more false—and Pope after Pope have declared their predecessors, and those who received these Bibles, heretics; till, it being impossible to remove the Scriptures altogether, a new doctrine is invented, that at least shall supersede them—and that doctrine is now in the greatest favour. It is the grateful and acceptable offering to the Court of Rome by the neophyte author of the *Essay on Development*—the convert Mr Newman. It is for this he has been graciously received at Rome, and welcomed on his way by the Archbishop of Paris, and flatteringly received by the Nuncio of the Apostolic See; lauded by the most eminent bishop of the French Church and the journals of France, and honoured by lectures on his essay by the

Roman Catholic Bishop of Edinburgh. It may be worth while to look a little into this law of development, as declared in this essay of Mr Newman, and put forth as the doctrine to be received by the faithful of the Papal Church. It has been well sifted, perhaps by none more ably than by Dr Wordsworth, Canon of Westminster. And how, with such a comment, will it be received by the old members of the Roman Catholic Church!

"Mr Newman's conversion to Romanism," says Dr Wordsworth, "was accompanied, as I have said, by the publication of his *Essay on Development*, which is intended to declare the grounds of his change. But it so happens that, in this volume, he has inflicted a severe wound on the Papacy. Its very name is ominous against it. What is Development? The explication and evolution of something that was wrapped up in embryo. St Paul gives us a very pertinent illustration of this process with respect to doctrine. He speaks of a Mystery. What is a Mystery? A thing concealed, *undeveloped*. He speaks of a Mystery of *Iniquity*—or rather, of lawlessness (ἀνομία.) He says that this mystery is already at work, like leaven, secretly fermenting the mass in which it is; and he adds, that in time it will be developed.

"Let us apply this to the fundamental doctrine of Romanism, viz., the Pope's supremacy. 'On this doctrine,' says Cardinal Bellarmine, 'the whole cause of Christianity' (he means Romish Christianity) 'depends.' Let us now turn to the essayist. He allows (indeed, with his well-stored mind he could not do otherwise) that, in the first ages of the Church, this doctrine existed only in a seminal form; that is, it was a *mystery*. 'First the power of the Bishop awoke, then the power of the Pope,' (p. 165.) 'Apostles are harbingers of Popes,' (p. 124.) Again, (p. 319,) 'Christianity developed in the form first of a Catholic, then of a Papal Church.' So that, in fact, the primitive ages of the Church—the purest, the apostolic times—did not hold *that* doctrine on which the 'cause of *your* Christianity depends.' (Dr Wordsworth is writing to M. Condon, author of *Mouvement Religieux en Angleterre*.) And thus you are brought into the company of those *heretics* of whom Tertullian writes, 'that they were wont to say that the Apostles were not acquainted with all Christian doctrine, or that they did not declare it fully to the world; not perceiving that, by these assertions, they exposed Christ himself to obloquy, for having chosen men who were either ill-

informed, or else not honest.' Let me remind you also, my dear sir, of the words of a greater than Tertullian. Our blessed Lord himself says to his Apostles, '*All things that I have heard of my Father I have made known unto you;*' and that the 'Holy Spirit should *teach them all things*, and guide them into all truth, and bring all things to their remembrance, whatever he had said unto them.' And he orders them to proclaim to the world what they had heard from him: 'What I tell you in darkness, that speak ye in light; and what ye hear in the ear, that preach ye upon the house-tops.' 'Teach all nations *all things* whatsoever I have commanded you.' And accordingly, St John witnesses, that Christ's true disciples 'have an unction from the Holy One, and know *all things*;' and St Paul, as a faithful steward of his Lord's house, the church, declares that 'he has kept *nothing* back from his hearers;' that he 'uses great plainness of speech;' and 'not being rude in knowledge, has been thoroughly made manifest to them in all things;' and has 'not shunned to declare unto them *all the counsel of God*;' and he plainly intimates that he should not have been 'pure from their blood,'—that is, he would have been guilty of destroying their souls, if he had done so. And he warns all men against building 'hay and stubble on the only foundation which is laid;' and says that, 'though an angel from heaven preached unto them anything *beside* what he had preached unto them, and they had received from him, let him be accursed.'"

According to the theory of development, if a doctrine be said to be evolved from Scripture, it is not from the plain, but the mystic sense, from "the spiritual or second sense." Thus, any doctrine may be drawn from Scripture—and there is to be but one interpreter—the "one living infallible judge." Let us see a specimen of this honest interpreter. Pope Innocent III. (who dethroned our King John) thus explains the text of Genesis i. 14,—"God made two great lights." "These words" (says that Pope) "signify that God made two dignities, the Pontifical and the Royal; but the dignity which rules the day—that is, the spiritual power—is the greater light; and that which rules the night, or the temporal, is the lesser. So that it may be understood that there is as much difference between Popes and Kings as between the sun and the moon." Pope Boniface VIII. thus applies to himself the tenth verse of the first chapter of the Prophet Jeremiah—"See I have this day set thee over the nations, and over the kingdoms, to root out, to pull down, and to destroy." "Here," says the Pope, "the Almighty is speaking of

the power of the Church, to create and to judge the temporal power; and, if the temporal power swerves from its duty, it shall be condemned by the spiritual; and since Peter said to Christ, 'Ecce duo gladii,' ('Lord, behold here are *two* swords,') therefore the Pope has *both* the temporal and spiritual swords at his command; and since also Moses writes—'In *principio* Deus creavit cœlum et terram,' and not *in principiis*, therefore there is only one princedom, and that is the Papacy." Be it remembered the Papacy has never receded from any claim of power.

If such be the interpretations from Scripture, the Fathers and Councils of the ancient Church are handled according to pleasure. Whatever they say in opposition to the Papacy is of no authority; and the power of "correcting them" is assumed. Directions are given for the "Index Expurgatorius," that passages shall be expunged; nay, the Fathers of the Church, it is said, should be grateful for the correction—for the Fathers of the Church are the children of the Pope, and when "the Pope revises the lucubrations of his children, and corrects them when it is necessary, he discharges an office gratifying to the writers, and useful to posterity, and, in good truth, he then performs a work of mercy to his sons." Neither Scripture nor ancient Church must stand in the way of the Pope's will. In them the mystery was in a "seminal state" undeveloped. There is, according to this theory of development, but one real authentic inspiration, and that in the breast of the present Pope. Nay, it is asserted, that though the Pope for the time being should decree that which his successor contradicts and interdicts, the falsehood was true at the time, and for the time, as is the new developed truth. Thus—dreadful blasphemy!—God may be false; but man, one man, must be infallible. To support this infallibility the development theory is necessary. Now, it is this theory reduced to practice which at once makes the Papacy dangerous and hard to deal with. We have no security as to what it shall decree—as to what it shall establish as Christian doctrine, built upon no really Christian foundation. It is possible it may retain the name, and forsake Christianity altogether. We can be sure but of one thing, that it will never cease to proclaim, and to endeavour to enforce, its own supremacy. It has two capacities, mutually involved, each brought into play as occasion serves; and each serving, subtending to the other. It is both political and spiritual. But times and circumstances, we are told, are changed. True, but is the Popedom changed? It only wants the power. Pius V., who pretended to

depose our Queen Elizabeth, and ordered her subjects to rise in rebellion against her, is now *worshipped as a saint*. Gregory VII., who deposed the Emperor Henry IV., has still his festival-day; and these words are in the second Lesson (not taken from Scripture)—"He" (St Gregory) "stood like a fearless wrestler against the impious attempts of Henry the Emperor, and deprived him of the communion of the faithful and of his crown, and released all his subjects from their allegiance to him." Roman Catholic sovereigns have prohibited the printing this second lesson; but is it withdrawn? "As far as the Roman Pontiffs are concerned, it is read in every Church at this day." But, more than this; though formerly suppressed by the Parliament of France, 1729, it has found its way into the Paris and Lyons edition of the Roman Breviary of the year 1842. The Church of Rome, by eulogising these acts in her Liturgy, "shows her desire that they may be repeated."

But let us look to that which comes still nearer to us. The Church of Rome requires the oath of Pius IV., as declared in the Canon Law, to be taken by *all* her ecclesiastics. In the "Roman Pontifical," printed at Rome *by authority*, in the year 1818, the oath is thus given as required from the bishops:—"To be faithful and obedient to his Lord the Pope, and his successors; to assist them in maintaining the *Roman Papacy and the royalties of St Peter against all men*; to preserve, defend, augment, and promote its rights, honours, and privileges; to *persecute and impugn, with all his might, heretics and schismatics, and rebels against his said Lord*; to come when summoned to a Roman council; to visit the threshold of the Apostles (the city of Rome) once in every three years, to render an account to his Lord the Pope of all the state of his diocese, and to receive his Apostolic mandates with humility; and if he is unable, through any lawful impediment, to attend in person, to provide a sufficient deputy in his stead." Let us ask who are "rebels against his said Lord." Is it without design that the Papacy, which weighs nicely the force of words, in the recent brief speaks, not of the British Empire, but the "Kingdom of England?" Is no recognition intended of his claim to the disposal of the Kingdom of England, once surrendered to him? Does he not look upon all the Queen's subjects in England as rebels to him, "their Lord?" Can, we ask, a bishop taking this oath, and obeying its imperial mandates, and going to the "Roman Council," be said to owe any allegiance to his own lawful

sovereign in England? Put the case, that it shall appear advisable to the "Roman Council" at which such bishop shall be summoned—either at the instigation of some foreign power, or with a view to promote the Pope's interests—that the Queen of England's council shall be thwarted, and that a rebellious spirit shall be encouraged and fostered in Ireland: to which sovereign shall the said bishop pay obedience? Will it not be that one whose "mandates" he has sworn to "receive with humility?" Is there any one at all acquainted with our politics of the last half-century who will doubt that mandates injurious to the interests of England have been received, and have been obeyed? Need we refer to the Irish Rebellion of 1795? We shall there find an account of one Dr Hussey, an Irish priest, who had been bred at Seville, and was recommended by Burke to superintend the recently erected College of Maynooth, how he frequented the camp at Schaunstown, and tampered with the soldiers. We need not refer to the notorious fact of priests in active rebellion. "Bartholomew massacres" are thought old wives' tales, and impossible in modern times. Impossible!—is human nature so changed, and in so few years? Many of us remember the first French Revolution, to say nothing of very recent most cruel revolutions. By the Report of the Secret Committee of the House of Lords in 1797, it appears that it was decided by the conspirators that all persons who, from their principles or situation, may be deemed inimicable to the conspiracy, should be massacred; and the first proscribed list was calculated by one of their leaders at 30,000 persons. We would not dwell upon these atrocities; but we entreat those who speak so confidently of altered "times and circumstances" to consider for a moment what times they have lived in, and are living in. It is true we in England have been mercifully spared; but while even we were boasting of peace, cruel revolutions were commencing throughout Europe, brutal assassinations performed, for a fanaticism which belongs to human nature, and may readily be called into action either by religion or politics. Nay, we say more, that, according to the "development" theory, we know not how much of religion political fanaticism may take up, nor how much of revolutionary politics religion may assume. The Roman Pontiff has had to fly for his life. Their boasted threshold of St Peter has been deluged with blood. We do not mean here to charge our Roman Catholic fellow-subjects with any of these diabolical intentions—far from it; but we must say that we do not see, in countries where their teaching has prevailed, any remarkable abhorrence of them. And we gather from the tenor of history that such

atrocities grow out of events—and events of great importance grow out of creeds—and a struggle for religious supremacy (and the Papacy must ever strive to that end) always tends to persecution; and what shall we say, when persecution is a duty of obedience, and the consciences of the many are merged in the infallibility of a Pope? The history of the Popes shows a frightful list of these claimants of infallibility.

Few who speak or who write on this Papal Aggression approach the principle of toleration with any doubt; but surely toleration has its limits. "Civil and religious liberty:" under that banner we may have strange armies—destroyers.

Religious development is going on beyond the Popedom. The assumption of a kind of religion, or more properly a cant of religion, is the homage vice pays to virtue. The subverters of all social order are propagandists of a new religion. What are St Simonites? Even Red Republicans associate themselves to a kind of creed; and perhaps many take up one, purposely that they may demand a civil and religious liberty. We do not subscribe to the doctrine that "full and complete liberty" is to be given to every society that proclaims itself of a civil polity, or of a religious agreement. The principles of creeds should be ascertained, before full scope be given to them—and the principles of civil communities, before a state is justified in arming them with power. There are societies that can, and societies that cannot, live together peaceably, with equal power. There is a strong conviction in the public mind, (and certainly justified,) that if Popery can once reach an equality in visible power with the Church of England, or even with Protestant Dissenters, a system of persecution would commence.

The present aggression is of a two-fold character. It is against the Church, which it ignores; and the sovereignty of England, which it both insults and defies. It sets up bishop against bishop—altar against altar. It takes up a position of authority, and impudently declares that it neither can nor will recede one step. Hear the "Bishop of Birmingham" so styled, Dr Ullathorne. He thus writes to Lord John Russell:—"There is one point for your Lordship to consider—the hierarchy is established; therefore it cannot be abolished. How will you deal with the fact? Is it to force a large body of her Majesty's subjects to put the principle of the Divine law in opposition to

such an enactment?" Here is obstinate defiance; but there is more. He proclaims that the Pope's brief is a "*Divine law*." Is not this the Pope's supremacy over the supremacy of England's sovereign? And if England's sovereignty maintains its own, what kind of warfare are we to have from Rome? Of course, the first step will be an Irish rebellion, or the attempt to raise one. Then is our Queen to be excommunicated—the old game played—the interdict, the absolving from allegiance, and the curse? Is the Pope, the foolish man, who has been driven from his Popedom, and just kept in it again by French bayonets, in his disappointment to enact the spite of a witch turned out of doors, and look back and spit, and take a revengeful pleasure in seeing the Canadian venom take effect? And of a truth it may be said Lord John Russell, Earl Grey, and some others of the Government, grow somewhat pallid from the poison; it has at any rate reached them. Lord John Russell thought it absurd to deny titles, which he now brings in a bill to interdict; Earl Grey would have the Roman Catholic Bishops sit in the House of Peers—and has given strange encouragement to them in the Colonies. Their titles have been smuggled into a Charitable Bequest Bill. It is a hard thing for a Minister to eat his own words, tainted too by the Pope's venom. But, besides this, there appears to have been a connivance with this aggression, or an unpardonable ignorance, on the part of the Ministry. Whence is the suddenly conceived indignation that breaks forth in the Durham Letter? The event had actually taken place long before. Dr Wiseman was gazetted, as Archbishop of Westminster, at Rome on the 22d January 1848; in the *Gazette* he is called, "His Eminence the most Reverend Monsignore the Vicar-Apostolic, Archbishop of Westminster." What was Lord John Russell doing then? Was he practising "mummeries" that, in his after mind, bore similitude to those of Rome? He had not then been exorcised by Dr Cumming! He has now, however, been tutored to make mighty preparations, to doings of large professions for little ends. If he has not done worse, he has made a burlesque for the page of history, and the age of his Administration ridiculous to posterity.

Dr Wiseman, it has been shown, was gazetted in Rome, January 1848. If the Government knew that fact, did they know, do they know, the exact position in which that ecclesiastic is? Mr Newdegate, in the House of Commons, very clearly shows this position, that "Cardinal Wiseman is a legate of the Pope—a legate *à latere*, armed with still wider powers than Dr

Cullen, and who, as he (Mr Newdegate) believed, merely delayed interfering with our social, civil, and temporal affairs, until that House should have separated for the recess." He showed them "that, from the earliest periods of our history, it had been contrary to the constitution and common law of the country that a legate of the Pope, and especially a cardinal, should come into this country without the leave of the sovereign, and without an oath taken that he would attempt nothing against the realm and liberties of the people."—"He found that there was a meeting of the clergy of the Established Church, a few days ago, at Zion College, at which Dr M'Caul, quoting from a recognised authority of the Catholic Church, stated that the order of Cardinals was literally a part of the Papacy and constitution—the privy council, which was the body corporate of the Pope; and then gave an account of how the office and power of the cardinal was wielded throughout. From that account it appeared that the office of cardinal, when the Pope assumed the temporal attributes of the Emperor, was converted into that of privy councillor; and that the cardinals ought not to be absent from the Papal court, except by reason of being sent out as legates. Cardinal Wiseman, then, could only be there as legate. Van Espin, whose works were recognised at Maynooth, also said, that whatever might be the case with other legates, cardinal legates were called legates *à latere*, because they were taken from the side of the Pope. He believed that Cardinal Wiseman had been asked whether he had taken the oath of privy councillor, and that his answer was that he had not. But he had taken the oath of archbishop in full, and that would be an excuse for not taking the oath of privy councillor; but he (Mr Newdegate) could find no possible authority for the omission. However, the oath of the archbishop was strictly the oath of privy councillor, binding the party to discharge temporal functions; and with this remarkable addition, that for the recovery of such rights and property as had been alienated from the Romish Church he would do his utmost. He wanted to show that Cardinal Wiseman, by his own act as cardinal priest, adverted to that very function, of labouring to the utmost for the recovery of the goods of the Church. It was a very long time since there had been a cardinal legate in England; and for this good reason, that it was contrary to the ancient statute law of this realm that these temporal officers of a foreign potentate should reside among us. Even Cardinal Beaufort, the brother of Henry VI., had found it necessary to have a special statute enacted in his favour, before he could reside in England as

cardinal legate. Cardinal Wolsey was appointed legate at the express instance of Henry VIII.; and Cardinal Pole, after he had been compelled to leave England because he resisted Henry VIII.'s proceedings with the temporalities of the Church, was appointed legate in England, not upon the motion of the Pope, but at the desire of Queen Mary. In the time of Elizabeth, the cardinal whom the reigning Pope had sent to England as nuncio, received in the Netherlands, whence he had sent to request permission to enter England, a prohibition from entering the realm, on the distinct ground that the ancient statutes of the realm declared that no legate from the Papal Court might reside in England. Happy would it have been for this country, (emphatically adds Mr Newdegate,) had the advisers of the present Queen emulated the firmness of those of Queen Elizabeth."

How much better would it have been to put in force an existing and old law, which can only be said to be obsolete because the offence against which it provided was obsolete, than to nullify it by a new and uncertain one, satisfying no one, and such as no one believes will, and perhaps the framer does not intend should, be obeyed. Sir Edward Sugden is of that opinion, and can there be a better legal authority? The people of this country have more confidence in old than new laws: they were made with more precision; and it was not then the practice to smuggle into them expressions for ulterior though hidden use. It is the boast of modern legislation, that a coach may be driven through our acts of Parliament. Queen Elizabeth, who would not suffer the legate to touch our shores, right royally said, "I will not have my sheep marked with the brand of a foreign shepherd." Modern liberality would be content to see Queen Victoria the Pope's sheriff. Is it to be borne, that a cardinal legate, whom existing laws exclude, should be allowed to organise a conspiracy of priests, all, not only virtually, but in word and deed, abnegating allegiance to their lawful sovereign? It is their business, it is in their bond, to persecute the majority of their countrymen as heretics, and to effect in the British dominions as much evil as shall so weaken their country as to make her unable to resist the foreign usurpation of their Pope, or even those of our enemies with whom he may be in league. It is surprising that Mr Gladstone should palliate the doings of the Synod of Thurles, and seem to justify them on the right of civil agitation allowed to other leagues. But surely the difference is great. Political agitators, bad as they often are, do not bring the authoritative

dictum of a religious synod. The Synod of Thurles denounces with an authority more potent than the law of the land; they appeal not to reason, to policy, but to obedience. The law is given out by the legate, and enforced by the Synod. They know the danger of mooted questions between landlord and tenant; and it is the very danger which tempts them to it. It is in fact a threat, and the first move of its action. It is almost a declaration to this effect:—The Pope, and we in his name, have right to the land, to dispose of it as we please; and if you in the slightest degree resist or interfere with us, we will stir up those who shall take it from you. They know the threat extends to the life as well as property. All means with them are lawful for the one end. Do we, in all these fruits of the aggression, and of the Ministerial favour which created it, see the promised gratitude of the Roman Catholics? Every obstacle to the free exercise of their religion had been removed; and we were to have peace, but have it not, because, from the vantage-ground of their emancipation, a dominant supremacy was to be superadded. The hierarchy is not for the use of the Queen's Roman Catholic subjects, but for the Pope and his priesthood's power. Even the time it has been allowed to be here, while there was a law that might instantly have been put in force, is a submission to it. It is tampering with illegality and with insult; neither the one nor the other should be suffered to remain a day. The dignity of England is deteriorated by delay. And what has this delay—this sufferance of the evil done, but added to its growth? It is worse than ridiculous, it is mischievous to be furious against an enemy, as our Prime Minister was in his Durham Manifesto, and not to crush his power. All the fury and fierceness is made to appear cruelty for the time and weakness after; and thus the enemy gets more than he had before. The difficulties attending the dealing with this aggression now cannot be denied. They have been greatly enlarged by the mode of proceeding adopted. Parliament, or the executive, might have instantly demanded reparation for the insult, and the law have been as immediately enforced.

The difficulties now must not be denied; and they increase day by day, and will be sure to increase with *new* legislation. Suppose we have in the British dominions a Roman Catholic population of seven or eight millions. It is too vast a number to ignore, even though the "Protestant brotherhood" out of the Church should desire so to do. If we were a strong Government we might, and ought to do this—to enact that every Romish priest, having

sworn obedience to a foreign potentate, has so far renounced his allegiance to his lawful sovereign, and therefore should be subject to a registration, and, with some limitation, be considered an alien.

We might abrogate "Catholic Emancipation," seeing that it was a compact broken by one of the contracting parties. But although we believe all this would be just and fair, and safe, and that one day or other—after, perhaps, frightful rebellions—it will be done, it is nearly certain we cannot do it now. The whole system of government is on another principle—it is called a "Liberal" one. It is that of reconciling to you those of whose dispositions you cannot be certain, if they will be reconciled; and you renounce the government of fear, of which you may be certain, and for which you need but consult your own breast. There is no general liberty where even comparatively a few evil-doers have no fear. The Government has put itself in the position in which it can scarcely do anything that is not mischievous; for if effectual suppression is out of the question, there is only left a something to do which will satisfy none, and will irritate beyond measure the Roman Catholics in Ireland. We can only look to a future day for the registration of the priesthood, and allowing them defined rights, and the imposing restrictions, by which they shall no longer denounce from altars and preach rebellion.

There are other evils, likewise, attending this hierarchy introduction, which require immediate remedy—the evil of their convents and nunneries. These are the real instruments of the Papal tyranny. How are they increasing! In 1847 there were in this country thirty-four convents—in 1848, thirty-eight; and in 1851, fifty-three.

The country is demanding, and well it might, a legal inspection of these houses. It cannot be borne that young inexperienced women of the most tender age, with the common feelings of nature undeveloped, ignorant alike of themselves and the world, should be entrapped, imprisoned in these so-called religious houses, perhaps for life, and their properties seized for the benefit of these religious establishments. Who knows anything of the inmates? If they are miserable, they are shut out from the notice of the world, which is ignorant of their lives and of their deaths—how they live or how they die—in regrets, in a repentance they believe sinful—broken-

hearted. The recent disclosures, coming as they do unexpectedly, not as things got up, appear providential, offering, as they do a most wholesome check, as well as creating abhorrence, disgust, and, an active enmity to the whole system. These disclosures have not been without their effect on those who have seemed inclined to look upon the Romish Church not unfavourably.

In the case of Miss Talbot, is there one person concerned in that affair that does not appear implicated in a plot—from the bigotry of Lord and Lady Shrewsbury, to the perpetrations of the so-called Bishop of Clifton? Dr Hendren, unfit as he is to be the bishop of any church, is also a weak and vulgar-minded man—and from his weakness we learn something worth remembering. He avows that the Romish Church wants money; and his own letters show what methods, or rather what arts, are to be used to obtain it. That case is too well known to need farther comment now. We wish we could think Miss Talbot still protected. This is but one case out of many. The case of the two young women of the Black Rock convent tells the same story. They were, it was given in evidence, as much compelled to sign away their property as if a pistol had been held to their heads.

Money must be obtained for the Romish Church, and the end justifies the means. No sum is too small, and no large sum large enough. In the case of Carré, the poor man did not even receive that for which he had paid. The deed signed, he was suffered to die without the last offices. What does Mr Newdegate say of his own neighbourhood, in his place in the House?

"In his own neighbourhood there were convents, too many. From one of them, some years ago, a nun escaped. Unfortunately she was taken back. What did they know farther of that woman? Nothing: except that within a week afterwards fifteen hundredweight of iron stanchions were put up to barricade the windows, and convert the place into a perfect prison. Women entered there—they died. There was no account of their illness or their death. No coroner's inquest was held. They were utterly shut out from light and life, and, he would add, from the protection of the law."

We venture to extract a case from a Hereford paper, because the writer received the narration, as will be seen, from the best testimony:—

"We know a case where a young lady of wealth became an inmate of one of these 'Religious Houses.' It was here in England. She had not been so long, ere she began to write home for money for purposes of charity. Her requests were complied with at first, not unwillingly; subsequently, as the requests became more frequent, and in larger sums, with reluctance. At length the amount became so considerable, that her friends became uneasy, and felt it right that her guardian and trustee should have an interview with her, and remonstrate on the extent to which she was impoverishing herself. He did so, and discovered that not one shilling of the money had reached her. The applications were all forgeries. Apparently they were in her handwriting; she knew nothing whatever of them! This, of course, led to a searching inquiry, which every endeavour was made to baffle; but the trustee was resolute. It turned out that one of the sisters in the nunnery was an adept at imitating handwriting, as was another in worming out of all new-comers the amount and particulars of their property. Between them—it is not difficult to understand how—the pillage was effected. What became of the money so obtained we know not. But the worst remains to be told. In order to save the character(!) of the superior, and of the establishment, the poor girl was prevailed upon—how and by whom may be imagined—to *adopt* the whole. There was, of course, an end of the investigation, and of the affair. The young lady became a nun herself, and is so, we believe, at this moment. Her guardian and trustee is a merchant of eminence in the city of London. We have given the facts as narrated by himself."

This case is so like others, that it may be said, without much reserve, *Ex uno disce omnes*. "Faith is not to be kept with heretics." Even saints of the Romish Church have declared that a lie may be, and ought to be, told for the good of the Church. Such maxim may be found in the works of the canonised Ligouri. We give Cardinal Wiseman credit for a high moral character, and learn that he is much esteemed; but we cannot acquit him of a *suppressio veri*, in a statement made recently by him, that the children of the person who had bequeathed (to him, we believe) a considerable sum for purposes of the advancement of the Romish religion, were *in possession of the property*. Now it was not even quite true, for they were only in possession of a *life-interest* in the property. Suppose the property to be

£3000 per annum, what is *the property* of a life-interest, and what of the reversion? Whoever was in possession of the value of the reversion, was in possession of the larger amount. The children, therefore, were not in possession of the property. It is absolutely necessary that Mortmain should be applied to bequests of this nature. The item of purgatory in the Roman Catholic creed is too potent upon the fears of the dying, when weakness of body and of mind aids those fears, in providing, by bequests, a release from purgatorial pains. But there are legacies, gifts, or confiscations of another kind that must be looked to. The property of all who enter monasteries or convents for life should pass, excepting an annual portion, to the immediate relatives; in case of none, to the Crown. This would be a merciful provision, for it would be the surest protection, perhaps the only one. It is the temptation to possess their property which makes nuns. We are here supposing monasteries and nunneries still allowed to exist, and vows to be taken. But we confess we have another view. There are "illegal" oaths, and laws provided to take severe cognisance of them. It may be doubtful if there is not a treason against oneself, that ought to be illegal, as there is against a sovereign or a government. To take the vow of celibacy, of perpetual virginity, is a treason against nature, and against the first law of our Creator. It is a suicidal vow, and should be considered a crime; and we believe it would be sound legislation, though suiting not some notions of religious liberty, to put a stop at once to these vows in England. At all events, it is not according to civil liberty that either parents or guardians, or parties themselves, should be allowed permanently to bind their conscience down, and to inflict or to submit to a perpetual imprisonment, from which there is no possible subsequent escape.

It should be no matter of surprise if Christians, whatever be their denomination, unite in endeavouring to resist this growth of a power sworn to put down, to persecute to the utmost, as heretics and rebels, all who submit not in obedience to the Pope. "Cunningly devised" indeed must be that system which has, most unfortunately, shown itself to be a potent charm, working in the minds of too many of the clergy of the Church of England. We cannot imagine by what arguments they have been persuaded, either by themselves or others. It would seem to be impossible that they could bring themselves to forsake *their* first, and *the* first, Christianity, as restored at the Reformation, for the adoption of impostures so transparent,

were it not that it often happens that the mind, bewildered in the fever of controversial curiosity, and wearied by the multiplicity and oscillation of its own thoughts, yields itself up, in despair of finding a solution of its own, to the name of an authority which promises rest from restless thought, and permanent quiet of conscience.

And yet we know not whether this aggression, even in the mischief it has done, may not in the end prove our strength. Under Providence, we may find in it a provocation to watch and guard more jealously the foundations of our Christian faith. It has led, and will further lead, to a full exposure of the Romish errors. They cannot escape the scrutiny of an inquiring world; and thus, even at the moment of its insolence and boasted triumph, the Popish religion may receive in this country a blow which may damage it in every part of Europe, and possibly precipitate it to its downfall. But it must no longer have a Government encouragement; that which has been given to it has, though not so intended, sufficed to evidence its character. It can never be trusted. If there had never been heresies, the pure faith might have been less a living principle. They have practically led to putting into effect and practice the divine command to "search the Scriptures." It is the will of Providence to bring good out of evil. Denial of false doctrines has been the illustration of the true. Received as Popery is now in this country, with, to the Papists, an unexpected hatred, with an undying suspicion, and manifested as it has been in some of its most offensive doings, it will indeed be our fault if it receive not more than discouragement—a combativeness which shall shake it to its foundation. Even now a wondrous change is taking place in all Roman Catholic countries. The Infallible is derided, some fall into the Protestant ranks, and, as a natural consequence of a long maintenance of superstitious errors, multitudes sink into utter infidelity. But in the British dominions a happier change is being effected. What are the few converts to Rome, of bewildered and dreaming ecclesiastics, to the large, the wholesale abandonment in Ireland of the Romish doctrines? The Pope and his cardinals cannot there any longer keep the Scriptures from the people, and they are sensible of the bondage in which they have been held. Perhaps this is one cause of the insolent endeavour to establish their hierarchy. The priesthood and the Roman Catholic press, with a double object—the keeping up their religion and rebellion—yet uniting in one purpose, see that any movement is more safe to them than peace, which is

weakening their hold, and confirming the strength and power over the people's minds of the religion of the Reformation.

Under these circumstances, in that country particularly, it is most unadvisable to allow any new position to the Papal power. Let it have no quasi-State authority, which our Government of late years has laboured to give it. Allow fully religious liberty, but mark distinctly where religious liberty terminates, and falls into a civil incompatibility. Allow not an inch of ground to the anomalous mixture, a divided allegiance. Exact strictly that allegiance, whole and undivided, without which civil liberty is endangered. If there be any doctrine in a religion subversive of that, those who hold it ought to be content with the liberty of holding it, but they must be content also with restrictions which civil liberty demands. Popery can only gain strength two ways—by positive persecution, and by indifference as to its movements. By the latter it is gaining strength at this day in France. The Church has been shaken off by the State; the mass of religionists, therefore, are become thoroughly ultra-montane, and acknowledge no authority but that of Rome. Persecution, we trust, will never be the law of England, until, if this shall ever be, Romanism prevails; and, to prevent so dire a calamity, restriction should be our law.

We have not, as some do, spoken exultingly of our "Protestantism" through any doubt of the thing; for as in opposition to Rome we are thoroughly Protestant, we protest most solemnly against all its unscriptural tenets—against its worse than tenets, its insidious doings, and its innate incurable tyranny; but we confess we are shy of the unnecessary use of a term which gives, and has ever given, them a handle of advantage. It allows them to ask, "Where was your religion before Luther?" as if we should admit that Christianity began with Protestantism, and not with the Scriptures themselves, and the appointment of our only one infallible Head. Nay, we might fairly retort upon them, that if they will take the word, which we object not to in itself, in this sense, we have the best right to throw it back upon themselves; for theirs is the law of development—a law of perpetual change, a law of continual protest against themselves, against their doctrines of yesterday—protest against the doctrines of the Apostles, protest against the Universal Church's teaching before Popery was, protest against its own Popery at different times—it is a protest against what it

establishes to-day as that which may be legitimately uprooted to-morrow. And this is what the "Unchanging" is doing by his infallibility. "The faith delivered to the saints" is not with the Papacy one faith; there is but one faith, the dictum of the one present Infallible—the Pope of Rome. By this they protest against their own best men, and most learned theologians, who have strenuously contended against this their law of development. What pen could put down a historical catalogue of all the "Roman variations," which yet they are pleased to call "one truth?"

The *Index Expurgatorius* is a curious document: it shows how the Infallible deals with authorities; what variations he makes—what subtractions and what additions. That made known by Zetsner, 1599, contains some curious specimens. The Roman Church did not *publish* this, but sent it to the prelates, to be by them distributed to a few fit—"quos idoneos judicabunt"—bibliopoles. Thus the Pope will alter these words of St Augustine: "Faith only justifies," "Works cannot save us," "Marriage is allowed to all," "Peter erred in unclean meats," "St John cautions us against the invocation of saints." The holy Bishop (says the Church of Rome) must be corrected in all these places. St Chrysostom teaches that "Christ forbids heretics to be put to death;" that "to adore martyrs is antichristian;" that "the reading of Scripture is needful to all;" that "there is no merit but from Christ;" that it is "a proud thing to detract from or add to Scripture;" that "bishops and priests are subject to the higher powers;" that the "prophets had wives." The venerable patriarch must be freed from all these heretical notions. Epiphanius affirms that "no creature is to be worshipped;" this is an error, and must be expunged. St Jerome asserts that "all bishops are equal;" he must be here amended. Such, and others of subtraction and addition, are the directions *secretly* and authoritatively given by the Roman Church to the venders and publishers of books. Nor let any be deluded by the idea that there is no *Index Expurgatorius* now. These are doings, not of a time, but of a continuation, as an inherent necessity of the Roman Church; which must, to keep its position, thus treat authority, whether of the Primitive Church, or of the Scriptures themselves. The above passages are taken by Dr Wordsworth from the *Index Expurgatorius*.

But this ever-variable Infallibility, which discovered purgatory at the time of the discovery of America, as if practically, by cruel inflictions, to show

what its torments might be; this boasted one, yet ever-varying Infallibility, has, under Pope Pius Nino, now at length developed a new doctrine—not new, indeed, in invention, for it was mooted at the Council of Trent, and set aside as uncertain by that "certain" council, but new as an established authoritative dogma—the "immaculate conception of the Virgin Mary." It is no longer true, in the Roman Catholic belief, that there was but "one sinless." There is now a new exception; it is now no longer a truth that, Christ excepted, "the Scripture hath concluded *all* under sin." The Virgin Mary was, as the infallible present Pope decrees, born without sin; she was miraculously, immaculately conceived; and hence, what follows? Awful to contemplate is this most recently received dogma. She has an altar to her by the side of that to God the Father. The Roman Catholic Church is no longer Trinitarian—it is Quaternian; it sets up a Quaternity for that glorious Trinity, "three persons and one God." And where is all this development to end? Doubtless, it is in the wisdom above man's, that, like the serpent that was devoured by his own brood, it should be ultimately destroyed by its own inventions; for it makes "the Scripture of none effect" by its traditions and developments.

But to return to the present aspect of things, and the position of the Papal aggression. It will not do to leave the Roman Catholics the power of holding synods, and thereby doing such work as the legate, a member of the Pope's Council, shall dictate; and, at the same time, to fetter the Church of England, which has her legitimate Parliaments only as a mockery—to ordain that all religious bodies shall be free, and the Church of England not free. It is well known that there is a disposition, not confined to a few, to Germanise her Liturgy according to the rationalistic principle; and that advantage is taken of this aggression to promote that end. The movement for this object is on foot: without doubt, it is joined by many who do not see these ulterior views, and believe they can put down thereby practices which seem to lean to Rome, and there stop. They will have no such power. The majority in this movement are desirous of destroying all creeds—in fact, of repudiating the Church. It is well known that there is something very like a conspiracy to bring about this change in Established religion (originating in Germany) in every country. It is about five years ago since a great metropolitan municipal body addressed a memorial to the Sovereign of Prussia upon his throne, embodying principles which still, under the name

of Christianity, are subversive of all Christian doctrines. They are, in fact, principles which make every man his own God. His own mind is Christianity—and is infallible. The divine authority of Scripture is ignored. They speak of the "Spirit of Christ," but only as a principle within their own minds; and that principle as the "Church." They, too, adopt the development theory—

"She finds in her foundation and in her history the clue that conducts her through the labyrinth of human error, and the *rule of the development of her doctrine*. Christianity renews itself in the human heart, and follows the development of the human mind, and invests itself with new forms of thought and language, and adopts new systems of church-organisation, to which it gives expression and life. The *Scriptures* and the creeds are the witnesses of *ancient* Christendom. Being, however, the *works of men*, they express the faith of *men*; and their form bears the impress of the time in which they were made. It is not in *them* that absolute truth resides, but it is in the *spirit* of truth, holiness, and love, which animates mankind. He who revealed Himself to the world by the authors of the Scriptures, is *in us*, and *by us*. He interprets the same Scriptures, and judges of their truth."

Thus, according to this really atheistical disgusting verbiage, Christianity is a myth, "within us" and "by us." And we ask if Protestantism—the Protestantism of the Reformation, or the Protestantism after the Reformation, as it now exists in the Church of England or Scotland, or in sects of any Christian denomination—would not shrink with horror from a proposal to substitute this blasphemous farrago for the creeds, liturgies, and services in established use?

We have ventured upon this, it may be thought, delicate ground, because we think it intimately connected with this Papal aggression, and with modes of dealing with it. The Rationalistic aggression would be the most intolerant. It has a mortal hatred to creeds. It is of the Philosophy which, in the French Revolution, massacred priests and demolished churches. It claims its own infallibility, and would make it subservient to a tyranny. It would be as dominant as the Papacy, and denounce its heretics. If there be any that have a confidence in present times and present *liberality*, and

believe that none of these things can come to pass in our country, we would only refer them to a few lines in the page of our recent history, wherein may be read that a furious mob centred itself from all parts in one of the most important cities of the kingdom, attempted to burn down the cathedral, did burn and tear and trample on the Bible, and burnt to the ground the bishop's palace, and eagerly sought the bishop's life.

"The *holiness*," and even the "*love*," "within us," that is not of the Christianity of the Scriptures, is an absolute deceit and falsehood; and will ever be, in operation, the most selfish cruelty.

It is an audacious impiety in man to claim infallibility: "*humanum est errare*." Rationalism and Popery are above humanity. What Cicero said of the smile, when augur meets augur, it may be thought may take place when the Pope meets his confessor. For the Infallible confesses—what?

There is but one infallible, the one Head of the Church which He made. He has given an infallible guide—the Holy Scriptures—all-sufficient, and which require no "development" to interpret them.

Upwards of five centuries ago, the great poet of Italy spared not the expression of his indignation against Popes, monkeries, and their mercenary distribution of "blessings," "pardons," and "indulgences," that fatten, as he terms them, the "swine of St Anthony." He refers all true doctrine to the directions given by the only Infallible, and as taught by the primitive Church.

"Non disse Christo al suo primo convento
Andate, e predicate al mondo ciance.
Ma diede lor verace fondamento."

"Christ said not to his first conventicle
Go forth, and preach impostures to the world,
But gave them sure foundation."

And, a few lines after, he speaks contemptuously of the mummary, and promises, pardons, and buffooneries of the Popish preachers of those days; and adds that, if the gaping populace could but see "the dark bird that nestles in the hood," they would "scarce wait to hear the blessing said."

THE BOOK OF THE FARM.⁸

There are some things of which a traitorous Parliament cannot deprive the agriculturist. His is the only industrial occupation that can be said to possess a literature of its own—a literature at once ancient, varied, extensive, and curious. In the Augustan era, the Romans could number upwards of fifty Greek authors who had contributed to illustrate the practice and science of agriculture; and we know, with much greater precision, how important a niche agriculture occupies in the existing library of ancient Rome. The curious and quaint lore of Cato the elder—the three works of Varro, the ripest scholar of his age, and evidently the very model of an accomplished Roman gentleman—the minute details of Columella—and the various but somewhat apocryphal information scattered throughout the writings of Pliny, with many lesser luminaries who have written *de re Rusticâ*, abundantly indicate the importance which the Romans, in the most brilliant era of their history, attached to the study and practice of agriculture. But in a literary aspect the poems of Virgil better demonstrate, than the professional writers just named, how deeply the love of agriculture was cherished by the finest intellects of classic antiquity. In the most original productions of his immortal muse, Virgil has embellished with the charms of divine poesy the arts of rural economy, and the habits of rural life. What other *toil* of weary mortals has genius enshrined in imperishable verse? Nay, what other industrial calling could wake the inspirations of genius? "The textile fabrics," as they are somewhat pedantically called, are now in the zenith of their popularity; but is Jute poetical, or is Calico propitious to the Muses? The Budge Doctors of the economic school will smile at the question. Although not embraced in their philosophy, it may nevertheless be an important feature in the occupation of a people that it furnishes meet themes to the poet's fancy, and is in harmony with the purer sympathies of the human soul. In such an avocation it may be inferred that there can be nothing innately vulgar or mean, nothing ancillary to low vice and coarse immorality. The ancient Romans seem to have thought that agriculture was the only profession in which a gentleman could engage without suffering

degradation. The sentiment is still prevalent; and the professor of the *Literæ Humaniores* may yet betake himself to his Sabine farm without sully the honour of the ancient dynasty of letters. One Roman writer speaks of husbandry as an art noble enough to occupy the attention of kings; and to this day we seem ready to acquiesce in the opinion. The Prince Consort fitly employs a leisure hour in observing the processes of agriculture carried on at the home-farm of Windsor; but the national taste would probably not allow it to be a regal employment to watch the spinning of cotton or the printing of calico. The Roman authors duly appreciated the moral influences which the employment of husbandry exerted on the mind. *Omnium rerum, ex quibus aliquid acquiritur, nihil est Agriculturâ melius, nihil uberius, nihil dulcius, nihil homine libero dignius.* And Ceres, according to the poet, *prima dedit leges*. This was indeed the doctrine of the more ancient Greek writers; and the object of the Eleusinian mysteries seems mainly to have been intended to represent the importance of agriculture as the handmaid of civilisation. The mind insensibly catches a hue and complexion from the natural objects with which it is conversant, and the beautiful in nature may be friendly to the beautiful in morals.

.... "The soul
At length discloses every tuneful spring,
To that harmonious movement from without
Responsive."

The peaceful employments of the husbandman, and his daily converse with nature in her gentler as well as more solemn moods, can scarcely fail to be favourable to devotional feeling, and to the milder and more amiable virtues. Although this must be a matter of infinitely small moment to those in whose estimation the *summum bonum* of human life consists "in buying in the cheapest market and selling in the dearest," yet a wise statesman might not be uninfluenced by such a consideration in cherishing a branch of national industry—of vital moment, no doubt, in its economic results, but so peculiarly propitious to the growth of the peaceful and patriotic virtues, to the rearing of a virtuous peasantry, and of brave and loyal yeomen, who in every peril have proved the thews and sinews of the commonwealth. Although the statesmen of the Augustan age correctly appreciated the importance of agriculture as the surest basis of national prosperity, yet the

neglect of husbandry, and the consequent dependence of the people for their daily food on imported grain, which occurred at an after period, largely contributed to the decay of the Roman empire. The history of ancient Attica reads us a similar lesson. The Athenian farmers, anticipating the recommendation of Sir James Graham, devoted their attention more to pasturage than agriculture. The necessary result was an immense importation of corn to provide for the subsistence of a population unusually numerous and dense. Demosthenes tells us that the quantity of corn annually imported from the Crimea alone amounted to 400,000 *medimni*—a *medimnus* containing about four of our bushels; and the peril of such stipendiary reliance for the staple article of the people's food on the caprice of neighbouring, or, it may be, hostile states, was bitterly experienced by the Athenians, and precipitated the crisis in which Grecian freedom and Grecian glory sank overwhelmed never to revive. But history has been written in vain for our modern statesmen, who are infinitely too wise to be instructed by the monitory lessons in the art of government which may be derived from the decline and fall of Greek and Roman greatness.

Without stopping to trace the history of British Agriculture, we venture to offer an opinion which we believe will be acquiesced in by those most familiar with the subject—that, while modern times have contributed not a little to our knowledge of the principles and theory of agriculture, they have done infinitely more to advance the improvement of the practice of agriculture.⁹ We say so, without at all intending to disparage the discoveries of Chemistry and Vegetable Physiology. From these sources we expect much more important services, in advancing the art of husbandry, than certainly they have ever yet rendered.

We do not believe that there ever was a time in the history of this country, when so deep an excitement existed in the public mind regarding the present position and future prospects of our domestic agriculture. As the sun never attracts so much attention as during an eclipse, so it would seem to fare with British agriculture in the disastrous plight into which legislation has plunged her. Our litterateurs have all taken to "piping on the oaten reed," and to paying their *devoirs* at the shrine of Ceres—in whose temple, however, they are manifestly neophytes, and as yet but playing the part of postulants. We hope, indeed, that we may remark without offence, that

sometimes they place strange fire on the altar of the goddess, and that they do not always exhibit satisfactory proofs of being very intelligent or well-informed worshippers. When Goldsmith meditated an exploratory journey into the interior of Asia—with the view of discovering useful inventions in the arts, and of adding them to our stores of European knowledge—Dr Johnson, assured of his unfitness for the task, grotesquely supposed that "he would bring home a grinding-barrow, which you see in every street in London, and think that he had furnished a wonderful improvement." One cannot help fancying that some of our most brilliant contemners of the importance of British husbandry, were they to make a tour of discovery into rural parts—would run some chance of picking up a three-pronged fork, and of reporting it as the veritable trident of the god Neptunus. Journalists, subject to commercial impulses and influences, are for the most part town-bred, and unacquainted with the habits of rural life, and with the theory and business of farming. Husbandry is too large a subject to be learned from the windows of an excursion train, or by the casual consultation of an agricultural cyclopædia. Unprepared by previous observation and study, it should not surprise us, when summoned to discourse Georgical lore to their readers, that our journalists should find it necessary to confine themselves to vague generalities, or political speculations on an agricultural question. We beg, however, respectfully to suggest that the writing of "Pastorals" has always been thought a somewhat difficult branch of the literary art. It is now abundantly proved that the agitation flowing from agricultural distress cannot be sopited by burning eloquence, or brilliant sneers, or sharp antitheses, or bold paradoxes; and the time would seem to have arrived when it becomes those whose duty it is to instruct others, and to consult for the good of the State, to inform themselves accurately on a branch of national industry so engrossing public attention, and to weigh maturely and impartially the infinitely momentous and vastly complicated interests involved in the prosperity or decline of British husbandry.

The position, on the other hand, of those actually engaged in the business of agriculture, is far too critical to permit them indolently to lie on their oars. Within the last twenty years, immense advances have been made to improve our knowledge of the theory and practice of husbandry in all its branches; and if the owners and occupants of land are ignorant of these,—if they are ill-informed in their own business—if lack of knowledge compels

them to sit silent when the spruce merchant glibly taunts them for their ignorance of the lights shed on their profession by the torch of modern science—if they are unable to defend themselves, and to vindicate the important interests which they represent—let the existing race of proprietors and farmers know assuredly that, if they are to fall degraded from their present position, they will, in the case supposed, fall the unpitied victims of commercial rapacity and a vicious legislation. Whatever may be the ultimate phase in which agriculture shall emerge from the cloud now resting on it, it is evident that those whose interests, capital, and prospects are dependant on the produce of the soil, were never urged by so pressing considerations to acquaint themselves fully and accurately with the science and practice of their profession.

There never was a juncture, we venture to assert, in the history of British husbandry, that so loudly demanded the publication of a work on agriculture at once copious and minute in its scientific details—fully up to the mark of modern improvement—incorporating everything old and new likely to throw light upon the subject—and detailing faithfully the latest experiments and discoveries of chemical, physiological, and mechanical science; and we can honestly congratulate the British agriculturist, that, in the new edition of Mr Stephens' *Book of the Farm*, he truly possesses such a work.

We have, in our day, been not a little tormented with second editions. We have sometimes harboured the ugly suspicion that, in the matter of new editions, publishers and authors were in league to cheat the honest public; and, under the influence of this uncomfortable feeling, we have once and again vowed never to buy the first edition of any book whatsoever. On cool consideration, we feel constrained, however, to confess that the author of this work must have endangered, if not forfeited, the high position which he holds as an agricultural writer, had he not strenuously set himself to emend, and enlarge, and in great portions to re-write his book, when a new edition of it was demanded. It is not only that, on a subject so large, completeness in a first effort might have been naturally expected to baffle any knowledge, however comprehensive, and any industry, however indefatigable; but the brief period that has elapsed since the publication of the first edition has been so fertile in agricultural progress, and so rich in scientific inquiry and

experiment, that not to have noted these, and embodied their results in this new edition, must have damaged not only the work, but the author, as implying an ignorance of, or a contempt for, the advancing tide of improvement. The present is undoubtedly a very superior work to the first edition; and it seems to us now to contain a complete institute of agriculture. We venture deliberately to affirm, that in no country or language was so perfect a work on agriculture ever given to the world before; and that no work on this subject, whether foreign or domestic, can for a moment come in competition with *The Book of the Farm*. Perhaps the most remarkable feature in the work is the immense mass of varied information which it contains. *The Book of the Farm* is indeed a many-chambered storehouse of agricultural lore—a vast repertory of information on the subjects of which it treats. To prove the erudition of the work to those that may be yet unacquainted with it, it may suffice to state, that there are above fourteen hundred references to authors, ancient and modern, continental and domestic, who have written on the subject of agriculture, and on the allied branches of art and science. The references in the work are equivalent indeed to a *Bibliotheca Agricolaris*; and, by directing him to the authorities and sources of knowledge, will enable the educated agriculturist to prosecute his inquiries on any peculiar branch of his business in which he may desire more minute information than even the text embraces. *The Book of the Farm* is, in fact, another "Stephens' Thesaurus;" and the author must evidently be one of those robust geniuses, who can grapple with whole libraries, and reduce them to their service. Let it be understood, too, that the author's powers of assimilation are as excellent as his literary appetite; that the information is not heaped together in rude disorder, but is interwoven naturally with the texture of the narrative—every fact falling fitly and easily into the appropriate place, where it may best illustrate the precise point discussed. In nothing more than in this does the learned author show his complete mastery of the subject. We fancy that the tenant-farmer, in perusing this work, must often feel how much its author has dignified his art, by showing him how many sciences contribute to its advancement, and how many authors of great learning and talent have devoted their labours to advance the progress, and to vindicate the rights, of husbandry.

But all this learning may not be allied with practice; and the author of *The Book of the Farm* may, peradventure, be only a book-farmer—a species

of impostor that has done a world of mischief in his day and generation. Quite the reverse. The author is enthusiastically practical, and his work is intensely practical. He seems, indeed, to look somewhat askance at any alleged improvement that is not likely to be profitable and beneficial; and we can fancy that he would abate the pretensions of an empiric boastful of some grand discovery, by asking, with an awful mildness, *Cui bono*? We can assure the agriculturist that, in Mr Stephens, he will find an instructor thoroughly and eminently practical. He is perfectly familiar with the processes of husbandry. He writes not merely as an eyewitness; for it would appear from his book that there is scarcely any one of the manual operations of farming which he had not learned, and, by continued practice, acquired expertness in performing. We believe that there is no author, living or dead, who has written any similar work on agriculture, of whom the same thing can be said. It is an unspeakable satisfaction and comfort to the practical farmer to walk in company with such a guide. We remember very well the impression made on our mind by the first perusal of *The Book of the Farm*. We at once learned that the author, from actual practice, knew perfectly the employments of the ploughman, the agricultural labourer, the cattle-man, groom, and shepherd. With the most minute and insignificant, as well as the most important operations of husbandry, he seems equally familiar. We soon discovered that his knowledge of the history, habits, diseases, and general management of stock, was as perfect as if he had studied nothing else. He writes as minutely about cattle as if he had spent half a lifetime in the cattle-court; and urges that their "comfort" should be attended to as earnestly as if he were consulting for his wife and family. When he discourses on the fleecy people, you conclude that he must be a mountaineer, and that he has tended his flocks amid the valleys of Clova, or on the slopes of the Cheviot. This idea, however, was speedily dispelled by finding our author quite precise on the piggery; in fact, a most learned and enthusiastic *Porculator*. We were delighted to find that he did justice to the porcine race, for long the best abused of all our quadrupedal domestics. He writes with a genial enthusiasm on pigs that would have delighted the gentle spirit of Charles Lamb, (see his dissertation on "Roast Pig,") and have won the regard of Southey, (see his poem, "The Pig,") and astonished the ignorance of Sydney Smith, (see his late work "On Morals,") and have caused a gracious smile to mantle o'er the benevolent countenance of the excellent Mr Huxtable. Pigs and poultry, in life and death, are natural allies;

and it did not surprise us to find Mr Stephens intimately acquainted with the merits of the winged denizens of the homestead, and that brave chanticleer and his feathery harem were not dismissed without an accurate disquisition. By this time, however, we believed that the practical knowledge of the author was exhausted. But it was not so. He showed himself forthwith in new characters altogether, and proved himself to be a dexterous hedger, (no offence is meant,) no mean proficient in the veterinary art, and quite able to lend a helping hand to the blundering smith, carpenter, or mason; while, to complete the range of his attainments, Mr Stephens seems quite at home amid the perilous retorts and subtle agencies of chemical science.

The extraordinary extent and accuracy of our author's practical knowledge, is in some measure explained in the preface which accompanies the new edition. After a liberal education, he seems to have carefully trained himself for the business of farming by studying it in Berwickshire, "labouring with his own hands," as he tells us, at every species of farm work. He thereafter travelled through most of the countries of Europe, and thus obtained insight into the methods of Continental agriculture. Thus prepared, Mr Stephens commenced a practical farmer; and on a farm of three hundred acres, in Forfarshire, he executed a series of most successful improvements, some of them quite new, at the time—not only in the culture of the soil, but in the management of stock. Everything was done not only under his own personal inspection, but he scrupled not to put his own hand to the work; his object being, as he records, "that his mind and hands might be familiarised with every variety of labour appertaining to rural affairs." Since he relinquished farming, Mr Stephens has been an ardent student of his favourite science. If at any agricultural show a fine animal was to be seen, or if in any country or district or farm an improved mode of culture was alleged to exist, our author seems to have resorted thither to test its merits by accurate and patient observation. His position as editor of the *Journal of Agriculture* necessarily makes him familiar with the literature of agriculture, and with every new light which Continental and British discovery has shed upon the theory and practice of agricultural industry. To these opportunities of knowledge he conjoins an unbounded enthusiasm and an unconquerable industry. Never before in one person, probably, had there met such a combination of qualifications fitting him to compose a standard work on agriculture. And thus equipped and furnished, never, we believe,

did any author devote his energies with more untiring and conscientious fidelity to the performance of his self-imposed task. No inquiry seems too minute or insignificant—none too gigantic or laborious, if it will add to the store of instruction which he desires to communicate. He gathers information from all authors, famous or obscure, and levies assistance from all sciences, that he may satisfy his reader, and present his work perfect and complete! And now we beg to congratulate the author on the completion of his great work, for a *magnum opus* it emphatically is; and to acknowledge, with gratitude, the infinite obligations under which he has laid the agricultural world.

The primary intention of the author seems to have been to compose a work that might prove a manual of instruction to young men who were studying agriculture, and preparing themselves for the practical business of farming. But, in reality, the work has outgrown the original idea; and it forms now a complete code of instruction not only to the learner, but to the experienced farmer, to the landowner, and, in fact, to every one whose interests are dependant on agriculture, or whose duties lie in any one of the multifarious departments of rural affairs. The plan of the work is perfectly original, (although old Palladius may have given the hint,) and seems to us peculiarly felicitous. Mr Stephens divides the year into the four agricultural seasons—not absolutely coincident with the chronological division, but sufficiently distinctive—each having its respective class of operations to perform. The work might, in this aspect, be described as the Farmer's Book of the Seasons, with the employments peculiar to each copiously described. There are undoubtedly cycles, recurring periods, if not of repose, at least of change, in the farmer's employment; and, by keeping in view these landmarks of nature, the author enables his reader to comprehend, step by step, the progressive advancement that takes place in the business of husbandry. We know no other work that affects even to do this, or from which it would be possible for the student to acquire an intelligible conception of the actual system of husbandry, in the natural and consecutive order in which her processes take place. It seems strange that, in preceding works, a similar plan had not been adopted. In learning a profession men begin at the beginning, and proceed gradually onwards through the curriculum of study and of practice. How should it have been thought that it could be otherwise in agriculture? Agricultural dictionaries and cyclopædias

cannot possibly expound a system of husbandry; and it would defy any sagacity to frame one out of them. Their articles may individually be worthy of occasional consultation by the initiated; but they present to the student a bewildering and motley jumble of instruction, "beer" being found, perhaps, next neighbour to "beet," and "bones" in juxtaposition with "botany." Their prelections, written in different styles, and by authors differing oftentimes in opinion, resemble a multitude of loose, independent, and particoloured threads. In the *Book of the Farm* we find all rightly arranged, and woven by one artist into a web of continuous and consentaneous narrative. The concluding part of the work is entitled "Realisation," in which the author places his pupil on a farm of his own, pointing out the principles that should guide him in his choice of a farm, and teaching him how he should reduce his knowledge into practice. This is not the least valuable part of the work, and in the strongest manner indicates the superior value that the author attaches to skill, energy, and success in the actual practice of husbandry, in comparison with any knowledge of the "Book theoric," or any passion for experimental freaks. Having fairly embarked his agricultural alumnus in the business of life, Mr Stephens, as if loath to leave him, still accompanies him with invaluable directions, and continues to counsel him in kindest strain regarding the duties which he owes his servants, his neighbours, his landlord, and himself. Upon the whole, there is something approaching to epic excellence and dramatic unity in the conception and execution of the work; and when the author, in his final paragraph, bids us adieu, and expresses a hope that his labours may prove profitable and instructive to his brethren, it is impossible not to feel that the curtain has fallen upon a complete performance.

Until we received the concluding part of *The Book of the Farm*, which only reached us lately, we were considerably nervous on one point—quite vital, in our estimation, as to the merits of the book. The older we grow, we attach the more value to an accurately arranged index. We hesitate buying any book of importance unfurnished with such an accompaniment; and if it is a book deserving to be re-read, and to which frequent reference must be made, as is the case with the work under review, we put it without compunction into the *index expurgatorius* of our library-catalogue, and would without pity place the author in the pillory. What a time-table is to a railway, or a guide-book to a traveller in a strange land, such is an index to

an extensive work; and if our readers consider that *The Book of the Farm* contains 1456 pages of clear but close print, in double columns, and embraces the whole range of subjects connected with the conduct of rural life, they will see the imperious necessity of a carefully compiled index for such a work. From the beginning we saw that the book was well planned and paragraphed, (the paragraphs now numbering 6459;) but no excellence of arrangement could compensate for the want of an index. We are therefore happy to add that the value and utility of the work are consummated by the index appended. It is accurately digested and arranged, rendering reference easy and expeditious, and giving the reader a complete control over the voluminous contents. We have found it a prompt and sure guide to any particular point in the varied realms which the author surveys. We have narrowly tested its virtues; and having found it to fail but in one solitary case, and that only partially, we feel bound to approve of the judgment and labour bestowed upon this part of the work. We dwell upon this feature of it not only as momentous in itself, but because the possession of such an index gives *The Book of the Farm* all the advantages of an agricultural dictionary, while it has merits of its own to which such a work can never lay claim.

In describing the general character of the work, it would be grievous injustice to omit mention of the admirable manner in which it is illustrated. It is enriched with 14 engravings on steel, and 589 on wood, of the most exquisite quality. The portraits of the animals are not from fancy, but are faithful likenesses from life; and we know nothing more excellent or characteristic—not even Professor Low's elaborate and coloured plates of the domesticated animals. In one department the author has, with admirable success, called in the engraver's aid. We refer to the insects infesting that portion of vegetable and animal life in which the farmer is peculiarly interested. This is a province of agricultural instruction which, if not hitherto neglected, has certainly not been treated by any preceding author in a useful and intelligible, manner. Mr Stephens describes the insect-invaders of the farm with a precision that will satisfy scientific readers; but Mr Stephens does not demand, as seems to have been unreasonably done by his predecessors, that farmers shall be familiar with the tremendous terminology of entomological science. He places the little pests before us in vivid pictures true to the life, and evidently from it; so that, without

determining the import of such startling vocables as "apterous," "coleopterous," and "orthopterous," the husbandman is at once able to detect the winged and creeping foes, so weak in single combat, but so devastating in legionary myriads—that ruin his crops and injure the health of his cattle, tormenting their patience, and by no means improving the sweetness of his own temper. The black woodcuts, too, depicting the principal operations on the farm, are inimitably graphic. But when it is mentioned that the artists are Landseer, R. E. Branston, Gourlay Steell, and George H. Slight, the reader will understand that the choicest embellishments which the fine arts could render have been devoted to the illustration of *The Book of the Farm*. It was well thus to charm the young farmer, and to teach him through the medium of his eyes, by presenting him with portraits of the finest animals, and models of the best implements, and pictures delineating the employments in which he and his staff of servants must engage. We shall be bold to assert that no work on agriculture exists equal to this for the profusion, originality, and excellence of its illustrations.

It would be utterly vain to attempt, by quotation, to give our readers any idea of the extent and variety of the contents of this work; but we may say that we would feel infinitely surprised if an inquirer into any subject touching the culture and drainage of the soil,—or relating to the management of stock,—or into any of the collateral arts and sciences, so far as they are connected with agriculture,—or into any duty or employment in which the owner or occupant of the soil may be called upon to engage,—or into any difficulty likely to overtake him in the discharge of that duty, and out of which a more perfect knowledge and skill may extricate him,—shall *not* find in *The Book of the Farm* the information of which he is in quest. In the parts of the work that are strictly theoretical, we conceive that much originality will be found in the author's exposition of the rationale of the feeding of animals, of the germination of seeds, and of the action of special manures. He states the result of every modern experiment worth noting. The present edition contains, in fact, a digest of every experiment, down to the present date, that has been tried in the cultivation of crops, and in the management and feeding of stock—not omitting Mr Huxtable's method of feeding sheep—and of every new light and discovery worthy of preservation made by agricultural chemists. We admire the excellent sense and discretion with which the author addresses the practical farmer

regarding the reception which he ought to give to the discoveries of modern science. These are not to be instantly and obstinately rejected, because they may be not only true, but ultimately of great practical value; they are not to be fanatically entertained and temerarily adopted, for, if not scientifically untrue, they may be utterly abortive in application, and may conduct only to bitter disappointment, and, in the case of the tenant-farmer, to an unwarrantable waste both of time and money. Nothing, in point of fact, has more injured chemical science in its relations to agriculture, than the exaggerated expectations and promises that have been held out regarding its discoveries. While, in the chemist's room, the result of an experiment may be demonstrable, it should never be forgotten that, in the laboratory of nature, the elements and agents are not under our perfect control, and that the rise or fall of a few degrees in the thermometer may utterly nullify the most perfect manipulation of the most expert experimenter. Climatic, atmospheric, and physiological peculiarities effect strange differences on the constitution and habits of plants and animals; and although scientific research may sometimes be able to detect the causes, it may be utterly unable to assist us in removing them. The supralapsarian employment of our great progenitor was horticultural rather than agricultural; but while the art of husbandry dates from the sad exile from Eden, it seems to be forgotten that chemistry is scarcely half a century old, and that it is but as yesterday that she volunteered her services to agriculture. Nothing is easier than to sneer at the inveterate prejudices that cloud the agricultural mind, and that impede all agricultural progress; but it may be well to remember that chemistry itself was at a comparatively late period associated with alchemy—that its aims were empirical, the chief of them being the discovery of the philosopher's stone, and the transmutation of the baser ores into fine gold. It seems the special province and duty of landowners, who have the leisure and the means, to make experiments; but British farmers, previous to their adoption, are entitled to satisfy themselves that the discoveries of science are readily available by them, and are likely to be profitable. The most enthusiastic chemist will scarcely deny that the discovery of a very condensed animal manure in the islands of the Pacific has contributed more to the prosperity of agriculture than any modern discovery in his favourite science. We write this in the profoundest conviction of the importance of chemistry and the cognate sciences, and of the impetus they will yet give to agricultural progress; but as it is the

present fashion to condemn the torpid and immovable understandings of British farmers, it may be well to remind our philosophers that they have been very long of thinking how their philosophy could advance the culture of the soil, or increase the supply of human food—a vulgar consideration, but not to be despised by philosophic sages, who must live like meaner mortals—and that, as yet, they have rather evolved principles, than shown Mr Hodge how he can profitably apply them. Of late, too, a most ridiculous rout has been made about liquid manures; and our urinary land-doctors would persuade us that they could liquify the whole face of the earth into a garden. To such hydropathic empirics we cry, pish! The value of liquid manures is undeniable, as seen in the watered meadows adjoining our cities; and on dairy farms the quantity may be such, that the application of it may not only be expedient, but profitable. When farmers generally, however, are abused for their ignorant neglect and waste of liquid manure, it is necessary to inquire into the justice of the charge. In the first place, it is certain that the litter in the cattle-court, if the court is rightly constructed and situated, will easily absorb all the liquid flowing from the animals in it and in the byres. Suppose the urine were collected as it passed from the animals, and were prevented from permeating and saturating the manure in the court, then, nearly *pro tanto*, the value of the manure would be deteriorated. This seems undeniable. The leakage from cattle-courts, when properly situated, arises exclusively from rain-water; and the overflow is caused by the want of rones to the buildings, and the waste of this diluted liquor arises from the want of tanks to contain it, so that both the leakage and the waste are the fault of the landlord rather than of the tenant. But what are the potent virtues of this liquor which escapes from the homesteads of our farmers, and the neglect of which has brought on them such a deluge of obloquy, and by the right use of which their plundered exchequer is forthwith to be replenished? M. Sprengel tells us that "it contains two per cent of manuring matter!" From the trouble, expense, and occasional delicacy required in administering it to the crops, we are quite satisfied that Sprengel is right in stating that any surplusage of liquid manure about a farm, from whatever cause it may arise, can be "most profitably employed in the preparation of compost." We are fortified in this view by the opinion of that skilful and judicious farmer, Mr Finnie of Swanston, as lately stated by him at a meeting of the Agricultural Society of Scotland. The fact is, that this cry about the untold value of liquid-manure proceeds from the city. The

inhabitants of our large towns have for many a day been living immersed in a stercoraceous atmosphere, and have been inspiring the fetid fumes exhaled from their horrid sewers. Awakening to the discovery, they have been seized with a sanatory mania; and on the instant, with upturned nostril, they have proceeded to rate the rural population for not relieving them of their cesspools, and for not admiring with sufficient ardour the virtues of these turbid and odoriferous streams that meander amid their dwellings. The Free-trade philosopher, himself pretty much in the puddle, joins in the cry, and condemns scornfully the farmer's neglect of the fertilising properties of sewage water. If these gentlemen were civil, and did not deserve to be soused in one of their own fragrant ditches, it might be replied, that the moment they transport their liquid treasures to the country, the tenant-farmers, after having ascertained their value, will cheerfully pay the worth of them, per ton, in sterling money. It is quite true, no doubt, as Mr Stephens contends, that "it is wrong to permit anything to go to waste, and especially so valuable a material on a farm as manure;" but when practical farmers are denounced by ignorant parties, who have shown that they care not a jot for the agricultural prosperity of the country, but who may hope, by railing at those they so lately robbed, to divert attention from their own political misdemeanours, it seems but right that we should ascertain the value of the article neglected, and the origin of its waste, if waste there be, and perhaps even inquire into the motives of the new patrons of British husbandry who have floated themselves into public notice on the black sea of sewage water. At the same time, he would certainly be an unreasonable man who would try to prevent the Free-trade water-doctors of the soil from sweetening the atmosphere in which they live, and from cleansing themselves from all impurities.

When we remember the excitement and distress under which the agricultural community are now suffering, we fear that at this moment they may scarcely be in a humour to accept graciously our recommendation of *The Book of the Farm*. In the fever of critical emergencies, men have not patience to study their profession, and scarcely taste to read anything that does not bear on the one engrossing theme. Mr Stephens, no doubt, ignores the Corn Laws and Protection in his work—(we are under no such a vow)—but it should be remembered that there never was a time when it was more necessary for the cultivators of the soil to acquaint themselves with all the

improvements and appliances of modern husbandry; and although good farming, nay, the very best, under present prices and rents must be unprofitable, that yet it may tend to the mitigation of present suffering, and to the postponement of coming disaster. But is there any occupant, or owner of land, with the smallest glimmer of sense, who really thinks—whatever he may affect—that the present condition of the British agriculturist can continue, and that his downward progress to destruction is not to be arrested? We do not believe it. It is because we anticipate that, ere long, justice will be done the tenant-farmers of the nation, and that they will be in a position soon to start upon a new career of agricultural improvement, that we earnestly urge upon their attentive study the stores of knowledge and instruction communicated in the pages of Mr Stephens' work.

Supposing the iniquitous competition and taxation to which the agricultural interests of the country are subjected were to remain permanent, we do not believe that any knowledge, or skill, or enterprise, can make the business of farming *generally* profitable. We think, however, that on casting the horoscope of British husbandry, many writers have predicted a speedier ruin to the tenant-farmer than the nature of his employments should lead us to expect. Everything connected with the processes of husbandry is slow and operose. There is only one harvest in the year, and there can only be one annual profit or loss upon the capital invested. A farmer cannot be ruined in a season. He may have a little spare capital; and, at all events, he has capital invested in stock, and by trenching upon the one or the other, he can for a while meet his losses. Agricultural capital has, however, been already so much impaired, that if, in present circumstances, a bad crop at home were to concur with a good one in the corn-growing countries of the Continent, the coincidence, we believe, would plunge immense numbers of farmers into bankruptcy. If any easy and apathetic landlord doubts this, let him ask the country bankers. It may be difficult to predict the ultimate issue of an unbending adherence to the present system. After a period of hopeless struggle, the capital of the present race of farmers will disappear, and, degraded and ruined, they must go. Who will succeed them? Most probably a race of servile cultivators, like the helots of ancient Sparta, or the ryots and serfs of modern Europe, who, content to subsist upon the meanest fare, shall deliver over to the lord of the soil the produce of the farm. We have heard that some patriotic lairds and discerning factors, taking time by the

forelock, are looking out for such clodpoles—for the race is not extinct—to occupy their vacant farms, wisely concluding that men without capital, skill, or education, will live upon black bread, and surrender to them the whole proceeds of the soil. A curious comment this upon the high-farming theory, and a plan of operations highly creditable to the agricultural sagacity and patriotic benevolence of its discoverers! Or it may be that Sir James Graham's "pasturage" may be the *dernier resort* of a ruined agriculture, in which case we may have, as in the Australian continent, men living somewhat like gentlemen, and occupying extensive tracts of country with their flocks and shepherds. Such a result could, of course, only take place by approaches slow, insidious, and imperceptible. If it were possible, *which it is not*, that such a social revolution should be *allowed* to take place, it is plain that it must be spread over a large period of time. We think error has been propagated by anticipations of immediate disaster. It is conceivable that events may occur that will postpone the triumph of truth, and that may enable the Free-trade press a little longer to mystify their readers. A temporary rise in the price of grain would have this effect. Such a brief respite might lull even the fears of the sufferer, although, while the organic disease remains uncured, it is certain to destroy him. The inconsiderate, and those whose interest is to delude or to be deluded, think the question settled by individual farms letting higher than before, and point triumphantly to "grass parks" maintaining their value, or rising in rent. They are ignorant that, as far as farmers are concerned, they must, in many localities, take grass, whatever it may cost them, unless they are to alter and subvert their whole system of farm management, which would involve a loss more fatal than that which, with open eyes and under dire necessity, they are content to endure. There is some fragment of truth, too, in one part of Sir James Graham's speech on Mr Disraeli's motion—in several respects the most audacious oration ever spoken in the House of Commons. "Shopkeepers retiring from business," said the member for Ripon, "small merchants in country towns—(ironical cheers and laughter)—I repeat it, small traders of little capital in country towns, are now waiting the moment to make investment in farms."—(*Times*, 10th Feb.) Isolated cases of this kind may be occurring, as they always have done, and, generally speaking, after a brief career, the *emeritus* shopkeeper retires, impoverished and disappointed. The merchant, deluded with some poetical fancy about the charms of a country life, takes a farm, but, like Dr Johnson's tallow-

chandler, who retired to the country, but could not keep from town on "melting days," his heart is not in his work, and he gets disgusted with the details of agriculture, and the affairs of his farm speedily fall into confusion. Is Sir James Graham serious in thinking that the prosperity of our domestic agriculture is to be recovered or maintained by "retired shopkeepers,"—that is, by men unbred to the business, strangers to its duties, and, of necessity, utterly destitute of any practical knowledge of agriculture? Mr Stephens anxiously prescribes a course of careful study and practice to his agricultural pupil; but Sir James Graham can, with his wand, metamorphose retired shopkeepers into *extempore* farmers. What elevated notions the Knight of Netherby must entertain of the qualifications of an English farmer, and of the importance of the agricultural art—an art that it had been hitherto supposed required great experience, and a knowledge of the elements of all sciences, to study and conduct it to perfection! But if retired shopkeepers are the men for the present emergency, has Sir James Graham an army of them sufficiently numerous to occupy the abandoned territory? For before Sir James Graham's remedy—if its application is to be coextensive with the malady—can come into operation, he presupposes the extermination of the present race of farmers. Let the tenant-farmers of the nation ponder his words. "Small traders of little capital in country towns are waiting the moment to make investment in farms." Waiting what moment? Why, the moment, gentlemen, when you are ruined, and are to be driven, with your wives and families, from your homes. Any sentiment more bitterly unfeeling, or more mockingly cruel, was never vented within the walls of Parliament; and, to our taste, it was made more loathsome by the oily compliments to English farmers with which it was garnished. The ex-Minister, however, is evidently deceiving himself, and he will find that retired shopkeepers are not such simpletons as he fancies. The "small traders in country towns," that *very section* of the mercantile community who are *notoriously* suffering *most* from the inroads of Free Trade, are to invest their remaining capital in farming, *that particular business* which has received the *deepest* wound from Free Trade! And this is the sheet-anchor of Sir James Graham's hope; and this is a sample of Free-trade wisdom from the lips of its greatest champion! No doubt there may be small traders with little capital in the commercial world who are fools; but we begin to believe that there may be great *traders*, with little principle, in the political world, who, wily though they be, may reveal the cloven-foot, and defeat

their aspirations after place and power. Let us be thankful, whatever befalls us, the English O'Connell with his threat of rebellion cannot harm us, and the fate of the Grahamite faction is sealed! The retired shopkeepers, instead of adopting the disinterested advice, will more probably purchase snug villas; thus indulging their passion for the pleasures of a country life more innocently than by waiting for the ruin of the farmers; and thus we believe, too, that their "little capital" will be as safe as under the self-suggested guardianship of Sir James Graham.

Sir James Graham has no doubt of the present prosperity of agriculture, because his rents are paid. (See *Times*, 14th Feb.) This is enough for him, and the rest is all "but leather and prunella"—the mere constitutional croaking of the agricultural body. We should have liked better to have heard the views of Sir James Graham's tenantry on this department of the subject than his own. With the value of agricultural produce reduced thirty-five per cent, is the reward of his tenants' industry undiminished, and their capital unimpaired? What a draft upon the agricultural ignorance of the present House of Commons, and what a contempt for the understanding of his auditors, did this bold man evince by hazarding such an assertion! Any inquiry into the sources whence his rents were paid was not thought necessary by Sir James; and we believe that there are many more amiable men than the Laird of Netherby who are solacing themselves with the same view. Their rents are paid—their grass is letting—they are content—they eschew inquiry. The struggling farmer is pinching himself and his family, and is dipping his hand into the hard-earned savings of former years, in order that he may meet the factor. But examination would be unpleasant—dangerous; and any expression of sympathy even with the sufferer, would imply a distrust of the blessings following in the wake of the Free-trade policy. It might almost seem that many of our landed proprietors were set at present upon acting the part of the silly bird of the desert, which hid its head in the sand that it might not see the destruction that was coming. The Newark election, in which the nominee of the landlords was unceremoniously set aside by the farmers, and a man of their own choice selected, might have taught the owners of the soil that condign punishment may eventually await wilful ignorance or criminal neglect of the present duties of their station, and indifference to the condition of those whose prosperity is indissolubly associated with their own. If degradation from

that position of influence and power which they have hitherto so justly and naturally possessed be thought no evil, we confess, that we would wish to see that great interest—whose importance to the welfare of the State we have ever vindicated to the best of our power—selecting a more graceful and magnanimous mode of self-destruction. The retention of an undiminished rent-roll Sir James Graham has set his heart upon, as is unblushingly implied in the speech already quoted—but this will not be allowed him; and if there be any meaning or sincerity in his own creed, he dares not ask it. The Free-trade press unanimously assert—and unanswerably upon their principles, and Sir James Graham's own—that the only and the necessary termination of agricultural distress must conduct to a reduction of rent; and the Free-trade press is stronger than Sir James Graham.

The *Times* contends (or rather did contend, for here a delicate attention to the use of the tenses should be observed) so earnestly for the reduction of rent as the only possible solution of the difficulty, that one must conclude that the journalist believes what he writes. We have not sworn at the altar to fight the battles of the landowners—but if it were possible so to arrange it, we have yet to learn upon what principle they are to be singled out as the sole subjects for plunder. But, as the Free-trade press have resolved upon the reduction of rent as the right settlement of the question, it may be well for a moment to consider what this position amounts to. It is usual to make a threefold division of the whole annual proceeds from a farm. One-third goes to the landlord in name of rent; one-third meets the expenditure connected with the farm; and the remaining third goes to the tenant, as the interest of his invested and floating capital, and as the reward of his industry. We believe this premise cannot be challenged as unfair. But it is universally admitted now, that the annual value of the whole agricultural produce of the farm is reduced immensely by the compulsion of an Act of Parliament. For the present, let us say that the reduction amounts to 30 per cent. Then, by what would seem an equitable distribution of this loss over the three parties, the rent of the landlord, the wages of the agricultural labourer and the other industrial classes dependent on agriculture, and the profits of the farmer, should each be 30 per cent less—that is, each of the three parties should have 30 per cent less to pay the taxes with, and to spend upon the home trade of the nation. This would seem the natural issue of the

diminished agricultural revenue, and, when things find their level, to this pass they will infallibly arrive. But no: the Free-trade press have determined that the agricultural labourer shall not suffer, and that the profit and comfort of the tenant-farmer shall not be impaired. It is solely and exclusively a question of rent, say they. Well, be it so. Then, in that case, the rent must be reduced, not 30, but 90 per cent; for upon this condition alone can the agricultural labourer and the tenant-farmer be left uninjured. We defy Sir James Graham, or any Free-trade philosopher, to escape from this conclusion. The existing case may be illustrated in another way. Land at 40s. per acre should produce three rents, while inferior land, at 20s. per acre, as every competent judge will allow, should produce four rents. A farm of 200 acres, at 40s., gives a rent of L.400, and should produce a gross revenue of L.1200. Take wheat now as the test. The farm was rented, and the capital invested, when that grain averaged 56s. per quarter. But wheat has fallen one-third in price, and the L.1200 is reduced to L.800—that is, the rent has disappeared. On the poorer farm of the same extent, at 20s. per acre, with four rents to be raised, it will be found, upon the same data, not only that the rent has vanished, but L.67 in addition. The force of this demonstration can only be evaded by denying the premises upon which it is based; but, indeed, so impregnable is our case, that we might consent to any modification of the premises that the most besotted admirer of Free-trade results could dare to ask, without imperilling materially the strength of our position. And yet Free-trade proprietors are talking gravely of a revaluation of their acres, and of a readjustment of their rent, and of a relinquishment of some 10 or 15 per cent of their rentals, as the grand and all-sufficient remedy for all the sufferings under which the agricultural interest is now struggling, although even to this point of economic magnanimity Sir James Graham has not reached. The ex-minister must have been filled with amazement when he heard the Queen lamenting, not only that the occupants, but that the "owners of the soil" were suffering. His own experience refuted the rash assertion; and, had it been otherwise, we may conjecture that the orator would have spoken a different speech. Personal and pecuniary loss has been known to sharpen the wits and to clear the reasoning faculty in a remarkable manner. On the other hand, the Free-trade press philanthropically insist that the agricultural labourers not only are not suffering, but that they *shall not* suffer. It is necessary for the latter class to uphold this dogma; for if they admitted that the wages of the labourer must

diminish, sooner or later, in proportion to the value of their work—that is, in proportion to the value of the produce, they are instrumental in raising—then instantly the popular delusion which they have so assiduously cherished would be exploded, and their fame as the friends of the poor would be dissipated. We are ready to admit that only in certain localities has the evil reached the agricultural labourer; and where it has not, of course the tenant-farmer is suffering not only his own share of the infliction, but that which should properly fall upon his dependants. It has been erroneously supposed by many that the agricultural suffering would quickly extend itself to the industrious poor: we never saw any good reason for supposing so. The farmer cannot, like the spinner of flax or cotton, stop his mills, and pause in his work, and dismiss his servants, or put them on short time; he must proceed, at whatever risk, and hire his labourers at what they can be got for. The fact that the agricultural labourers are not universally in distress is undoubtedly blinding many honest men to the real position of the country, while it is enabling Parliamentary orators, and Whig *snipper-snappers* from the hustings, to point to the present comfort of this class as a proof of the success of the Free-trade policy. But can these gentlemen be honest? Upon what principle of political economy or common sense can the farm-labourer continue to receive the same wages as formerly, when the value of the produce of his labour is reduced one-third? It is certainly a grievous trial of the patience to listen to Sir J. Graham lending his talents to the support of a delusion so very cruel, and so very palpable.

But a truce to this strain. A very pleasant book has most innocently led us into very unpleasant themes. Believing that the reign of delusion is drawing to a close, and that a spirit of juster legislation will soon prevail in the councils of the nation, and that the time draws nigh when the occupants and owners of the soil may prosecute their affairs with better hopes than they at present have, of enjoying a fair reward for their toil and enterprise, we again earnestly commend to their attentive perusal *The Book of the Farm*. To the landed proprietors it ought to be invaluable, if they wish to be qualified to discharge those duties which Providence has laid on them, and which they owe to their tenantry, to the agricultural poor, and to the nation. While the rights of every petty interest are pled in Parliament by parties who prove their intimate acquaintance with the disadvantages—fictitious or real—under which it labours, the ignorance prevailing, in the present House of

Commons, on the subject of agriculture, and on its various bearings in reference to national prosperity, is so flagrant as to have excited universal remark. A large body, however, of that august assembly are country gentlemen, and the charge might imply a reflection on their education and attainments. But it would be base ingratitude to forget that patriotic band of country gentlemen in Parliament, as well as out of it, who, in the face of discouragements more disheartening than a great party were ever subjected to before, have fought the battle of just legislation so gallantly, patiently, and prudently—who have identified themselves with the suffering tenantry—and are now contending, with brighter hopes and revived energies, for a fair protection to native and colonial industry, as the only mode in which the labouring poor of the land can *permanently* enjoy the just reward of their industry, as that system of policy by which alone the taxes can be paid, the national honour kept untarnished, and the constitution and the monarchy saved from dilapidation. There are many others for whose return to their right mind we have waited patiently. We believe that in their case an ignorance of agricultural affairs may be the source of their present apathy. To all gentlemen, however, living in the country, although they may have no stake in its soil, we recommend Mr Stephens' work, as containing most agreeable reading. We do not say that, from such, a continuous perusal is required. They may intercalate an agricultural season from *The Book of the Farm*, now with the corresponding season from the "Bard of the Seasons," and now with an eclogue from Virgil. The pleasures of a country life will thus be infinitely multiplied; for, startling although the paradox may be, there are multitudes resident in rural parts who look ignorantly on rural sights, and have no knowledge of rural employments, and no sympathy with rural habits, and who know not in reality *how to live in the country*. Mr Stephens' work—or a better, if it can be got—ought, of course, to be in the hands of every factor and land-steward, otherwise they must be unfit for their business; and it ought to have a place in every parish library, that it may be accessible in the winter nights to the agricultural labourers. It is particularly, however, the tenant-farmer's manual, if he is to keep pace with the progress of his art. He may think it costly, but not with reason, if he considers that it comprises an agricultural library in itself. The thrifty and buxom housewives of our homesteads, too, will find admirable instruction in *The Book of the Farm* regarding the important branches of duty that fall to their charge. Mr Stephens is copious regarding everything touching the

management of the dairy. Indeed, our author seems somewhat *recherché* on the matter of dairy produce. We acquiesce in his approval of the deliciousness of new-made, unwashed butter, churned from sweet cream—a luxury which our southern friends never tasted. "Such butter," says Mr Stephens, "on cool new-baked oatcake, overlaid with flower virgin honey, accompanied with a cup of hot strong coffee, mollified with crystallised sugar, and cream such as the butter is made from, is a breakfast worth partaking of, but seldom to be obtained." Most excellent sir! on such terms we shall breakfast with you on the morning of Saturday se'nnight, provided you add to your matutinal *cuisine* a veritable "Finnan" and a mutton ham of the true flavour, (if possible, let it be from one of the Keillor four-year-old Southdowns;) for we have long conscientiously entertained the opinion of a late ingenious professor of Church History in our metropolitan university, "that Edinburgh eggs are not to ride the water upon!"

AN EVENING WALK.

BY THOMAS AIRD.

The Patriarch mild, who mused at evening-tide,
Saw blessings come: they who with ordered feet
Go forth, like him, their blessings too shall meet,—
Beauty, and Grace, and Peace, harmonious side by side;

Whether the down purpled with thyme they tread,
Woodland, or marge of brook, or pathway sweet
By the grave rustling of the heavy wheat,
Singing to thankful souls the song of coming bread.

The restless white-throat warbles through the copse;
High sits the thrush and pipes the tree upon;
Cloud-flushed the west, a sunny shower comes on;
Up goes the twinkling lark through the clear slanting drops.

In straight stiff lines sweet Nature will not run:
The lark comes down—mute now, wings closed, no check,
Sheer down he drops; but back he curves his neck;
Look, too, he curves his fall just ere his nest be won.

Here stands The Suffering Elm: in days of yore
Three martyrs hung upon its bending bough;
Its sympathetic side, from then till now
Weeping itself away, drops from that issuing sore.

Dryads, and Hamadryads; bloody groans,
Bubbling for vent, when twigs are torn away
In haunted groves; incessant, night and day,
Gnarled in the knotted oak, the pent-up spirit's moans;

And yonder trembling aspen, never still,
Since of its wood the rueful Cross was made;—
All these, incarnated by Fancy's aid,
Are but extended Man, in life, and heart, and will.

Your eye still shifting to the setting sun,
The diamond drops upon the glistening thorns
Are topazes and emeralds by turns;
Twinkling they shake, and aye they tremble into one.

Clouds press the sinking orb: he strikes a mist
Of showery purple on the forest tops,
The western meadows, and the skirting slopes;
Down comes the stream a lapse of living amethyst.

Beauty for man, O glory! yet how vain,
Were there no higher love to correspond,
Lifting us up, our little time beyond,
Up from the dust of death, up to God's face again.

The Word apart: Nature ne'er made, in whim,

An organ but for use: our longing hope
Of life immortal, like our hand, has scope
To grasp the things which are: that life is thus no dream.

We tread on legends all this storied land:
Here flows a ferry through the mountains black
With pinewood galleries far withdrawing back;
Man's heart is also here, and dwarfs those summits grand:

The virgin martyrs, half the ferry o'er,
By ruthless men were plunged into the tide,
Singing their holy psalm; away it died,
Bubbling in death. The moon a blood-red sorrow wore.

And aye, they tell, when, wan and all forlorn,
Sickening she looks upon our world of wrong,
And would be gone for ever, far along
The mournful ferry dim that dying psalm is borne.

Yon peasant swarth, his day of labour done,
Pipes at his cottage door; his wife sits by,
Dancing their baby to the minstrelsy:
To temperate gladness they their sacred right have won.

Rest after toil, sweet healing after pain;
Repent, and so be loved, O stubborn-viced—
The Tishbite girt severe runs before Christ:
Such is the double law complete to mortal men.

Yon lordly pine bends his complying head
To eve's soft breath, and the stupendous cloud
Shifts silently: Man's world is fitliest bowed
By power when gently used: Force not, love thou instead.

One cool green gleam on yonder woodland high,
And day retires; grey twilight folds with dew
The hooded flowers; in gulfs of darkening blue
The starry worlds come out to Contemplation's eye.

Home now to sleep. No part in all man's frame
But has its double uses, firm to keep,
Help this, round that, and beautify: of sleep,
Complex of sweet designs, how finely 'tis the same.

Touched with the solemn harmonies of night,
Down do we lie our spirits to repair,
And, fresh ourselves, make morning fresh and fair;
Sleep too our Father gave to soften death's affright:

In sleep we lapse and lose ourselves away,
And thus each night our death do we rehearse.
O, at the last may we the oblivion pierce

Of death, as aye of sleep, and rise unto the day.

MODERN STATE TRIALS.¹⁰

PART V.—THE ROMANCE OF FORGERY—

Concluded.

"ALEXANDER HUMPHREYS, or Alexander, *pretending* to be Earl of Stirling," said Lord Meadowbank,¹¹ addressing his prisoner, on his being first placed at the bar, "you have been served with an indictment charging you with the crimes of forgery, and of feloniously using and uttering as genuine, certain documents therein described, and alleged to have been forged and fabricated, you knowing them to be so. Are you guilty, or not guilty?"

"Not guilty, my Lord," replied the prisoner, standing beside his friend Colonel D'Aguilar. But now occurs the question—how was he to be tried?—as a peer of Scotland, or as a commoner? If as a peer, the court before whom he stood was incompetent to try him; for he was entitled, by the Treaty of Union, as a peer of Scotland, to be tried as peers of Great Britain are tried—viz., in the Court of the Lord High Steward; and the mode of procedure is that prescribed in 1825 by Statute 6 Geo. iv. c. 66, which required the Scottish judges to be summoned and to sit with the English judges, and according to the law of Scotland, [pp. 5, 6.] This privilege, however, as will be presently seen, the prisoner waived. Then came another question: was he to be tried as a "*landed* man?"—by which is meant a landed proprietor. It is a very ancient privilege of landed men, by the Scotch law, that they should be tried only by their peers—*i.e.*, their brother landed proprietors. In process of time, however, this right has been so far modified as to entitle the prisoner to a *majority* only of his landed brethren. This right also, as will shortly be seen, the prisoner waived—having probably no pretence to the possession of any lands in Scotland, except such as he claimed as Earl of Stirling. To meet any possible difficulty, however, on this score, two lists of assize had been prepared—respectively consisting of

"*landed men*" and common jurors, and "*special jurors*" and common Jurors: the former to be adopted "if the said Alexander Humphreys claimed, and was entitled to, the privilege of a landed man;" the latter, "if he did *not* claim, or was *not* entitled to, the privilege of a landed man."

After the prisoner had pleaded not guilty, the clerk in court read aloud the *defences* which, according to the procedure in Scotland, had been lodged in court for the prisoner, signed by his two counsel. They were entitled "Defences for Alexander Alexander, *Earl of Stirling*,¹² against the indictment at the instance of her Majesty's Advocate."

These Defences were comprised in two paragraphs. The first stated that, as Lord Cockburn's interlocutor, though not final, had decided against the prisoner's claim to be the heir of the Earl of Stirling,¹³ "he was advised that he was not in a condition to plead the privilege of peerage; but was bound to acknowledge the competency of that court to proceed under the indictment before it." The second proceeded thus:—

"The panel pleads not guilty of the libel generally; and, even particularly, he denies that he had the slightest ground to suspect that all, or any, of the documents libelled on were forged or fabricated. He produced them under legal advice, in the belief of their being genuine, and useful for the support of his interest."

"A third paragraph consisted of an application to postpone the trial, on the ground that the prisoner was not prepared for it, as *one of his counsel* and his agent had gone to London and Paris to make inquiry as to several of the witnesses for the Crown, and such further investigation as might be necessary for his defence." The words which we have placed in italics indicate a course of procedure altogether at variance with that adopted at the English bar.

As soon as their Defences had been read, the prisoner's counsel rose and said, "My lords, I do not mean to claim for the panel the privilege of a landed man; nor do we intend to state any objections to the relevancy of the indictment." By "relevancy" (a technical term in Scotch law) is signified "the justice and sufficiency of the matters stated in the indictment to

warrant a decree in the terms asked;"¹⁴ and, according to the criminal law of Scotland, this objection must be taken, if at all, before the trial. If it be not, the prisoner cannot make it the subject of arrest of judgment by the court, but must refer it to the law advisers of the Crown, after the sentence has been pronounced by them, to have such weight attached to it as may be deemed proper, with a view to pardon or mitigation of punishment.¹⁵

"Let the relevancy of the indictment be determined," said the Solicitor-General, "by your lordships pronouncing the usual interlocutor."

LORD MEADOWBANK.—"Alexander Humphreys, or Alexander, attend to the interlocutor of the court," which the clerk read as follows:—

"The Lords Commissioners of Justiciary find the libel RELEVANT to infer the pains of law, but allow the panel a proof in exculpation and alleviation; and in respect that the panel has by his counsel waived his right, if he any have, to be tried by a jury, of which the majority shall consist of landed men, remit the panel, with the libel as found relevant, to the knowledge of the *ordinary assize*."

Lists of all the witnesses and documentary proofs, on both sides, were, as it would appear, interchanged; and the trial having been postponed from the 3d to the 29th April 1839, on the latter day it commenced—not however, as in England, with a preliminary statement on the part of the prosecutor of the course of expected proof, but with the evidence itself in detail. After that on both sides had been adduced, the counsel for the Crown addressed the jury, and then the counsel for the prisoner; after which Lord Meadowbank summed up. We beg to say that we think the English course of procedure greatly preferable to the Scottish, in commencing the trial with a temperate and lucid statement of the case intended to be made out by the Crown, enabling both the Court and the jury—but especially the latter—to obtain an early clue through the labyrinth of oral and documentary proof, to see the drift of it, and appreciate, in going along, the significance of what is being done. In the present case, for instance, the jury were plunged instanter into a series of details of somewhat complicated legal proceedings, and legal and other documents: the Solicitor-General feeling the necessity many times of interposing, to intimate that "the object of *this* or *that* evidence was to show

so and so," &c. &c. And, indeed, if the jury really saw their way with only middling clearness through the evidence, *as it was being adduced*, they were a far shrewder and more experienced jury than it has been our lot to see for many a long year, even at Guildhall or Westminster. In the present case, a half-hour's calm preliminary statement, by the Solicitor-General, of the points of the charge, and the application to them of the evidence, would have greatly assisted the jury, possibly even the Court, and, long afterwards, ourselves. In despair, we leaped out of the intricate evidence into the speeches of counsel, and the summing up of the judge, afterwards recurring to the evidence and appendices. At length we found ourselves on sure ground, and in a clear atmosphere; and grudged not the effort we had made to overcome the obstacles of which we have been complaining, and also the difficult technicalities of Scottish criminal law procedure.

It will be recollected that the indictment embraced three distinct classes of alleged forgeries—the excerpt charter of *Novodamus*, the Le Normand packet, and the De Porquet packet. To establish the "using" and "uttering" of these instruments, evidence was given of their having been adduced, on the part of the prisoner, in the various Scottish courts in which he had from time to time asserted, and endeavoured to maintain his claims. Lord Cockburn's important judgment of the 10th December 1836 was also put in evidence, as were also the examinations of the prisoner, some of his correspondence, and the instruments charged by the indictments to be forgeries. Let us take these latter in their order; and—

I. THE EXCERPT CHARTER OF *Novodamus* OF THE 7TH DECEMBER 1639. Was this a genuine or a forged document? The acute and learned scrutiny to which it was subjected elicited remarkable and most decisive results. We know a little more than was disclosed to the Court—namely, that the mysterious discovery of this "excerpt" was communicated to the prisoner from Ireland by his indefatigable agent, Mr Banks, on the 17th March 1829. All that was proved before the Court was, that the prisoner delivered it in that year to his law-agents, who immediately commenced proceedings in the Scotch courts to "*prove its tenor*." Let it be observed, that "this most suspicious scrap of writing," as the Solicitor-General styled it,¹⁶ professed to be only an "excerpt" of a lost charter of King Charles I., dated the 7th December 1639—not an entire copy, but only "an abridged copy;" and the

exigencies of the prisoner's case had required that *that* identical excerpt should have been in existence at least as long ago as the year 1723,¹⁷ since it bore an indorsement¹⁸ by "Thomas Conyers," attesting its authenticity, dated the 10th July 1723. It will be impossible, however, to appreciate the force of the delicate but decisive evidence brought to bear upon this unlucky document, unless we have a distinct idea of the different stages of progress through which a royal charter would have to pass in the year 1639. They were explained at the trial by several learned and experienced officials; and we have taken some pains to clear away technicalities, and present their evidence briefly and popularly. The stages, then, through which a royal charter had to pass were three.

First came the SIGNATURE. This was not, as the word would ordinarily import, and in England, a mere name signed, or mark, but an entire document, constituting the foundation of the proposed charter, and containing its essential elements. It is drawn up in English by a Writer to the Signet, and brought by him, on a given day, to a Baron of the Exchequer to be examined, in order to ascertain that it is correct, especially as to the "*reddendo*," or annual feu-money due to the Crown. On being satisfied of its accuracy, the Baron marks the signature as "revised;" and in due time the sign-manual is affixed to it. It is then complete—is recorded in the Exchequer Record—and retained by the Keeper of the Signet. There is subscribed to it only the date, and the words, "At Whitehall, [] the day of []."

Secondly, Warranted by the possession of this revised "signature," the Keeper of the Signet issues a "*Precept to the Privy Seal*," which is simply a Latin translation of the English signature, and is recorded in the Privy Seal Office. That office then issues this precept to the Great Seal; and it is to be noted that this Privy Seal Precept has subscribed to it the words, "PER SIGNETUM," which seems to be an abbreviation of the words, "*per preceptum datum sub signeto nostro*."

Thirdly, As soon as this Privy Seal Precept has reached the Chancery Office, the functionaries there draw up formally, and *in extenso*, THE CHARTER, which is sealed with the Great Seal; the Privy Seal Precept on which it is grounded either remaining in the Chancery Office, or being

lodged in the General Records of Scotland. This completed Charter, alone, has a testing clause; and it is the Privy Seal Precept only which bears, as we have seen, the words "*per signetum*."

See, then, the origin, progress, and completion of a Royal Charter in 1639—SIGNATURE; PRIVY SEAL PRECEPT; CHARTER; each having its appropriate depositary or record—the Signet Office, the Privy Seal Office, the Great Seal Office; to which, indeed, may be added a fourth, the COMPTROLLER OF EXCHEQUER'S REGISTER, where also was recorded every instrument of the above description, to enable that officer to account to the Crown for the feu-duties. These four old registers, or records, are all completed from periods long anterior to the year 1639, down to the present day, with the exception of a *hiatus* of twelve leaves at the commencement of the fifty-seventh volume of the Great Seal Record; but the contents of these twelve leaves were clearly ascertainable from the indexes of other records. "It is the boast of this country," said Lord Meadowbank, in summing up, to the jury,¹⁹ "and always has been, that its registers have been kept with a regularity unknown elsewhere."

If, therefore, there ever had been such a charter as that of which the document under consideration professed to be an excerpt, that charter ought to have been found *in every one of the four* records or registers above mentioned.²⁰ Add to this, that William Earl of Stirling was himself, at the time, the Keeper of the Signet,²¹ and also "a man of talent, and attentive to his own interests—not likely to have received grants of such unusual importance as those contained in the charter in question, without seeing them properly carried through the seals."²²

Now for the excerpt itself, and its aspect. It was written on several single leaves of paper, not numbered, apparently cut recently out of some book, and stitched together, the outside leaf being brought round and stitched down on the remaining leaves. The colour was a uniform deep brown—equally so underneath the margin covered over at the stitching. There were ruled red lines round the pages. The writing appeared "fresh"—at all events, not so old as the paper; and was not in a Scotch chancery-hand, or any hand used in the Register Office, but like that used in engrossing deeds in England and Ireland. The language of the excerpt was Latin—but such

Latin! and it extended to about thirty English common-law folios, containing seventy-two words each. At the beginning of the charter, on the right-hand side, were the abbreviations, "REG. MAG. SIG. LIB. LVII."—*i.e.*, "*Registrum Magni Sigilli, Liber LVII.*"

The only portion of the excerpt with which we shall trouble the reader *in extenso*, is the conclusion—the testing part—which (especially the part in italics) is worthy of the utmost attention; and we adopt the translation used at the trial:—"Witnesses: *the most reverend father in Christ and our well-beloved councillor, John, by the mercy of God Archbishop of St Andrew's, Primate and Metropolitan of our kingdom of Scotland, our chancellor; our well-beloved cousins and councillors, James, Marquis of Hamilton; Earl of Arran and Cambridge; Lord Aven and Innerdaile; Robert, Earl of Roxburghe; Lord Ker, of Cesford and Casertoun, Keeper of our Privy Seal; our beloved familiar councillors, Sir John Hay of Barro, Clerk of our Rolls, Register, and Council; John Hamiltoun of Orbestoun, our Justice-Clerk; and John Scot of Scotstarvet, Director of our Chancery, Knights. At our Court of Quhythall, the 7th day of the month of December, in the year of God 1639, and of our reign the 15th year.*

[GRATIS]
Per Signetum."

On the back of this document was written—"Excerpt from the original charter to William, Earl of Stirling, 7th December 1639. T. C." [*i.e.*, Thomas Conyers.] This indorsement was also alleged in the indictment to be a forgery. Here, then, we have an "excerpt" or "abridged copy" of a royal charter, dated the 7th December 1639, granted by King Charles I. to one of his most distinguished subjects, conferring high dignities and vast possessions; a charter yielded to the anxious importunity of the Earl in his old age, "when labouring under great dejection of spirits, after losing three of his sons, who had given him the highest hopes, and fearing, from the declining health of two of the survivors, that his honours might, at no distant period, pass to a collateral branch of his family."²³ And this Earl, too, the head of the office in which the charter originated. Now, FIRST, the records of every one of the four departments above mentioned—viz., the Signature Record, the Comptroller of the Exchequer's Record, the Privy

Seal Record, and the Great Seal Record—had been rigorously searched, *and not the faintest trace of such an instrument appeared in any of, them!*—it being sworn that, had it ever existed, it must have been found in ALL! "This might possibly have been accounted for," said the Solicitor-General,²⁴ "had there been but one register only; more especially if a blank had occurred in that register, through the obliteration, imperfection, or loss of a volume, or part of a volume. But where there are four independent registers, and these all concurring to supply, in the fullest detail, the necessary evidence as to all *other* charters, [of which various instances were proved at the trial,] and when you find that *this* charter is not recorded in *any one* of them, it is quite impossible to believe—it would really be asking too much of credulity itself to believe—that such a document could ever have existed." If this instrument were the handiwork of a forger, it may be reasonable to suppose him capable of appreciating the efficacy of the negative evidence which might be brought against him, and to endeavour to supply it. This brings us, SECONDLY, to the memorandum in the margin of the first page of the excerpt—*i.e.*, *Reg. Mag. Sig. Lib. LVII.*—which meant that the charter itself was to have been found "in the fifty-seventh volume of the Register (or Record) of the Great Seal." We have already seen²⁵ that, in point of fact, twelve leaves, at the beginning of *that volume*, were amissing; and the suggestion, or rather assertion, of the prisoner, when he commenced his legal proceedings to prove the tenor of the missing charter, was, that it was to have been found in one of these twelve leaves, "which had perished, or disappeared—that being a matter of public notoriety, and was so observed by the Lords of Council and Session in their return of the 27th February 1740, to an order of the House of Lords of the 12th June 1719, respecting the state of the Peerage in Scotland."²⁶ Here, then, are only *twelve* leaves missing; and on referring to one of the writings indorsed on the map of Canada, (in the Le Normand packet,) the writer stated he had *seen* the charter, and "it extended over *fifty* pages of writing."²⁷ On this subject, Lord Meadowbank proposed the following question to the jury—"Putting aside the evidence of this index, could you have believed, when there is no evidence or trace of this charter in the volume where it should be found, that it could, *out of its place*, have been crammed into the twelve pages that are lost, when the prisoner's own evidence tells you the charter extended to fifty-eight?"²⁸ To proceed, however—What will the reader

suppose was proved at the trial? First, two ancient indexes of the missing twelve pages of vol. lvii. were produced, unerringly indicating the charters which had stood recorded there, and among which was *not* the charter in question, but only those of date *subsequent* to the year 1639; while all the charters of that year 1639 stood regularly recorded in the previous—the fifty-sixth volume; and among them, also, was *not* to be found the charter in question. Mr George Robertson, one of the Joint-Keepers of the Records, thus certified on oath: "I have searched the principal record of the fifty-seventh volume of the Great Seal Register, and at the beginning of the said fifty-seventh volume, twelve leaves have been destroyed or lost. The charters originally recorded in these missing leaves are, however, ascertained with precision from two ancient indexes of the Great Seal Record. I have examined these, and can state as the result, that the twelve leaves now lost did not contain any charter, diploma, patent, nor other grant, in favour of William, Earl of Stirling, nor of any Earl of Stirling, nor of any person of the name of Alexander." Still further, however: the words on the margin, "*Reg. Mag. Sig. Lib. LVII.*," purported to have been written there by the framer of the excerpt, in the year 1723; and three experienced official gentlemen declared their confident opinion, that no such marking was coeval with the making of the excerpt itself. It was established at the trial, that this mode of referring to the Great Seal Records was *quite a modern one*, commencing with the year 1806 only: a fact proved by the very author of the arrangement, and his assistant; by whom, in the latter year, the Records were re-bound, and the titles made uniform, for facility of reference, in lieu of the loose and discordant methods of reference till then in use! Other experienced officials proved that till the year 1806 no such mode of reference as "*Reg. Mag. Sig.*" existed, and they gave specimens of the former mode: *e. g.* "*Chart. in Archivis,*" appeared in a law book of 1763; and in a subsequent edition, in the year 1813, the reference was altered to "*Mag. Sig.*" If, therefore, the "excerpt" were a modern forgery, it would almost appear as if the fabricator, aware of the missing leaves of Vol. LVII., but not knowing *how very recent was the lettering on the back*—"Reg. Mag. Sig."—had taken it for granted that it was coeval with the original formation of the volume, or at least had been there for a century—viz. since 1723. But if this reference—"Reg. Mag. Sig. Lib. LVII."—were a forgery, it must have been a very modern one, necessarily *later* than the year 1806, the date of Mr Thomson's rebinding of the Record, and changing the titling. But

we have seen that the prisoner had accompanied his father to France in the year 1802, and did not return to England till 1814; and in the subsequent year told his own agent, Mr Corrie, that he had no documents to support his claim. Is it a fair inference from these dates that, down to at least the year 1815, the famous excerpt was not in existence—or at least unknown to the prisoner? So much for the negative evidence that any such genuine document as the alleged Charter of 7th December 1639 had ever existed. But,

THIRDLY, the excerpt itself seemed to furnish a most conspicuous and glaring demonstration of spuriousness: we allude to the alleged attestation of the Charter by ARCHBISHOP SPOTTISWOODE, in the capacity of "OUR CHANCELLOR" of the kingdom, and as such, keeper of the Great Seal. Spottiswoode, the Archbishop of St Andrews, was undoubtedly for a considerable period Chancellor of Scotland; and his name is found in the Records as an official witness to all Charters from the Crown, passing the Great Seal of Scotland during the time that he held it. In the excerpt Charter, he appears in that capacity at the alleged date of the instrument—viz, the 7th December 1639; but, behold! not only had he ceased to be Chancellor on the 13th November 1638, *but he had actually died on the 26th November 1639*—that is, eleven days before that on which he was made to attest the alleged Charter of Novodamus! These facts were proved, beyond all doubt, both directly and collaterally, as, for instance, by an instrument of a nature similar to that before the Court, dated only four days afterwards—namely the 11th December 1639—a Charter in favour of the City of Edinburgh, and attested, &c., not by "John, Archbishop and Chancellor," but by his successor, the Marquis of Hamilton, (whose appointment on the 13th November 1638 was proved,) and this very "William Earl of Stirling and Canada," and others: all of whom were also witnesses, on the same day, to another charter, to Heriot's Hospital. Here, then, was a great Charter, making under the Great Seal magnificent grants to a Scottish nobleman, and attested by a non-existent Chancellor, whose temporary successor had been installed in office thirteen months previous to the date of the Charter! Mr Swinton acutely points out²⁹ the source of this blunder, assuming the excerpt to be altogether a forgery. Archbishop Spottiswoode, as has been seen, ceased to be Chancellor on the 13th November 1638, and died on the 26th of the ensuing November—*i.e.*

eleven days before the date of the alleged Charter. Now, from the date of the Archbishop's resignation, till the appointment of the Earl of Loudon as Chancellor in 1641, the Great Seal was in commission, the head commissioner being the Marquis of Hamilton. But it singularly happens, that, in the catalogues of the Scottish Chancellors appended to Spottiswoode's History, and other works, the list during the reign of Charles I. and the Commonwealth, is given as follows:—

"1622, George Hay, Earl of Kinnoul.
1635, John Spottiswoode, Archbishop of St Andrews.
1641, John Campbell, Earl of Loudon.
1660, William Cunninghame, Earl of Glencairne."

——no mention being made, nor any notice taken, of the interval between the resignation of the Archbishop and the appointment of the Earl of Loudon. From this it may be inferred that the fabricator of the document, if it were fabricated, took it for granted that from 1635 to 1641, and consequently in the year 1639, falling within that interval, the Archbishop was Chancellor of Scotland. But again—Is there any reason assignable for the supposed fabricator having pitched on the particular date of 9th December 1639? Yes! In Crawford's Life of the Archbishop, the death of that prelate is erroneously alleged to have occurred on the 27th *December* 1639!—*i.e.*, just eighteen days after the completion of the alleged Charter.^{[30](#)} These really seemed rather awkward facts! But,

FOURTHLY, there was apparently another great blot pointed out by the lawyers. Immediately after the above-mentioned *testing clause*, followed the words "*Gratis*.—PER SIGNETUM."^{[31](#)} Now, it has been seen that the testing clause is the conclusion of only a *completed Charter*. This "excerpt," therefore, if taken from any document, must have been taken from a completed Charter. It could not have been taken from the Signature, nor the Signet Precept, nor the Privy Seal Precept, for in none of these instruments could such a clause appear. But in addition to this testing clause, appear the words "*Per Signetum!*" which are never to be found in any charter at all, but only in the Privy Seal Precept! So that here was a document containing, on the one hand, words (the testing clause) which are to be found in only a completed charter, and which could not exist in a Privy Seal Precept; and,

on the other hand, certain other words (*Per Signetum*) never to be found in a completed charter, but only in a Privy Seal Precept! It was accordingly sworn unhesitatingly by all the professional witnesses, even on the strength of these conclusive elements of intrinsic evidence alone, that the document before the Court *could not be* an excerpt, or copy, of any authentic writ of any description whatever, known in the law of Scotland. There seems some little force in the Solicitor-General's observation on this part of the case: "Gentlemen, is there not here, then, the clearest and most satisfactory evidence that this is not, and cannot be, an excerpt from any real or genuine document? There is an incongruity about it, which shows it could not have been copied from any document that ever existed. The writer of it—whoever he was—may have had a sort of glimmering of what it ought to have been; but still, in his ignorance, he has made a monster of it. It is utterly impossible, looking merely to the intrinsic evidence, that it could be the document which it professes to be."

FIFTHLY, Not satisfied with these rigorous assaults upon the genuineness and authenticity of this unfortunate document, the Scotch lawyers detected, as they considered, several serious *intrinsic* evidences of spuriousness. *First*, the alleged charter professed to convey estates which had *never belonged to the Scottish Crown*—viz., lands, provinces, and territorial rights in New England. "It is not possible," said Lord Meadowbank, and the professional witnesses supported him, "that a charter granted by a king of Scotland could convey—or be granted, as if it had conveyed any property not belonging to the Crown of Scotland. That such a SIGNATURE should have passed the Barons of Exchequer, and their officers, is beyond all belief:" for it must be remembered, that the "Signature" is, in its first stage towards a charter, submitted to a Baron of Exchequer, to be "revised," before the sign-manual is affixed to it. This is, undoubtedly, a fact lending great weight to any really inconsistent or objectionable provisions in the "Signature," or subsequent charter. *Secondly*, In Crown charters of resignation, to which that in question professed to belong, it was proved that the *dates* of the resignation were "invariably given:" here were none—and this objection also must have escaped the somnolent Baron of the Exchequer of 1639. *Thirdly*, The "Charter" stated a resignation to have been made by a grandson of the Earl of Stirling, in the Earl's lifetime; which resignation the grandson had no title to make; and till he had, *having* nothing, he could

resign nothing according to the law of Scotland; and such could never have passed the Exchequer. *Fourthly*, The alleged charter professed to convey the titles and dignities of the earldom; the Earl professed to resign his earldom, which the king, by that deed, was made to reconvey, with *precedency from the date of the first grant*. "This," said Lord Meadowbank, and the evidence supported him, "I believe to be altogether unprecedented. It was totally unnecessary—the precedency conveyed following as a matter of course. I have seen many such grants, and *never* such a dignity reconveyed, with such a stipulation." *Fifthly*, While the invariable practice, in Royal Charters to Peers, is to address the one concerned as "*consanguineus noster*," and never to give that title to a commoner, the alleged charter in question twice applied that title to Alexander, the son of the peer, (consequently a commoner,) and *not* to the Earl himself!

LASTLY, As to the structure and aspect of the "Excerpt." It had red lines round the margin, which (said the principal witness, Mr Thomson, the Deputy-Clerk Register,) "were not introduced till the year 1780: at least it has not come under my notice at an earlier period." Then, again, three gentlemen, "the most experienced," said Lord Meadowbank, "as to old writings that are to be found here or anywhere else," stated that, at looking at the document, they had at first sight not the least doubt or difficulty in saying, that they did not believe it to be genuine, but of *recent fabrication*. One of them, the Mr Thomson above mentioned, declared that the paper was older than the ink in which the words on the face of it were written; that where the paper was folded over and stitched down, it was of the same tinge with the body of the paper which had been exposed to the air, and which could not be, had it been folded for any length of time. Here it must have been so folded for at least a century. That the "excerpt" appeared to consist of separate leaves recently cut from a book—all of them half-sheets detached from each other; and that where, under the cover, the paper should have been whiter, through non-exposure to the atmosphere, it was not of a different colour from the rest of it. Two eminent professors of chemistry were engaged by the Court to make experiments on a portion of the paper, in order to ascertain whether the dark colour of the paper was the natural result of age, or of artificial means used to obtain that result. The doctors, however, came to opposite conclusions; and their evidence, therefore, was properly discarded from the case. *Finally*, As to the character of the

handwriting, one of the most experienced of the professional witnesses, Mr Mackenzie, a Writer to the Signet of thirty-six years' standing, made, in the opinion of Lord Meadowbank, "a very striking remark:" that the writing was in a peculiar hand, in imitation of *old hand*, which was altogether different from the *Chancery hand* in which charters in Scotland are written; that he had never before seen a copy made like the one in question, in *old hand*; and that a person sitting down to make a copy of such a charter, would do it in the running-hand of the country where it was written. "It is my duty to observe to you," said Lord Meadowbank, "that impressions made by such appearances," as the above, "on the minds of persons of skill, at first sight, are often of great weight.... I leave this part of the case with this single observation—that the impression of these witnesses, when they first saw it, was to the prejudice of the genuineness of this document, as an excerpt from a genuine charter. Whether it was a writing somewhat older, or only thirty years old, seems to be very little to the purpose; but they said it appeared to be a document of recent formation—that that was the first impression made upon their minds, when it was submitted to their inspection." The Solicitor-General had thus closed *his* remarks on the subject of the above excerpt charter: "These considerations make the absence of all explanation as to the history of this document a most suspicious circumstance in the prisoner's case; so much so, with submission, that the possession of the deed must be accounted for by the prisoner in some way or other, before he can shake himself free from the charge that is now made against him."

The following is the substance of the answer to this portion of the case, offered by his eloquent and ingenious advocate. Unable to struggle against the bulk of the professional evidence tending to impeach the genuineness of the excerpt, and to disprove the existence of the alleged charter from which it was taken, Mr Robertson admitted that there were the great distinctions which had been alleged, between a completed charter and the instrument which preceded it; that the words "*per signetum*" could not properly appear on a completed charter; that the document under consideration purported to be an excerpt of such completed charter; that the abbreviations "*Reg. Mag. Sig. Lib. LVII.*" could not appear on an excerpt of the date assigned by the prisoner to that which he had brought forward before the Scottish courts; that it was proved that no such charter as that of the 9th Dec. 1639 was

entered on record; and that Archbishop Spottiswoode could not have attested such an instrument, having undoubtedly ceased to be chancellor, and died previously to its date. BUT he said that there was a vast difference between a genuine, though erroneous copy, and a forged principal; and also between a forgery (if such it were) so palpable as to challenge everybody's notice, and one so skilfully executed as to have been capable of deceiving all the Scottish law functionaries, and the prisoner's own law advisers, and himself, for a period of ten years, during which it had been courting examination, without forgery having been suggested till that prosecution. But *was* the excerpt proved to be a forgery? The statement in the Lord Ordinary's judgment, relating to Hovenden's affidavit, showed that there was evidence—or something like it—in that proceeding, to establish the existence of the excerpt in 1723. The document was not a *copy* of the alleged charter, but only an excerpt or *extract*; and so might be explained the absence of some matters which would be in the original. And as to the admitted *errors*, the excerpt was made in Ireland, not in Scotland; was "an old *Irish* bungled copy"—a "blundered *Irish* extract"—"an *Irish* excerpt of a copy of a deed"—"an *Irish* copy." The marking "*Reg. Mag. Sig. Lib. LVII.*" in the margin may have been an *ex post facto* addition by some third person, who may be the person who had invented the story of Cromwell carrying off the records of Scotland. "*Consanguineus noster*," and the attestation of the Archbishop, were both Irish blunders. "And on such evidence," said Mr Robertson, "this bungled excerpt is to be held proved to be a deliberate forgery!"³² Before leaving this part of the case, let us remind the reader of the fact mentioned in our former Number, that it was Mr Thomas Christopher Banks who, according to his own letter, discovered this challenged "excerpt" in Ireland, and transmitted it to the prisoner; that the prisoner's council elicited at the trial that this Mr Thomas Christopher Banks had been seen, by a witness, alive, at Edinburgh, *a few weeks before the trial, and at the office of the Crown Solicitor*; and that Mr Banks was not called as a witness by either side.

Was then this "excerpt charter" a forgery, or a genuine document? The reader has before him the same materials for forming a judgment which were presented to the Edinburgh jury. Let us proceed now to—

II. THE LE NORMAND PACKET—*i. e.*, THE FRENCH EVIDENCE. It now lies before us, in the large *facsimile*, nearly a yard square, (one prepared for use at the trial,) prefixed to Mr Swinton's Report, representing eight different inscriptions or indorsements, on the back of an old French map of Canada. Six of them are written on the paper itself of the map, and two on two other pieces of paper, which were afterwards pasted on the back of the map. We beg to repeat emphatically the observation made in our last Number,³³ that "we doubt whether such an extraordinary document, or series of documents, as this map, with its accompaniments, has ever, before or since, challenged deliberate judicial investigation." It is at once fearful and ludicrous to regard these documents as forgeries, *expected by their fabricators to be received as genuine*, and intrepidly submitted to competent scrutiny. So, at least, we own it would have appeared to ourselves; but, after all, there is nothing like a jury for deciding upon conflicting testimony. We cordially concur in the following admirable observations of Lord Brougham, delivered on a very important occasion, when he was sitting as Lord Chancellor,³⁴—"The best tribunal for investigating contested facts is a jury [of twelve men] of various habits of thinking, of various characters of understanding, of various kinds of feeling, of moral feeling—all of which circumstances enter deeply into the capacity of such individuals.... The diversity of the minds of the jury, even if they are taken without any experience as jurors, their various habits of thinking and feeling, and their diversity of cast of understanding, and their discussing the matter among themselves, and the very fact of their not being lawyers, their not being professional men, and believing as men believe, and *acting* on their belief, in the ordinary affairs of life, give them a capacity of aiding the court in their eliciting of truth, which no single judge, be he ever so largely gifted with mental endowments, be he ever so learned with respect to past experience in such matters, can possess." Without presuming therefore to express, or even to suggest or insinuate, anything like dissatisfaction with the conclusions arrived at by the jury with reference to the class of facts now before us, but more fully laid before them, we request the reader to imagine himself a juryman, under a sacred obligation to resist prejudice and guard against first impressions.

It is proper to remind the reader that the very essence of the prisoner's pedigree, as he endeavoured to establish it before Lord Cockburn, consisted

of proof that the Reverend John Alexander (John No. 3)³⁵ was the son of John of Antrim, (John No. 2;) and that this John No. 2 was the son of John of Gartmore (John No. 1.) "The whole of the case," said Lord Cockburn on the 3d December 1836, "depends upon *the genuineness of these two descents*."³⁶ And his judgment, as has been seen, demolished the case which had been set up before him, for he pronounced "that the evidence, whether considered in its separate parts or as a whole, was utterly insufficient."³⁷ Now, if the writings on the back of the map were genuine and authentic, they exactly established, beyond all possibility of cavilling, the case which it was the prisoner's object to establish; going, moreover, far beyond the exigencies springing out of the adverse judgment of Lord Cockburn. For, *first*, those writings were designed to demonstrate not only that John No. 3 was son of John No. 2, and the son of John No. 1; but also, *secondly*, that the ORIGINAL CHARTER OF NOVODAMUS, of the 9th December 1639, was bodily in existence in the archives of Canada in the year 1702—as indubitably attested by those who had seen and examined it, and made copies and extracts from it!—as testified by right reverend, noble, and royal personages, two very eminent bishops, a marchioness, and a king of France—all under their own hands. These singular writings, eight in number, were given *in extenso* and *verbatim*, but translated into English in our last Number;³⁸ and we hope that the reader will take the trouble of referring to, and carefully reading them, before he proceeds further with the present paper. We promise him that his trouble shall be amply repaid, by disclosures which he will then, and then only, fully appreciate.

I. FIRST comes the statement, written on the back of the map, of a certain "M. MALLET"—supposed to be a Canadian French gentleman—who simply makes the memorandum in question, without signing it, or mentioning his own name, but heading it, "*Lyons, 4th August 1706.*" He states that in the year 1702 he was residing in Acadia [Nova Scotia.] "His curiosity had been excited by what he was told of an '*ancient*' charter, preserved in the archives of that province—it is the charter of confirmation, *De Novo Damus*, of date 9th December 1639." He says, "My friend Lacroix gave me *a copy* of it, which *I took the precaution of having duly attested*. From this authentic document I am about to present some extracts, in order that every person who opens this map [the one in question] of our American possessions, may form an idea of the vast extent of territory which was granted by the King

of *England* to one of his subjects. *If the fate of war, or any other event, should replace New France and Acadia under the dominion of the English, the family of Stirling would possess these two provinces, as well as New England, as well as—*" and then he quotes the "passages," as from the original charter. He proceeds, "*The order of succession!* to this inheritance is as follows:" and gives the entire of the new limitations of the alleged charter *in extenso!*—concluding, "Thus the King of England has given to the Earl, and has secured to his descendants in perpetuity, enough of land to found a powerful empire in America." So much for M. Mallet. Opposite his important memorandum was the following autograph memorandum, forming No.—

VIII. in our series, of LOUIS XV! "This note is worthy of some attention, under present circumstances; but let THE COPY of the original charter be sent to me." Subjoined to M. Mallet's memorandum was another—

II. Signed "CARON SAINT ESTIENNE," and dated "*Lyons*, 6th April 1707," announcing the sudden death of the aforesaid M. Mallet, whose loss was, it seems, an irreparable one to his friends, from his "good qualities and rare understanding." He it was who "first procured M. Saint Estienne a perusal of the charter—an extraordinary document extending over fifty pages," and the "unclassical Latin" of which shocked the accomplished reader. He says that "the above note of M. Mallet is *precious*—giving in few words an extremely correct idea of the wonderful charter in question." "As to the *copy*," which M. Mallet had "taken the precaution of having duly attested," M. Estienne informs us by whom it had been attested—viz. by the Keeper of the Records, and the Acadian witnesses—and it, (the copy) must be in entire conformity with the register of Port Royal."—"M. Mallet had foreseen," observes his friend St Estienne, "that the *copy* would not make *the charter* known in France, hence he conceived the idea of writing, ON ONE OF THE BEAUTIFUL MAPS OF GUILLAUME DE L'ISLE, a note which all the world may read with interest. Had he lived long enough"—poor soul—"he could have added to this interest; for *he wished to obtain information in England* as to the then situation of the descendants of the Earl who had obtained the charter; and all the information which he might have received respecting them, he would have transferred to this very map." M. St Estienne, however, concludes with the consolatory assurance—"But, after all, with

the two documents [*i. e.* the duly attested copy, and his own memorandum on the map] "which he has left to us, no person in France *can question the existence of such a charter.*" Here then were two gentlemen who had been actually favoured with a sight of the *ipsissima charta*; had obtained a copy of it from a third (M. Lacroix)—himself, doubtless, similarly privileged; had taken the precaution of having that copy officially attested; and had given accurate extracts of its essential provisions. We are, however, under still farther obligations to the solicitous vigilance of St Estienne; for two months afterwards he procured no less a person than Flechier, the eminent Bishop of Nismes, to add the sanction of his eminent name to the authenticity of his—St Estienne's—memorandum. Accordingly, the obliging Bishop wrote on the map the following certificate:—

III. Signed "Esprit, Ev. de Nismes," [*i. e.* Esprit Flechier, Bishop of Nismes] and dated, "Nismes, 3d June 1707." The Bishop had been shown by St Estienne the "copy" of the charter, and thus chronicles the event—"I read lately at the house of Monsieur Sartre, at Caveyrac, the copy of the Earl of Stirling's charter. In it I remarked many curious particulars, mixed up with a great many uninteresting details, [what a natural observation!] I think, therefore, that the greatest obligations are due to M. Mallet for having, by the above note, enabled the French public to judge of the extent and importance of the grants made to the Scottish nobleman. *I also find that he has extracted the most essential clauses of the charter*; and, in translating them into French, he has given them with great fidelity (!) Monsieur Caron St Estienne has *asked me* to bear this testimony. I do so with the greatest pleasure." Courteous and venerable Bishop of Nismes! But you must now make your exit, for an Archbishop approaches, and that no less a personage than the great, the good, the justly revered FENELON, Archbishop of Cambray, who, in the ensuing autumn—viz., on the 16th October 1707—on the solicitation doubtless of St Estienne, and other zealous friends of the excellent deceased M. Mallet, condescended to write the following memorandum round the margin of a letter presented to him for that purpose, and forming No.—

V. "The friends of the late Mr. Ph. Mallet will doubtless read with great interest this letter of a *grandson of the Earl of Stirling's*! M. Cholet, of Lyons, setting out to-day, 16th October 1707, on his way home, will have

the honour of delivering it to M. Brossette, on the part of Madame de Lambert. To authenticate it, I have written and signed this marginal note. FR. AR. DUC DE CAMBRAY." "Nec Deus intersit," says our ancient astute adviser, "nisi dignus vindice nodus." Who, thinks the reader, was the writer of the letter thus solemnly authenticated by so distinguished a witness? Who but (the very man of all others on earth that was wanted)—JOHN OF ANTRIM—John No. 2—John Alexander, grandson of the first Earl of Stirling!

IV. This was a letter of John Alexander, dated "Antrim, 27th August, 1707,"—*i. e.* five years only before his death—addressed to a certain Marchioness de Lambert, a lady of fashion, whose splendid hospitalities he therein commemorates. He there thanks her ladyship for having, through the good-natured interposition of *the Archbishop*, favoured him so soon with a copy of "the note respecting '*my grandfather's* charter.'" "I shall preserve with care the interesting note of M. Mallet. The charter was *at one time registered in Scotland, as well as in Acadia*: but during the Civil War, and under the usurpation of Cromwell, boxes containing a portion of the records of that kingdom were lost during a storm at sea; and, according to THE ANCIENT TRADITION of our family, the REGISTER in which this charter was RECORDED was amongst the number of those that perished! Such, madam, is all that I can say in reply to your questions; for it is impossible, in this country of Ireland, to obtain any other information with regard to the registered charter. I believe that MY GRANDMOTHER" [*i. e.* the first countess] "gave *the ORIGINAL CHARTER (which she brought from Scotland, when she came to take up her abode in Ireland) to her son-in-law, Lord Montgomery, in order that he might preserve it carefully in Castle Comber, where he resided.* I shall ascertain what this family have done with it; and I shall have the honour of acquainting you with any discovery which I may make." He proceeded to give a remarkably neat and succinct account of that state of the pedigree which the Lord Ordinary had so ruthlessly annihilated; particularly explaining that John of Gartmore (John No. 1) had had a second wife, named Maxwell, "the mother" of the communicative writer. The benevolent and indefatigable Marchioness de Lambert seems to have pushed her inquiries, even after the death of her correspondent; for we have, constituting No.—

VII. A memorandum, though without signature or date, showing that "this lady had not ceased to bestow on the son," the Rev. John Alexander, (John No. 3,) "of this distinguished man," (John No. 2) "marks of her goodwill and friendship. This son is favourably known in England as a Protestant clergyman, and a learned philologist.... He is at the head of a college for the education of young clergymen, established at Stratford, in the county of Warwick." But this memorandum contained, as the first sentence, one of infinite significance—"THIS INSCRIPTION has been communicated by Madame de Lambert!" And that was document

VI. Forming the inscription on the tombstone of John of Antrim,³⁹ whom it stated to be "the best of husbands, the most indulgent of fathers; as a friend warm, sincere, faithful; a man of such endowments, &c.; and universally respected for his piety and benevolence." But what was vastly more to the purpose, as far as concerned his descendants, he was also the only son of the Hon. John Alexander! who was the *fourth* son of William Earl of Sterline! and "married Mary, eldest daughter of the Rev. Mr *Hamilton* of Bangor," by whom he had issue a son, *John*, who "at this present time is the Presbyterian minister at Stratford-on-Avon, in England." There could not be a doubt as to these facts, seeing that a certain "W. C. Gordon, junior," of Stratford-on-Avon, certified, on the margin of a copy of the inscription, that it "was a faithful copy!" Here, however, occurred a somewhat disagreeable fact. The figure "7" in the date, "Oct. 6th, 1723," was originally a figure "8" [*i. e.* 1823] "made into a 7." This swore Mr Lizars; on which "*a juryman* asks, Has there been an *erasure*?—A. No. It has been a different figure, corrected, and made into a 7. *Lord Meadowbank*.—Look at it again, Mr Lizars. Are you sure it has not been a blot? *The witness*, (having carefully examined the document with a glass.)—No, my lord, it, has been decidedly a figure. There are both the top and middle of a figure here, my lord."

Such were the documents indorsed on and attached to the map of Canada; and a perusal of them suggests a few questions. *First*, According to them, the original charter of the 7th December 1639 was, in the year 1702, in Acadia, "in the archives there." How did it get thither, and why was it sent? According to another part of the prisoner's case before the Lord Ordinary, the first Earl, grievously dejected by the death of three of his

sons, and fearing, from the declining health of two of the survivors, that his honours might, at no distant period, pass to a collateral branch of the family, obtained the new charter in question in 1639. This charter conveyed large estates in Scotland as well as in America: "but," as Lord Meadowbank observed, "while the former were within reach, and easily accessible, those in Canada and the State of Maine, being" [*then, i. e.* in 1639, the original grants having been made in 1626 and 1628] "in the hands of the French, were altogether out of the reach of the grantees. In these circumstances, you are required to believe that the Earl, in place of retaining this charter in Scotland, and getting it recorded and perfected *there*, where he might have got something by it, carried it to Canada, and had it recorded, where he could get nothing; and where, except as a matter of curiosity to men like Monsieur Mallet and his friend Lacroix, it was altogether a piece of waste paper.... I again put it to you, is it credible that, if the Earl had really got such a charter, and had wished to *change the destination* of his estates—and we know that he was a person of no ordinary talents—he would have omitted taking means for preserving in his own country the evidence of what he had done?" But, *secondly*, again, the original charter was, in 1702, in Nova Scotia. Now, we have seen that, in 1723, this 'original charter' was, on the 10th July 1723, in Ireland, in the hands of a Mr Thomas Conyers, of Carlow, who "permitted" Mr Hovenden "to see it, and he did most minutely examine the contents:" and on the 20th of that month, in the same year, the son of the aforesaid Conyers certified that that charter "had been trusted to his late father, in troublesome times, by the deceased Mary, Countess of Mount Alexander." At that time the fifth Earl was living. When, then, did the charter return from Acadia to Scotland, and go thence to Ireland? According to the letter of John of Antrim on the map, his grandmother, the first Countess, took it to Ireland to her son-in-law, Lord Montgomery, to be taken care of. That son-in-law died in 1670. What did he do with it? Did he send it to Canada?—and why? What were the three Earls of Stirling about, that they did not get possession of this document, the very foundation of their fortunes and honours? It gets, however, to Canada in 1702; is back again, and in Ireland, at all events, in 1723; and then gets placed in uncomfortable circumstances, and encounters queer adventures. It found its way into the hands of the Rev. John Alexander, (John No. 3,) *in the lifetime of the fifth* Earl of Stirling; and on his death, in 1743, it gets into the hands of his widow, who took it to Birmingham when she went to reside there;

whence it was stolen, in 1758, by an emissary of the then claimant of the peerage, William Alexander, who took it off to America, and either suppressed or destroyed it, the latest trace of it existing in 1806 or 1812, when it was presumably destroyed. All this was the original official statement of his case, by the prisoner himself, in 1829, in the process of "proving the tenor."⁴⁰ *Thirdly*, In 1702, this M. Mallet speaks of the charter as "an *ancient* one;" whereas it was then only sixty-three years old—its date being 1639. *Fourthly*, It having been thus a dead letter for sixty-three years, owing to the altered ownership of the territories included in it—they having become the undisputed property of France, and so continued for half a century afterwards, namely, till General Wolff's conquest of Quebec in 1760: yet we have a Frenchman, in 1702, represented as calmly speculating in the year 1702, without anything to suggest such an idea, on the possibility of the territories being reconquered from France by the English, and in that event the charter becoming an object of great interest! *Fifthly*, We have him also giving himself very particular concern with the *limitations* and family destinations of the tenures of the foreign grantees claiming under this "*ancient*" dead letter—then a mere useless piece of parchment, likely to attract the eye and attention of none but some curious antiquarian. Who was this M. Mallet? There is no suggestion that he was acquainted with any member of the family, or had ever been concerned in any way with them. Why, then, should he feel it necessary to "take the precaution" of having the copy which he had made "duly attested?" Who, again, was Lacroix? What was there *then* to interest any one in France or America in the fortunes of the noble Scottish family of the Alexanders? Why was it to be expected that "all the world would read with interest" the note which M. Mallet had so quietly written on his map, and then committed it to his bureau? *Sixthly*, In 1702, and 1706, and 1707, Acadia was in the hands of the French, and consequently its archives or registers were under their control; and a copy of any instrument deposited there could be easily obtained. Why, then, was not the command of Louis XV. obeyed, and a copy procured for his Majesty? Again, what became of the solemnly-attested copy spoken of by M. Mallet, Lacroix, and St Estienne? No account whatever is given of it, nor any reason why it was necessary to set such store by a brief epitome of one or two of the clauses to be found in that copy! Why, therefore, was the "Note" of M. Mallet so "*precious*," when those interested in the matter to which it related could have so easily seen

the original of which it spoke, and obtained a *verbatim* copy of the whole? The "Note" of M. Mallet might, indeed, be precious in the eyes of his suddenly-bereaved survivors as an autograph memento of their deceased friend, but not otherwise. *Seventhly*, Why should there be, in 1707, in the family of John of Antrim, a tradition, and that, too, an "ancient" one—*i. e.*, forty or fifty years old—concerning the loss of the record of a copy of the charter, *when the original* was in existence in the archives of Acadia? *Lastly*, Why is the great shade of the author of *Telemachus* evoked? Simply to "*authenticate*" the letter of John Alexander to the Marchioness De Lambert, to whom that letter was then on its way! This much for the intrinsic indication of genuineness or spuriousness afforded by the indorsements on the map of Canada, which we have hitherto been considering. We have now to record a remarkable incident which occurred at the trial, in open Court. As already stated, one of the two documents *pasted* on the back of the map was the alleged tombstone inscription. As the map was lying on the table of the court, owing to either the heat of the densely crowded Court, or some other cause, one of the corners of the paper on which the inscription was written curled up a little—just far enough to disclose some writing underneath it, on the back of the map. On the attention of the Solicitor-General being directed to the circumstance, he immediately applied to the Court for its permission to Mr Lizars, the eminent engraver, then present, to detach from the map the paper on which the tombstone inscription was written. Having been duly sworn, he withdrew for that purpose, and soon afterwards returned, having executed his mission very skilfully, without injury to either paper. That on which the inscription was written proved to be itself a portion of another copy of the map of Canada, and the writing which it covered was as follows, but in French:—

"There has just been shown to me *a letter of Fenelon*, written in 1698, having reference to this grandson of Lord Stirling, who was in France during that year, and with regard to whom he expresses himself as follows:—'I request that you will see this amiable and good Irishman, Mr John Alexander, whose acquaintance I made some years ago. He is a man of real merit, and whom every one sees with pleasure *at Court*, and in the best circles of the capital.'" These were the initials, as far as they are legible, "E. Sh." This was represented by the Solicitor-General as palpably an incoherence

abortive forgery; and Lord Meadowbank pointed out to the jury the evident and partially successful effort which had been made to *tear off* that portion of the surface of the map on which the above had been written. That effort failing, said he, "the only precaution that remained to prevent its appearing was to cover it over; for which purpose the parties used the inscription. But then the apprehension of its appearing, if the map were held between the light and the eye, seems to have come across the minds of the parties engaged in the operation, and hence, with a very singular degree of foresight, expertness, and precaution, they used for their cover that by which the eye of the inquirer might be misled in his investigation; for you have seen that the lines and words of the map forming the *back* of the inscription were exactly such as would naturally fall in with those on the *front* of the map of Canada, from which the extract from the pretended letter of Fenelon had refused to be separated. Accordingly the invention, it would appear, had proved hitherto most successful; for though this map has been examined over and over again by persons of the first skill and talent, and scrutinised with the most minute attention, the writing which was thus covered up escaped detection, till, by the extreme heat of the Courthouse yesterday, or some other cause of a similar nature, a corner of the inscription separated from the map, and revealed to our observation that which was hidden below. Gentlemen, it is for you to consider the *effect* of this revelation; but I must fairly tell you, that, in the whole course of my experience, I have never seen more clear and satisfactory evidence than has hereby been unexpectedly afforded, of the progress of a palpable and impudent forgery." The reader will bear in mind these observations against the time when we apprise him of the finding of the jury. The reason suggested by Lord Meadowbank for the abandonment and concealment of this sub-inscription was, that it was of such a nature as could not acquire credit from any one, as Fenelon was therein made to speak as if he were a courtier, familiar with the gay scenes of the court and the capital; whereas it was notorious that he lived more at his diocese than at Paris. Mr Lizars stated that this newly discovered writing did not resemble that of the letter signed "John Alexander." "How the Crown counsel would have chuckled," said the prisoner's counsel to the jury, "if the marvellous new discovery had resembled that of Mallet or Alexander!" And that was his only remark on the subject. To us the handwriting of these three manuscripts appears certainly different: all those on the map, indeed, appear different; but an

obvious suggestion occurs, that, if they were really forgeries, those perpetrating them may have taken the precaution of employing distinct writers. Let us now come to the *extrinsic* evidence, to determine the genuineness or spuriousness of these multifarious writings. First, as to the ink and character of the writings. Two eminent French witnesses, (MM. Teulet, joint-secretary of the archives of the kingdom of France, and Jacobs, geographical engraver attached to the Institute of France at Paris) peculiarly conversant with the art of making *fac-similes* of ancient writings, solemnly and confidently pronounced their opinions that all the documents on the back of the map were false, that they were written with ink generally used for that purpose—viz., a composition of China ink, yellow and carmine, or red; and the paper afforded visible indications of little red splashings, or spottings, the result of accidents in using that composition.

"Q.—'M. Teulet, from what you know, are you of opinion that these writings on the back of the map are authentic writings of the dates they bear?'

A.—'I have considered them; and say, on my conscience, that all the writings on the back of that map are false.'

Q.—To M. Jacobs.—'Forming a judgment from the ink alone, and the appearance of the writing itself, is it your opinion that these are genuine or false documents—documents of the dates they bear?'

A.—'I should think them false.'"

Mr Lizars also stated that "there was a very great resemblance between the ink in the writing signed 'Ph. Mallet' and the letter signed 'John Alexander,' and it was 'like common water paint.'" He said that "if he were to make any conjecture, it would be that the ink was composed of sepia and amber." But on being asked—"Suppose the ink were made of a mixture of China ink, yellow, and carmine, might the carmine come out at the edge?" He answered—"It would be sure to do it: a bungler only would use such a mixture, as the carmine would certainly precipitate: it were much better to use sepia and amber." This gentleman also stated that he had compared the writings on the back of the map with those of the prisoner and Mademoiselle le Normand, but found no resemblance between them. He

also stated, that he thought the writings in question *genuine*, and written in a natural, not a feigned hand.

We come now, however, to an astounding fact, rendering all such speculations and surmises superfluous. It will have been observed that all the writings on the back of the map, by Mallet, Estienne, John Alexander, Bishop Flechier, and Archbishop Fenelon, bore date in the years 1706 and 1707; that of Mallet only being in the former year. What will the reader say on being told that it was proved beyond all possible doubt at the trial, that *the map on which these various indorsements were written, was positively not in existence till eleven years afterwards—viz., 1718; and, moreover, that Bishop Flechier had died in 1711, and Archbishop Fenelon in 1715?* Proof so complete and crushing as that establishing these facts, scarcely ever before came under our notice; and the circumstance which had led to this result would have ensnared the most cautiously astute into the belief, that the true date of the map's coming into existence was that which it appeared to bear—viz., 1703—and with relation to, and in consistency with which, all the above five dates had evidently been selected.

Guillaume de l'Isle was the greatest French geographer of his day, and his maps were held in the highest repute for their accuracy and beauty. Amongst others was a very elaborate one of Canada: and the copy of that on which the memorable indorsements were made bore the following printed description, or title, on the back. We give it *verbatim et literatim*, and beg particular attention to the vacant space following the name Guillaume De l'Isle, which is indicated by brackets, and the italic words "*et Premier Geographe du Roy*" in the line but one following, and which is unduly close to the one before, as we shall endeavour to represent:—

"Carte

Du Canada

ou de la

Nouvelle France

et des Decouvertes qui y ont été faites

dresseé sur plusieurs Observations
et sur un grand nombre de Rélations imprimées ou manuscrites
Par Guillaume De l'Isle []
de l'Academie Royale des Sciences
et Premier Geographe du Roy
A Paris
chez l'Auteur sur le Quai de l'Horloge a l'Aigle d'Or
avec Privilege de sa Maj^{te} pour 20 ans
1703."

The date at the foot, "1703," and which had so cruelly misled the gentlemen who prepared the indorsements on the map, was the date, not of the publication of that edition of the map, but of the *original* publication, from which dated the twenty years' copyright granted by the king as above stated. When that impression of the map was originally printed, in the year 1703, the printed title varied from the above, by having the word "*Géographe*" occupying the vacant space above-contained in brackets; and by the absence of the line "*et premier Géographe du Roy*," so evidently interposed subsequently between the preceding and subsequent lines. And the fact was, that on the 24th August 1718, fifteen years after the original publication of the map, De l'Isle had received the high appointment of "PREMIER Géographe du Roi." M. Teulet, one of the keepers of the "Register of the Secretary of State" in France, a "register of the greatest possible authenticity,"—"the *only* register of authentic documents in which the commission of Guillaume De l'Isle could be found," produced an "extract made after the most authentic manner in France, certified by the keeper of the register, and by the seal of the archives of France,"—an "extract which would have all possible authenticity in a court of justice in France," and which extract M. Teulet "had compared twice over, word for word, and

letter for letter, with the record," and swore that "it was correct." The extract was as follows:—

"Du vingt quatre Aout mil sept cent dix huit

"Brevet de Premier Géographe du Roy pour l S^r. De l'Isle." The entry runs thus in English:—

"*This day* (24th August 1718) the king being in Paris, having authentic proofs of the profound erudition of the S. Guillaume de l'Isle, *of the Royal Academy of Sciences*, in the great number of geographical works which he has executed for his Majesty's use, and which have been received with general approbation by the public, his Majesty, by the advice," &c. &c., "wishing to attach him more particularly to his Majesty's service by a title of honour, which may procure him at the same time the means of continuing works of such usefulness, has declared, and declares, wishes, and enjoins, that the said S. de l'Isle be *henceforward* ['DORESNAVANT'] his first geographer," &c. &c. This appointment was signed by the king, and countersigned by the Secretary of State. It was distinctly sworn by M. Teulet and M. Jacobs, than whom there could not have been higher authorities on such a subject, that they had carefully examined the map in question—and that, till the 24th August 1718, there never was a map of De l'Isle thrown off having on its face the title of "Premier Géographe du Roi;" but that, *after* that date, this designation was invariably added to his name;—and though the period of printing was later than 1718, it was necessary to retain the original date of the map, 1703, *in order to secure the copyright*; because the privilege of printing it, as recited on the map, extended to only twenty years from the time of the map being originally published. Thus was clearly and most satisfactorily explained the erasure of the word "Géographe" after the name of Guillaume de l'Isle, and the contemporaneous interpolation of the new title of dignity—*Premier géographe du Roy*—between the next line and the one following. All the three witnesses (MM. Teulet, Jacobs, and Mr Lizars) swore, and gave conclusive reasons for doing so, that the same copperplate was used in making the engravings—that De l'Isle was in the habit of retouching his plates, and making alterations in them from time to time; and great numbers of his plates were produced, showing that, in the maps dated anterior to

1718, the words "Premier Géographe du Roy" were *interpolated*; and in the one before the court, the interpolated line was much "fresher" than the rest of the inscription. In those subsequent to 1718 there was no such interpolation, the words being always regular with the other part of the title." In addition to this, it was proved, that the word "Géographe" had been mechanically effaced from the copper; for, on carefully examining the under side of the copper, there were "evident traces of hammering, which had been done to fill up the spaces where the words had been effaced." Nothing could be more lucid and decisive than the evidence given by the eminent M. Teulet on these points; the result being a downright demonstration, as far as the nature of the case admitted of demonstration, that the copy of the map in question could not have been, and was not, in existence, till after the 24th August 1718. The prisoner's counsel, fearfully pressed by these considerations, frankly—but necessarily—admitted, that "if the map were not in existence till 1718, the writings on it purporting to be dated prior to 1718 were forgeries." But he contended that, though "he should be ashamed to deny that there were *strong reasons* for supposing the fact to be so, there was not *conclusive* evidence that the copy of the map in question was not in existence till 1718; for the Crown had not proved a search of the Records of France prior to 1718, and it might be, that the commission which had been proved, was not the *first* in favour of De l'Isle—there might have been a previous one." "But this," said Lord Meadowbank, unanswerably, "was a strange supposition, refuted by the patent proved before the jury. Had any *former grant* existed, it must have been there referred to; notice of it could not have been omitted." One other suggestion was offered, faintly, from a sense of its hopelessness; that the alterations on the title of the map, might have been effected by the use of double plates; the additional line having been inserted by a second impression *on the same sheet of paper*. Such a process, however, could not have *effaced* the word "Geographe," or effected the changes which appeared in the statement of De l'Isle's residence—the words "à l'Aigle d'Or" being manifestly engraved on the site of only partially-obliterated previous letters. That this, in point of fact, had been the process, was distinctly sworn to by those who had seen the original plate. Before quitting this part of the case, we shall quote a very critical section of the evidence given by the Crown—that of Pierre François Joseph Leguix, a print and map seller at Paris, whom the prisoner's counsel made a very desperate effort to exclude from the

witness-box. He said, "My print-shop is in the Quai Voltaire, Paris. I remember *in the winter of 1836-7* a person coming frequently to my shop in search of maps. I think he was an Englishman. The maps he sought for were maps of Canada. He came during the length of five or six weeks. I sold him several maps of Canada. He wished to get one map of a particular date. *It was the date of 1703.* I sold him a map of 1703. It was procured by me after considerable search. He came to my shop no more after getting that map. It was similar to this [the one in question]. There were no writings then on the back of it. He did not explain who he was, nor say why he wished to have that map. He inquired chiefly for a map of 1703.

"Q.—'Have you seen the prisoner before?'

A.—'Yes.'

Q.—'It was not he?'

A.—'No, Sir.'"^{[41](#)}

What a moment for the prisoner!

In a letter written to the prisoner by Mademoiselle Le Normand, dated Paris, 8th January 1839, occurs the following passage, (read in evidence at the trial) which may possibly relate to the facts above deposed to. "... Seulement *on a découvert l'homme du Quai*; on veut le faire partir pour l'Ecosse; il déclare que voilà 18 mois il a vendu une Carte du Canada à un Anglais, qui plusieurs fois est venu chez lui, on lui a dit: le reconnaitriez-vous? *je le crois.*"

Finally, M. Teulet proved that Fenelon, Archbishop of Cambray, died at five o'clock in the morning of the 7th February 1715, by the following examined extract from the Register of the Chapter of Cambray—"Feria 2, die vii Januarii 1715.—*Hodie circa quintam matutinam obiit illustrissimus Dominus Franciscus de Salignac de la Mothe Fenelon, Archiepiscopus et Dux Cameracensis, sacri Romani Imperii Princeps, Comes Cameracensis, etc. Requiescat in pace.*"^{[42](#)}

The death of Flechier, Bishop of Nismes, in 1711, was also proved by M. Teulet, who produced an examined copy of letters patent for the installation of the successor of Flechier, dated the 26th February 1711; and one of the witnesses, M. de Pages, stated that the Bishop died in the year 1710. Notwithstanding, however, this evidence, M. de Pages, (a nephew of the Marquis de Valfour, and attached to the Historical department in the King's Library, and possessing some little familiarity with ancient manuscripts,) having brought over some alleged writings of Louis the XV. and Flechier, said "that the writing on the map attributed to Louis was *exactly like* the specimens of his writing which the witness had brought;" and of that attributed to Flechier he said, "I think it is the same as the writing of his which I produce." On this, one of the Judges (Lord Moncrieff) put this acute question:—

"Q.—'If you were assured that that map had no existence till 1718, would you still say that the writing on it was Flechier's?'

A.—'Wherever it might be placed, I find it conformable to the writing of Flechier.'

Lord Moncrieff to the Interpreter.—Remind him that he said Flechier ceased to be Bishop of Nismes in 1710, and then ask him the question again. [This was done.]

A.—'It would be not the less like.'"

Lord Meadowbank, it may be observed in passing, regarded the writings brought over by M. de Pages as "important," and handed them to the jury, on their retiring to consider their verdict.

The signatures of Louis, Fenelon, and Flechier were attempted to be proved also by certificates from M. Daunou, M. Villenave, and other eminent French antiquaries; but as they were living, such certificates were of course rejected. If these writings, then, *were* forgeries, they must have been most skilfully executed; and, in fact, the question as to their genuineness or spuriousness excited—as we learn from Mr Swinton,—great interest and much discussion in Paris. It may also be here mentioned, as a somewhat singular circumstance, that, a few years previously to this trial—

as we also learn from Mr Swinton—a series of portraits and autographs of illustrious Frenchmen, published by Delpech, (Quai Voltaire, Paris,) contained *fac-similes* of the writing of Louis XV., Fenelon, and Flechier, exactly resembling the writings on the map attributed to them;—and in the specimen given in that work of the writing of Louis XV., which was taken from the collection of M. Villenave above-mentioned, occur the very two *expressions*, and *similarly spelled*, which are found on the map—"les cerconstances presentes"—and "oregenale." Mr Swinton speaks of this coincidence as "remarkable;" but to us it appears not at all so. What is easier than to conceive that, if the writings on the map were forgeries, the fabricator had before him at the time these very fac-similes, and astutely determined to introduce the expressions in question, with the peculiar spelling?

Let us now recur for a moment to the excerpt charter of the 7th February 1639. On the assumption that it was a forgery—*what becomes of the writings on the map of De l'Isle?* They then speak of—are bottomed on—a document of which there is no earthly trace whatever, except in a forged extract! If the excerpt be annihilated, so is the charter! And if so,—in the name of holy truth and ordinary common sense, how comes it, but by a double forgery, that we find on the map of De l'Isle, produced for the first time in 1837, *all the essential elements of that charter*, as far as sufficed to further the interests of the prisoner—viz., the altered destination of the titles and property, set forth *verbatim et literatim*, in conformity with the terms of the forged excerpt? "How, but through the evidence of one in the possession of this first forgery of the charter," asked the Solicitor-General,⁴³ "could the persons who executed the second arrive at such a close and perfect correspondence with the terms and effect of the former, as has been exhibited through the whole contents of the last?"

The prisoner's counsel said, in defence to this serious section of the charge—the map is not pretended to have been forged; nor is the date "1703" false. Who Ph. Mallet, or Caron St. Estienne, was, "at the distance of one hundred and thirty years, no one could tell." Flechier was alive in 1707, and therefore *might* have written the note attributed to him in that year, and so with Fenelon. "Now, gentlemen," said Mr Robertson, "what is the case of the Crown on the map? I think it rests entirely on the

appointment of De l'Isle as *premier géographe du Roi*," which was unquestionably the true—the inevitable—issue on which to put the case; and he proceeded to contend, on grounds which we have already indicated in passing, that the Crown had not established the act of forgery, by clear, irrefragable, irresistible proof.

What, then, says the considerate reader, we ask, as we did in the former instance—were these writings on the map of Canada—any or all of them—genuine or spurious?

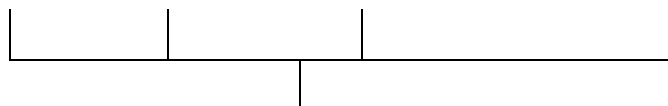
III. THE DE PORQUET PACKET. With every disposition to treat this item of evidence with the gravity and impartiality befitting quasi-judicial investigation, we acknowledge feeling extreme difficulty in doing so. To us, as English lawyers, intense would seem the simplicity of those expecting any rational being to give credit for an instant to the contents of this astonishing packet, as genuine. Two months after the judgment of the Lord Ordinary, pointing out the fatal flaw in the prisoner's pedigree—(viz., the non-proof of two particular steps in that pedigree—that John No. 3 descended from John No. 2, and the latter from John No. 1,) a sensitive and conscientious thief died—viz. in March 1837—in the exact nick of time, having kept by him till that sad event a packet which he had purloined from his employer in 1798⁴⁴ i. e. *for forty years*; and which packet contained four family documents, of vital moment, applying themselves with miraculous exactness to the deficiency in the pedigree aforesaid! We are here stating shortly, but correctly, the effect of a document under this head of the charge, set forth in the indictment. That document we gave *verbatim* in our last Number.⁴⁵ Messrs De Porquet, London booksellers, received a packet by the penny post, on opening which they found one addressed to Lord Stirling, accompanied by a note from a "*Mrs. Innes Smyth*," (of whom no one has hitherto seen, heard, or known anything whatever,) requesting them to send it to his lordship; whose son happening in the month of April 1837—i. e., a few weeks after the opportune death of the mysterious thief—to call at Messrs De Porquet, they gave him the packet addressed to his father. Instead of at once forwarding it to him, the young gentleman instantly took it to his solicitors; and after an exciting colloquy as to what this packet might contain, (the idea never occurring to him, that it would be the proper formal course to send it off to his parent according to its address,) it is

arranged that they should go on the ensuing morning to a notary public, and open the packet in his presence! This was done; on which they discovered the interesting document above referred to, explaining the theft of the packet which it accompanied, cased in parchment, sealed with three black seals, "evidently," said the young Alexander, in his letter to the prisoner, "my grandfather's seals—not like those we have"—and with the following words, also instantly recognised as being in his grandfather's handwriting, on the packet—"Some of my wife's family papers"—that wife being the prisoner's mother, Hannah, daughter of John No. 3 (the Rev. John Alexander,) the "person of such great humility, and so perfectly unostentatious," according to her daughter's statement,⁴⁶ "that she did not take upon herself the title of Countess, though she often told her children that they had noble blood in their veins;—that she had two brothers, 'John' and 'Benjamin,' who had fully intended assuming their peerage honours, but for their premature death—*unmarried!*—whereby she," the lady aforesaid, "believed herself the last of the family of Alexander who were entitled to be Earls of Stirling!" The sheet of paper accompanying this mystic parchment packet had a black border, "owing to the death of the thief!"—who "had never dared to break the seals"—the threefold seals of the packet—"which accounts for the admirable state of preservation" in which the contents were after this forty years' interval!!!⁴⁷ This inner packet the modest notary felt to be of too solemn a character to be opened in his presence; and recommended its being taken for that purpose to a functionary of commensurate solemnity—to wit, a proctor.⁴⁸ No sooner said than done: away they went to the proctor, with whom they were closeted five hours; and in whose presence—and that "of four witnesses"—the young gentleman ventured to cut the parchment over the middle black seal—and there appeared four enclosures which completely settled the business in favour of the claimant of the Stirling peerage. Never was anything so beautiful in aptitude. First, was a genealogical tree—thus:

JOHN,	BENJAMIN,	MARY,	HANNAH,
Eldest	Second Son,	Eldest	Second
Son, born	born at Dublin	Daughter,	Daughter, born
at	in 1737.	born at	at Dublin in
Dublin,		Dublin, 1733.	1741.

1736, heir
to the title
and estates

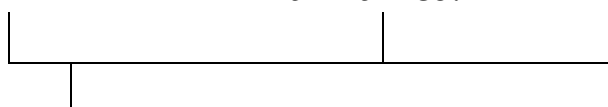
(!)



JOHN,
Sixth Earl of Stirling,
(*dejure*,) died at Dublin, Nov.
1st, 1743, buried there.

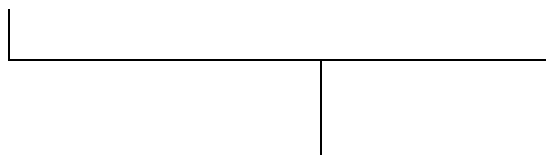
MARY,
Eldest
Daughter, born
1683, died
unmarried.

ELIZABETH,
born 1685,
died 1711,
leaving issue.



JOHN,
Married MARY HAMILTON of
Bangor; *settled at Antrim!*
after living many years in
Germany! Died 1712. Buried
at Newtown.

JANET,
only surviving
child of the
heiress of
Gartmore!!!



"Part
Of the Genealogical Tree
of the
Alexanders of Menstry,
Earls of Stirling in Scotland,
Shewing
only the Fourth and now-
existing
branch

JOHN,
Fourth Son—marry'd (1.) *Agnes*
Graham, the heiress of
Gartmore! (2.) *Elizabeth*
Maxwell!!! of Londonderry;
settled in Ireland in 1646; died
1665.

(!)

Reduced to pocket size, from
the

Large Emblazoned Tree in the
possession of Mrs Alexander,

WILLIAM,
1st Earl of Stirling—born 1580—
m: Janet Erskine. Had issue, 7

of King St., Birm.
By me,
Thomas Campbell,
April 15, 1759."

sons and 3 dau^{rs}. Died 1640.
Buried at Stirling."

Secondly, came a letter from the above-mentioned "Benjamin" to the above-mentioned "John," his elder brother, (John No. 3,) speaking of the tombstone, and giving many interesting particulars concerning *John of Antrim*—his portrait, his education at Londonderry under his *maternal* grandsire Maxwell! his travels abroad, and "visiting foreign courts," (as indeed Fenelon would seem to have testified, as well as the aforesaid John himself, on Madlle. le Normand's map.) *Thirdly*, a letter to the same "John," (No. 3,) from a certain "A. E. Baillie," certifying as to the missing tombstone, who had written the inscription, (which was given at length in Madlle. Le Normand's map,) and assuring "John No. 3" that the writer had "always heard that *your great-grandfather, the Hon. Mr Alexander*, (who was known in the county as *Mr Alexander of Gartmoir*,) died at Derry, but 'the Papists of the north' had unfortunately destroyed the parish registers." *Lastly*, "a beautiful miniature painting of *John of Antrim*!"

Such were the contents of the De Porquet packet; and we must here add, that the superscription on the parchment, "Some of my wife's family papers," was clearly proved to be really the handwriting of the prisoner's father.

The Solicitor-General, partly from the intrinsic preposterous absurdity of this whole transaction, and partly from his extended and very able analysis of the two former heads of evidence, dealt rather summarily with the De Porquet packet. "This packet, too," he observed, "was received through the post-office. We have not, therefore, had the same means of tracing these documents as we possessed in regard to the map."⁴⁹ His commentary, however, though brief, was cutting, particularly on the "absurd solemnity" of the "opening" of the packet by the prisoner's son, the "death of the thief in the very nick of time," and the mysterious unknown "Mrs Innes Smyth." "I admit," said he, "that there is no *direct* evidence as to these English documents. But it must be taken into account how closely the whole case is here riveted and dovetailed together; so that I think the documents produced

are all parts and portions of the grand machinery of forgery which has been set agoing here, to meet the effect of the Lord Ordinary's interlocutor setting aside the panel's title."⁵⁰

The prisoner's counsel prudently dealt still more briefly with this part of the case. The very little that he did say, however, was excellently said. He dwelt on the proof that the superscription, "Some of my wife's family papers,"⁵¹ had been proved to be genuine. "Yet a verdict of forgery is demanded on that paper, and all the documents contained in that parcel are said to be forged—the one, because we have proved it to be genuine; the others, because the Crown has proved—nothing at all. That is the plain English of it, gentlemen, and I leave it in your hands."⁵²

Lord Meadowbank dealt with this portion of the case at considerably greater length, and very carefully. He remarked on the absurd improbability of so notable a discovery being made at the precise moment of difficulty, and in the manner alleged, by the son of the prisoner—a packet full of most critical documents, sent anonymously—exactly as in the case of the Le Normand packet, in both respects—the one in April, the other in July next, after the Lord Ordinary's judgment had indicated the *hiatus* in the proof which these two windfalls *exactly filled up*. The two letters enclosed in it—viz., from Benjamin Alexander to his brother John, (No. 3,) and from "A. E. Baillie" to the same person—Lord Meadowbank regarded as "deserving the most serious consideration of the jury, not so much for the sake of the letters themselves, as from being a part of that great mass of evidence which bore upon the whole question of the authenticity of these various productions."⁵³ He remarked strongly on young Alexander's letter announcing to his father the discovery of the packet—his going to a notary and proctor to have it opened, instead of at once sending it on to his father. "For aught his son is supposed to have known, or could possibly tell, it was strictly confidential to his father, and he had no right to make any conjectures as to the contents of it. Did you ever hear a more extraordinary story than he tells? I leave it to you to consider whether such a proceeding can be accounted for on any rational principle. Did you ever hear of such a thing as this being done before? For my own part, the proceeding is altogether incomprehensible upon any supposition but one—and that is, upon the notion *that the contents of the packet were not unknown to some of*

the performers in the drama, before ever it [the packet] entered the shop of De Porquet." Lord Meadowbank laid great stress on the following certainly very significant passage in this letter, relating to the "*inscription*" mentioned in the two letters of "Benjamin Alexander" and "A. E. Baillie,"—"You will see that the inscription is *now made a good document, being confirmed* by the letters of B. Alexander and A. E. Baillie. The cause is enrolled to be heard on the 31st day of May." The son was writing on the 23rd April. "The better to appreciate this letter," continued Lord Meadowbank, "let me recall your recollection to the map of Canada. You have thus three letters, and that inscription confirming *another inscription* (as stated in young Alexander's letter) *fixed on the map*; and if you do not hold the map or the papers upon it to be genuine, you will consider how the two sets of papers are affected by each other—the one produced at the same moment to confirm that which had been produced before." As for the superscription, "Some of my wife's family papers," the "writing on the cover," said Lord Meadowbank, "may be genuine, while the documents said to be contained in it may be forged; original enclosures may have been withdrawn, and others substituted."—"If you have arrived at the conclusion that the documents at the back of the old map are forgeries, (and how you are to do otherwise it is difficult for me to imagine,) I think you will not find it very easy to disconnect *this reference to the inscription*, and to the alleged genealogy of the persons with whom it was the object of the prisoner to connect himself, from these documents, or to entertain any reasonable doubt that both are in *pari casu*—were fabricated with the view of bolstering up one another, and must be alike liable to the imputation of forgery: both sets of documents were exactly calculated for making up those defects in the chain of evidence pointed out by the Lord Ordinary. I shall conclude what I have to say upon this matter with an observation which will have occurred to yourselves—that if you hold *the excerpt charter* a forgery, and that the documents written and pasted upon the back of the map are forgeries, it will be difficult for you not to hold that this must affect in a most material degree the evidence relating to the *other* documents, which the public prosecutor avers to be also forgeries. In other words, if you are satisfied that the proof is clear that *any* of these sets of documents are forged, but that the evidence with respect to others is not so conclusive, you will have to make up your minds whether, considering that the whole are so connected with and bear upon each other,

there can be any good reason for fixing a character upon the one which must not also belong to the other."

We have been thus particular in laying before the reader the just and able observations of Lord Meadowbank on this last portion of the case, chiefly because of the result at which the jury arrived. It seems to us not a little singular that one material enclosure in the De Porquet packet escaped the notice of both the counsel for the Crown and the prisoner, and also the judge: we allude to the Genealogical Tree, professed to be certified by "Thos. Campbell, 15th April 1759," and forming one of the charges in the indictment. If this be really a forgery, it seems one of extraordinary impudence.

Again, then, as in the two former instances, we ask the reader, weighing well the evidence, and particularly the above observations upon it of Lord Meadowbank, to say *Ay* or *No* to the question, Were the documents contained in the De Porquet packet genuine or spurious? Bearing in mind that all three were the contributions of anonymous informants—the excerpt charter, sent to Mr Banks by—he knew not whom; the Le Normand papers, by—an exceedingly mysterious and exalted personage; and the De Porquet packet, by—a third mysterious unknown: the first sent to the confidential agent of the prisoner in Ireland; the second to one of his oldest and most confidential friends at Paris; the third to his bookseller in London. It may also be worth mentioning that neither Mr Banks, nor Mademoiselle Le Normand, nor either of the prisoner's sons, nor his sister, "Lady Eliza Pountney," was called as a witness by the prisoner, nor by the Crown.

There remains to be determined, however, a question of infinite moment to the prisoner—whether, in the event of the foregoing documents, or any of them, being pronounced forgeries, he was guilty of either having forged them, or having used and uttered any of them, knowing them to have been forged? "This," said Lord Meadowbank, with an air of deepening solemnity, "is the heaviest part of the charge against the panel; and I assure you, gentlemen, that in the whole course of my life I never addressed a jury with greater anxiety than I do at present."

Let us pause, however, for a moment, to see how this very grave question was first dealt with by the counsel for the Crown, and then for the prisoner.

I. The Solicitor-General, it will be observed, according to the Scottish mode of criminal procedure, had only one opportunity of addressing the jury—and that after the whole evidence on both sides had been laid before them, and immediately *before* the speech by the prisoner's counsel. In England, the counsel for the Crown speaks also only once, but that before the evidence has been adduced, unless the prisoner call evidence—in which event the counsel for Crown "has the last word," as it is called, "to the jury." This difference may perhaps account for the earnestness with which the Solicitor-General, in the case before us, appears to have "pressed for a conviction"—such is the phrase used on such occasions in England. We are bound, however, to say that, in our opinion, the Solicitor-General did not exhibit any undue or unseemly eagerness; nor approach even towards unfairness, or exaggeration, misrepresentation, or suppression. The prisoner, said he, is at all events, *de facto* the utterer of these various documents, and the presumption is always against the utterer—especially when, as in the present case, these documents were calculated to advance his own direct personal interest exclusively. The *onus* lay on him to prove that he innocently uttered, having been deceived by others. Could the jury, in the face of such a marvellous coincidence of times, of means, of objects, believe that a number of different persons were concerned in promoting the prisoner's objects and interests, and he all the while profoundly ignorant of what was being done? The documents are all proved forgeries; and these he utters, and for the advancement of his own interests alone! In the agony of his difficulty—the crisis of his fate—he goes to France clandestinely, and is proved to have been in constant intercourse with Mademoiselle le Normand, and to have incurred immense pecuniary liabilities to her at that very period; giving, however, a most contradictory account of his relations and transactions with her! Up to the hour of his trial, he had given no explanation whatever of his doings at Paris, whither he went immediately after Lord Cockburn's adverse judgment, and returned so shortly after the discovery of the Le Normand and the De Porquet packets! And Leguix is found selling a map of Canada, of 1703, exactly at the time of the prisoner's being at Paris; and Mademoiselle Le Normand writes to him—"They have found the man on the quay!"

II. The prisoner's counsel made an ingenious, eloquent, and judicious address—very brief, and directed vigorously and steadily towards the

strong parts of the defence, and leaving untouched the formidable points arising out of the prisoner's correspondence with Mademoiselle Le Normand, and the conflicting accounts of his movements and transactions given in his judicial examinations. All the forgeries are charged on, or supposed to be, the act of *one man*—the prisoner; yet not only does no single witness trace the faintest resemblance, in any of the alleged forgeries, to the handwriting of the prisoner, or Mademoiselle Le Normand, but an able witness for the Crown, Mr Lizars, negatives such a fact. Well might the prisoner be deceived—if the documents *were* forgeries—when his counsel, his agents—the Lord Advocate, and the Judge Ordinary, every one concerned during the ten years' litigation—was so deceived, and never once suspected it. Why did not the Crown produce Mademoiselle le Normand? And as to the purchase of the old map of Canada from Leguix, on the Quai Voltaire, he explicitly stated that the prisoner was *not* the man! But there was no evidence of the forgery, and therefore the guilty knowledge, using, and uttering, fell to the ground. If even there were doubts on the subject, the prisoner was clearly entitled to the benefit of them: his character "was everything;" for he had received as high as man could give. In an early part of his address, Mr Robertson averred that he saw in the countenances of the jury "the cheering light of an acquittal—so that he could almost stop *there*;" and his last sentence was one which would be deemed highly objectionable on the part of counsel, under such circumstances, in England—"On my conscience I believe him innocent of the crimes here charged, and to have been merely the dupe of the designing, and the prey of the unworthy!"⁵⁴ So solemn an expression of belief could not, of course, have been made by a gentleman if he were not sincere; but it is certainly not a part of the duty of counsel to make such protestations; and in doing so he trespasses beyond his province upon that of others, and that one the confines of which ought to be most jealously and sacredly guarded—we mean the province of the witness, and that of the jury. Bating a little wilful blindness to ugly facts, which is occasionally to be found elsewhere than in Scotland, the address of Mr Robertson was as fair as can be expected from a prisoner's advocate, and calculated to make a strong impression upon the jury.

III. Lord Meadowbank's summing up was long and elaborate: stern and uncompromising from first to last in the expression of a very hostile view of the whole case, as against the prisoner, but still never straining the proved

facts. It is the charge of an upright yet severe judge, not ambitious of replying to the prisoner's counsel, but vigorously expressing his own conscientious opinions.

It is evident that Lord Meadowbank regarded the advantage derived by the prisoner from the presence in the dock of his distinguished friend Colonel D'Aguilar, and also from the very flattering testimony to character which he had received, as likely to prove a disturbing force to the jury in forming their estimate of the case. He therefore, in the first instance, addressed himself with a very evident air of anxiety to this section of the evidence. "That of Colonel D'Aguilar," said he, "of the gallant officer now seated with the panel at the bar,⁵⁵ was not more creditable to the panel than it was to the witness. It proved that his feelings of obligation, long ago conferred, had not been obliterated by the lapse of time; and it was given with an earnestness which, if it told on your minds as it did on mine, must have been by you felt as most deeply affecting.... But in weighing this evidence to the character of the prisoner, you must attend to what that proof really amounts."⁵⁶ He proceeded to point out the chasm of thirty years in their *personal* intercourse; and then exhibited, in lively colours, by way of set-off, the conduct of the prisoner in raising large sums of money on false representations as to his resources—"raising a sum of £13,000 on bonds granted by him for £50,000. All this, gentlemen, is, to say the least of it, a most discreditable proceeding on the part of a person bearing the high character which has been given the prisoner.... It is for you, gentlemen, to consider if the evidence which has been given as to the character he once bore, be or be not counterbalanced by these disreputable proceedings at a later period."⁵⁷

The "evidence of the prisoner having *uttered the whole* of the instruments and documents charged in the indictment to be forgeries has not been called in question by the prisoner's counsel, he not having said one word on the subject. For my own part, I see no ground for disputing that the whole were uttered by the prisoner, and I shall content myself with referring to the evidence of the official witnesses, who received them from the agents of the prisoner; who again, in so producing, and so delivering them, acted under his authority, and were the mere instruments for carrying into effect those

acts for which he alone can be responsible." Shortly afterwards, Lord Meadowbank gave a blighting summary of undisputed facts.

On the 10th December 1836, the Lord Ordinary issued his note, pointing out the evidence that was deficient: "The prisoner admits that he left the country immediately afterwards, and went to Paris. Where he went to then, he does not tell; under what name he went, he does not tell; where he got his passport has not been discovered, because he concealed the name under which he travelled. He continued in Paris till the ensuing August, when he returned, as he says, to Scotland, to be present at the Peers' election, and there he voted. He then despatched his son to Paris, and *he* returned with the map (which you are *now*, in considering the case in this view, to assume to be a fabrication) in the month of October, having all these documents written or pasted upon it." Lord Meadowbank proceeded to point out a circumstance "of the last importance to this branch of the case," which "had been lost sight of by the prisoner's counsel, and had not attracted the attention of the counsel for the Crown." And certainly the judge was right. This was the "circumstance" in question. One of the documents pasted on the back of the map was a portion of the envelope in which the supposed letter of John of Antrim (John No. 2) had been enclosed; and on this envelope was the impression of a *seal*. Now, in the prisoner's judicial examination before the Lord Ordinary, (the step admitted by Mr Swinton to have been "unusual,") he was shown the parchment packet contained in the De Porquet packet, indorsed, "Some of my wife's family papers;" and the seal attached "was an impression of his *grandfather's seal* (John No. 3); he had not seen that seal later than the year 1825; it is in the possession of my sister, Lady Elizabeth Pountney." The judge then pointed out to the jury a fact which he had himself discovered, that the impression of the seal on this packet and that on the envelope on the map *were identical*—a fact, indeed, which the prisoner himself had admitted in another part of his examination. "Now, gentlemen," continued Lord Meadowbank, "supposing there was not another tittle of evidence in the case to connect the prisoner with these proceedings, see what this amounts to. You find a link in his pedigree wanting in December 1836. Immediately after this has been pointed out he is in Paris, and stays there till August. During this short interval he is brought into immediate and close connection with this mass of fabrications, of fabrications of no earthly use or moment to any human being but

himself, and having among them *the impression of that seal which he admits to be in the possession of his own sister*. Gentlemen, suppose that the name of Mademoiselle le Normand had never been heard of in this case, I leave it to you to consider, whether the irresistible inference be not, that that seal could have been appended only by the person in possession of it, and, at least, that that person was within his own domestic circle!"

Next followed some weighty remarks on the evidence of Leguix as to the purchase, by an Englishman, in the winter of 1836-7, of the map of Canada of 1703; and then Lord Meadowbank pointed out certainly a most serious contradiction in the prisoner's statements, under his different "examinations," as to the period of his becoming acquainted with Lord Cockburn's judgment of December 1836. When first examined, on the 18th December 1838, in answer to the direct question when he first knew of that judgment, he declared that "it was not till the month of *March or April* following, [*i. e.* 1837,] that he was made acquainted with that or any part of his Lordship's judgment or proceedings, *except as to their general import*, which he had learned from a letter addressed to him by his own family." Then he was asked whether he had not been made acquainted with Lord Cockburn's judgment in the same month of December in which it was pronounced. He declared "that *he had not*, and even *then*, [*i. e.*, 18th December 1838,] he knew nothing of the particulars of that judgment." On the 14th February 1839, however, on being again examined before the Sheriff, he declared that, "when in Paris, in March or April 1837, he heard that Lord Cockburn had pronounced an unfavourable judgment in his case; and *at that time a copy of the printed papers of the judgment and of the note* was sent him by his family from Edinburgh, and until that time he was not aware that Lord Cockburn had formed an unfavourable opinion of his case!" "Here are declarations of the prisoner, contradictory on matters as to which there could be no error in point of recollection,—an important contradiction, and one testifying a desire of concealment of the truth, which, in all cases like this, has ever been deemed greatly to affect the innocence or guilt of a party." Again, "if these declarations establish the prisoner's knowledge of what had been done by Lord Cockburn, you are bound to consider whether that knowledge does not materially affect the evidence of the fabrication of these documents, as having been known to him, to whom alone they could be useful."

Then Lord Meadowbank came to the prisoner's visits to Mademoiselle le Normand—his having trafficked with her as far back as 1812, since which time he said, "she had been in the constant habit of advancing money to himself and his wife;" and yet her existence, even, was not known to his most intimate friends! Then he admits that he and his wife "desire her to institute a search for documents and charters to support his claims;" that he had never dreamed of searching *in France* for documents illustrative of his own pedigree; and it was with the greatest surprise he afterwards learned that they had been discovered! Then Lord Meadowbank contrasted the prisoner's statements as to the paucity of his visits to this old lady with the evidence of one Beaubis, the porter at the hotel where she resided, and who stated that the prisoner "saw her *every night*." Infinitely more serious, however, were the conflicting answers given by the prisoner, as to the nature and amount of his pecuniary liabilities to Mademoiselle le Normand, which Lord Meadowbank pronounced to be "a mass of contradictions." At one time he stated that he had given her his bond for *four hundred thousand francs*!—then only two bonds for 100,000 francs each, sent by him to her in 1837!—"payable, palpably, on the event of his succeeding in his claims on the Earldom of Stirling. This," continued Lord Meadowbank, "perhaps affords a pretty good key for solving the mystery of the interest that this woman has taken in these productions!" Having adverted to various portions of this old lady's correspondence with the prisoner, which had been seized at his house—certainly containing matters pregnant with violent suspicion—Lord Meadowbank said, "These are the circumstances from which you are to infer, or not, the guilty knowledge of the panel, and of his being, or not, art and part in the forgery of these documents. Remember, it is not said or proved that he forged them with his own hand; the question is, whether he had a knowledge of the forgeries that were going on at Paris during his stay there.... You will judge whether his obligation to Mademoiselle le Normand for 400,000 or 200,000 francs was or was not given for the fabrication of that document. And in looking to that document itself, [*i. e.*, the map with its indorsements,] you will see his statement as to *the seal* on the back of it; and consider whether he be not thereby brought into immediate contact with the fabrication of that document, in consequence of the impression of the seal on its back, which he admits was in the possession of a member of his family." Lord Meadowbank proceeded to advert briefly to "the exculpatory evidence," and said that the fact of the

fabricated excerpt charter having escaped the notice of the Lord Ordinary, and also of Mr Lockhart, was "no doubt a strong circumstance in favour of the prisoner," if that excerpt charter had been *the only* case against him; but it was altogether a different matter when regard was had to the great number of other documents alleged to have been forged, or knowingly uttered as forged, by the prisoner. "Gentlemen," said Lord Meadowbank, "the prisoner *may* have been a *dupe* in all these transactions;... but you have it clearly made out that the only person who enjoyed the fruits of the imposition was the prisoner himself!... Gentlemen, I have now laid before you the whole case as it occurs to me. I have never bestowed more pains upon any case than I have upon this; and in none have I ever summed up the evidence with greater pain.... Our business is to do justice, and you, in particular, have to weigh the evidence calmly and deliberately; and, should you doubt of that evidence being sufficient to bring the present charge home to the prisoner, to give him the full benefit of that doubt. But, to entitle you to do so, these doubts must be well considered, and the circumstances on which they are founded deliberately weighed. To doubts that are not reasonable, you have no right whatever to yield. You are not entitled to require from the Procurator *direct proof* of the facts laid in his charge. The circumstances laid in evidence must be put together; and it is your duty, then, to consider what is the reasonable inference to be drawn from the whole of them: in short, whether it be possible to explain them upon grounds consistent with the innocence of the party accused; or whether, on the contrary, they do not necessarily lead to a result directly the reverse."

The jury, thus charged with their solemn responsibility, withdrew to consider their verdict; and as they were absent for FIVE HOURS, we have time to ask the reader what would have been *his* decision, as one of that jury, on this deeply interesting, this most serious and remarkable case.

First, Were any or all of these documents forgeries?

Secondly, If they were, did the prisoner forge them?

Thirdly, If forgeries, though not by the prisoner, did he use and utter them with a guilty knowledge of their being forgeries?

We regard Lord Meadowbank's summing up as a dignified and righteous one, blinking no responsibility, and making difficult matters plain to the humblest capacity, and leaving no excuse for an inefficient performance of duty. At length, however, after their long absence from Court—a torturing five hours' absence—the return of the jury is announced; the four judges resume their seats with stern gravity and expectation; the agitated prisoner, still accompanied by his chivalrous friend, Colonel D'Aguilar, appears at the bar; the anxious crowd is hushed into silence; and the chancellor (or foreman) delivered in the following verdict:—

I. "The Jury UNANIMOUSLY find it proved that the *excerpt charter is a forged document*; and, BY A MAJORITY,⁵⁸ find it NOT PROVEN that the panel forged the said document, or is guilty art or part thereof,—or that he UTTERED it, knowing it to be forged." [Here arose a burst of applause from the audience, in consequence of which the Court immediately ordered the gallery to be cleared.]

II. "UNANIMOUSLY find it proved that the *documents on the map are forged*; and by A MAJORITY find it NOT PROVEN that the panel forged the said documents, or is guilty art and part thereof, or that he UTTERED them, knowing them to be forged."

III. "UNANIMOUSLY find it *Not Proven* that the documents contained in De Porquet's packet are forged; or were uttered by the panel as genuine, knowing them to be forged."

IV. "UNANIMOUSLY find it *Not Proven* that the copy letter to Le Normand,⁵⁹ in the fifth and last charge of the Indictment, is either forged, or was uttered by the panel as genuine, knowing it to be forged."

As soon as the chancellor of the jury had finished delivering the above verdict the prisoner swooned, and was carried out of court insensible. On one of his counsel certifying to the court, on the authority of a medical gentleman in attendance on him, the continued indisposition of the prisoner, and that it would be dangerous to bring him back into court, his further attendance was dispensed with, the Public Prosecutor consenting; and as

soon as the verdict had been formally approved of and recorded, the Court pronounced the following sentence:—

"The Lords Commissioners of Justiciary, in respect of the foregoing verdict of Assize, assoilzie the panel *simpliciter*, and dismiss him from the bar."

By the law of Scotland a verdict of "*Not Proven*" has the same effect as a verdict of "*Not Guilty*," with reference to liability to a second or subsequent trial on the same charge.

Thus ended, on Friday the 3d May 1839, this extraordinary trial—than which we know none more so on record. That the jury found the slightest difficulty in pronouncing the excerpt charter, and the Le Normand map, with its indorsements, to be forgeries, no one can think probable; but we own our very great surprise at finding them of opinion, and that "unanimously," that the forgery of the De Porquet packet, and the letter accompanying the Le Normand packet, had "not" been "proven." One thing, however, is perfectly clear, that these forgeries could not have been committed by lawyers, either Scottish or English; for the slightest smattering of legal knowledge would have sufficed to show the stark staring absurdity of imagining that such "*evidence!*" could be received or acted upon, for a moment, by any court of justice in a civilised country. In an English court, the De Porquet packet would have been hailed, but for decorum's sake, with a shout of laughter. A single rule of English law, that documents offered in evidence—especially ancient ones—must be proved to have come from the proper custody, would have disposed of the whole matter in a trice.

On what grounds proceeded the verdict of "not proven," with reference to the charge against the prisoner of forgery, or guilty uttering of forged documents, we know not, and it were almost idle to speculate. We doubt not, however, that Colonel D'Aguilar played the part of a guardian angel to his friend throughout his ordeal, and think that the jury attached the utmost weight to the suggestion with which the prisoner's counsel skilfully concluded his address, that "the prisoner had been merely the dupe of the designing, and the prey of the unworthy."⁶⁰ He may, indeed, have been a

weak and insanely credulous person, and may have unconsciously encouraged others to be guilty of forgery, in imaginary furtherance of his own ambitious objects, by the promise of liberal recompense in the event of his being successful—as in the case of Mademoiselle le Normand, to whom he had given a bond for four hundred thousand francs.

In conclusion, we have to express our obligation to the accomplished and learned editor of the report of this trial, Professor Swinton, for the fulness and fidelity with which he has placed it before us. It is a valuable and deeply interesting addition to the records of Scottish jurisprudence; and it is also well worth the while of an English lawyer to procure and study it. Nay, even the novelist may find it well worth his while to ponder its marvellous details.

THE DINNER TO LORD STANLEY.

Fifteen years have elapsed since Sir Robert Peel made his memorable speech in Merchant Tailors' Hall; and the foundation was laid, in the unanimity of three hundred and fifteen independent members of the House of Commons, of that great party which at length proved triumphant in the country, and some years afterwards returned him by a majority of 700,000 out of 1,000,000 of electors, and a majority of 91 in the House of Commons, as Prime Minister of England. The victory then achieved, the triumph then gained, rendered the future a matter of comparative ease in Government, of certainty in anticipation. The nation had spoken out: PROTECTION TO NATIVE INDUSTRY in all its branches—agricultural, manufacturing, and colonial—was the principle which had banded the majority together; and the victory was so great, the bond which united them so strong, that, for this generation at least, all attempts, by external aggression, to shake their government must have proved nugatory. England was once again united: the great cause of domestic industry of the universal people had triumphed. All that was required of its leaders was to have remained true to themselves, to have adhered to their principles, to have proved faithful to their professions; and most assuredly the great majority of the nation would have proved faithful to them. An opening was afforded, a foundation was laid, for the formation of a great NATIONAL PARTY, which, discarding the now senseless divisions of former times, was intent only on fostering the industry of the whole working-classes of the community, and on rearing up, on the basis of experienced benefits and acknowledged blessings, a great and united British empire in every quarter of the globe.

What has prevented the realisation of so glorious a vision? what has stepped between Great Britain and the diadem encircling the earth thus presented to her grasp, and converted an empire which might now have daily, and for centuries to come, been growing in strength, overflowing with prosperity, unanimous in loyalty, into one declining in numbers, shivered in power, divided in opinion? Whence is it that, while the debates in

Parliament are daily filled with the piteous, and, alas! too faithful accounts of Irish destitution, of metropolitan suffering, of agricultural distress, of industrial depression, the colonies are all meditating separation from the mother country, and Government at home, anticipating a severance of the empire which they can no longer defend, are already, like the Romans of old, abandoning the distant parts of the empire to their own resources? How has it happened that, after reading a glowing eulogium in the leading articles of the *Times* on the prosperous condition of the country, the increase of its exports and imports, the cheapened food of its inhabitants, we read in the next columns of the very same paper a piteous statement from Lord Ashley on the frightful condition of the working-classes in the metropolis—a heart-rending account from Mr Reynolds of the daily declining resources and increasing pauperism of Ireland—an alarming statement, from the official return, of the daily increasing importation of foreign grain, at prices below what it can be raised at in this country—a decisive proof, in the monthly return, of the decline of British and increase of foreign shipping—and Lord Grey's circular to Australia and the Mauritius, announcing the approaching withdrawal of the British troops from those valuable settlements? Whence have arisen those obvious and undeniable and well-known symptoms of national decline, immediately after the opening of so glorious a dawn, and when the means of such lasting and universal prosperity had, by the benignity of a gracious Providence, been placed within our grasp?

No one need be told from what these melancholy results, after such splendid prospects, have arisen. *It is dereliction of principle which has done the whole.* A statesman was placed at the helm, of great ability, of unwearied industry, of vast influence, but who wanted the one thing needful for great statesman-like achievement—singleness and consistency of principle. He rose to power by the exertions of the Conservative party; and the first use he made of that power, when fully acquired, was to spread dissension among that party, and for a time destroy their influence. He made himself not the representative of the nation, but of a section of the nation; not of the British empire in every part of the world, but of Manchester and Glasgow. To their interests everything else was sacrificed. The agricultural interest was sacrificed by the repeal of the Corn Laws; the colonial, by the equalising the duties on sugar and wood; the shipping, by

the repeal of the Navigation Laws; the manufactures for the home market, by the unrestrained admission of foreign manufactured produce. The interests of no class were consulted but those of the buyers and sellers of commodities, and of the great manufacturers for the *export* sale, the class from whom Sir Robert Peel sprang; and as the interests of that class are on most points adverse to the interests of the rest of the community, the vast majority are now suffering for their benefit.

The time was when such an anomaly as this could not have existed. Within the lifetime of half the present generation, the interests of the merchant, the manufacturer, and the farmer were identified; and no one of these classes could be benefited without extending the impulse to all the others. The toast of "The Plough, the Loom, and the Sail," was as regularly to be heard at public dinners as that of the "British Constitution, and may it be perpetual." But now neither is heard—they have gone out of fashion together. Whence this extraordinary, this woeful change, in so short a time, and in a nation which has not been subjected to the convulsions of at least a violent and bloody revolution? It is that the principle of protection to native industry has been abandoned by the Government. A section of the community has become so rich and powerful, from the shelter afforded to it during a hundred and fifty years of protective policy, that it has succeeded in setting all other classes at defiance, and changing our policy for its own immediate benefit, but their certain decline and ruin.

This class is that of manufacturers for the *export* sale. When Great Britain was a self-supporting country, as it was to all practical purposes down to 1842, the growth of our manufactures, whether for the home or the foreign market, acted immediately and powerfully on the interests of all other classes, agricultural and commercial, with which they were surrounded. They eat the British or Irish farmer's bread and beef; they were clothed in the British manufacturer's clothing; the machinery they made use of was made by English hands; their goods, when completed, were exported in British bottoms; and the profits of the master manufacturers, who put the whole in motion, were for the most part spent in the purchase of British luxuries and the encouragement of British industry. Thence the universal feeling, that the interest of all classes was identical, and that you could not benefit the one without at the same time benefiting the others. But since the

fatal period when protection was abandoned, this mutual dependence has been done away with—this great and beautiful bond of cohesion has been destroyed. We can no longer give "The Plough, the Sail, and the Loom," at any public dinner. Every one feels that the interests of these classes have now been set at variance. The old fable of the Sheaf of Arrows has been realised. *One* arrow, marked "Protection to Native Industry," has been drawn out, and the whole sheaf is falling to pieces.

It is not surprising that consequences so wide-spread and disastrous should follow the abandonment of the principle of protection to native industry; for it is the cement which alone has hitherto held together the vast and multifarious parts of the British empire. What was it, during the war, which retained all the colonies in steady and grateful loyalty to the British throne, and made even foreign colonial settlements hail with joy the pendants of our fleets fitted out for their subjugation, and in secret pray for the success of their enemy's arms? It was a sense of individual advantage—the consciousness that the Imperial Government on the throne knew no distinctions of locality, but distributed the same equal justice to the planter of Jamaica or the back-woodsman of Canada, as to the manufacturer of Manchester or the farmer of Yorkshire. All were anxious to gain admittance into the great and glorious empire, whose flaming sword, like that of the cherubim at the gate of Paradise, turned every way, and which extended to all its subjects, how distant and unrepresented soever, the same just and equal protection. Norway petitioned to be admitted into the great confederacy, and tendered its crown to Great Britain. Java mourned being shut out from it. The day when the British standard was withdrawn from the colonies, restored with imprudent generosity by victorious England at the peace of 1814, was to them one of universal mourning. There was no thought *then* of breaking off from the British empire; no mention of Bunker's Hill or Saratoga. The object of universal ambition was to gain admission, or remain in it.

And what were the dependencies which were then so anxious to obtain an entrance into, or retain their connection with, the British empire, and are now equally, or more solicitous, to break off from it? They were the West Indies, which at that period took off £3,500,000 worth annually of our manufactures, and employed 250,000 tons of our shipping; Canada, which

has since, with 1,500,000 inhabitants, taken off above £3,000,000, and employed 1,100,000 tons of our shipping; and Australia, which now, with only 250,000 inhabitants, consumes above £2,000,000 worth of our manufactures; while Russia, with 66,000,000, takes off only £1,500,000 worth annually. So vast, various, and growing are the British colonies in every quarter of the globe, that half our export trade had become to us a home trade; and we enjoyed the inestimable advantage, hitherto unknown to any country that ever existed, of reaping domestic profits at each end of the chain which encircled the earth. This it was which held together the British empire, which preserved it intact amidst the greatest dangers, and caused the industry of the heart of the empire to grow with the growth, and strengthen with the strength, of its most distant extremities. In casting away our colonies, in destroying the bond of mutual interest which had so long held them in willing obedience to the heart of the empire, we have voluntarily abandoned our best customers; we have broken up the greatest and most growing dominion that ever yet existed upon earth; we have loaded ourselves at home with a multitude of useless mouths, which cannot find bread from the decline of the colonial market, and let the boundless fields of our distant provinces remain waste for want of the robust arms pining for employment at home, which might have converted them into an earthly paradise, and these islands into the smiling and prosperous heart of an empire which embraced half the globe.

The emigration which has gone on, and has now increased to 300,000 a-year, has done little to obviate these evils: for, since protection to our colonies has been withdrawn, four-fifths of it has gone to the United States, where the principle of protection to native industry is fully established, and constantly acted upon by their Government.

Matters, however, are not yet irremediable. Appearances are threatening, the danger is imminent, but the means of salvation are still within our grasp. All that is requisite is, to return with caution and moderation to the Protective policy which raised the British empire to such an unparalleled pitch of grandeur, and to abandon, cautiously and slowly, the selfish and suicidal policy which is now, by the confession of all, breaking it up. The great party—the NATIONAL PARTY—which placed in Sir Robert Peel's hands

the means of arresting this downward course, of restoring this glorious progress, still exists in undiminished numbers and increased spirit. It has gained one inestimable advantage—it has learned to know who are to be relied on as faithful to their principles, and who are to be for ever distrusted, as actuated only by the motives of ambition or selfishness. It has gained an equally important advantage in having had sophistry laid bare by *experience*. We have now learned, by actual results, at what to estimate the flattering predictions of the Free-Traders. The frightful spectacle of 300,000 emigrants annually driven for years together, since Free Trade began, into exile from the British islands; the proved decline of the taxable income of the industrious classes (Schedule D) by £8,000,000 since 1842, and £6,000,000 since 1846; the rise of our importation of foreign grain, in four years, from less than 2,000,000 of quarters annually to above 10,000,000; the increase of our imports in the last eight years by sixty-eight per cent, while our exports have only increased by fifty-one per cent during the same period; the increase of crime in a year of boasted prosperity to 74,000 commitments, a greater amount than it had ever reached in one of the severest adversity; the diminution of Irish agricultural produce by £8,000,000 in four years, and of British by at least £60,000,000 in value during the same period; the total ruin of the West Indies, the approaching severance of the other colonies from our empire, or their voluntary abandonment by our Government; the admitted increase of the national debt by £20,000,000 during twenty years of general peace;—these, and a hundred other facts of a similar description, have opened the eyes of so large a proportion of the nation to the real tendency of the new system, that it has already become evident, even to their own adherents, that, at latest, at the next election, if not before, the Protectionists will be in power.

Lord Stanley has announced, with the candour and straightforwardness which become a lofty character, what are the principles on which he is prepared to accept office. He was instantly to have taken off the Income Tax, which presses so severely on the industrious classes, and supplied the deficiency, which would amount to about £3,000,000, by a moderate import duty on all *foreign* commodities. The effect of these measures would have been incalculable: it is hard to say whether they would have benefitted the nation most by the burdens which were taken off, or those which were laid on. The first would relieve the most hard-working and important part of the

middle class, and let loose above £5,000,000 a-year, now absorbed by the Income Tax, in the encouragement of domestic industry; the second would produce the still more important effect of enabling the nation to bear the burden of the necessary taxation, and compel the foreigners, who now so liberally furnish us with everything we desire *tax-free*, to bear the same proportion of our burdens which we do of theirs. A large part of the taxes of Prussia, and all the Continental States—the whole of the American—is derived from import duties; and in this way our artisans and manufacturers are compelled to pay a considerable proportion, probably not less than a half, of the national burdens of these states. Meanwhile their rude produce is admitted duty free to our harbours, so that we get no part of our revenue from them. They levy *thirty per cent* on our goods, and the whole of that goes to swell their revenue, to the relief of their subjects; we levy *two or three per cent* on their grain, and the miserable pittance is scarcely perceptible amidst the immense load of our taxation.

The benefit of the fiscal changes which Lord Stanley proposed would have been great, immediate, and felt by the most meritorious and heavily burdened class of the community—the middle class; the burden for which it would have been commuted would have afforded a certain amount of protection to native industry, so as to relieve the most suffering classes engaged in production, and that at the cost of a burden on consumers so trifling as to have been altogether imperceptible.

To illustrate the extreme injustice of the Income Tax, and the way in which it presses on the most industrious and hard-worked, as well as important class of the community, we subjoin a Table of Schedule D (Trades and Professions) for the year ending 5th April 1848; and we take that year in preference to the subsequent ones, to avoid the objection of the commercial crisis of 1848 having rendered the view partial and deceptive.⁶¹ From this important Table it appears that the sums received from persons *under* £500 a-year were—

CLASSES.	Tax Received.	No. of Persons.	Income Assessed.
Under £150,	£73,539	34,270	£2,521,334
£150 and under £200,	178,986	38,825	6,136,676

£200 and under £300,	195,036	29,909	6,686,939
£300 and under £400,	139,904	15,043	4,796,729
£400 and under £500,	89,856	7,324	3,080,766
	£677,321	125,371	£23,222,444

And the incomes above £4000 stood thus:—

CLASSES.	Tax Received.	No. of Persons.	Income Assessed.
£4,000 to £5,000,	£50,500	400	£1,731,412
£5,000 to £10,000,	149,740	788	5,133,931
£10,000 to £50,000,	191,687	371	6,572,146
£50,000 and upwards,	50,184	22	1,720,593
	£442,111	1581	£15,158,082

CLASSES.	Income on which the duty is charged.	Number of Persons in each Class.	Amount of Tax received from each Class.
	£		£
Under £150 a-year	2,521,334	34,270	73,539
£150 and under £200	6,136,676	38,825	178,986
200 " 300	6,686,939	29,909	195,036
300 " 400	4,796,729	15,043	139,904
400 " 500	3,080,766	7,324	89,856
500 " 600	2,858,869	5,532	83,384
600 " 700	1,884,934	3,043	54,976
700 " 800	1,542,040	2,124	44,976
800 " 900	1,417,502	1,713	41,343
900 " 1,000	821,923	875	23,973
1,000 " 2,000	6,832,015	5,234	199,268
2,000 " 3,000	3,431,064	1,483	100,073
3,000 " 4,000	2,342,674	703	68,328
4,000 " 5,000	1,731,412	400	50,500

5,000	"	10,000	5,133,931	788	149,740
10,000	"	50,000	6,572,146	371	191,687
50,000 and upwards			1,720,593	22	50,184
			59,511,547	147,659	1,735,753

Note.—From a Return ordered by the House of Commons to be printed 31st May 1849.

So that out of £1,685,977, which was the sum received from persons in trades and professions in Great Britain that year, no less than £677,000 came from 125,371 persons whose incomes were under £500 a-year, while only *one thousand five hundred and eighty-one* persons were assessed as having incomes above £4000! This dreadful tax therefore is, *par excellence*, the shopkeeper's, manufacturer's, and professional man's tax; and they are assessed for it in numbers sixty times more numerous than the rich. And yet the assessment of all is laid on at the same rate! Is it surprising that the Chancellor of the Exchequer said, in support of this tax, that it was so unjust to all, that no one was worse off than his neighbour, or had any reason to complain? And let every tradesman, manufacturer, clerk, and professional man, who pays this odious and unjust tax for the next three years, recollect that he owes the burden *entirely to the Free-Traders*; for if they had not been in a majority in the House of Commons, Lord Stanley would have come in and taken it off.

Two statesmen, belonging to different schools, have come prominently forward during the late Ministerial crisis; and to one or other of them, or perhaps to both alternately, if they live, the destinies of the empire, for a long period of time, will in all probability be intrusted. These are Lord Stanley and Sir James Graham. Both are men of great ability, vast application, extensive experience, tried business habits, great oratorical and debating power; but, in other respects, their characters are as opposite as the poles are asunder. As usual, in such cases, while their characters bear the marks of distinct individuality, they are the types or representatives of the two great parties which now divide the British empire. The first is straightforward, intrepid, and manly—patriotic, but not vacillating—willing to undertake the burdens of office, but unwilling to do so unless he can

carry out the principles which he deems essential to the salvation of his country. The second is ambitious, cautious, diplomatic, desirous of power, but fearful of the shoals with which it is beset; and desirous so to shape his policy and conceal his intentions, as to avoid shipwreck by coming openly into collision with any powerful party in the state. The *device* of the one is the steady polar star of duty; the guide of the other the flickering light of expedience. The first refused the Premiership when offered to him by his sovereign, because he thought the time had not yet arrived when he could carry out his principles; the latter has so often changed his side, and held office under so many parties, that no man alive can tell what his principles are. The first broke off from Sir Robert Peel in office, when he deserted his principles; the latter deserted his principles to join Sir Robert Peel when entering on power. The first, while still in opposition, has already announced to the country what line of policy he is determined to adopt if placed in power; the last has talked of a mutiny in the army as a reason for continuing the ruin of agriculture, and a rebellion in Ireland as a reason for tamely submitting to Papal aggression. The one is of the true breed of the British lion, the other a mongrel cross between the Whig and the Free-Trader.

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FOOTNOTES:

1

LONGFELLOW's *Poetical Works*.
BRYANT's *Poetical Works*.
WHITTIER's *Poetical Works*.
Poems. By JAMES RUSSELL LOWELL.
Poems. By O. W. HOLMES.

2 "What was the star I know not, but certainly some star it was that attuned me unto thee."

3 *Lettres sur l'Amérique*. Par X. MARMIER. 2 volumes. Paris, 1851.

The United States and Cuba. By JOHN GLANVILLE TAYLOR. London, 1851.

4 *La Havane*. Par Madame la Comtesse MERLIN.

5 Thick clumsy buckskin gloves.

6 Amongst these, Professor James Johnston now takes honourable rank. His valuable *Notes on North America* reached us too late for notice in the present article—admitting even that they could with propriety have been included in a review of works of a lighter and more ephemeral character. His volumes, which address themselves particularly to the agriculturist and emigrant, are replete with useful information, and we shall take an early opportunity of drawing attention to their instructive and interesting contents.

7 A species of gigantic reed or cane, which attains an elevation of fifty feet, in clumps of two or three hundred stems.

8 *The Book of the Farm*. By HENRY STEPHENS, F.R.S.E. Second Edition. 2 vols. 8vo. Blackwood and Sons, Edinburgh and London: 1851.

9 Those acquainted with the writings of Tull, Arthur Young, Marshall, and Elkington, must know that, although not exempt from errors, they evolved the leading principles of a right agriculture. Indeed, we would seem almost to be recovering only the lost principles and practices of the Roman farmers of old. They seem to have known the mode of manuring ground by penning sheep upon it—nay, what will astonish Mr Mechi, they practised the plan of feeding them in warm and sheltered places with sloping and carefully prepared floors, upon barley and leguminous seeds, hay, bran, and salt. They knew the advantage of a complete pulverisation of the soil, and the necessity of deep ploughing. Their drainage was deep, and if Palladius does not mislead us, they seem in certain cases to have employed earthenware or tile-drains. But to those who wish to know more of Roman husbandry, and who may not have leisure or opportunity to

consult the originals, we have great pleasure in recommending Professor Ramsay's (of Glasgow) paper entitled "Agricultura," in the last edition of *Smith's Dictionary of Greek and Roman Antiquities*,—an admirable specimen of condensed erudition.

[10](#) *Modern State Trials*: Revised and Illustrated, with Essays and Notes. By WILLIAM C. TOWNSEND, Esq., M.A., Q.C., Recorder of Macclesfield. In 2 vols. 8vo. Longman Co., 1850.

[11](#) The duty here performed by the President of the Court is in England discharged by an officer of the Court called the Clerk of Arraignment.

[12](#) This was subsequently altered to "*claiming to be* Earl of Stirling."—Swinton, p. 48.

[13](#) *Ante*, p. 477 *et seq.*

[14](#) Bell's *Dictionary of the Law of Scotland*, p. 844. In civil cases this rule is reversed.—*Id. ib.*

[15](#) Alison's *Practice of the Criminal Law of Scotland*, p. 651.

[16](#) Swinton, p. 196.

[17](#) *Ante*, p. 470, *et passim.*

[18](#) *Ante*, p. 474.

[19](#) Swinton, p. 309.

[20](#) Per Lord Meadowbank, *Id. ib.*

[21](#) *Id.*, p. 84.

[22](#) *Id.*, p. 94.

[23](#) *Ante*, p. 473.

[24](#) Swinton, p. 205.

[25](#) *Ante.*

[26](#) *Id.*, p. 475. Swinton, App., p. vii.

[27](#) *Ante*, p. 484.

[28](#) Swinton, p. 311. This seems a slight inaccuracy, on the part of the learned Judge, of fifty-eight instead of fifty.—*Ante*, p. 484.

[29](#) *Pref.* p. xxi.

[30](#) Swinton, p. 209.

[31](#) When the precept issues in favour of a Writer to the Signet, or of the Keeper of the Signet, (as Lord Stirling then was,) the precept passes the signet *gratis*: and that word is written at the bottom.—Swinton, p. 84.

[32](#) *Ante*, p. 470.

[33](#) *Ante*, p. 483.

[34](#) Starkie On Evidence, vol. i. p. 8, note G. 3d ed.

[35](#) See the Pedigree, *ante*, p. 473.

[36](#) Swinton, Append., p. xxiii.

[37](#) *Id.*, p. xxix.

[38](#) *Ante*, p. 484-7.

[39](#) See it *in extenso*, *ante*, p. 486.

[40](#) *Ante*, p. 475.

[41](#) Swinton, pp. 143-4.

[42](#) *Id.*, App. lviii.

[43](#) Swinton, p. 237.

[44](#) *Ante*, pp. 466, 480.

[45](#) *Ante*, p. 480.

[46](#) *Ante*, p. 467.

[47](#) *Ante*, pp. 481-2.

[48](#) Swinton, p. 263.

[49](#) Swinton, p. 263.

[50](#) *Ib.* p. 265.

[51](#) This superscription was charged in the indictment as a forgery.

[52](#) *Ib.* p. 293-4.

[53](#) Swinton, p. 324.

[54](#) Swinton, p. 333-4.

[55](#) Such a thing would not be allowed in England, except, probably, under very special circumstances. We never witnessed anything of the kind.

[56](#) Swinton, pp. 333-4.

[57](#) *Ib.*, pp. 335-6.

[58](#) In Scotland, the verdict in a criminal case is according to a majority of the jury; in a civil case they must be unanimous.

[59](#) This was the anonymous letter to Madlle. le Normand, dated the 10th July 1837, accompanying the map professed to have been left with her so mysteriously on the ensuing day. See it *in extenso* in our last Number, p. 482.

[60](#) Swinton, p. 300.

[61](#) *Table showing Number of Persons charged for the Income Tax, and Sum received, for the Year ending 5th April 1848 (under Schedule D.)*

Transcriber's Note:

Inconsistent spelling and hyphenation are as in the original.

*** END OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
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